

The  
**New York Tombs,  
Inside and Out!**

by  
**John Josiah Munro**





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Title: The New York Tombs Inside and Out!

Author: John Josiah Munro

Release date: November 5, 2020 [eBook #63641]

Most recently updated: October 18, 2024

Language: English

Other information and formats: [www.gutenberg.org/ebooks/63641](http://www.gutenberg.org/ebooks/63641)

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John L. Munro



John J. Munro  
Ex-chaplain of the Tombs.

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————— THE —————

New York Tombs

Inside and Out!

*Scenes and Reminiscences Coming  
Down to the  
Present.—A Story Stranger Than  
Fiction,  
With an Historic Account of  
America's Most Famous  
Prison.*

By

JOHN JOSIAH MUNRO,

Ex-Chaplain of the Tombs.

*(Illustrated)*

BROOKLYN, N. Y.

Printed and Published by the Author,  
at 186 Ainslie Street.

PRICE, \$1.50.

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John J. Munro,  
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THOMAS J. BLAIN, PRINTER,  
PORT CHESTER, NEW YORK.



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## INTRODUCTION.

By Rev. Madison C. Peters, D. D.

I have known the author of this book for many years. He was once associated with me in my ministerial work. I know all about his work as Chaplain of the Tombs, and have often spoken with him about the conditions prevailing in that institution, and have again and again urged him to tell the public all he knows about its inside workings. I have every reason to believe from what I know of the author, that he has written a true story, one which every citizen of Greater New York should read, and which ought to arouse the red-hot blood of every lover of his kind.

The book ought to be in the hands of every clergyman, lawyer, physician, and of every good citizen. It will furnish material for sermons and addresses, and give impulse and impetus to all the workers for social betterment, and bring to us the blessings of Him who said: "I was in prison and ye visited Me."



## THANKS.

In the preparation of this work, I feel I am under lasting obligations for discriminating advice and kindly suggestions tendered me at different times by many friends. But I am under special debt to Mr. George H. Sandison, Managing Editor, and J. A. Belford, Art Editor of the Christian Herald, for valuable suggestions.

I also express my sincere thanks to the Rev. Madison C. Peters, D. D., whose clarion voice against wrongs and abuses of various kinds has been heard all over Greater New York, for many helpful suggestions. I am also thankful to many of the New York magazines and papers for kind words and much interest in articles of mine on Prison Work that have appeared from time to time. These magazines and papers include Harper's Weekly, Success, Van Norden, Intelligencer, Christian Advocate, Examiner, Press, Presbyterian, Witness and many others.

I extend my thanks also to Messrs. Harper & Bro., for the use of a cut, and to the Evening Journal for the loan of photographs.

THE AUTHOR.





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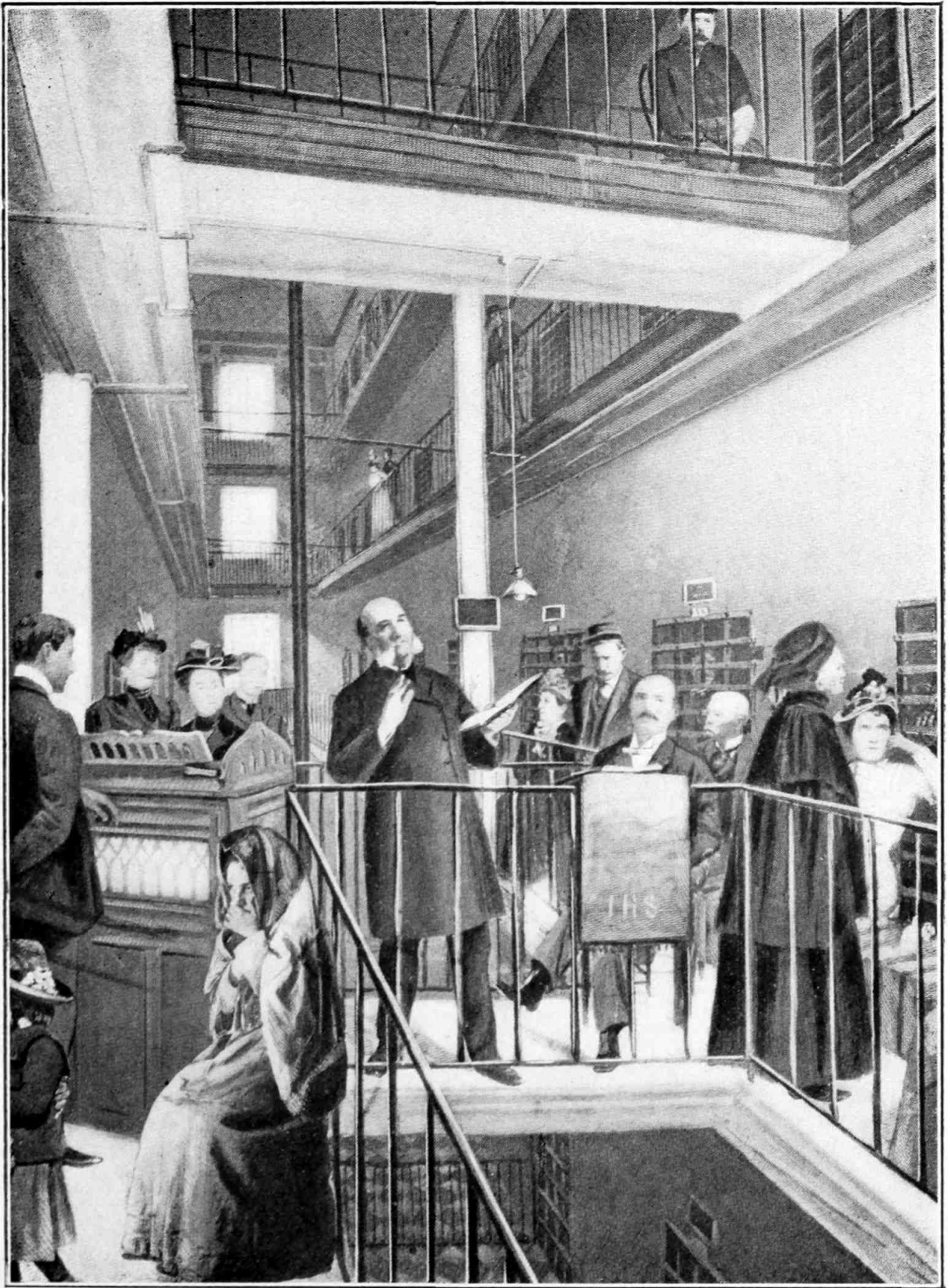
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A Sunday morning service in the old Tombs prison.



## FOREWORD

### Some Personal Experiences

My first visit to the grim old Tombs Prison was in the early part of 1875. I have never forgotten that visit and the deep impression it left on my mind. The scenes I witnessed that day have come back to me scores of times and I have wished that I had the power to have changed the things I then saw. At any rate, that memorable experience started in my soul a deeper sympathy and pity for erring humanity.

Afterwards I spent much time visiting the old prison, as I had the opportunity, and I found it a splendid place for the study of human nature, and especially the criminal side of life.

When speaking to New Yorkers of the scenes I had witnessed in this prison, I found them to be densely ignorant of its history and management. Why should they take any interest in the old Tombs? New Yorkers are too busy in commercial pursuits to give much time to such trifles! I found, however, after they were aroused on the subject of abuses they wished to know everything, and they wondered like myself why politics should be allowed to have such a controlling power in the City Prison.

At this time I was a lay missionary. My field of labor was the old "Red Light District." This part of New York was not as densely populated as now. It contained a large number of people, mostly of the thrifty Irish and German class. It had many large tenements which contained from eight to twelve families, which were veritable "bee hives" of the human species.

While visiting, not far from Essex Market Court, a lady informed me that a member of my Sunday School was then in the Tombs, and asked me to go and see him. This was new work for me and I confess, I did not know how to go about it. I called to see the boy's mother, who kept a beer garden in

the neighborhood. But I could get nothing out of her, and came away feeling that my labor was all in vain. The woman was so much absorbed in her saloon business and so benumbed and besotted with beer that she seemed devoid of all motherly instinct and feeling. And she seemed not to care the snap of her finger about her boy.

After a good deal of difficulty I made my way to the Boys' Prison in the Tombs, which was in the rear of the building. To my amazement I found a crowd of young thieves and pickpockets huddled together, and this Sunday School lad in the midst. In those days the authorities made no attempt at segregation or discrimination. The boys were all together, cursing and howling like a lot of devils! I was pained beyond measure, and I regret to say when I returned to the City Prison after nearly twenty years, almost the same condition existed. I found the Boys' Prison in a filthy condition—damp and foul, more fit for hogs than human beings, and this besides the continual noises, yelling, howling, cursing, swearing and cat-calls in ten languages!

I made a hurried investigation and saw the authorities, after which the boy was discharged and returned home. He never forgot his experience in that gloomy old prison! I kept watch of him but I do not think he was ever the same person. Those few days in the Tombs as the companion of thieves and pickpockets not only marred his future life but came near blasting his usefulness forever!

I kept up my interest in the poor, gaunt, ill clad, badly fed and poverty stricken unfortunates of the old Tombs, a large number of whom were criminals simply because of their social conditions and for no other reason. I was a frequent visitor till my graduation from Union Theological Seminary in 1880.

In 1897 I again took up my residence in New York. I felt my interest in prison labors come back with the freshness of youth, and at once gave my Sundays to the prosecution of the work.

I have found that the Boys' Prison has always been the hardest department to manage in the entire Tombs system. Sometimes a keeper was placed in charge who knew how to handle boys. But in later years the conditions were worse than ever. We knew one keeper who was a common scold. He swore at the boys and they swore back at him, using the most



vulgar and lurid profanity. Then they would steal from each other, fight among themselves like old time pugilists and they could always depend on outsiders to smuggle in cigarettes and blood curdling dime novels. On account of the lack of discipline, the Boys' Prison became one of the most proficient Schools of Crime. Here they learned to become expert pickpockets under the very nose of the prison authorities!

I have often told my friends when showing them around the building I would rather bury a relative of mine than have him spend a week in this dirty, immoral pest hole. During the past five or six years there has been an average of 75 to 80 boys a day in this prison, and shocking to relate, one-half have frequently to be treated for venereal disease. If you want your boy to be a full-fledged degenerate and outcast send him to the Tombs Prison, for only a few days, and when he comes out of this School of Crime he will dare anything in the line of criminality!

It is a fact that cannot be denied that in this prison some of the boys plan crime and execute it on the outside. This has been proven scores of times, when these young crooks return to the prison on fresh charges. If you question them they will admit that they received their incentive to do crooked deeds while in the Tombs. Those who are sent to the Protectory and the House of Refuge are seldom improved when they come out. Barney McGill, who had been a lieutenant in the Navy during the Civil War, was one of the best and kindest of keepers. He was in the Department of Corrections for many years and was noted for his outspoken fidelity. While in charge of the Boys' Prison a few years ago, he wore a gold watch and chain exposed to view. Some of the "kids" thought it was a "dead-easy" thing to get Barney's watch. An East Side boy named Mickey Cohen, promised to secure it without much trouble. One morning this young crook called Barney to his cell and said, "Keeper, I want to speak to you. Excuse me, I am afraid to speak loud 'cause if some of dese kids hear it, dey will kill me." "Speak out, my little man," said Barney, "I will see that no one harms you." Then he told Barney a "fake" tale of some boys who intended to escape. While he was doing this he stole Barney's watch, leaving the chain dangle in front of his vest. In half an hour Barney missed his gold watch. After threatening to "kill" a half a dozen of the suspicious crooks, the guilty one confessed. Afterwards the watch was found in the cell mattress.

When Jimmy Hagan was boss of the Tombs he took Billy Evers from Murderers' Row and sent him to the Boys' Prison for some trifling offence. Billy was a good keeper and a favorite among the boys. He had a fatherly way of getting around them and into their affection. He never swore at them! Whenever I made trips to Sing Sing in after years in the interest of the discharged prisoner and met any of the old boys they were sure to ask after Billy Evers.

Then there was Larry Creevy. Some boys were afraid of him but he knew how to keep them in their place. Then there were John O'Connors and Mike Breen, two most excellent keepers. Under John E. Van De Carr, who can truthfully be called the Prince of Wardens, the Boys' Prison was carried on above reproach!

It is needless to say that some of these boys were the children of well-to-do parents who allowed them to be sent to the City Prison for the "scare" it would give them. But it had no apparent effect on most of them. Many times a mother in silks and satins with a full display of jewelry would visit the Prison. One day a mother went to one of the judges to ask clemency for her boy who was up for sentence. The judge was disposed to be lenient with the lad as he was not a thief. But the Court had made inquiry and learned that the parents were more to blame for his downfall than the boy. I was glad the judge spoke as he did, before he got through that mother's face was crimson. "Woman," said the judge, "why don't you look after your boy? You are responsible for his disgrace. You go out at night to the theatre and other social functions, and while you are having a nice time your boy is going to the Devil! If you promise to stay at home and try and bring up your boy the proper way, I will suspend sentence." She did.

For several years after I went to the Tombs there was a man who acted as school teacher and probation officer, whose vile relations with the boys in his rooms on Chrystie street, was scandalous. Several had confessed to me as well as to Father Smith, the Catholic Priest. As soon as I learned that the shocking information was true, I sent the boys and their parents to Commissioner Hynes, and with the aid of Justice Meyers of Special Sessions he was "bounced." The general opinion at the time was that the brute ought to have been sent to Sing Sing for twenty years. Warden Van De Carr deserved great credit for the help rendered on this occasion. These and similar abuses have been going on in our prisons for years, but no body is

willing to stop them or expose them? The present missionary mollycoddles would not dare to speak against them, and as far as the Tombs abuses are concerned the Prison Association has been dumb on these and similar subjects. The courts find it hard to secure the right kind of Probation officers. This is especially true in regard to Boys. A loud mouthed, untruthful grafter should not be allowed to manage boys under any circumstances. There are two notable exceptions, one in Brooklyn and the other in New York—both reliable men, Messrs. Baccus and Kimball.



## CHAPTER I

### WHAT I KNOW ABOUT THE TOMBS

No prison on the American continent has had such an unsavory reputation as a corrupt grafting institution as the New York Tombs. This has been especially true when City politics had decreed it to be in charge of the House of Grafters on Fourteenth Street.

In giving my personal experience of what I have beheld with my own eyes in America's greatest criminal barracks, I do so with the sole object of letting the light in, and making it easier, if possible, for future unfortunates who may be domiciled here for any length of time.

For many years the Tombs Prison has been the happy hunting ground for graft and "rake-offs" of various kinds, given in return for all kinds of privileges. Money has always been used to awaken the darkest passions in man, those who are mad for the "dough" take all kinds of chances to secure it.

To the daily visitor who comes to the City Prison, everything looks beautiful and serene on the outside. But the careful observer sees things in a different light and as he reads between the lines he can detect the spurious from the genuine.

In endeavoring to carry on the work of a prison from a business standpoint we must rid ourselves of everything romantic and deal only with facts and common sense. It is not a pleasant task to expose infamy, no matter where it is found. And you can rest assured that the one who dares do it will be rewarded with invective, abuse and slander. On the other hand, to pass it by without making some effort to change the wretched conditions is cowardly.

The stories told of the abuses of the Tombs seem as strange as the Arabian Nights! But most of them were true and would have made fine reading for the average New Yorker, but graft kept them out of the newspapers and from publicity.

One of the earliest “bombs” that struck the City Prison, was hurled by an inmate named Ruth Howard during the sitting of the Mazet Committee, in 1897-8. The Committee threatened to make an investigation and expose the vile conditions which then existed. In her letter to the Committee, Mrs. Howard describes the place as grossly immoral and, of course, excoriated several of the officials by name. It was the general opinion at the time that if the case had been pushed against these Tammanyites they would soon be wearing striped suits either in Sing Sing or Blackwell’s Island. After this the Commissioner refused to allow certain ones to inspect the Women’s Prison.

For a number of years charges have been made at various times against the Tombs Prison in general and the Department of Corrections in particular, which many of our City newspapers and a score of criminal lawyers who have come in contact with the conditions have known to be true, but nothing has been done to clean out this sink of iniquity.

Whenever any person has had the courage to call attention to the grafting abuses, common assaults, whiskey and dope smuggling and other unseemly conduct of the Tombs officials, the usual response was “Traitor, humbug, liar,” and a volley of anathemas! Such an answer sufficed for the time being. Frequently these officials would resort to a “white wash” paper, signed by missionaries and other hangers-on in the building who would be compelled to affix their names to the document or else be “bounced.” It seems to me all such whitewash “buzzards” were no better than the real inmates of the cells!

I recall now when I first went there that there were two Wall Street swindlers in the old Prison who were said to be rich. They had sumptuous privileges. One of these crooks fought for his liberty in the state and federal courts but did not succeed, but as he had the ready cash on hand he found a good cell in the annex. He had everything he desired. The other man who was convicted, but had appealed for a stay, fought against being bled any longer and was removed to an inferior cell. I remember he sent out for reporters that he might give them a tale of oppression, but they were not

allowed to see him. The “grafters” told the newspaper men that the fellow was crazy.

In those days some of the abuses were of a gross sensual character and had been going on for years but who would dare speak against them? And so the grafters had everything their own way!

I have nothing but kind words for the excellent work of the Hon. Thomas W. Hynes, who was an ideal Commissioner during the Mayor Low administration. Mr. Hynes was an honest, upright and fair Commissioner and sought in every way to keep his department clean. He removed Warden Flynn and it would have been well if the Courts had left him out as he certainly has made a poor Warden.

## Whiskey, Gambling and Other Privileges

When Warden Bissert was an involuntary inmate of the Tombs in the fall of 1901, he had so many privileges and such an old-fashioned good time that many persons rightly concluded that he owned the City Prison. Not only did he eat, drink, smoke the best Havanas and play cards at the Warden's table, but he was allowed to receive from ten to thirty plain clothes policemen as his visitors daily! They had no passes whatever when they came to the Tombs, but these were not necessary. All they were required to say to the gateman was, "We are the Wardman's friends." On Sunday afternoons, when everything was quiet, a woman was allowed to pass through the front gate, enter a cell and be with a prisoner for immoral purposes! The Keeper had orders to allow her pass into the prison. I watched her enter the corner cell in the annex, which had a gas jet, she came every Sunday for weeks and usually stayed an hour. Nor was this an uncommon occurrence. Francis J. Lantry was Commissioner of Corrections, James Hagan, Warden, and William Flynn, the present Warden, was head keeper. Did I speak about it at the time? Certainly. And an investigation was promised but like all of Tammany's investigations it never came!

The city cops that came daily to see the wardman always brought a plentiful supply of whiskey. And judging from the number of empty bottles found around the ten-day house, the quantity consumed on the premises was enormous. And often keepers, "trusties" and prisoners were found more than half drunk.

In these days Joe Williams, ballot-box stuffer, who was afterwards sent to Sing Sing for a term of years, had special privileges. Joe was seldom locked in his cell night or day. Many months afterwards when I personally visited Auburn Prison, I found a man who had been at that time in the "hall" with Williams; he informed him that the reason Williams had so many privileges bestowed on him was on account of being the "graft collector" in the ten-day house.

Williams, "Jimmie" Maguire and other trusties, were often "paralyzed" drunk in the tiers with the whiskey brought in for Bissert's benefit. "Jimmie" Maguire had been in the Tombs no less than twenty times to my



knowledge for drunk and disorderly conduct, and worked most of the time in the kitchen under the colored chef.

Every afternoon when the visitors had gone, keepers and inmates in various parts of the prison sat down and boldly “picked out” the winners of the races. And some made “books.” Then an official would be dispatched to a pool room opposite the Criminal Court Building, said to be over Tom Foley’s gin mill. This kind of gambling was kept up in the Tombs daily, Sundays excepted, for years under Tammany Hall. The prisoners saw the officials gamble and they in turn made “pools” and sent their money where it could do the most good.

This gambling became such a nuisance that it became known on the outside. A gentleman well known around the Criminal Court Building told me afterwards that to make sure of the rumor he sent a betting “commissioner” to the pool room over Tom Foley’s saloon and he waited there till the Tombs runner came and laid several bets on the ponies.

When I saw how the poor unfortunates were being robbed and ruined, by the prison gamblers, I made bold to go to Lantry and asked him to stop it. I saw at once that I touched him, for he got red in the face. He called Warden Flynn over the telephone and gave him a “roasting.” What he said after I left the room, I have no idea, but when I reached the Tombs I found that some persons had been struck by a cyclone. Thanks to Mr. Lantry, the regular pool room messenger had been “fired” to Blackwells Island and for several weeks the gamblers in the prison went out of business. But in a short time the crooked work went on as brisk as ever. At any rate, I relieved my conscience of a painful duty in the matter and stopped the mean business for a season. I wish now that I had called on Mr. Jerome and he might have sent the “bunch” to the Penitentiary.

From that time on these gambling officials became my Nemesis. They hated to see me around the Tombs. Commissioner Lantry afterwards told me that I was the only person among Catholics, Jews and Protestant missionaries that ever personally complained against the rotten conditions in the Tombs. But then cowards are afraid to tell the truth!

## Steerage

The way that lawyers have been robbed of their clients the past few years in the City Prison has become a public scandal. Almost every day there is a fight in the vicinity of the Counsel Room. It is the old story, some reputable lawyer is fighting for his rights because an official has stolen his client and given him to a “shyster.” It is said that thousands of dollars a year have been passed to certain ones, who have been the real “steerers,” and not the keepers. The Bar Association should investigate and remedy this evil. There are a dozen reputable lawyers in New York who are ready to furnish satisfactory evidence of this bare-faced thievery and grafting. These corrupt officials should be bounced, and a new Diogenes sent around the State with a searchlight under his wing in an endeavor to find some honest men to take their place.

Old time “steerers” in the palmy days made plenty of money in securing lawyers for prisoners. I recall a man who had secured a lawyer through one of his friends while in the District Prison. It was a homicide case. When he came to the Tombs one of the keepers persuaded him to give him up. The keeper approached him, thus, “Say, who is your lawyer?” “So and So,” was the reply. “Well, let me tell you, he is no good. You will have a chance of going to the Chair or away for life!” “It’s only manslaughter, my lawyer says.” “Don’t make any difference,” said the keeper, “I am telling you for your own good. Give him up. Why don’t you get Mr. ——?” So he secures Mr. —— and that keeper gets the graft from the lawyer.

When a certain politician was the boss of the City Prison, it was said by the knowing ones that all homicides as soon as they gave their pedigree at the desk were marched to the warden’s office where they were privately catechised to know whether any “steerer” of the prison had been giving them information about lawyers, and then informed that it was not necessary for them to go to Court to get counsel, that he would out of the goodness of his heart look after their interests and assign them a lawyer. Two or three shyster firms had the murder cases during this “regime,” at \$500.00 per head, which was the amount of money allowed by the State for the defence of every murderer, less one-half, which went to the “grafter.”

Thanks to Judge Rosalsky, who has made it a rule that no prisoner in the Tombs can change his attorney without the consent of the court.

## The Prison Food

The bread given to the prisoner comes from Blackwell's Island. It used to be said that it was an inferior quality to that given to the "cons" in the penitentiary. It was often so black that it had to be thrown away, and frequently the dogs would not eat it. The tea and coffee was colored water and the daily soup was mighty poor stuff. When I asked a wise official to explain, he said, "Can't explain; some guy is getting rich." It used to be a prisoner could get a small piece of meat once in a while if he paid the captain of the tier five cents! The Friday clam soup used to be horrible! They said it stank like the devil! Holy angels, what stuff to give to human beings. Hear the profane expressions of disapproval from the prisoners as it is taken to the cell doors. "D—— that chowder, take it away at once. The first time I ate it, it nearly killed me." Perhaps from another tier could be heard as they passed the stinking stuff along, "Not for me. Send for the coroner and the grand jury, call Jerome."

## Abusing the Unfortunates

Some officials shamefully abuse the prisoners for a small offence and in turn the prisoners curse them in the vilest profanity.

In the early morning of July 4th, 1906, a colored man named Cambridge called loudly for help. A night keeper responded. When he reached the cell door he said, "What do you want?" The sick man replied, "Keeper, get me a doctor, I am very sick." The answer of the official was, "Go to hell and put a cloth around your head." In the morning Cambridge was carried to the hall where he died the following day. When I spoke to an official about it he said it was nobody's damned business. But this was common treatment toward moneyless unfortunates!

## Special Privileges

When a West Side gambler was in the Tombs charged with murder, he had a fresh bottle of whiskey brought to him almost daily and he made no bones of the matter. Of course, it could not come into the Tombs without money, of which B. had an abundance. One of the keepers said to me that he saw the warden drinking whiskey with the murderer in his cell. But this was nothing!

Scotty Young, who had spent two years in the Tombs awaiting trial, was another prisoner that had special privileges. Scotty bragged that he had his whiskey daily and none dared molest him. What kind of a “pull” he had, never could be learned, as he was never known to have any more money than he required for his personal needs. That “Scotty” had special privileges none can deny; when a keeper tried to take away a large piece of broken mirror, a pocket knife, a razor and other deadly things from him, he was told that the warden gave him special permission, and of course, that ended it.

## The Grand Jury

Every month at the close of the term the Grand Jury pays a visit of inspection to the Tombs. This has been their custom for many years. As the warden knows they are coming he puts everything in a “spick and span” order. They receive unusual attention on all such occasions, the discipline is up to the highest pitch and the warden as a rule shows them around. But to the man who can read between the lines this is all “make believe.”

If the Grand Jury should visit the Tombs like a thief in the night, that is, unexpectedly, they would then see the place as it is and would not be imposed upon any longer. If the Grand Jury came to the Tombs on Friday and refused to be led around by the warden, but by a Court official, their eyes would be opened. Perhaps they could be induced to wait around till the noon hour, when they would have an opportunity of at least “smelling” the stinking chowder which the unfortunate inmates are compelled to eat or starve.

If any of the Grand Jury tried to eat some of this unpalatable stuff they would become so deathly sick that a doctor would have to be called and if they ever recovered we fear they would indict the warden on the spot!

Of course the monthly visit of the Grand Jury is known in advance. They are carefully piloted around through the halls where the floors have been mopped that morning and everything made to look “shiny” and neat for the occasion. As a rule they are taken through the new prison and down into the cellar where may be found the machinery all polished and bright.

I would like to lock some of these gentlemen in one of the cells for an hour or two. As is well known, many of these cells are “reeking” with vermin and filth. Not of the Tombs only, but some of the district prisons. I have seen men in the Tombs and in other prisons of the City, who had hardly become inmates before the vermin would literally be found crawling over them.

In summer time when the weather is warm and oppressive, the “Annex bug” (where the misdemeanants are kept) which is said to be an “Asiatic” brand of bug, comes out of the porous brick by thousands and for two or

three months have their “fill” of human gore. I think the main trouble is with the bedding. It is sent to the Workhouse and washed about twice a year in ordinary water, instead of being boiled in a vat of carbolic acid or *aqua fortis*, and beaten for a few days with clubs. Not infrequently visitors and missionaries find vermin crawling over their clothing after they have returned to their homes.



## Politics and the Prisons

I hope the time is not far distant when the prisons of greater New York will be conducted by the State authorities, as is the case in nearly all other countries. They are the proper custodians of the prisoner. It seems to me that this is the only cure for the rank abuses that have existed in these prisons for half a century. Under Tammany as everybody knows, the warden or other official could get as drunk as a lord, abuse everybody in sight and yet be considered a hero! Some men have been suspended for a few days but when the district leader took a hand in the matter that ended it.

Last election day, November, 1908, two members of the State Prison Commission visited Hart's Island and found it deserted. The keepers and orderlies were scattered all over greater New York trying to pile up Tammany votes. For more than two years the Workhouse end of the Island has been in a state of pandemonium. Under Tammany Hall, politics always cuts a wide swath in prison matters. A keeper who refuses to work for votes on election day is considered "no good" and is recommended by the district leader for dismissal. If this cannot be done, "fake" charges are presented against him and unless he repents and returns to the "fold" he is bounced. One of the most intelligent keepers the Tombs ever had was Frank Smith. He knew his business so well that he was an authority on the various kinds of commitments. When Flynn became warden he was sent to Blackwell's Island. If Frank told all he knew about the Tombs' grafters there would have been a sensation! The old Book says "resist the devil and he will flee from you, but resist the Tammany grafters and they will fly at you!" As soon as any one tries to reform such a place he gets mud and filth thrown at him!

When W. R. Hearst ran for Mayor of New York, he had several warm friends among the keepers. At first they were not afraid to speak in his favor, but this was soon changed. Spies were sent to the prisons and the unlucky wights that favored him were given to understand that if they deserted Tammany they would lose their jobs, and the civil service law would not save them. Notwithstanding this "scare" a large number of the most intelligent keepers voted the Independence League ticket, but kept it to themselves. I have nothing but kind words for the rank and file of the

keepers in the Tombs and the other New York prisons. I believe most of them try to do their duty faithfully.

After the scandalous sale or “give away” of Kings County Penitentiary, for one-sixth of its real value, the grafters said that it was done for economy’s sake, which is untrue, for soon after—from sixty to seventy keepers were transferred to the District Prisons of New York and Blackwell’s Island, where was an over supply already. The result was that ever since there have been two Wardens and two deputy Wardens in the New York Penitentiary, besides a superfluous number of keepers and orderlies in all penal institutions of greater New York.

At one time Hart’s Island had something like sixty extra men who were classed as stablemen and orderlies. They had absolutely nothing to do except to draw their pay and help the district leaders. Bitter complaints were made from time to time against a brother of the deputy who ran things with a high hand. If anybody complained against these scandalous conditions he would soon be “fired.” Tammany has no use for reformers. I do not think it possible to paint the New York prisons as black as they have been until recently. If a day of judgment ever comes when all the scandalous conditions shall be exposed to public view the people will be astonished.



## CHAPTER II

# AN HISTORICAL ACCOUNT OF AMERICA'S MOST FAMOUS PRISON

For more than two centuries after the arrival of the early Dutch settlers on Manhattan Island the land for a considerable distance on all sides of the present Tombs prison was a fresh water lake known to the people of that day as the “Kalchhook” or Collect Pond.

It seems almost incredible that less than a century ago the visitor to Manhattan Island could have stood at the juncture of Park Row and Centre Street, and looking north might behold a beautiful fresh water pond hidden between the hills. This lake had been a favorite resort of the Indians for hundreds of years prior to the arrival of Henry Hudson and the Half Moon in September, 1609, or even before the discovery of America. On the Broadway side was an Indian settlement where the red man pitched his wigwam and when not hunting or fishing smoked his pipe of peace.

The name given to this pond had a curious history. It seems that the Indians had been in the habit of carrying oysters from the North River in their canoes; afterwards they dumped the shells in heaps at the side of the pond. What name the Indians gave to this sheet of water before the coming of the white man we have never been able to learn. The Dutch settlers called it “Kalchhook” or the Shell Point, from a large deposit of shells found along its western shores.

After the erection of the original Tombs Prison, the authorities experienced great trouble with water flooding the cellars, which clearly proved that there were springs underneath the main building.

With the aid of some old maps now in possession of the Lenox Library, the exact location of the Collect Pond can be readily described. It was bounded by Pearl Street on the south, half way between White and Walker Streets on the north, Elm Street on the west and Mulberry Street on the east. Centre street as now laid out ran directly through the pond. It had a navigable outlet to the North River, through Canal Street.

It is said that William IV, who was then the Duke of Clarence, came to New York during the Revolution and was in charge of Admiral Digby on whose ship he was an officer. He was fond of skating on the Collect Pond when off duty, and would have drowned there on one occasion, having broken through the ice, were it not for the quick action of Gulian C. Verplanck, one of New York's distinguished citizens. Mr. Verplanck was afterwards President of the Bank of New York, which position he filled for twenty years. He died in 1799.

In 1805 the City Council gave orders that the Collect Pond should be filled in with clean dirt from the hills that surrounded it, as it had become a menace to the health of the city because of the filth that had been dumped into it for several years. But little had been done towards carrying this order into effect.

The winter of 1807-8 was one of great distress and poverty in this city. To add to the misery of the poor, business was at a standstill and hundreds of men were out of employment. In January, 1808, the unemployed made a demonstration in front of the City Hall and called upon the Mayor and Common Council to give them bread for themselves and their families who were then in a starving condition. After a thorough discussion of the situation money was appropriated and several hundred men put to work to fill in the Collect Pond as a public improvement. After many months the work was completed.

In the year 1830 the Common Council again took up the matter of erecting a new prison. The population of the city had increased by this time to over 200,000. The old Bridewell which had been erected before the Revolution, situated west of the City Hall, had become a nuisance and was unfit any longer for use as a prison. For several years the agitation was kept up without any definite results. At last in 1835 the erection of the Tombs Prison on a part of the old Collect Pond was decided upon and work begun.

For over a year the construction of the new building was slow, as the filling in of the pond had not been properly done. The ground was so wet and “springy” that the foundation of the new prison had to be laid on pine logs fastened to the ground by spiles.

The old Tombs was said to contain the purest specimen of Coptic architecture outside of Egypt and was admired as a splendid work of art.

The style of this prison was decided on soon after the publication of a new book of travels by John L. Stevens, of Hoboken. Mr. Stevens had just returned from a visit to Egypt and the Holy Land and had given to the public the result of his impressions abroad in a handsome volume. As the author was well known in New York, his book became widely popular. On the front page was a picture of an Egyptian Tomb. Some suggested that the new city prison be built after this design. The Common Council accepted the suggestion. Ever since the city prison has been called “The Tombs.”

Strange to say, this new prison was erected in the midst of a neighborhood that has ever since run riot in every form of crime and wickedness. For over sixty years some of the blackest and bloodiest murders, robberies, assaults, hold-ups and other deeds of darkness were committed in this neighborhood or within a stone’s throw of the prison.

In early days that part of the old Tombs building fronting Centre Street was known as the Halls of Justice, as it contained the Court of Special Sessions and the First District Police Court. For several years after the Tombs was opened the Sheriff of the County had charge of the building and all of the prisoners from the time of their committal till they were safely landed in the Penitentiary or State Prison.

The old Tombs Prison was an oblong building 142x48 and contained four tiers, having one hundred and forty-eight double cells. As far as safety and economy were concerned, it was one of the best in the country. It was so constructed that one man on the fourth tier and one man at the desk could see everything going on in the building.

Forty years ago there was a stone building at the corner of Franklin and Centre Streets which for years was known as “Bummers’ Hall.” It was used principally for drunk, disorderly and crazy people. After a time it became dilapidated, filthy and overrun with rats. A young tough named Mahoney

and some boys who were detained with him for some minor offence, made their escape from “Bummers’ Hall” through a window. After it was demolished, a brick building was erected known as the New Prison, which is now called the Annex. When the Tombs was first built it contained a cupola over the main entrance, which was burned on the day set for the execution of John C. Colt, November 18th, 1842. The original Tombs Prison was opened for business in the early part of 1838.

## Retrospect

If the stones and iron grating of this dismal old prison, now no more, which for two-thirds of a century stood with its back toward Elm Street, and its front entrance facing Centre Street, could only speak out its experience and tell its woes, what a heart-rending story of crime it would tell; what bitterness of soul, dashed prospects, guilty consciences that presage horrors, together with the breath of a fetid atmosphere, where like hades, the smoke of their torment rises continually! It would also be a story of blood and tears!

For over sixty-five years the “old Tombs” prison has been the scene of so many tragedies and the grave of innumerable buried hopes, once most promising, but long since crushed under the iron heel of fate! And these realms of darkness, cold, damp and forbidding cells, clammy and foul with the sweat and tears of a past generation, remind us of the cruel dungeons underneath the Mamertine prison of the Caesars!

When we think of the number of cold-blooded murderers, the burglars, highwaymen, forgers, swindlers, gold-brick men, green-goods operators and hundreds of others possessing dark criminal records, that have lain here for many months, coming from every State and part of the globe, our blood curdles within.

What hideous characters have domiciled in this prison during these two generations, who afterwards paid the penalty of the law for their bloody deeds! Think also of the conglomeration of forces that actuated and bore them into their doom like driftwood going over a Niagara as merciless as fate would have them!

Men and women that came from noble sires, scholars and specialists with trained minds that would have shone in any department of life, lawyers, teachers, business men, bankers, brokers and even men of letters, all under the cruel hand of fate, succumbed to the tempter in a weak moment and fell; alas! some never to rise again.



“Backward, flow backward, O tide of the years,  
I am so weary of toil and tears.”

But, alas, it is too late. The die is cast forever!

Our young men and women should learn ere it is too late, or even before they launch forth on a career of crime, that we cannot break the divine law without punishment. “Whatsoever a man soweth that shall he also reap,” is a law that is as true in the moral world as it is in the realm of nature. Our large cities are full of the whirlpools of vice that carry multitudes swiftly over the rapids of destruction into the maelstrom of eternal death.

## The New City Prison

After many years of agitation the plans for the new Tombs Prison were prepared and approved during the Strong administration, which went into power on a reform wave in 1894.

The new City Prison contains three hundred and twenty steel cells arranged in four tiers in the men's and four in the boys' prison, with parallel corridors. There are forty large cells on each tier, arranged back to back, with all the recent improvements, which consist of running water, electric light, toilet, wash basin, hung table and cot. The new building is said to have cost over one million dollars.

On September 30th, 1902, the old offices on Leonard Street which had been in use since the front building on Centre Street had been torn down to make room for the new structure, were abandoned and the books and other important documents removed to the offices in the new building. This new building, however, was not entirely ready for use, but the first step had been taken and the occasion was hailed with joy. The second step in the entire occupation of the new City Prison took place Tuesday, January 6th, 1903, when the contractors handed over the entire structure to the City authorities and it was formally opened to the public by Mayor Seth Low and Commissioner Thomas W. Hynes in the presence of a number of invited guests. A few days afterwards the prisoners were transferred from the old prison to the new, and the work of demolishing the old Tombs was begun.

When the new Tombs was opened in 1901, John E. Van De Carr was Warden. And a kinder and more obliging man never lived than he. Both under the administrations of Mayors Strong and Low he was the official head of the city prison, and cared for the inmates of the prison as if they were his own family.

For many years the city prison has been noted for some of its semi-official inmates, who lived on perquisites and tips, and one of this class was old John Curran, the official guide of the prison. Old John had served in this capacity for many years, and knew every nook and cranny of the old structure. Roland B. Molineaux had a good opportunity of seeing old John

at his best, and has kindly spoken of him in his book, "The Room with the Little Door." Whenever John waxed eloquent, in describing the places of interest within the Tombs yard, he revealed a strong Irish brogue, that made his descriptions witty. You could not help smiling when you heard John, as he was wont to do, point out the last remaining beam of the old Tombs gallows, on which a score or more of persons were hung. "Gintlemens, them's th' last and true part of old galleys of New York, on which so many famous chaps went to death." As he turned toward "Bummers' Hall" with his visitors in the rear, he would exclaim, "Gints, them's the way to the exodus" as he would point to the back door of the new prison.

Soon after the opening of the new prison John disappeared from history as if the earth had opened its mouth and swallowed him out of sight. Where did he go? No person seemed to know. Mr. Sullivan, who was known as the Captain of the Bum Brigade, and was known as John's confidential adviser, said that as soon as the old fellow secured his "pile" he vanished. I afterwards learned that John had a daughter living in Maine, and without communicating his plans to any one in the prison, removed thither, where he purchased a farm and now resides, happy and contented, ever and anon dreaming, how he had lived so long in the old Tombs and how he had so long fooled the visitors with his "Corkonian eloquence."

After John's disappearance the redoubtable Billy Gallagher added to his already onerous duties of prison messenger, that of official prison guide. After a while Billy learned the "lingo" and became as proficient as a "Bowery drummer" or a Coney Island "barker." When the Commissioner had learned that John Curran had made a fortune as Tombs guide, he prohibited Billy Gallagher from asking fees for his services. Billy was a favorite with everybody, and could always be depended on for his veracity. Apple Mary who knew Billy for many years used to say, "God bless Billy Gallagher," to which everybody would say Amen.

Billy Gallagher devoted more time to the Bowery bums who so often infested the ten-day house, and they took advantage of his generosity.

They frequently palmed off on him a lot of "fake" jewelry on the strength of which he paid their fines. After a time Billy had a carpet bag full of tin watches and paste diamonds, on which he had made small loans. Charley Sheridan, who was one of Frank Lantry's district captains, was "boss" of

the ten-day house for several seasons. He was tender hearted and often talked to the fellows from the Bowery and Mulberry Bend in a fatherly way and more than once paid their fines. Of course they “beat” him in the end as they do everybody who trusts them. They go on the principle that they have everything to gain and nothing to lose by a lie.



## CHAPTER III

# MODERN EXCUSES FOR CRIME

Modern penologists tell us that a large number of our present day law breakers possess criminal instincts and in a sense are not entirely responsible for the unlawful deeds they commit. What generates these instincts it would be difficult to say. Perhaps early training, erratic temperaments or mental diseases of various kinds may account for them. We are inclined to think that much of our modern criminality is nothing less than old fashioned depravity. By nature most of us are so cross-grained that we find it easy to go wrong, and there is no telling where evil tendencies may lead to. Sometimes it needs only a spark to draw out the crookedness in man and make him a full-fledged criminal.

While the matter of self restraint should be kept continually before the minds of young people, the question of how far one should be allowed to tempt another to the committal of a crime is one of vastly greater importance. In this we believe the State should draw the line. This is in accordance with Gladstone's well known dictum, "That it should be the duty of every well organized government to make it easy to do right and difficult to do wrong." There is no mistaking that the present is a fast age. More than that, the competition for human existence, education, wealth and social standing is so great as to be unhealthy, because of the nervous strain which it creates. These conditions have developed an army of moral defectives in almost every walk of life.

Placing temptations before such people is simply making them criminals in advance. A vast number of men and women are unable to resist evil, as they lack the moral stamina. Many of this class, having been brought up in homes of vice and evil environments, can no more stand the temptations of

the present day than a hungry dog can resist taking a piece of unguarded meat from a neighbor's door.

The dipsomaniac, kleptomaniac, morphine, cocaine, cigarette users, and high livers, generally all belong to this class, many of whom are on the way to the madhouse!

It has been ascertained by long study of the subject that those who possess criminal instincts have little or no resistive power when tempted to commit crime. If the judge on the bench, before passing sentence on a convicted felon, had the insight or perception to see the moral deformities and lack of will power existing in the individual before him, we are inclined to believe that he would send the prisoner to a sanitarium for treatment rather than to prison for punishment. And it is our candid opinion that there are hundreds of moral defectives in all the penal institutions of this and other States who ought to be under the care of a physician rather than a jailer.

Sometimes the police disguise themselves, then induce gamblers to play roulette and other games of chance for the purpose of securing evidence, after which they arrest them for violating the law. This may be good ethics from the police standpoint, but we question it. It is absurd to think that we have any moral right to tempt a person to commit a crime against the laws of God or man.

Not long since a city magistrate reprimanded two plain clothes policemen for inducing a German saloon keeper to open his store on Sunday morning and give them a drink. They succeeded in doing so only under false pretences by saying they were sick. After they had secured the evidence, they placed him under arrest. In this way they compelled him to break the law. A woman was tried in the Court of General Sessions, some time ago for keeping a disorderly house. It was proved that she kept a boarding house, but there was no evidence to show that she or any of the inmates were immoral or that impure language was used on the premises. The police, however, suspected the house and sent a plain clothes officer who stayed on the premises for a day or two. After a time by the skillful use of money he was able to tempt the woman to place herself in a compromising position and in this way secured evidence against her. Now the law says

that any person who directly or indirectly induces or procures another to commit a crime is as bad as the principal.

As an unusually large number of persons had passed the examination for positions on the City Police and Fire Departments some time ago, the Civil Service Board became suspicious. It occurred to them that somebody was stealing the examination papers. Two detectives were put on the case. They secured the services of an athletic instructor to prepare them to pass the examination for a position on the Fire Department and offered him \$400 for his labors. He promised to do so, provided he could secure the stolen examination papers. The instructor secured the papers and both men passed. When passing sentence the presiding Judge commented unfavorably on the large money temptation placed before the defendant which was in the nature of a bribe and was the one thing which made the crime possible.

It is a question in our mind how far valuable property, such as gold, diamonds and other jewelry, should be exposed on the counters of large stores. Multitudes cannot view these things without secretly trying to carry some away. Nor should people expose money unnecessarily before the gaze of strangers; for in doing so, many a man has been robbed and some have lost their lives.

The fair sex are sometimes at fault in this respect and indirectly responsible for certain kinds of crime. When they go shopping they carry in their hands wallets or pocket-books containing small amounts of money. In former years they carried their money in their dress pockets. By exposing their pocket-books they tempt the moral defective to commit crime. Men and women also tempt the instinctive criminal, when they carry, exposed to public gaze, watches and jewelry on the person. It is true that this is our right. But we must not tempt men. I believe that the crimes of pocket-book snatching and larcenies from the person would be few and far between if people carried their valuables concealed from public view.

Frequently we meet people who possess a morbid propensity to commit crime. On some things they are perfectly rational, on others they are incapable of acting correctly. You can safely say, they are mildly insane!

Here is a lady on the street with a chatelaine bag dangling around her waist. The thief presumes that it contains money and other valuables. The owner is unconsciously tempting a poor weakling. From our standpoint this



is a dangerous expedient. By and by there comes along a poor, hungry, homeless, penniless creature. He possesses criminal instincts. He sees the pocket-book in the lady's possession. It is a well known fact that the sight of money awakens the worst passions of men. An evil impulse takes possession of him. He seizes the money and runs away. This is not an exceptional case. The criminal annals of New York can furnish hundreds of such cases, where men were seized with an impulse to commit a crime that sent them to prison for many years.

We knew personally the cases of two young men, bank messengers, who were bonded in a surety company for five thousand dollars each, but had only a salary of eight dollars per week. They were entrusted with large sums of money daily, which they received in collections. Both claimed at different times, to have been seized with an evil impulse to abscond with the money, which they did. The first took \$5,000 and left the city. He went to Chicago, then to a southern city. Here he considered what he had done, in the light of cold reason. He sent a dispatch to the bank, saying that he would return with the money in two days. He did so. He accounted for all he took away except the railroad fare and hotel bills, which his people made good. That young man had always borne a splendid reputation for honesty and truthfulness. When I asked him why he left the city with other people's money, he replied, "An irresistible impulse came over me and for a time I was like a crazy man under a spell. It is all a dream to me. I cannot understand it."

The second lad had gone away with \$56,000, \$6,000 of which was in hard cash and the balance in bonds. He returned the bonds to the bank by a messenger. They were really useless to him. When he had spent nearly all the money he concluded to give himself up.

A poor unfortunate who was sent to prison for a long term for pocket-book snatching explained his conduct by saying, "I was cold and hungry. All at once I was seized with an uncontrollable impulse to take by force what did not belong to me. It came over me like a spell."

Under ordinary circumstances, I am not inclined to take much stock in this "spell" theory. I think that in most cases, we can restrain ourselves when these impulses come over us.

A Brooklyn Supreme Court Judge, who is noted for his outspoken good sense, while sitting in a neighboring city trying criminal cases, severely rebuked some rich people for carelessly tempting working men employed on their premises. It seems that while certain persons were employed as painters and decorators in the home of a millionaire, that jewelry and other valuables were left carelessly within their reach. The result was that one of the men stole some of the valuables, and was sent to prison. It was shown at the trial that this workman was not a criminal and had always borne a good reputation. But the jewelry which lay around so carelessly in this home appealed to him. Such temptations arouse in men the worst passions, and even prey on their minds.

A young man whom I met in the Tombs broke down and wept as he told me the story of his disgrace. He loved a young woman and desired to seal his engagement to her with a gold ring. He went down to a Maiden Lane store. He explained the object of his visit to the salesman. He had nine dollars in his pocket and was willing to pay a fair price for what he wanted. The salesman went to a case and took therefrom a handful of gold rings and placed them before him on a velvet cloth and then went away. As the young man examined the rings alone the temptation seized him to secrete one and conceal it on his person. He did so with the result that the salesman saw him. He had not only tempted him but he concealed himself and watched all his movements with aid of a mirror.

Another way in which both men and women are frequently made criminals is by the present instalment system. For example, persons purchase watches, jewelry, typewriters, clothing and furniture and agree to pay for the same by weekly or monthly instalments. The buyer is compelled to sign an agreement in which he waives his right to his property till the last payment is made. If he has purchased a watch or suit of clothes and defaults on a payment he is compelled to surrender the property or be liable to an indictment for grand larceny. The trouble is, our legislature, to accommodate commercial sharpers, changes what has always been considered a civil suit into a criminal offence. Any one who sells another a typewriter takes chances to get his money back, the same as the baker who sells him a loaf of bread. If he is unable to pay that debt honestly the seller has no right to have recourse to an indictment to force him. This is all wrong.

Just where our State or local authorities can draw the line between an insane and a rational criminal, it would be hard to say. And how far people who possess criminal tendencies should be allowed to roam at large is also important. But how far individuals and corporations should be allowed to tempt moral weaklings to commit crime is a question for the twentieth century statesman and penologist to decide.



## CHAPTER IV

# HOW CRIMINALS ARE MADE

Since the close of the Civil War, crime of every kind has made enormous strides, not only in our large cities but also in our sparsely populated districts. Various reasons have been assigned for this condition of things but the reasons given are not entirely satisfactory. One thing, however, is certain, the temptations of modern times, which engulf and enslave so many of our young people, were never more numerous or more alluring than they are to-day. And the saddest thing of all is that very little is done to take the temptations out of the way or reduce them to a minimum.

I believe bad homes are largely responsible for many of the moral shipwrecks of our day. A report of the superintendent of Elmira Reformatory states that fifty-two per cent. of all the inmates of that institution came from positively bad homes and only seven per cent. from positively good homes. Without going any further into this discussion, it would be well to find out what makes bad homes and, if possible, furnish a remedy, so as to save our young people from becoming criminals. By all means find out the disease and then apply the remedy. This is the only rational thing to do, and to this method of treatment few persons can object.

The fact that crime increases faster than the ratio of population should come to our statesmen with startling effect and set them thinking to know just what methods should be used to change the evil currents of the times.

As long as fierce temptations are allowed to surge around our young people, especially in large cities, so long may we expect to see them in the police net and afterward filling prison cells. Crime is a menace to our republican institutions and in the end will reduce a free people to anarchy or serfdom.

One of the crime makers of our time, as is evident from everyday facts and figures, is the liquor traffic. From fifty to seventy per cent. of all convicted felons have been ruined by it. Many a man who is behind the bars to-day never would have been there were it not for strong drink that robbed him of his senses in a weak moment, and made him a criminal and a fool. In states where the rum power is under the ban and prohibition strictly or even partially enforced, jails are usually empty except for a few petty offenders.

Some men say that immigration is largely responsible for the criminality of to-day. That there is some truth in this statement we have no doubt whatever. But to hold immigrants responsible for the criminality of this age is unfair and uncharitable. That some parts of Europe send people to this country who are expert criminals and others full of criminal instincts, is true in part. That people without means and employment drift to the United States from every land and when in want naturally attack property under the spur of necessity, coupled, of course, with low ethical standards and lacking a sense of moral obligation, and perhaps possessing weak resistive powers, is also true.

Often persons are driven to crime by motives generated in a vicious nature, and as they are too weak to resist they soon lose their liberty, and society to protect itself simply places them behind the bars. Criminality is simply the darkened side of a reckless, sinful life, showing itself in deeds of wickedness and rebellion against God and man. Any one with such an impulse will dare to commit the most atrocious crime on record and will not think of the consequences!

The small army of boys that are committed to prison in this city every year between the ages of sixteen and twenty, for every crime on the calendar, shows the trend of the rising generation toward delinquency. In these figures we leave out of consideration several thousands of boys and girls who are disposed of by the city magistrates, many of whom are sent to the Reform School, Juvenile Asylum and the House of Refuge, while others are discharged on suspended sentences, with a warning to keep out of bad company.

I believe the first and foremost cause of crime in our large cities, as I have intimated, as well as the degradation of the poor man's home, is the American saloon. Nor will there be any material decrease in the volume of

crime till the power of the saloon has been crushed. Our stupid, thick-skulled, short-sighted reformers and state legislators forget that the soul-dishonoring and God-defying gin mill is the great crime generator of the twentieth century. The one primary cause of crime to-day is alcohol, and as a well-known authority says: "The decrease in the use of alcoholic drink must ever remain the great aim of anti-criminal legislation as well as of future moral and social reform." A mass of absolutely correct statistics could be given in support of this statement, if necessary.

In many of the crimes committed by young men which we have personally investigated, it has been a question with us who has been the greatest criminal, the state, the parents or the boy. Many a young man would never have reached prison had his parents placed around him any reasonable moral safeguards. When I remember that hundreds of boys who get into the Tombs every year come from homes of poverty, misery, drunkenness, profanity and vice of every name, I do not wonder when I see crime written on their pale faces.

If Gladstone's dictum were to actuate our state legislature, laws would be forthwith passed, making it a crime to sell to minors the blood-curdling novel, tobacco or cigarettes, or intoxicating liquor in any form. Boys should be prohibited from going to prize fights, the race course, gambling halls, theatres, billiard halls, or even from staying on the street after nine o'clock at night. This might seem harsh, but if strictly carried out we have no doubt whatever that crime would be reduced thereby.

It was a law in the Commonwealth of Israel, promulgated long before their settlement in Canaan, that when they built a house in the promised land they must put a railing or battlement around the roof to protect their children from injury by accidentally falling off. If the state were to make it difficult for our young people to do wrong by erecting around them moral barriers, there would be less criminality among boys and young men, and fewer human shipwrecks in after life.

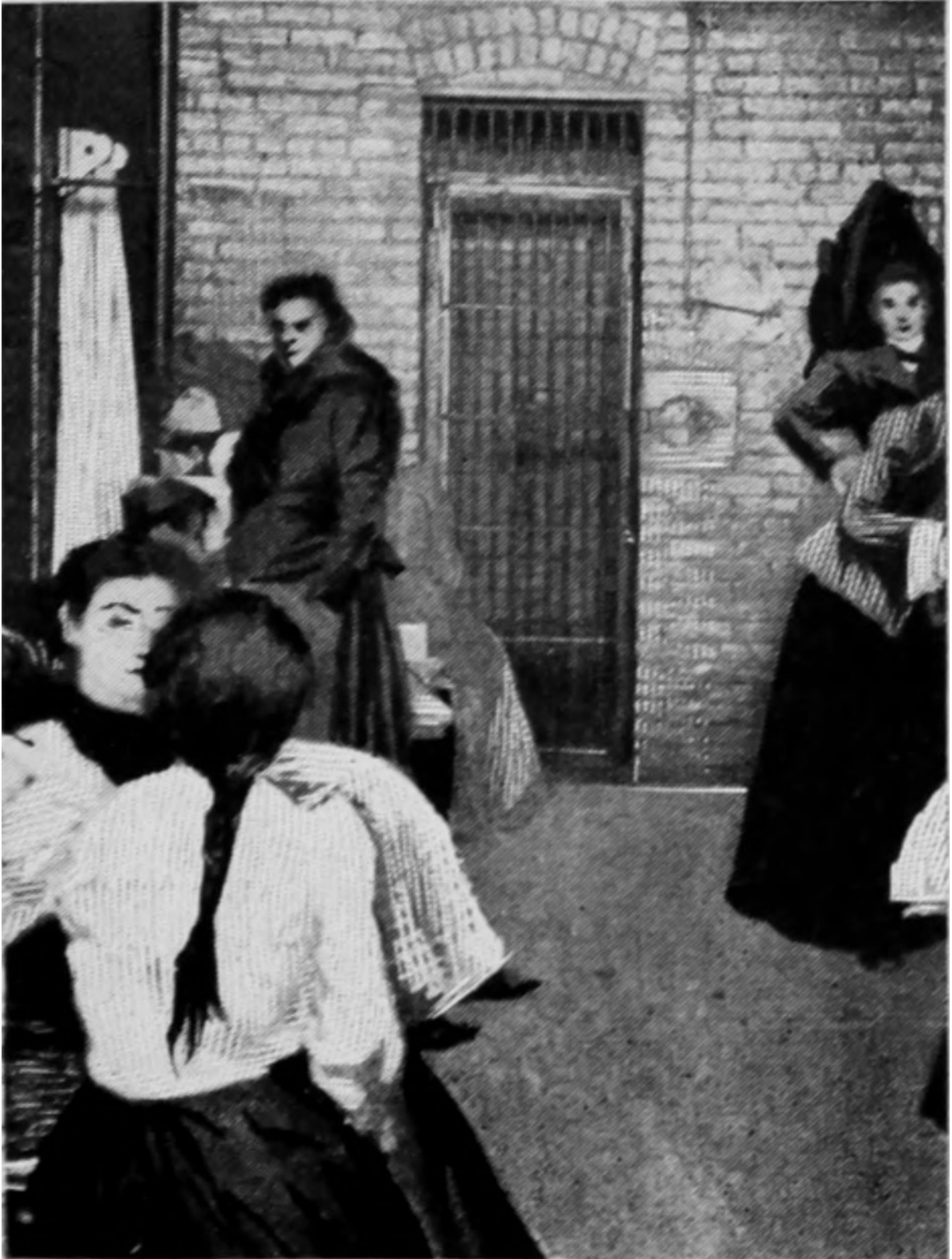
When young men are admitted to prison for the first time, efforts should be put forth to save them. The work of isolation, separation and classification should then begin. If the authorities were to sift and separate the good from the bad, the precious from the vile, I am positive there would

be fewer recidivists who are now compelled to repeat the same prison experiences several times over.



The new Tombs prison.





The open corridor of the women's prison of the Tombs.



The old Tombs entrance on Leonard street.

Hundreds of boys who are sent to the Tombs enjoy the novelty immensely. It is a new experience to them, and as such is exciting. In prison they are huddled together as a band of incorrigibles. There seems to be no punishment in such an experience. Some of them are better off there than they would be in their homes. They get enough to eat. In some prisons they can smoke all the cigarettes and read all the dime novels they please. If up till this time they have been ignorant of the ways of pickpockets and sneak thieves, when they come out, after a few weeks' incarceration, they are expert crooks, and fifty per cent. of them are soon back in prison.

In order to reduce crime among boys we must take away the operating causes. There is no other way to reach the desired end, and the sooner we get our eyes open to these facts, the better for ourselves and everybody else.

The object of all prison discipline should be the moral transformation of young offenders. They should be taught righteousness and purity of life, honesty and industry, self-respect and courteous behaviour to all. Whenever prison reform comes short of this, it is a failure, and society at large is injured thereby.



## CHAPTER V

# THE SCIENTIFIC CRIMINAL

There can be little doubt that the criminal product of the twentieth century is vastly different in its make up and harder to deal with than the criminal of any other century of the Christian era. Not perhaps from the standpoint of moral depravity, for all criminals are depraved, although some seem to be more so than others. But the criminal of to-day to be successful in his operations must be daring in his conceptions and highly scientific in his methods; otherwise he will be unable to cope with the difficulties in his way.

Criminals as a rule are not indifferent to the feelings of honest men as to their methods of getting a living. They know full well they do wrong. Yet if you cross their path while in the act of committing a felony, they will without the least hesitation take your life, and think nothing of it. All men who start out on a mission of crime make up their minds beforehand to take “no chances.” They are strenuously against every one that opposes them and they know that every honest, law-abiding citizen is against them.

But the great advance in civilization the past hundred years and the easy way fortunes seem to be accumulated, has unquestionably invented new methods of guarding the wealth, but it has also sharpened the criminal’s wit, making him more practical in his deeds of daring and ingenious in his plans and operations.

It is a well known fact that criminals of to-day do not carry around with them long “jimmies,” saws or crowbars such as were used by the old school crooks.

The twentieth century “outfit” of an experienced criminal seldom weighs more than sixteen to twenty ounces. The entire “kit” is made of the finest

steel instruments and by these he is able to find his way to strong boxes, bureau drawers and closets of the best city and country residences. If he thinks he has to encounter a safe he will carry with him an electric drill by which he can punch holes in steel plates at short notice.

With these he has besides a silk rope ladder, which has an attachment that can take him to the roof of a house or get him to the street from any part of the building when he desires.

With the outfit just described a Connecticut crook was able to commit sixty burglaries in less than three months in this city. The typical twentieth century criminal is therefore a most dangerous character to deal with, and when in possession of a gun he lets nothing stand in his way.

Scientific writers on penology of recent times have divided the criminal into many parts for the purpose of analyzing the natural causes that have led to his downfall and the treatment best calculated to bring about his restoration.

One of the grave defects, in the study of criminal law, is that while the lawyer ransacks the Code in an effort to save or punish the wrongdoer, the criminal's moral nature is entirely ignored. This is certainly not right. We firmly believe that the best possible way of reaching a correct solution of the mysterious dualism which confronts us in our study of criminal character, is to find out not only his early habits, but what he is in his normal and abnormal conditions, and how his delusions can be removed.

But there are criminals and criminals. Some indeed are born into criminal lives from infancy, aided by the laws of heredity, while others become criminals on the impulse of the moment and for months or years, run a wild career of wrong doing, but afterwards change the course of their conduct, and become useful members of society. Of course the only kind of reformation that becomes permanent is the kind that changes the man inside and out. Others like the twig that is bent, remain crooked all their lives. Nor does imprisonment improve such people to any great extent. Harsh treatment may subdue the animal passions but will not change his higher nature.

We do not believe that God brands any man as the victim of an unavoidable destiny, nor does He compel him to live a criminal life against

his will. The fact is each law breaker is the victim of his own depraved will and is what he wants to be.

The twentieth century crook in forgery, burglary, safe cracking and swindling studies the situation so carefully that in two-thirds of the cases he is able to “beat” the law. A greenhorn crook is sure to leave traces behind him but an expert never. The twentieth century crook uses an automobile and naphtha launch so as to disappear with his “loot” to parts unknown. When he travels at home or abroad, he patronizes the most expensive hotels, the dearest express trains, and only the best accommodations on ocean steamers. Expert crooks as a rule travel in pairs.

Under the head of Criminal Anthropology we are called upon to study the criminal’s anatomy, social and moral habits and temperaments. But the strangest thing about him is that though he may be physically and mentally normal—just as other men are—he is abnormal morally. We must always remember, however, that while we consider the criminal scientifically, his disease is entirely moral. Nor has the average criminal any peculiarities that are not common to the rank and file of other men in every walk of life. His head and his heart and his brain are like those of other men and he shows the marks of human folly just as men do who never saw the inside of a jail.

As a rule the criminal is largely a creature of circumstances; often too lazy to work and unwilling to resist the common temptations of life, he simply drifts. He takes to crime as an easy way of making a living and often believes that the fates are against him, as an excuse for his wrong-doing, or perhaps he has a foolish delusion that there is something heroic in criminality.

Crime is defined as a violation of a human law enacted by the state in its own defense, and the criminal is the one who wilfully breaks that law and makes himself amenable to it.

The most noted authority in our day on crime and criminals is Lombroso, the Italian penologist, who has made a thorough study of the subject. In describing the criminal we find there is a freshness of detail to whatever he says, and he writes like one familiar with the subject. Lombroso rightly contends that criminals must be dealt with, not according to the way that society views the crime, but according to the circumstances and conditions that have led to it, and our laws must be changed to meet the new

conditions. "Penal repression," says Lombroso, "should be based on social utility scientifically demonstrated; instead of studying law books, we should study the criminal. It is doubtless true the criminal, as a rule, has feeble cranial capacity, a heavy developed jaw, large orbital capacity, projecting superciliary ridges, an abnormal and symmetrical cranium, a scanty beard or none, or an abundance of hair, projecting ears and frequently a crooked or flat nose. Criminals are sometimes subject to Daltonism or left-handedness, their muscular force is feeble and alcoholic and epileptic degeneration exists among them to a large extent. Their nerve centres are frequently pigmented. They blush with difficulty. Their moral degeneracy corresponds to their physical make up. Their criminal tendencies are manifested in infancy by onanism, cruelty, inclination to steal, excessive vanity and impulsive character. The criminal in a large number of cases is lazy, cowardly, not susceptible to remorse, without foresight, fond of tattooing. His handwriting is peculiar, his signature is complicated and adorned with flourishes. His slang is widely diffused, abbreviated and full of archaisms."

Before we leave the subject it would be well to say that naturally the criminal is the product of anomalous conditions of long standing that have worked themselves into the moral fibre of his being. After many years the criminal has come to bear the distinguishing peculiarities of crime which mark him as a man among men. So that to-day with all our advanced civilization, the criminal stands midway, as Lombroso remarks, "Between the savage and the lunatic."

It has therefore become a perplexing question what is to be done with him, for during the four hundred years of white civilization on the American Continent his condition remains almost the same.

After many years of failure to improve him, would it not be well to adjust the penal treatment to his nature as a man and eliminate from his life the temptations that overcame him? For example, thousands of people are arrested yearly in New York for drunkenness, a temptation which they cannot resist. Why not close the saloons and thus take even this one temptation out of the way of such weaklings? At any rate, if our prison populations are to be reduced, society must pass a law to prevent crime, or invent something that shall defeat the conditions that make men criminals.



At the present time the main object of a criminal court is to find out if a defendant is guilty or innocent. If guilty, the sentence of the Court is measured by the character of the crime and not by the conditions that led to it. Before the wrongdoer can be reformed our criminal laws must be readjusted to the conditions of the times. Many of those who come into our courts for sentence, if not hardened criminals themselves, are the offspring of criminal parents or are mentally defective, weak-minded or insane, epileptics or otherwise diseased.

Crime gnaws at the life of the nation, destroys its vitality and wastes its wealth. We can stand changes of government or changes of policy, hard times, prosperity and adversity, but no nation can long survive the awful demoralization of crime.

But what an anomalous life the criminal lives! After having many chances and opportunities placed in his way to live right, he refuses the good and chooses the evil. He will not reform nor do better. He has become a misanthrope; he hates himself and everybody else.

The only sure remedy for the present day criminal is the indeterminate sentence; he should be detained in prison under the most rigorous discipline, till he is reformed or cured of his insane notions. It is nothing short of a crime to turn such people loose to scourge society after a few months or years' detention in prison.

European criminologists are unanimous in advocating the most restrictive measures for incorrigibles, such as hard labor, longer imprisonment and more repressive humiliation, or if necessary, deportation and exile. Professor Prins of Brussels says, "The solution of the question of the incorrigible lies in a progressive aggravation of punishment and the absence of all prison luxury." After reading a mass of opinions on what should be done with the criminal incorrigible and how he should be punished, all of which had not a ray of hope in it for his higher nature, we thought of the British soldier in India half a century ago, who was called up for sentence before a court martial; he had suffered all sorts of imprisonment, corporal punishment and all manner of deprivation and humiliations, but all to no purpose; the punishments only hardened him. But now a new commander came on the scene who, after hearing all that could be said against him, dismissed him with an admonition, saying that they forgave him, asking

him from henceforth to go and sin no more. The effect of this was that he broke down and wept like a child. He had steeled his heart to every kind of punishment, but when they tried kindness it touched him.



## CHAPTER VI

### SOME FAMOUS TOMBS PRISONERS

During its long and eventful history the Tombs has had many notable prisoners. It would be impossible in this brief sketch to do justice to this subject by giving a full and detailed account of the deeds and escapades of these persons. But the men of money and influence who have had the misfortune to be sent to the City Prison have always fared well. Although it is not always the case, the rich and poor in such a place should be treated with becoming fairness and moderation, not simply because they are rich or poor, but the law presumes a man to be innocent till his guilt is proved beyond a reasonable doubt. It is well known that a great many people are sent to the Tombs every year on trumped up charges. As they are not criminals, it would be manifestly improper to deny them the deserved consideration to which every uncondemned man is entitled in this enlightened age.

In dealing with this subject we shall only mention the names of a few well known persons.

In 1842 the Tombs had a prisoner named Monroe Edwards; he is said to have been one of the most noted and boldest of all round forgers of the time. He had plenty of money and lived more like a prince than a prisoner. He was able to engage the most eminent counsel in his behalf. His wardrobe was the finest and most expensive that money could buy. He was allowed to furnish his cell in an elegant manner. Lady friends and admirers called upon him daily and brought bouquets and cut flowers in abundance, all of which he was permitted to receive, on the ground that the law presumed him innocent till found guilty. There must have been many abuses in the Tombs in those days, perhaps as glaring as those that exist to-day. For example, Edwards received other gifts from his lady friends besides flowers

and knick-knacks for his cell. These consisted of a set of highly tempered steel saws for iron work, a silk rope ladder, grappling irons and a horse pistol. These were to be used to enable him to make good his escape, if he so desired. As soon as the Warden learned that he possessed these things, he went to his cell and made a demand of Edwards for their surrender. After they were confiscated many of Edwards' privileges were cut off.

John Scannel, a Tammany politician, having filled a number of offices within the City Government, but who more recently was Fire Commissioner during Mayor Van Wyck's administration, was an inmate of the Tombs in the fall of 1871.

On September 19th of that year he shot Thomas Donohue whom he supposed to have been the man who had assaulted his brother Florence. The charge against him was homicide. But like many other Tammany officials, he had a tremendous "pull" and was soon afterwards admitted to bail in the sum of \$20,000. He was finally cleared.

The Tombs' authorities have always been indulgent to the men who lived on "Murderers' Row." The foolish idea that comes down through the ages, which pictures the murderer resting on a pallet of straw with a chain around his neck, has certainly never been experienced in the Tombs. Twenty years ago and even later, nearly all the cells on Murderers' Row received bouquets of flowers almost every morning. And some of them had bird cages, swinging shelves, lace curtains, carpets and draperies. When you entered such a cell, your feet did not touch the stone floor, but a rug or a Kidderminster. And the prisoner—he usually wore an elegant dressing gown, silk slippers and beautiful clothing; he is shaved and groomed daily; when he sleeps it is on a real bed of comfort. When the old prison was yet standing, every afternoon after he had made his toilet and was booted and gloved he walked into the yard for a stroll. Between four and five o'clock he dines; he never ate prison fare. His food came from the outside and consisted of a variety of dishes, such as oysters, quail, clams, fish, fowl, roast beef and vegetables—the best the market could provide, that is, for rich prisoners. The poor crooks had to be content with prison fare and take "pot luck."

On January 6th, 1872, at 4:30 p. m., Edward S. Stokes shot and killed James Fisk, Jr., in the Broadway Central Hotel. After the coroner had

committed Stokes to the Tombs, he was assigned to Cell 43 on “Murderers’ Row,” which was situated on the western side of the second tier. Soon after coming to the City Prison he was allowed to fix up his cell in a most lavish manner; for example, he was permitted to put a hard finish on the walls of his cell, fit it with several fine pieces of furniture, pictures on the walls, damask curtains and Turkish rugs galore! He was permitted to build a walnut toilet stand in his cell. He was also allowed the use of the yard whenever he desired and to walk about unmolested. The graft paid in those days for such liberties, must have been enormous as he had more privileges than any ten men.

It is also said that Stokes had a large room on the Centre Street side of the old prison where he received his friends who called on him daily. It was here that he ate the choicest cuts, the best turkeys the market could furnish, and where he and his friends regaled themselves with the best champagne and claret, and smoked the finest cigars. It is also said by men now living that Stokes often attended the Bowery theatre accompanied, of course, by a couple of keepers, who danced attendance on him—all of which cost money.

Stokes was tried for murder three times. At the close of the first two trials he was convicted of murder in the first degree and sentenced to be hanged. At the close of the last trial he was convicted of manslaughter and sentenced to Sing Sing for four years.

Richard Croker, all round Tammany Hall leader and politician for many years, alderman and at the time of his involuntary confinement in the Tombs a city coroner, shot and killed John McKenna at Second Avenue and 34th Street, November 3rd, 1874. The shot that killed McKenna was intended for Ex-Senator James O’Brian, a brother of Inspector Steve O’Brian. It is said while an inmate of the Tombs Croker had the privilege of leaving the building and returning when he pleased. How true this was nobody could tell, but others who were able to pay for it had the same privileges since that time. Money and other influences have always been a tremendous power in the Tombs Prison.

Ferdinand Ward, bank president and bank looter, who stole no less than \$2,000,000 from the Marine Bank and eventually ruined General Grant,

spent some months in the Tombs and was finally sent to Sing Sing for a term of years.

Erastus Wyman, a well-to-do Staten Island Real Estate operator, lay in the Tombs for many months. He had a hard fight against a horde of persecutors who sought his ruin. His case went to the Court of Appeals, where he received a new trial. He was never tried again.

Another rich banker—I well remember him—was Cornelius L. Alvord. He got away with more than \$700,000 from the First National Bank.

He was in a cell in Murderers' Row, in the old prison. While there he ate the best food and smoked the finest cigars till he took up his abode in Sing Sing. His sentence was seven and one-half years.

Roland Burnham Molineux, a popular young man, was arrested February 2nd, 1899.

He lay in the Tombs about nine months before the first trial. Mr. Molineux was plucky, courageous and optimistic. It is needless to say he made many friends, all of whom were glad when he received his liberty. In manners he was a perfect gentleman, courteous and obliging to all. While in the Tombs he was very kind to his fellow unfortunates and frequently fed, clothed and shod needy prisoners at his own expense.

Then there were Fritz Meyer, Carlyle Harris, Doc. Kennedy, and Patrick, besides, lawyers, doctors, bankers, insurance agents and walking delegates without number.

Harry Kendall Thaw, a native of Pittsburg, Pa., a multi-millionaire, shot and killed Stanford White while in Madison Square roof garden June 6th, 1906. He lay in the Tombs over ten months. His first trial lasted nearly three months. His immense wealth brought around him an army of friends who flattered him night and day—for his money. While in the Tombs he had unusual privileges, all of which he doubtless paid for highly. Physically his imprisonment made him a new man. His defence is said to have cost him a million dollars. He came from a first class family.

At his second trial the Demosthenes of the Brooklyn Bar, Littlefield, successfully defended him and saved him from the Electric Chair. His mother, who is known as a lovely Christian lady, visited him regularly during his confinement. Thaw is at present in Matteawan. He has made

several efforts to secure his freedom but has failed. The general opinion is that if he keeps at it he will succeed.





## CHAPTER VII

# THE DANGEROUS EDUCATED CROOK

One of our modern fallacies is that education is a cure for all the ills and weaknesses of life. There never was a greater mistake. When we think of humanity in its deranged and weakened condition and the constant liability to err—a liability that is inherent in all men—learned and unlearned—making them subject to temptations and crime which at any moment may blast their lives, we must be cautious about believing that education alone can make men and women honest and virtuous. Education is only a means to an end, and serves its purpose best when joined to moral training and industrious habits as taught in a well regulated life. Without moral training, education alone will only generate a type of cunning crookedness, that will be dangerous alike to the home and the republic at large.

I believe that education in its best and broadest sense, means not only mental culture, but carefully trained habits of industry, together with morality and religion as founded on the basic principles of the Decalogue and the Sermon on the Mount—all of which tend to promote the happiness of the human family.

John Howard, the Morning Star of Prison Reform, who in his day encouraged popular education, was careful to say, “Make men diligent and you will tend to make them honest,” and he added that he did not believe education of the head would amount to much unless it was followed by “education of heart and hands.”

Within recent years Christian penologists are almost unanimous in the opinion that mental training *alone* has little influence in decreasing crime. Nor does it follow that in countries where illiteracy stands high that crime is greater than in countries where the opposite is true. In Spain, where two-

thirds of the people are illiterate there is less crime, according to the population, than in Massachusetts where nine-tenths of the people can read and write.

So also in rural settlements where there is always less educational privileges than in large cities, crime is vastly less in the former than in the latter.

In the early history of this country petty crimes were usually committed against domestic products, but with the advance of our present civilization such crimes are nothing compared to stealing railroads, coal mines, gold mines, safe cracking, colossal swindling and bank wrecking in which millions are stolen yearly. And all of these crimes are the work of well educated men.

Victor Hugo says, "He who opens a school closes a prison," which is true if that school teaches the morality of the ten commandments and the Sermon on the Mount, but not otherwise.

In Great Britain in 1880 the number of pupils in the schools increased to 3,895,324, while the prisoners numbered only 30,719; but the greatest decrease in the prison population is seen in 1899, when the school pupils numbered 5,601,249, while the prison population fell to 17,687. That is to say, the prison population decreased 38 per cent. while the population of the country increased 11 per cent.

Notwithstanding all that may be said, it is our humble opinion after years of observation that criminality is largely the result of ignorance, idleness and indolent habits. Since I have been in the habit of visiting reformatories I have often thought of Isaac Watts' philosophy, "Satan finds mischief for idle hands to do." It is the young loafer and idler who is around the streets night and day "killing time" that gets into trouble. Whenever parents rear their children in idleness they simply sap the foundations of personal character and fit them for criminality. A report of the Elmira Reformatory shows that of thousands of persons who were received into that institution since it was first opened over 83 per cent. are classed as laborers and idlers.

For more than fifty years it has been said that a greater advance in education would reduce crime to a large extent. But this is only true in part. Secular education does not reduce murder, forgery, grand larceny,

embezzlements and other heinous crimes. There must be moral education. Indeed, such offences are usually the work of well educated men.

Those best able to judge will not deny that the most dangerous person to-day is the educated crook. He plans crime scientifically, at the same time exercising the greatest care. Indeed, he makes it a business, and, as is sometimes said, goes into it for all he is worth. The college graduate behind the bars is becoming very common. At the present time nearly all of our large prisons have doctors, lawyers, editors, teachers and others of keen minds and large professional experience. Some of the articles found in the Star of Hope, the State Prison paper, show a wide range of reading, and could only be written by scholars. And at the lowest calculation, most of our large prisons contain from five to ten per cent. of college graduates, and the number is rapidly increasing.

One of the most scholarly men that I ever knew came from a little town in Massachusetts. He was so exceptionally bright that had he put his native talents and energies into an effort to keep the Ten Commandments, instead of aiming continually to plunder his fellow men, he might have been a Morgan or a Rockefeller. The man of whom I speak began life as a school teacher, then a clerk in the office of a country attorney. After this he became a full-fledged lawyer, and drifted into politics.

From politics he went into crime, and soon became an expert forger and swindler on a large scale, and as a rule he always worked for "big game." As a confidence man he had a shrewd way of getting hold of millionaires and fleecing them.

A most noted and clever crook some time ago came to grief in an effort to impersonate an English earl. This man had a charm of manner about him and other polished ways that would have given him a place in any society. But he used all his cleverness and scholarship only to make for himself a criminal career of the most romantic character. He was afterwards sent to Sing Sing Prison, where he became the first editor of the Star of Hope, and a regular "mogul" among the inmates because of his scholarly attainments. It was said that he wrote sermons for an ignorant chaplain now no longer there.

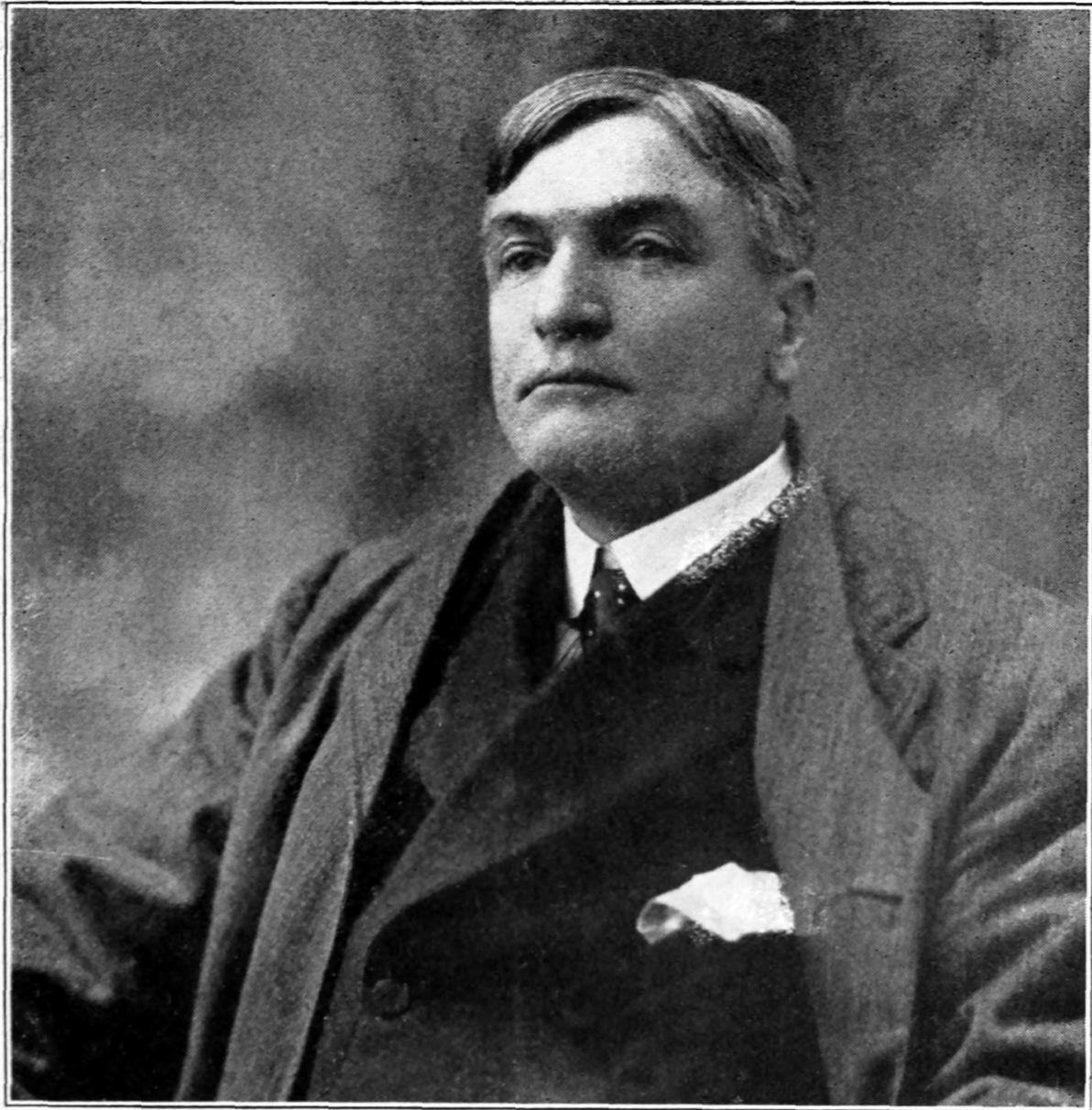
Another college graduate whom I have known, and who had a national reputation for crookedness, was born in western New York. At his father's

death he inherited \$600,000. After he had graduated from Columbia Law School, he went West and became a land and grain speculator. He afterwards opened a bank and was made president. Then he was elected mayor of the city and state senator; he ran for Congress, but was defeated. He was an expert gambler, and he told me that he more than once lost \$40,000 in one night, in the Tenderloin. Having been a banker himself for several years, he knew how to “work” banks for all they are worth by the use of forged checks. He was arrested five or six times, but only convicted twice, and was then able to cheat the prison by a technicality.

No person is so much exposed to crime as the mental and industrial illiterate, and it will always be so till the end of time. But education that does not elevate, purify and generate high ideas in man is nothing short of a curse to the individual. Furthermore, the educated crook can do vastly more harm in the world than the ignorant crook, and is much more dangerous when at large. It does not necessarily follow, therefore, that the more educated the man is the better the citizen, nor that he is less liable to crime. The fact is well admitted that in nearly all the northern and western cities the prison inmates are able to read and write, and scores are classed as really educated. Among the young men that go to Elmira Reformatory only six to nine per cent. are classified as illiterate, and the number of illiterates admitted to Sing Sing is said to be nine per cent., a very small proportion when we think of the large number of persons who are sent there.

The Rev. Fred H. Wines, D. D., defines education as labor, instruction and religion. He says:

“The best preventives against crime are a well trained mind, industrious habits and a good moral life. And the power of a good example and a pure conversation is incalculable in leading young people into steady habits and a noble life such as they should everywhere follow. Let New York follow out the teaching of Solomon, and there is sure to be less crime in the future than in the past: ‘Train up a child in the way he should go, and when he is old he will not depart from it.’”



The only Man on Record who is known to have Pardoned himself out of Prison. He began life as a School Teacher, Clerk in a Law Office, full fledged Lawyer and Treasurer of a Political organization in New England, with whose funds he decamped. He has been in Prison a dozen times under as many aliases, where he has spent twenty-five years. When he pardoned himself out of prison he was in Nashville, Tenn., under the name of Henry B. Davis. He is now supposed to be dead.



## CHAPTER VIII

# LEAVES FROM THE HISTORY OF A CHECKERED CAREER

The Remarkable Confessions of One of the Brightest, Brainiest and Smartest Crooks of His Day—  
How He Pardoned Himself Out of Prison.

“Naturally I shrink from publishing my sins to the world. I prefer speaking of the shortcomings of others. Like most of the human family I can see the mote in my brother’s eye, but am blind to the beam in my own eye. That I am a son of Belial the journals of the country have not for the past twenty-five years permitted me to forget. I am viewed as all that is bad—as one whom it were folly to try to reform—as an incorrigible, morally deformed. If I am not totally depraved, society is not to be blamed. I rejoice that I am far better than society knows, that I know God and His love for me, and that in my inner life abides a faith that assures me I am but a wanderer from my Father’s house, to which I shall some day return and be numbered among the ransomed.”

“Often have I looked heavenward and exclaimed: ‘Oh, God, I thank Thee that Thou knowest me, and that Thou wilt never misjudge me. Thou knowest why I wandered from the path of righteousness, and when I shall return thereto. I pray for the grace that will enable me to return—that will so fortify me that I may depart from evil and cleave unto Thee.’

“I have never doubted that God will eventually grant my prayer. Were it not for the faith I have in myself, the merciless, unchristian condemnation I have been subjected to for the past quarter century would have sent me to hell beyond redemption! Had I been prayed for more and denounced less by those who are continually announcing their belief in prayer, and the power



of God to save to the uttermost all sinners, I might have been a better man than I am. But I am forgetting that I was not asked to write a sermon—that the request was for some of the most sensational and interesting of my experiences—my exploits. The most successful, most valuable and by far the cleverest work of my life was the forging of the documents which induced Governor Buchanan, of Tennessee, to pardon me, April 3d, 1891. I was confined at Tracy City, Tenn., under a six years' sentence. It is one of the branch prisons of the state, and the convicts are employed in the coal mines. I was put to work in 'a 3 foot vein,' with a negro convict—an old miner—for boss. The most arduous labor I ever performed, did little else than grumble from morning till night, and shirked all I dared. At night I laid awake trying to evolve a plan by which I could escape from my wretched plight. I decided that I would try to forge my way to liberty. I soon prepared to execute my plan, secured legal cap paper, official envelopes, ink and some good pens. In three days I forged a petition bearing upward of 150 signatures, writing differing in each, the names of the leading citizens of Tipton county, Tenn., the county in which I was sentenced. I then forged a letter bearing the signature of the firm of attorneys that defended me, one of whom was a friend of the Governor, and enclosed it with the petition, and had them mailed in Memphis, remote from where I was confined, 320 miles. I then forged another letter purporting to have been written by the aforesaid attorney to John Tipton, representative in the Legislature at Nashville, in which he was asked to see Governor Buchanan, and to urge him to pardon Henry B. Davis (my alias). All this was done in March, 1891. On the 3rd day of April, 1891, the pardon reached the warden at Tracy City. I received the glad tidings while in the dining room, writing a letter for a fellow prisoner. Warden Mottern walked in and threw a letter on the table at my side, remarking as he did so, 'Henry, don't let that take your breath away.' I did not take up the letter, but continued to write. The warden, eager that I should read the letter, repeated his remark. I then felt that it was a letter bearing very important intelligence, and drew it from the envelope. I have never forgotten its contents. It read:

Henry B. Davis, Esq.,

Tracy City, Tenn.,

Dear Sir:

I send herewith your pardon. After you have called at the Capitol and signed certain papers, forwarded to the Governor by your attorneys, you are free to go home or elsewhere, I am

Yours very truly,  
W. H. NORMAN,  
Adj't-Gen'l and Private Secretary to His Excellency  
John P. Buchanan, Governor.

“As they could not clothe me that day nor arrange for my transportation to Covington, Tenn., I remained in the stockade until 4 a. m., of the 4th. And a more fearful and uneasy mortal the world had not. I made my way to Indianapolis, and did not until I reached that city see anything which indicated that I was being sought—that officers were after me. While sitting in the depot a man passed and re-passed me, closely observing me. I said to myself, ‘He evidently is looking for me; I had better get out of this.’ I went out of the north door as he passed out of the south door, and hastily boarded the “White Mail” express on the P. C. C. & St. L. R. R., without one cent in my pocket. I was on the front end of the mail car, and rode to Denison, Ohio, unmolested—the longest ride I ever knew anyone to make ‘on the beat’ on a passenger train.

“In August, 1901, I was arrested in Jersey City for forging a telegram. Shortly after I was bound over to the grand jury it was learned that I had been sentenced to six years’ imprisonment in Tennessee, and a letter of inquiry was sent to the Governor, who quickly notified the Jersey City authorities that I had been pardoned because of forged documents sent to him by some person unknown. A certain detective then went to Nashville, called on the Governor, and said: “Governor, Edwin Stoddard, alias Henry B. Davis, is subject to your order. Do you want him, and what is the reward?”

The good Governor, eternal peace and happiness be his, slowly rose from his chair, straightened his tall form and said: ‘Do I want Edwin Stoddard, alias Henry B. Davis? No, sir; I do *not* want Edwin Stoddard, alias Henry B. Davis. He beat me very cleverly, and is altogether too brilliant a man to be in prison! All I ask of Edwin Stoddard alias Henry B. Davis, is to stay out of the State of Tennessee! The pardon stands. I bid you good day, sir.’

“How the small, inhuman, unfeeling soul of the detective, who for two hundred dollars was eager to return me to a loathsome prison, must have shrank from that great, noble, white-souled Governor. What a rebuke the good Governor administered to the mercenary, unchristian wretch!

“In November, 1889, while journeying from Chicago to St. Louis, in a parlor car, on the Chicago & Alton R. R., I entered upon what resulted in one of the most interesting experiences of my life. A gentleman left his chair and said to me: ‘I am the Rev. ———, of Springfield, Mo., and if I mistake not, you are the Rev. ———, of Detroit,’ (at that time a well known preacher). At once seeing an opportunity for amusing myself, I said: ‘You are right; I am pleased to form your acquaintance.’ After we had conversed for some time he said, ‘I should be pleased to have you accompany me to Springfield and become my guest and to occupy my pulpit Sunday.’ To which, after some hesitation, I consented. He had a very pleasant home, and the sweetest, kindest consort it has ever been my pleasure to meet. They could not do enough for my comfort and pleasure. Impostor that I was, their assiduous attention only served to render me uncomfortable. I asked a blessing at each meal, and read the Bible and prayed in the morning and evening. But the thought of the two sermons I was expected to preach Sunday caused me unspeakable perturbation, as I had but 36 hours in which to prepare them. I was tempted to flee the place and let the good pastor think what he pleased. But as I had never in the course of my wayward career proved unequal to any emergency I determined to face the rugged proposition and preach as he had requested. Retiring to my room with a Bible and several sheets of paper I went to agonizing over the sermons. For the morning sermon I took for my text the verse in Genesis (1:26) where God gives man dominion over all living creatures. I spoke from notes and flatter myself that I did fairly well. I was warmly congratulated by the good pastor and his wife, and introduced at the close of the services to a number of the congregation.

“In the evening I preached on Faith, and from notes. I labored to be very original and succeeded. I recall maintaining that we could not exercise any more faith than God allotted to us, that since he was ‘the author and finisher of our faith,’ we might reasonably hold him responsible for our lack of faith provided we had prayed most earnestly for the proper faith—for sufficient faith. I also maintained that it were possible for one to have faith sufficient

to secure an answer to a prayer that, while it benefited one might be harmful to many others. That God often denied a petitioner even when he had exercised the required faith because God saw that to answer the prayer—to bestow what was prayed for, would work harm instead of good to the supplicant. That it was more the nature of what we prayed for than the faith we evinced that influenced the Almighty to a decision. I spoke of the assassination of President Garfield, reminding the congregation that prayers were ascending to God from all parts of the world, and that many of the petitioners believed that God would spare his life. Yet he died. What conclusion must those who prayed for Garfield's recovery reach in order to be consistent? Could it be other than that the Almighty deemed it best to remove James A. Garfield from this sphere of action? Therefore faith does not induce God to answer an unwise prayer.

“A child four years of age lay sick and at death's door. The physician decided that he must die. The mother agonized in prayer. God spared his life. That boy grew to manhood and at the age of twenty-eight robbed and murdered his grandfather and was hung. Did faith save the boy for such an awful crime, and death on the gallows? If so, it accomplished an awful work! Far better had the boy died in his innocent childhood! Faith should behold not merely the substance of things hoped for but should go far beyond this and see that the things hoped for will permanently and soulfully benefit the petitioner!

“At the close of the service the pastor said to me, ‘Your discourse was forceful and original, and stimulated my mind and has given birth to thoughts hitherto unknown to it. You interfered somewhat with the old orthodox line of belief but have nevertheless done us much good. You have quickened and driven us from the old ruts which we have followed for many years. I believe my people are very much pleased with the sermon.’

“The next day I was taken about the city and shown the different points of interest and introduced to a number of the leading citizens.

“To this day I think the worthy pastor and his noble wife fully believe that they entertained the Rev. —— of Detroit.

“In December, 1889, I was arrested 400 miles from a city where I had obtained \$1,400.00 on a forged draft. While escaping, I changed my clothes, and had my mustache removed, and hair dyed a jet black. When

arrested it flashed through my mind as quick as lightning, ‘Feign deafness and dumbness, and that you can neither read nor write.’ I was taken back to the city where I had cashed the draft, and so changed was my appearance, that the cashier was in doubt as to my identity, but they placed me in jail and finally succeeded in holding me for the grand jury. For sixty days I was closely watched, four different men were placed in the cell with me and, instructed by the police, did their utmost to induce me to talk or to write, but by the utmost care I evaded all their little artifices and cunning, and the grand jury did not find a true bill. Thus did I obtain my liberty after maintaining silence for two months and not placing pen or pencil to paper. The most trying time of my life, but I never regretted playing the part inasmuch as it saved me from a sentence of not less than ten years!

“That I sorrow o’er the evil I have done is to be believed. I have often wondered why I have had such a wayward career. I sincerely desired to be one of the best men in the world, and in my early manhood believed that I was to become such a man. I am well nigh a fatalist. What God foresees must be equivalent to a law that cannot be evaded. He foresaw my career. I could not do otherwise than I have done. I sometimes so reason. I am grateful to God that in all my unrighteousness I never wholly lost my belief in his saving grace and that he loved me; that there was a glorious reality in the religion of our Saviour; and that the uplift of fallen men and women and their leading noble, useful lives was and is an unanswerable argument in support of his gospel of love, mercy and helpfulness. That I may become a humble, earnest follower of him who made known God the Father unto men, is my earnest prayer. I am soul weary of a life of sin. I have had an unspeakably wretched life for the past twenty-eight years. I mean to get away from my old wayward sinful self—out of self and into Christ! I am glad that I can truthfully say, that there has never been a period in my life when I did not love Christ and venerate God, never a time since I was twelve years of age that I did not at some hour in the day fix my mind on God and ask him for his mercy and guidance. But for all this I have had a very checkered career. Still I believe he heard my prayer and will yet enable me to lead a righteous life.

“If I can say anything which will induce any wayward fellow creature to depart from evil and walk Godward—heavenward, I should be most happy to do so. God’s mercy is for all. He never turned a deaf ear to the prayer for

mercy. Nothing so beautiful to the angels as a sinner on his knees imploring the mercy of the merciful and loving God!

“I have written the foregoing for the Rev. J. J. Munro, Chaplain of the City Prison, New York City. Interested for my spiritual welfare he won my confidence and gratitude by his sincerity and the spirit of helpfulness that dominates him. He is doing a noble work at the prison and cannot be too highly commended, and the good people of the city should earnestly and generously aid him that he may be enabled to extend his noble, Christian work in behalf of the fallen and the neglected who, if properly befriended, may be restored to honest and useful lives.

“E. S. S.”



## CHAPTER IX

# THE AUTOBIOGRAPHY OF A CROOK

How A Young Life Was Wrecked

The writer of the following sketch received a sentence of twenty-three years imprisonment. He is a bright and brainy criminal. It is the general opinion that had he used his talents and business sagacity along honest lines he would have been a different man to-day. He has brains in abundance, but he uses them wrongly. Let him tell his own story.

“My father and mother as well as all my relatives on both sides of the family were exceptionally well connected and highly respected in the community. My father in his best days had plenty of money. My earliest recollection of my father was as a railroad manager, always full of business—seldom at home except for meals or on Sundays. After the New England road changed hands and became part of the New York, New Haven and Hartford, he lost his job. This was a calamity to my father as it compelled him to begin over again, which at his time of life was a very serious task. I was then ten years of age, and although unable to take in the situation fully, I knew something was wrong.

“Without flattery I wish to say I was not a bad boy at this age. I attended school and like other boys, I cut up once in a while, but when my teacher sent word home to my mother recounting my pranks, she always punished me soundly for my conduct. After leaving the railroad company, my father went into a little town near New Haven, where he sunk sixty thousand dollars in what afterwards proved to be an unprofitable business. When I was fourteen years of age my grandfather died and left my mother ten thousand dollars. This money came like a god-send. Again my father started in business. This time it was keeping a hotel. It was not so successful as we



had expected, but my father made a living out of it. When I was fifteen years old I left school and for a whole year simply spent my time loafing. I would not work. I mixed in with all kinds of company—mostly bad. I listened to men as they told how to commit crime and escape punishment. At first my conscience would scourge me for allowing myself to be in such company, but I would dismiss my fears by saying, ‘There is no harm in that as long as a fellow does not get caught.’ I was yet of tender years, although I felt I was at heart a degenerate. I can see now where I made the great mistake of my life.

“I can see now that my mother was far too lenient with me, and should have punished me often for my mean ways, when she only admonished me with kind words. If I had known that I was to be punished for many of my youthful pranks, I certainly would not have repeated them. But I knew that I could impose on mother and make her prevent father from punishing me even when I deserved it. This made me reckless and daring, so I did not care what I did as long as I was not to be punished. I could steal a few pennies from my mother’s wallet, smash a pane of glass in anger, and steal the horse from the barn against my father’s will, and yet be immune from punishment. All this tended to make my downward career swift and sure.

“On my bed at night I often thought of my mad and foolish ways. I knew I was doing wrong—sinning against light and deceiving my kind-hearted mother. It was not kindness I needed as much as a firm hand over me. I confess I suffered greatly from moral struggles within. I came from a good New England ancestry. My relatives were all respectable people. Why should I do anything that would bring disgrace upon my family? But I would not work. I preferred to be an indolent loafer than an industrious young man. Then the inward struggles would return to me again. I fought them to the death, continued to trample God’s laws under my feet and went on to do my own will.

“I believe now that my unrestrained pranks led to my final criminality. I was now seventeen years of age. I was not a gambler, nor was I a drunkard or profane. But I positively refused to work. I spent my days loafing around the village in all kinds of company, getting trained for a downward career.

“One day my father took me aside and said, ‘George, you must go to work at once or leave this house.’ Several words passed between us that had

better not been said. I refused to go to work, and left the house the next day. I stayed around the village for several days, living with friends. I soon found myself hard up. Like the man mentioned in the Gospel, I refused to dig, and to beg I was ashamed. I said to myself, I must get some money somewhere, I cannot stand this any longer. I had no wish to be a criminal and yet I must get money without working for it. It was summer time. I saw many houses empty, the Devil said, 'This is your chance.' The people had gone to the seaside and the mountains. I selected a house where I thought there was plunder and that night burglarized it. This gave me plenty of ready money. I followed this with a number of more burglaries. After a time this kind of crime became my second nature. Then I became reckless and soon after was arrested, convicted and sent to Wethersfield State Prison for two years and two months.

"After I had reached State's Prison and had donned the convict's garb, I was totally ashamed of myself, not to say mortified. I made many resolutions and even cried over my worthless life, but was no better inwardly or outwardly. The fact is my heart was evil continually. I was twenty years of age when I left prison. I was not reformed, nor had I any desire for inward reformation. My heart was still on the old life. During my two years of enforced servitude I had learned the bakery business. I thought when I got out, if all things failed, I could earn a living by it. After my discharge I went to a place called Long B—— in a neighboring state. Here I found employment in a bakery which was kept by a widow woman. I worked so faithfully for her that after a few months she made me her manager. I now made up my mind to do what was right, so I shunned crooked companions. Many wealthy people lived on the Beach, where they had summer homes. As many burglaries had been committed in the neighborhood, I was appointed special watchman. I served in this capacity for two years, during which time I gave entire satisfaction to all concerned.

"After a few years of sweet liberty, I was in prison again. This time, I assure you, it was by mere accident, as I had no intention of being back again in crime. While playing with a pistol, I accidentally shot a girl. I was convicted of criminal carelessness, and was sent to prison for two years—simply because I was an old offender.

"I had been a free man several years. I never expected to go to prison again. This sentence was a surprise to me and everybody else. It was

unlooked for. I was mad with myself. In prison I became sullen and brooded over my trials. My wife had abandoned me. Before I left prison I wrote asking her to secure a divorce from me. I assured her I would not oppose it.

“After leaving prison, I came to New York, where I operated extensively as a scientific burglar. In my last prison experience, I met some expert crooks who willingly perfected my criminal education. I believe the curse of our prisons to-day is the lack of segregation. I am satisfied nearly all the prisons are schools of crime.

“As long as the authorities mix young beginners with men old in crime, so long will our prisons be seminaries of vice of the darkest and vilest character.

“With my new ideas I found New York a profitable field for criminal enterprise, but was not confined to this place alone. I visited a dozen cities where I worked as a criminal. In New York City alone, I managed to perform sixty-five burglaries in a brief space of six months. In some of them I netted as much as \$12,000. The police could not get ‘the drop on me,’ but were pleased to call me a ‘Twentieth Century up-to-date Second Story Man.’ I eluded them for three years. All this time I took great chances. My plans were so perfect that I never believed I could be detected.

“My methods were to hire a room or two in a respectable part of the city—usually on the top floor—go up on the roof through the scuttle at night when all were in bed, and return with my plunder before morning. I never robbed the house in which I lived, nor any place near to it. I usually crossed over a dozen houses. If one house was ten or twenty feet higher than another, I overcame the difficulty by lassoing the chimney with my silk ladder. Then I let myself down into any window I wished to enter. I overcame all difficulties. I always carried a pair of pistols ready for any emergency, a bull’s-eye lantern and a set of burglar tools in a leather case in my hip pocket.

“In July I committed six burglaries on one street near Fifth Avenue, New York, and made a big haul each time. The gold and silver heirlooms I could not sell I melted and sold for their intrinsic value.

“I was so successful in all my operations as a burglar that I became careless. I had laid my plans so carefully that I did not think I could be

found out. I burglarized the house of a well known millionaire. He afterwards offered a reward of a hundred dollars for my detection, for I had taken away all his valuable bric-a-brac. A month or two afterwards I again hired rooms in the same neighborhood and went over the old grounds. This was the mistake of my life, as they were on the outlook for 'my kind.' I wanted more money and took chances. I became reckless in my methods. The night I was caught I was coming up the fire-escape with a pillow slip of silverware on my back. A woman servant heard me, came to the window and gave the alarm. I ran to the roof with haste and threw away my booty. I was cornered before I knew it. Three cops met me with loaded guns; when I was shot I surrendered."

Brooks was one of the most remarkable and dangerous men that ever followed the profession, so he was characterized on the day the Judge sentenced him to twenty-three years imprisonment. Before passing sentence, the Judge said, "Brooks, I doubt if there was ever a criminal in this city like you. Cold, calculating, scientific, systematic, you have pursued your criminal career like a mechanic without interruption, for years. In the course of a few months you have committed thirty-nine burglaries and stole more than \$65,000 worth of property."



## CHAPTER X

# WANDERING STARS AND BUZZARDS OF THE TOMBS

Thrilling Experiences

What a field for the study of human nature the careful observer finds in the Tombs Prison! I do not know of any other place on this continent where such a display of types may be found as here; not only every nation, language and color on the face of the earth, but the variety is kaleidoscopic and leaves on you a deep impress. The moment you see a real crook his personality stamps you at once for good or evil—rather for evil; nor can you help yielding to such impressions. But then the face is the expression of the individual and reveals to some extent the character of the inner man. Although there are many exceptions to the general rule, these are few and far between. I find that backsliders in crime after a few years show a vitiated and debased brutality in their physiognomy.

During the ten years that I have been connected with the Tombs Prison, I have met a great many brilliant men who were at heart dyed-in-the-wool crooks and bent on a criminal career. I do not care to call a man a criminal if I can help it, but how can one avoid it when called upon to describe a modern social anarchist but use such terms as will best describe the one who lives on crime.

It is a most difficult thing to know just what to do with such people; but unless they are reached by the milk of human kindness and the love of God there is little hope for them. I have found by observation and experience that the average recidivist is insane on criminal matters, and is besides a notorious liar! Nor is it best to believe a word of what he says, unless it is

supported by some other testimony. The fact is, he will not tell the truth even though in the end it might do him vastly more good than a lie. And any man who denies the truthfulness of total depravity needs only visit a prison and hear the confessions of crooks and then seek their corroboration, and it will not be long before he will be compelled to abandon his foolish denials.

I find that in youthful degenerates the face holds a pleasant expression sometimes for years, but then the long confinement behind the bars reveals a white pallor and dull sunken eyes that cannot be mistaken; on these crime seems to have written itself indelibly!

Young sixteen-year-old Stewart, who was sentenced to twenty years in Sing Sing for killing a boy his own age on Randall's Island, whose facial lineaments I often watched and studied, had a most attractive physiognomy. No one could have believed from his looks that he was a criminal, but how long he can retain these looks is a matter of conjecture.

Our prisons are full of young buzzards who need to be watched continually. These boys are cunning, sly and treacherous. When you see them coming be sure and give them a wide berth. Do not believe what they tell you, even if they swear on a monument of Bibles. Most of them are in the business to lie and they know how to attend to their own business!

## The Untruthful Crook

Nor can you rely on any of their promises. If they speak to you sweet words you will find that they have the poison of asps under the tongue. They are born buzzards and can no more change their ravenous nature than a leopard his spots.

One of the earliest buzzard freaks I knew was a boy named Dietz, who was several times in the Tombs for misdemeanors before he was finally sent to Elmira for a felony. I found Dietz to be one of the most expert and finished liars ever I met. It was no trouble for him to lie in three languages! It seems that he could hardly make a statement of any kind, without crowding into it a few lies. He had a way of his own by which he could palm off on an unsuspecting missionary a harrowing tale of persecution that would bring tears to the eyes and his tales were so well arranged that all would believe them.

For daring criminality he could give points to Western bandits and shame them in the end. A car load of such characters dumped on a peaceful city of fifty thousand people would disrupt it in a week. Dietz gloated on blood and thunder yarns of the wild and woolly West, most of the time and was unhappy unless he was draping demons from the cesspool of his soul.

When I meet a chronic liar I readily conclude—no matter what his age may be, that the bottom has dropped out of his character. The liar is the best evidence of total depravity, and this particular characteristic of the individual cannot long be hid.

The second time Dietz was an inmate of the Boys' Prison I remember how I raced all over the city on a wild goose chase on one of his lies, not knowing at the time that his story was a fabrication from A to Z. I found out by mere accident that his brother, who was a clerk in a large shipping firm in the city, had aided him out of his first scrape, but refused the second time to have anything more to do with him. He knew this and took pains to conceal the fact that after many chances to do the square thing his brother considered him "no good." His wanton deeds and prodigality he considered



virtues and when he recited them to those who would listen to him he was in smiles.

The third time he was in the Boys' Prison was for a felony. He came in under an assumed name. He did not call upon me for help this time as I knew his record too well. But he had some women to work for him till they found out that his stories were only lies from start to finish, after which they gave him up. He was finally sent to Elmira Reformatory, but what became of him afterwards I have never learned.

It seems as natural for criminals to tell lies as to breathe, when in most cases the truth would serve to better purpose. Some time ago a young Russian named C—— was before Judge Cowing for stealing a diamond pin. The crime was committed in the Thalia Theatre on the Bowery. While his pedigree was taken in General Sessions he was asked if he had ever been arrested before and, as usual, his reply was a lie. When he was sentenced to Elmira Reformatory he replied to the Court, "Judge, would rather go to hell than to Elmira." After he came back to the Tombs I asked him why he hated to go to Elmira so much. He then told me that he had been there already while Superintendent Brockway was in charge. I then made an investigation and found the lawyer that had defended him at his first trial, who after he had been in the Reformatory two years and a half had secured a pardon for him so that he might return to Russia, which he did. He joined the Russian Army, but is said to have deserted soon after the breaking out of the war in the Far East. In less than two months after reaching New York he committed another crime and sought to cover it with a lie.

This man's career shows him to be nothing less than a human buzzard. Criminality is written on his countenance, which, to say the least, is forbidding. After he was sent to Elmira Reformatory he was soon after transferred to Auburn Prison, where he will have an opportunity to serve his full sentence of five years.

Another criminal of the Buzzard species was Chump of Harlem. He was only twenty-six years of age, the son of a sergeant of police. He is so indolent that he prefers to beg or steal rather than earn an honest living. Those that know him best call him "a gin-mill sucker," as he spends most of his time there for the "drinks" he can pick up for nothing. He was arrested

in midwinter for stealing a forty-dollar chair from a furniture store in the upper part of the city. Like most of his kind, Chump said he was innocent and that it was the first time he was ever arrested. As he gave a fictitious name and wrong address it was impossible to trace his record. Under the impression that he was a first offender, he was allowed a plea of petit larceny. When he came up before Recorder Goff he found his match. Some person must have given the Court an “inkling” of Chump’s record. When he stood at the bar of General Sessions the Recorder had him sworn on the Bible so that he might tell the truth. Then the tug of war began. “Chump,” said the Recorder, “Tell the truth, were you ever convicted before?” Chump hesitated. There was a painful silence in the room. “Now tell me,” said Judge Goff, “How many times were you sent away in your life? Were you ever in the penitentiary?” said the Recorder. “Yes,” said Chump, “once.” “Is that all,” said the Recorder; “Now tell the truth.” “No,” said he, “Twice.” “Any other times?” He hesitated again. It seems that this young vagabond had no less than six convictions standing against him prior to this time. While he was under the Recorder’s scrutiny he must have suffered torture of conscience. But his real character was brought out which showed him to be an A1 degenerate and a notorious liar. Before he started for the penitentiary I asked him why he had lied by saying that he had never been up before. He coolly replied, “Well, you know if I had told the truth nobody would have done anything for me.”

## Dark Records

In the following sketch I have selected crooks of maturer years. They are types of modern brainy criminals. I have said nothing of Orrin Skinner, the well read Illinois lawyer who became a jailbird in early life and afterwards died in Auburn prison, nor of Rue Ralley, the scholarly criminal who was master of several languages; nor of other well known crooks who got away with millions of dollars from several New York banks. I have said nothing of "Jimmie" Hope, who robbed the Bleecker Street Bank of three million dollars, and was called the Prince of Safe Crackers and who at one time was said to be worth a big fortune, the "pickings" of several bank burglaries; nor of the young crook who went boldly to a Broadway Bank at the noon hour and with only an empty soap box under his feet, leaned over the cashier's cage and got away with \$10,000. But the city is full of such bold crooks who simply wait their chances.

It must be an awful insult to the Almighty, after he had so liberally endowed such people, some of them with the intellect of a Webster or a Gladstone, for them to use their powers only to do evil and refuse to do good. But this is precisely what a habitual criminal makes up his mind to do when he continues in wrongdoing against the wishes of his best friends.

A middle-aged criminal who has made a dark record as a thief and liar since he was ten years old was taken to the prison desk in my presence to give his pedigree, as is the custom with all who are committed by the Magistrate to await trial. When asked his name, age and business, he replied, "I am forty-five years of age. I have no home but the Penitentiary and a ten-cent Bowery lodging house which I use when I am not in prison. I am a thief by profession and have followed that business nearly all my life. As I positively refuse to work I mean to be a thief till I die, and will compel the State to support me."

There are hundreds of this class possessing the same delusion in all our cities, who do nothing but steal for a living and then cover their evil conduct by lies. They are insanely depraved and should be locked up permanently, as they are of no use to anybody. They are social parasites and enemies of the race.

And yet I am forced to say that some of the brightest and brainiest of men that I ever knew in their sober moments, were crooks. I have tried to study them to see how and where they differ from other men—and that is no ordinary task. Whether I succeeded or not remains to be seen. In some cases, after many patient interviews I was able to draw them out of the dark and gloomy past, where I could read their character in its true light. Although many of this class are exceedingly interesting as conversationalists and unusually intelligent on the great questions of the day, I find they are never willing to disclose their identity or reveal their inner life. A crook never gives his right name when placed under arrest—always an alias. His deeds are done in darkness.

One of the most forbidding faces ever I saw in my life was that of Terry R—— who died in the New York Penitentiary a few years ago. He was a hardened character. During his life he had eleven convictions for crime recorded against him, extending over twenty-five years. I carefully observed that during his last years he became sullen, revengeful, despondent and suspicious of everybody. Terry was a living example of that terse old Scripture passage, “The way of the transgressor is hard.”

Speaking of lies, which are the ordinary stock in trade of all criminals, reminds me of Frank McKenna’s experience. Some years ago he was sent to the House of Refuge for a year. That was before the principle of the indefinite sentence was applied to such institutions. A few days after his discharge he committed a crime similar to the one for which he had been originally sent away, viz., holding up a child on the street and taking away her wallet. For this second offense he was in due season indicted; when he was taken to Part I, General Sessions, Recorder Smyth asked if he had ever been in the House of Refuge; he replied in the negative. “Well, then,” said the Recorder, “I will send you there for a year.” On the day following he was taken to the House of Refuge but they refused to receive him as he had been an inmate of the institution and was only discharged a few weeks before. When he came before Recorder Smyth the following Tuesday, he asked him if he really meant to have told him a lie on the preceding Friday, when he sentenced him; without a moment’s hesitation he said “Yes.” “*Then,*” said the genial Recorder, “for this lie which you have told me, *I will give you four years imprisonment and for the crime charged against*

*you in the indictment one year."* Since then McKenna has served several sentences for crime. He is a bad crook.

Before he left the Penitentiary the last time, a well known missionary became interested in him. This gentleman secured for him a suit of clothes and gave him a few dollars to pay for meals and lodgings for a few days. Since then he has entirely disappeared as if the earth had swallowed him. But where he has gone no one knows.

Another well known character, whose career goes back some years, was Captain Jack of the Cuban Army. The Captain was a native of Virginia, was a well educated young man inclined to adventure; he had been in Cuba several years fighting the Spaniards under Gomez. After the blowing up of the Maine and the United States had occupied Havana, Jack returned to New York on one of the transports. He had in his possession four or five hundred dollars besides a railroad ticket to his home in the South. While wandering along West Street, waiting for the departure of the Pennsylvania train, he was inveigled into a disorderly house where he lost all his money and valuables. When the Captain came to himself and missed his property he made a demand on the saloon keeper for its return. The saloon occupied the front of the building and the disorderly house the rear. When he asked for his money there was some loud talk in the place and as a result Captain Jack was "fired." As soon as he reached the sidewalk he was arrested and taken to the Church Street Station House. In the Centre Street Police Court next day after hearing the policeman's version of the trouble, the Magistrate fined him five dollars. Up till this time Captain Jack had nothing to say by way of explanation of his side of the case. When he returned to the Tombs he told me his story as he was mourning over his loss. He was grieved over the shameful treatment he received, as he was only put under arrest when he demanded the return of his property. I went over to the Police Court and laid the facts in the case before Judge Flammer who had sentenced Jack, but had not known anything of his loss. At the suggestion of the Magistrate I communicated with the Second Precinct police and asked why Captain Jack was arrested while the thieves that stole his money went scot free. Captain Westervelt put Detective Mooney on the case, but nothing came of it. The police kept Jack in a down town hotel for a few days and then raised money among themselves to buy a railroad ticket and sent him home to Virginia. The following year Jack came to New York and was in trouble again. This

time he was charged with “beating” the Broadway Central people out of a board bill. For this offense he was sent to the Penitentiary for three months. In size the Captain is diminutive, voluble of speech, full of weird tales of adventure in Cuba and is not at all too gifted with telling the truth. He returned to Cuba where he was promised a position by his old comrade, General Gomez—as he called him. But of these things I have no personal knowledge and would be unwilling to believe one-fourth of what was said of his past or future.

It looks sometimes like an awful waste of time to do anything—even of a humanitarian character for the average crook who tries to interest you in his welfare with a pack of lies. But I have never refused these people when I thought I could do them any good. I have worked for them in every possible way that I might win their confidence and thus lead them into a better life. I have learned by experience not to believe all a crook says or even a hundredth part of it. It don't do to allow yourself to be caught napping by these gentry who think they have everything to gain and nothing to lose by a lie.

## Kahn, The Black-Hearted Syrian

In the lower part of New York near the Battery, in the vicinity of Washington and Greenwich Streets, there is and has been for several years what is known as the Syrian colony. The few immigrants that come from Damascus, Beyrout and other parts of the Turkish Empire all seem to gather here. As it is contrary to the Koran for any of them to use liquor of any kind, or sell it, these Mohammedans are seldom in prison, yet they are lacking in saintly character as much as the Latin and Slavic nations of Europe. At the time of which I write there was a hotel or boarding house in the Syrian colony, kept by a widow named Lazarus. She spoke the English language very imperfectly. But she had in her employment an experienced hotel manager who attended to all her affairs whose name was Abirams. He had been in the country a number of years and could speak the English tongue fairly well. Everybody liked Abirams as he kept the house clean and sought to make it respectable. On one occasion a countryman named Kahn came with a young girl and tried to hire a room in the hotel for immoral purposes. Abirams positively refused to receive him or the woman. Words passed between them. Then he left the place swearing vengeance.

It was afterwards learned that Kahn was a criminal of the deepest dye and would do anything to ruin an innocent man. Twice he had been saved from the gallows by turning King's evidence in his own country. Since he came to America he was known to have sent many of his countrymen to prison for long terms on perjured evidence. He would do anything to save his own neck.

In an hour afterwards Kahn returned to the hotel with a police officer and charged Abirams with robbery. The prisoner was at once put under arrest and then locked up over night. In the morning he appeared in the Tombs Police Court. Kahn was on hand and presented before the Magistrate a sworn affidavit that Abirams had robbed him of money and a watch in the Syrian hotel the previous night. The woman was also present as a corroborative witness. Without further examination the prisoner was committed to await the action of the grand jury. For five or six weeks the poor Syrian, Abirams, neglected and forsaken by his countrymen, lay in

prison on a false charge founded only on malice and perjury. I made an investigation of the case and secured affidavits of Abirams' previous good character, showing him to be an exceptionally good man. I visited the Syrian colony personally and soon had ample reason to believe that Abirams was innocent of the charge placed against him by Kahn. After a few weeks the woman in the case disappeared for fear of arrest, then Kahn was given to understand that if he went before the grand jury and perjured himself, he would receive a long term of imprisonment. Indeed, he had offered to withdraw the charge for a money consideration, but he, too, became afraid of arrest and then fled to parts unknown.

In the meantime I visited the District Attorney's office where I sought to interest Mr. Henry W. Unger, Col. Gardiner's chief assistant, in behalf of the poor Syrian. Mr. Unger, always courteous and gentlemanly, gave me much encouragement—eternal blessings on his head—he has always tried to temper justice with mercy by giving the friendless a helping hand, and doing it kindly, and will certainly not lose his reward.

It was afterwards learned by indisputable evidence that Kahn was a tough character and had done the same thing before—that is, he sent innocent men to prison who angered him, and was ready to perjure himself again if we had not made an investigation and showed him up as a notorious liar and blackmailer.

It is needless to say that Abirams was honorably discharged and returned to the colony a wiser man. The notorious Kahn was so scared that he kept out of New York for many months afterwards.



## A Crook Whose Specialty Was Knock-Out Drops

On October 9th, 1903, a gentleman of the crooked profession named Walter Wilson, alias George Hill, alias Herman Fentner, alias Mr. Hawkshaw et al., was sentenced to thirty-three years imprisonment in the Court of General Sessions. There were eighteen indictments pending against him but he pleaded guilty only to four, with the above results. Wilson has had a criminal record extending over twenty years. His specialty in crime is said to be in the scientific use of knock-out drops, which in the medical profession is known as chloral, and at this he was an adept.

For some years he has worked in the Tenderloin, giving his entire attention to all kinds of robberies, including panel work in which he seems to be expert. He has labored assiduously for several years with women of the street and made a large amount of money, only to lose it as fast as it came to him. How many persons have received his “drops” and with fatal results God only knows.

Wilson is a most interesting character, is intelligent, wide awake, and has the ability and genuine reserve force in sufficient quantities to command an army or govern a republic or quell an insurrection. He is a “crack” criminal of the twentieth century type and while in the panel business usually went for big game. He is alert, daring and muscular and would have been a dangerous character to meet in a lonely road. He has the brains of a leader and could handle men. His gray piercing eyes and the facial expression show that he would allow nothing to stand in his way if put to the test. His weakness seems to be that when he has plenty of money and is full of “booze” he becomes garrulous and says too much.

Wilson began crime shortly after he was twenty years of age; his first sentence was less than a year on the Island for the robbery of a diamond pin; he claims to have “done time” on this occasion innocently; he had taken the blame for Nellie’s sake, his common law wife, who afterwards went back on him. Away back in the early nineties he stole a trunk of clothing from Hazel Thorne, the actress. For this he was sent to Sing Sing for four years.

For several years past he has spent his summers at the races at Gravesend and Saratoga. While in the latter village he nearly got away with a bag of jewelry valued at \$1,500.00, but as he returned the “stuff” the lady refused to prosecute him.

How many more times this man has been in prison under old and new aliases we have no means of knowing at the present moment, but that he has been in prison a number of times we have no doubt whatever. During all these years he seems to have had an intense dislike to honest labor. Like most other “gentlemen” of the crooked profession, he preferred to live like a “dude” on his ill-gotten gains rather than be a man and work like other men.

As soon as Wilson had secured his freedom after serving his first sentence he made up his mind to be a man and do the right thing. He says:

“I accepted employment with a man uptown for five dollars a week and board. I was willing to do anything to outlive my past life—if that could be done.

“One day some of my old companions who had known me in the Penitentiary came to me while at work and threatened to expose me unless I gave them ten dollars. I refused at first and was willing to fight them to the bitter end. I would not be blackmailed. As they kept it up for several days, I gave them money rather than lose my job. Then they came again, and told others who made the same demand on me. After this I refused every appeal and told them to go and do their worst; as a result I lost my job. I searched the city for honest work for weeks, but could find none. Then I became a gambler. I went to the races all around New York, where I made money easy. I confess as a gambler I have had a checkered career, and even now do not wish to tell all the escapades through which I passed. But they were not of the best quality and many of them were deeds of darkness.

“Some months ago I returned to the city. I wanted money badly and resorted to crime, as I did not want to work. This is straight—I *did not want to work*,” and he said it with an emphasis.

“I located in the Tenderloin and worked in partnership with a woman of the street. We played the panel game between us and made lots of money.

We succeeded in robbing men of means who fell into our net. Every week when I divided the graft, we had a big roll of bills each.”

Perhaps I ought to say that panel thievery is the old game of robbery in which injured innocence takes part. It is still practised in many parts of the city—especially the Tenderloin, but not as much as in former years. The three parties in such a crime are (1) a woman—elegantly dressed, with plenty of borrowed jewelry, but dissolute, (2) her so called profligate husband, and (3) her victim. The woman goes to the street—Fifth Avenue—and inveigles some young blood, a banker or rich merchant to her apartments. Then the so-called husband shows up unexpectedly. Then there is trouble but it is averted by a heavy cash payment, after which the victim goes free a wiser man.

The same thing is continued night after night for years. Not one victim in a hundred ever squeals—he is willing to pay any amount of money rather than do so. Sometimes the so-called husband shows himself to be an adept in the use of knock-out drops administered in wine. After the victim becomes senseless he is robbed of all he has and left on the premises. After a few days rest in Long Branch or Saratoga they return again to the city where the same thing is carried on nightly. This is what is called the Panel Game. Within recent years the Courts have been very severe with such people and justly so, as they are a most dangerous class.

Wilson continued: “After a while I became reckless and careless and got caught red-handed. I have found once more that the way of the transgressor is hard. But now I am done with that life. Ever since my return to the city I have been living in hell. I knew I was doing wrong.

“I wish they had sent me to the electric chair—I would be better off in the end.

“Just think of it—thirty-three years in prison, and yet it is all my own fault.

“When I come out, if I live out my sentence, I will be an old man—sixty years of age. Such a sentence is simply a civil death.”

## A Young Man Whose Craze Was In Slashing Ladies' Dresses

In one of my early experiences with criminals it was my fortune, or misfortune, to have met a young man named Max Krebs who was a rank destructionist. He was a German by birth, and had only been in this country about a year. He must have been shipped away from the Fatherland by his own people as a degenerate or the black sheep of the family. He was a good looking young man, well dressed, light hair, brown eyes, and a florid complexion. He was fairly well educated, pleasant in manners and must have come from a respectable home.

I am satisfied now that his people must have been well to do for they sent him regular monthly allowances to pay his board and to keep him in clothing. But he was a degenerate and clearly insane when in a crowd of ladies. Whenever the opportunity came to him he sought to cut their dresses with a pen knife or sometimes a small pair of shears. He knew his business so well that hundreds of elegant silk and satin dresses were cut and destroyed on the street but were not discovered till the owners returned home. In giving their testimony these ladies always remembered that they saw a young man who looked like a Teuton “crowd up” against them on the street. And while they could not identify him positively, the defendant looked very much like the dress slasher. On several occasions Max missed imprisonment by the skin of his teeth simply because he could not be identified.

In December, 1898, he was arrested on Fourteenth Street, near Fifth Avenue, charged with cutting ladies' dresses; the technical charge was malicious mischief. The crime was committed around the holidays when the streets in the shopping district were densely crowded. Many complaints had been made to the police that such a man was at large—whose only business was to ruin female attire. He was the victim of some insane delusion, although he never showed it in his speech. I questioned Max many times and tried to look him straight in the eye but he could not stand that—his eyes were not honest and, alas, like many another young degenerate he could not be depended on. As a first-class liar Max would have carried off the prize anywhere, and this was his main stock in trade in securing

sympathy from Christian people and at the same time deceiving them. From first to last I entertained grave doubts respecting this boy as I was not sure what was the best thing to do in his case. I simply gave him the benefit of the doubt.

In the early part of January, 1899, Max called me to his cell in the Boys' Prison and told me confidentially a sad tale of police persecution as the cause of his incarceration. He positively affirmed that he was innocent of the charge placed against him and he had not cut any dresses, oh, not he. I questioned him several times, but could not shake his testimony. He maintained his accusers were mistaken. As the complainant who was a lady, weakened on his identification I thought she might be mistaken, so I aided him all I could and became interested in his case. I went to the German Consulate and pleaded for him and afterwards to the Legal Aid Society. A kind hearted lawyer named Granger was assigned as his counsel, who took hold of his case with a will. He called to see him at the Tombs and tried to find the trouble, as the charge was a most unusual one for a boy of nineteen. He afterwards told me that he thought the boy was guilty but was deranged and his trouble he thought was caused by self-abuse. But deranged he was, for every opportunity he had he used in slashing ladies' dresses. It was his mania.

On January 12th the case went to trial. The main issue turned on the identity of the prisoner. The ladies that took the stand could not positively swear that Krebs was the one that cut their dresses. And as he had such a good face both judge and prosecuting attorney felt kindly towards him, and the jury gave him the benefit of the doubt and he was discharged. But there was really no defence. He was simply saved by the skin of his teeth.

A few days after the trial one of the jurors wrote me asking for Krebs' address, saying he took such a deep interest in him as to believe in his innocence and he was willing to give him a position. I sent it to him but whether he gave Krebs a position or not I cannot tell, as I never heard from him afterwards, but one thing I know, this young man was a notorious liar and as I understand, had been exiled from Germany because of his audacious criminality as a dress slasher.

This case shows how easy one may be deceived. All the labor and sympathy expended on him was wasted. As far as crookedness was

concerned this young degenerate could (to use a slang phrase) give clubs and spades to men twice his years and in the end beat them.

The worst thing that could have been done for Max Krebs that day was to save him from prison. He ought to have been sent to Elmira Reformatory and placed under the care of Superintendent Brockway and watched and then made to toe the mark.

After a few weeks New York became too hot for him; then he was compelled to beat a hasty retreat to Philadelphia, Baltimore and Washington in succession, where he continued his old insane delusion, viz.: cutting ladies' dresses for the fun of it! He was finally arrested in Washington, D. C., caught in the very act!

When he was brought to trial there must have been fifty charges against him. In Washington his offence only called for a fine and if it amounted to \$100 he could plead the Debtors' Act and go scot free. What became of Max and his insane delusions I do not know as I afterwards lost all track of him.



## CHAPTER XI

### NOTED EXPERTS IN FORGERY

America has furnished some of the most noted, nervy, brainy experts in the line of forgery that the annals of crime have known.

Authorities agree that forgery is a crime of the highest order, that needs patience, a cool head and the skill of a genius. At the present day it requires several persons to carry out every well laid scheme of this kind. Most of the great forgeries of the past forty years were the work of gangs who owned printing, engraving and lithographic plants. According to the Pinkertons, who have been running down forgery-crooks for the American Bankers Association for half a century, every well laid scheme of forgery, by which banks and corporations have been robbed of millions of dollars, was the work of at least four persons.

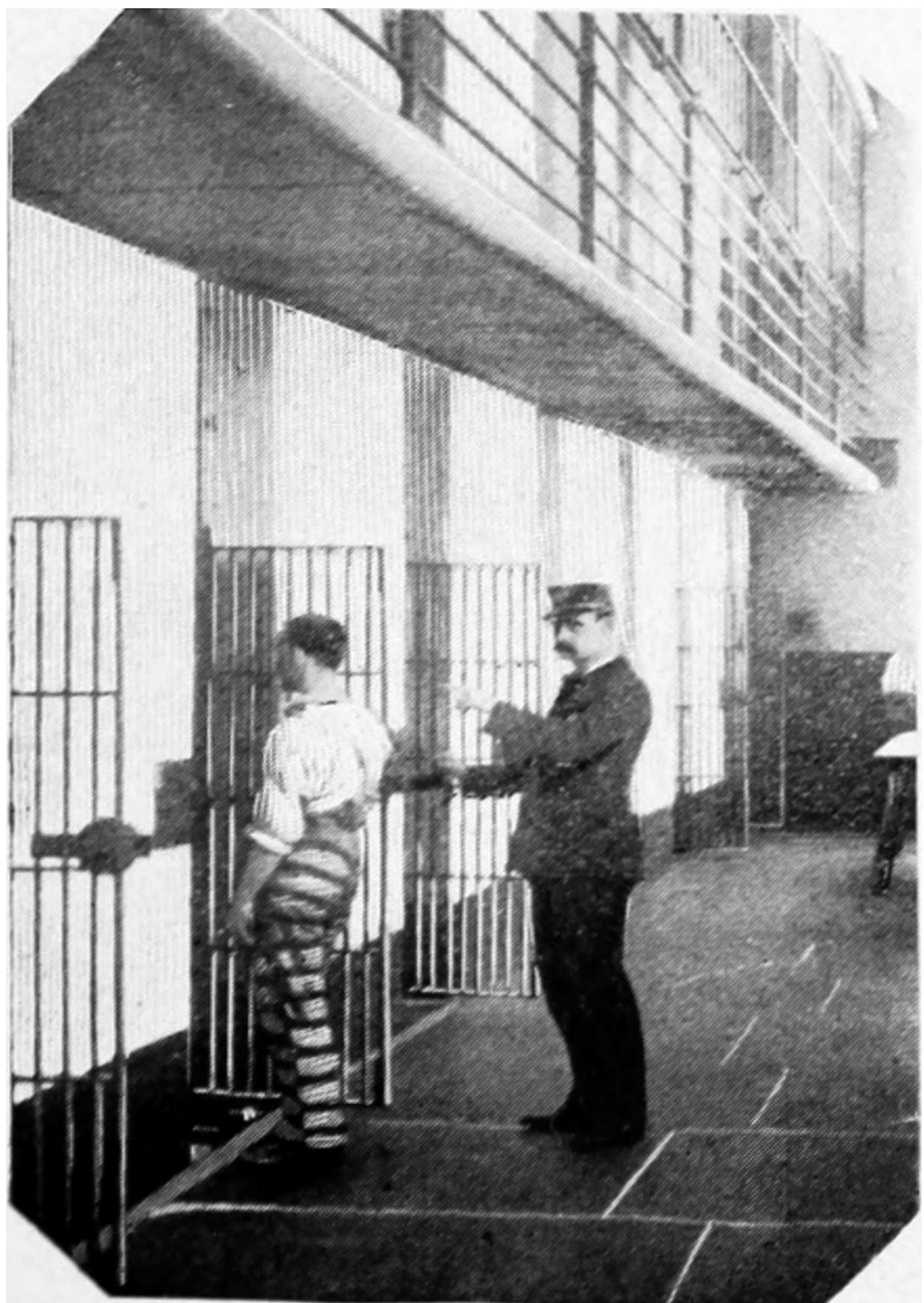
These consist of the following: (1) *The forger or tracer*, who is an experienced penman and ready at all times to carry out the will of the gang; (2) *The capitalist*, who advances money to open accounts in the various banks where business is to be done; (3) *The middle man* between the forger and the capitalist; and (4) *The business manager or advance agent of the gang*.

The bold single forger who passes one or two checks is discovered as soon as his paper reaches the clearing house or the bank. But a gang of forgers can work their schemes for months before they are discovered. By that time they are able to get to the ends of the earth where they are beyond the reach of the police, at least for a season.

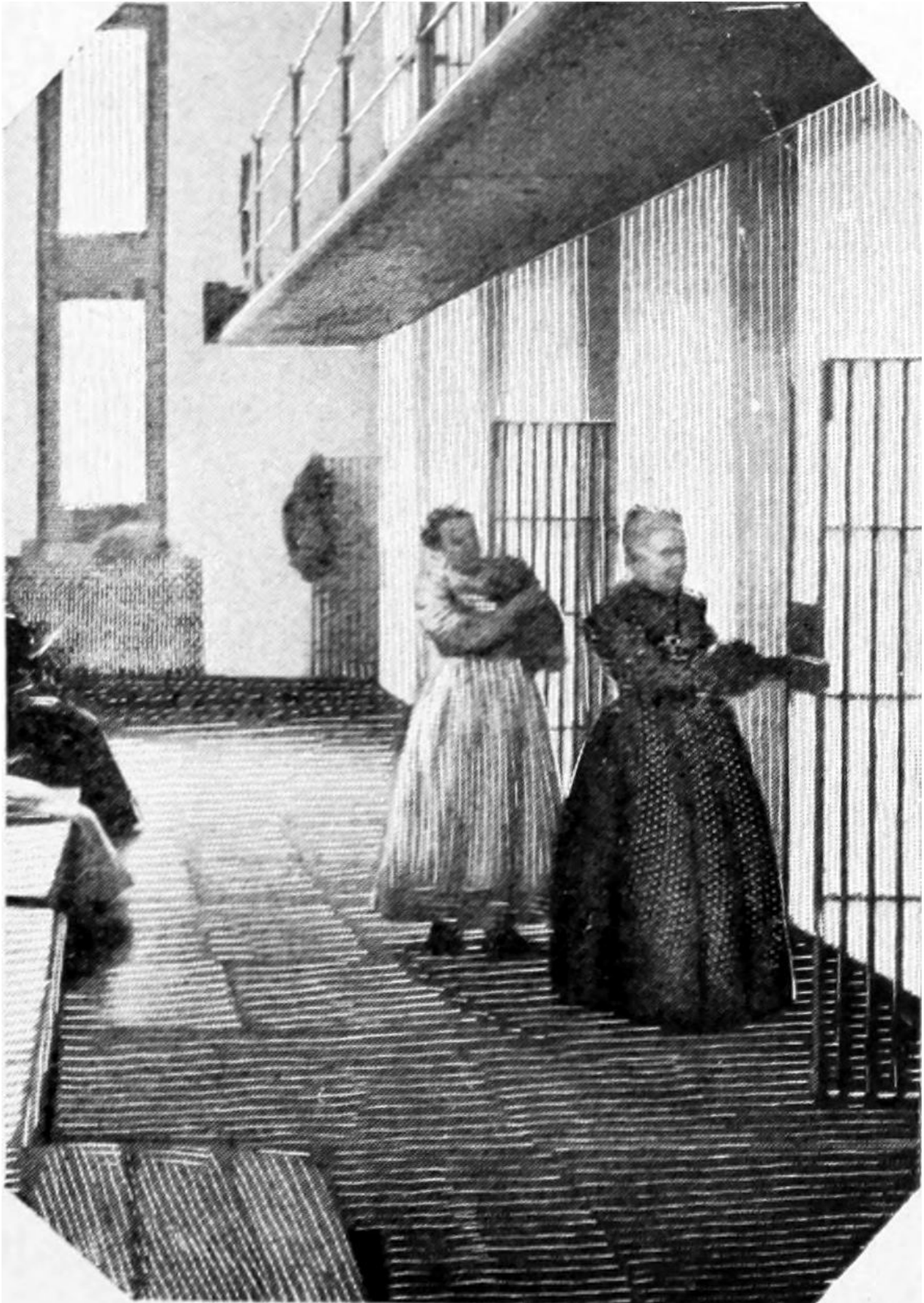




The roll call at midnight at a New York station house.



Men's prison.



## Women's prison.

Some of the brightest and brainiest men that ever lived belonged to this class. In private life they were kind and loving and tender and would scorn to do a mean act. And I have wondered often why such men would commit crime and bring shame and remorse on themselves and their relatives, if they were not partly insane.

I have tried to study them—to see wherein they differed from other men—and that is no ordinary task. Whether I succeeded or not remains to be seen. In some cases, after many patient interviews I was able to draw them out of the dark and gloomy past, where I could read their character in its true light. Although many of this class are exceedingly interesting as conversationalists and unusually intelligent on the great questions of the day, I find they are never willing to disclose their true identity or explain their inner life. And they wilfully conceal the past and refuse to come out clearly into the light of day.

Henry A. Leonard, a Wall Street messenger boy, single and alone, was able to forge a check on the Hanover National Bank, (September, 1905) and have it certified, by which he secured \$359,000 in negotiable bonds. It is very doubtful if a stranger could have done the same thing. Leonard was known to the banks as a broker's messenger boy and all the paper he brought to the various banks was received without question.

Leonard's plea afterwards was that he did this work to show how *easy* the banks could be swindled. There may be much truth in the statement that many of the Wall Street banks do business in a slipshod manner, but whether that was a good reason why he should attempt to secure such a large amount of valuable securities for nothing is quite another question.

We believe that Leonard was only a simple minded boy and had no intention of wronging any person. If he had been a crook he could have negotiated half the bonds in an hour and left the city to parts unknown before any one would have known it.

Another noted forger, whose doings have extended over a quarter of a century, was Ned Stoddard. In manners Stoddard is a perfect gentleman and his scholarship allows him to converse with anybody in the land. With a pen

in his hand he becomes a perfect genius and can reproduce any written name he has ever seen on paper. Stoddard has performed some wonderful feats in the line of forgery.

It was “booze” that brought about this man’s ruin. He was a typical Yankee, tall and slender, measuring over six feet in height. A man of more than ordinary intelligence, a good speaker, a brilliant conversationalist who threw into his arguments two keen gray eyes that danced with delight while he told you some interesting anecdote or fairy tale!

## Three of a Kind

One of the most startling forgeries of the last century took place in 1886. The principals in this deep laid scheme were William E. Brockway, Luther R. Martin and Nat. Foster, a trio of the most daring crooks that ever walked the streets of New York. They were so foxy in their movements that the police worked upon the case two months before they were able to trap them. One morning Detective Langan, (afterwards Inspector, now deceased), followed Brockway from his lodging house on West Eleventh Street to rooms on the corner of Division and Catherine Streets where he found a complete plant for printing railroad bonds and securities. Detective Cosgrove paid his attention to Martin who had rented a parlor on the corner of Lexington Avenue and Thirty-fourth Street. After his arrest and his rooms searched they found a complete lay-out of four different plates with a numbering machine. Nat. Foster lived in great style at the St. James Hotel on Broadway and Twenty-sixth Street. After his arrest George W. McClusky searched his rooms and captured \$54,000 worth of forged bonds of the Morris and Essex Railroad all ready for the market with President Samuel Sloan's name forged on them. The case against them was clear, all having been caught redhanded. Brockway being an old offender, plead guilty and was sentenced to ten years in State prison by Recorder Smythe. In the case of Martin, who was defended by Lawyer Peter Mitchell, the jury disagreed; he was remanded to the Tombs where he stayed two years. Then he became almost blind, and taking a plea to a minor offence he received a suspended sentence. Nat. Foster was also in the Tombs even longer than Martin, and, strange to say, he also became blind and plead to a smaller offence and he also was given a suspended sentence. How true is that old Bible passage, "The way of the transgressor is hard."

## The King of Forgers

Charles Becker, one of the cleverest forgers of the century, was born in Germany. He came to this country with his parents when young. He is known all over the United States as “The King of check raisers.” It would be impossible to mention all this man’s deeds of daring, nor do we believe it to be necessary.

In 1872 with a number of confederates he robbed the Third National Bank of Baltimore of something like \$150,000 and then fled to Europe. They alternated their residences between London and Paris, committing some big forgeries in both cities. For these several of the gang were arrested and jailed.

During the summer of 1876 Gainsborough’s painting of the Duchess of Devonshire had just been sold in London on May 25th, for \$10,000. In those days this was said to be a high priced picture. The gang thought that they ought to have this painting as it meant so much ready cash to them. Accordingly, one of their number, Adam Worth, stole the picture from the rooms of the auctioneer, where it was in storage, by cutting it from its frame. This theft caused such a sensation in England that Becker and Company thought it good for their health to return to the United States, which they did. This painting remained in Chicago for several years, but was afterwards sent to London where it was sold to J. P. Morgan for \$25,000.

In 1877 Becker and several others of his fraternity robbed the Union Trust Company of Brooklyn, N. Y., of \$64,225 by means of raised checks. To save himself from state prison he “squealed” by turning state’s evidence, and Becker, the brains of the gang, was discharged.

The last crime Becker committed was in 1896 in California. Here he raised a check of twelve dollars to twenty-two thousand dollars. It was well planned and with the money that Becker and his “pal” had on hand to beat the case, they might have succeeded, but the other fellow was approached by a Pinkerton gentleman and as a result, turned state’s evidence. On the



29th of August, 1896, Becker was tried, and sentenced to imprisonment for life.

As a forger and check manipulator Becker is a genius. With the aid of acids he can erase any writing or figures. In checks that contain perforated figures and lines he fills in with fresh pulp and then irons it over in such a manner that it cannot be detected, even with a magnifying glass.

So skilful with the pen was Becker that he could counterfeit a ten dollar bill which so closely resembled the genuine that even experts were deceived.

While serving a long sentence in a California prison he made such startling revelations to the Pinkerton Detectives that one of the superintendents called on him in the interest of the Government and the Bankers' Association for verification. Satisfied that he was able to do all that he claimed, a favorable report was made to the Association, and a movement for his release was soon afoot. He was pardoned October, 1903.

Becker is not only a wonderfully clever forger, but has amazing audacity. While in prison he counterfeited several bills of large denomination and would have caused them to be circulated had he found an agent with sufficient nerve. He approached several keepers on the subject but found none with the required courage.

He circulated several counterfeit bills of large denomination among the German farmers in Pennsylvania among whom his knowledge of German and the Fatherland gave him wide influence and many easy victims. He bought a number of horses and cows and paid in counterfeit bills; then he shipped the stock to Philadelphia and disposed of it.

In February, 1888, he purchased a fine residence on one of the most fashionable streets of Baltimore and paid for it with a draft on a New Orleans bank which had been raised from \$180 to \$18,000. Before the fraud was discovered he had sold the property for \$16,000 cash and left the city.

In March, 1899, he purchased a farm in Talbot County, Maryland, tendering as payment therefor a draft on a Philadelphia bank upon which he had raised the figures from \$120 to \$12,000. The farm was valued at \$8,000. Hence he received \$4,000 in change besides the \$7,500 he was paid for the farm the second day after it was deeded to him.

He is smooth, oily and ingratiating—well-nigh as slick in speech as he is with his pen. His manner is more that of a Frenchman than a German. He talks rapidly, and his gestures are almost Jew-like. He once remarked that if he had been born dumb he would have been able to make himself fully understood by his gestures. He cuts the air, shrugs his shoulders, shakes his head, and assumes all the airs of a tragedian in order to convince his hearers of his honesty and earnestness.

His home training could not have been better, scion of high-class German parents who seriously sought to imbue him with a love for God, and due regard for the property and rights of his fellow beings. He was sent to the best school in Germany and graduated at the head of his class. He was then, by his own choice, apprenticed to an engraver and early developed marvelous skill at the trade. He was obliged to leave Germany because of his attempt to too closely imitate “the coin of the realm.”

Another noted American crook is R—— R——, now living a straight life. The annals of crime do not furnish another like him.

When he began crime he was a man of fine physique, good address, suave in manner, well educated and an accomplished writer for the press. What led him to become a crook is not known.

R—— first came into prominence in 1882. At that time he played a bold game to fleece several Yale College professors by means of bogus checks which he desired cashed. He introduced himself to them as an Irish nobleman named Lord Rossa, who wished to found a college in the United States and sought their advice in the matter. He was not only a perfect gentleman in manners but he was so scholarly that he readily threw them off their guard. But the scheme fell through when they would not cash his checks.

After this R—— went abroad, visiting Allahabad, Cairo and Paris and left a trail of gigantic swindles in his path. In India he is said to have swindled a prince out of a thousand guineas. Then he visited Cairo, where he was able to swindle the Khedive of Egypt out of \$5,000. He came directly to Paris dressed like a Persian prince who could converse in the Arabian language; he had with him several body servants and a cook. The latter was secured to prove that he was a Persian of royal blood. In Paris he had great success and was able to get acquainted with Sadi Carnot, then

President of France. After this he swindled several French bankers out of \$50,000 and decamped.

At one time he claimed that he was born in England, but this he denies, asserting that he was born in Ohio and that his right name is Powers, and that he was a school mate and an intimate friend of the late President McKinley.

That he is a man of brilliant parts and an able writer cannot be denied. A number of years since he was on the editorial staff of a Philadelphia paper, often acting as its Washington correspondent. During the reign of terror created by the Klu-Klux Klahn in North and South Carolina, R—— was sent to those states and faithfully reported for the paper the status of affairs eventuating from the lawlessness of this well known society which was organized to bulldoze the negroes and prevent their voting, and to drive the carpet-baggers from the South, thereby securing the domination of a political organization south of Mason and Dixon's line.

Periodical sprees are the cause of all his trouble. He runs short of money and then utters worthless checks to fill his empty purse. In April, 1901, he was sent to Sing Sing for four years for uttering worthless checks. But for the clemency of Professor Hadley, of Yale College, he would have been sent to Wethersfield Prison on the termination of his sentence in New York.

It is his determination to devote the remainder of his life to journalism and to never again collide with the law to such an extent as to be deemed worthy of arrest and imprisonment.



## CHAPTER XII

# CHANGING THE GRAND JURY INTO A BUREAU OF CRIMINAL EXPERTS

A New Classification of Criminals

There has been a growing feeling on the part of judges, lawyers and others who are directly concerned in the practice of law in our criminal Courts, not only in this county, but in many parts of the land, that the grand jury system has become so antiquated and ineffective in its practical workings, that it should be abolished and a more modern system put in its place.

In this city at various times during the past few years several of our General Sessions judges, notably Judges Foster, Rosalsky and others, when charging grand juries at the opening of terms, have warned that body against finding indictments against individuals unless they are grounded on legal evidence. Such labors simply put the county to a needless expense and the unfortunate defendants to much inconvenience. And even the past year almost every Presiding Judge of General Sessions when charging the grand jury at the beginning of the term has taken pains to inform the body that under no circumstances must they find indictments against persons charged with crime except on legal evidence. Judge Warren W. Foster, one of the best and fairest of our criminal judges, is especially outspoken against this habit of finding indictments against persons charged with crime on illegal evidence. On a recent occasion Judge Foster took occasion to thank the grand jury for the caution they exercised during the month in refusing to indict persons except on sufficient grounds.

In charging another Grand Jury the Judge said in part:

“A friend of mine who has served frequently on the Grand Jury, and who is a prominent business man in this city, said to me: ‘The more I see of grand juries the more I think it is an antiquated humbug. It is but clay in the hands of the District Attorney to indict whomsoever he wants to and to dismiss any charge he wants to dismiss.’”

“A great many people believe that the Grand Jury is a panacea for all the ills of our body politic. If the Police Department is short of men go to the Grand Jury. If we want a new Court House go to the Grand Jury and if we can’t compel them to build one file a presentment on the subject. The Grand Jury’s duty is clearly defined, and you are not to find indictments except on evidence properly presented to you.”

All this shows that there is considerable feeling abroad against the Grand Jury system and some of our best thinkers believe it should be abolished and something more modern put in its place.

More than once I have sat in Part I, General Sessions, and have watched the Grand Jury file into court, and hand to the Judge on an average from ten to thirty indictments, which was the work of a morning sitting, consisting of about two hours.

Sometimes the morning has been spent in finding only five indictments, but as a rule the work is rushed and only a few minutes given to each case. There is no law as to how much time the Grand Jury shall spend on each case. While I have been amazed at the rapidity of their work, I have been more astonished at the superficial character of the work. It will be readily seen that the Grand Jury has not the time in two hours to examine even five complaints and do justice to each defendant, much less thirty, especially when we remember that these indictments are to brand with crime certain ones for life.

We have no complaint against the Grand Jury. They are usually an intelligent and upright body of men. But when they are in consultation with the District Attorney they simply do what he tells them, without knowing whether their acts are just or not.

That this reform of the Code of Criminal Procedure may be productive of much good I would recommend,

1. *The abolition of the Grand Jury as an antiquated system.*

I admit that the suggestion is somewhat radical, but for that matter all reforms are radical that overthrow old systems, and are as a rule bitterly opposed by conservative people.

The body known as the Grand Jury has come down to us through many generations. But it may be well to know that the Grand Jury system is not an absolute necessity. At the present moment it is nothing less than *the appendix vermiformis* of the District Attorney's office. And as it needs heroic treatment, it should be abolished without delay. The remedy is excision.

In some countries, for example, like Scotland, there is no Grand Jury. The work of preparing indictments against lawbreakers is done by a paid official called the Procurator-Fiscal. He and his assistants make a thorough investigation of every person against whom criminal charges are laid, and if found that there is just cause for such action the accused is then proceeded against in the criminal courts. If not, that is the end of it and the county is spared the expense of further litigation.

In various States, grand juries are usually made up of rich men—owners of real estate and persons of large means and business interests. Whatever else the Grand Jury is, it certainly is not a representative body. The poor man, no matter how good or intelligent he may be, is not allowed to sit with them, nor has he any say in their deliberations. They are composed of active or retired but wealthy business men, and apparently have no real sympathy with the common people. Some Grand Juries were ready to indict labor leaders, no doubt at the request of the District Attorney, but when the case against the ice grafters came up, Judge Rosalsky had to call special attention before anything was done. But this should not be. Independent of the action of the District Attorney, they might have indicted many of the rich thieves that stole millions from the street railroads of New York, and without the aid of the District Attorney they might have indicted several rich Insurance grafters and took pains to see that they were sent to jail for stealing the people's money. Such action would have commended the Grand Jury to the people. During the McClellan administration some of his own probers have shown that many Tammany office holders have stolen thousands, if not millions of dollars from the city. But neither Mr. McClellan nor Mr. Jerome have taken sweet counsel together to send the grafters to jail. The Grand Jury could have made an original investigation

without the aid of the District Attorney and indicted them one and all for grand larceny. It would have looked better if Mr. Jerome had refused to allow any of his assistants to be made Magistrates by the Mayor. In all this the people have wondered why the Public Prosecutor did not send the grafters to jail.

That in the interest of justice the Grand Jury should be abolished and the work it does at present given to a Board of Criminal Experts with enlarged powers. I also affirm that the Grand Jury is no more necessary to the administration of the criminal law in our day than the feudal barons of ten centuries ago or that a canal boat should take the place of our Hudson River steamboats.

At the present moment the District Attorney stands at the door of the Grand Jury room. He holds the key and practically controls it. The Grand Jury spends about two hours a day attending to whatever public business the District Attorney lays before them.

In some states any one suspected of a crime may go before the Grand Jury and present his side of the case. In this state it is not the practice. In a large number of cases men have been indicted without their knowledge, and were compelled to fight for their rights in the Courts, so as to be free from the stain that rested on them. In New York County if the District Attorney sees fit he may permit a single Policeman or other person, to go before the Grand Jury and give a one-sided opinion as to the guilt of some person charged with crime, although he may not possess one particle of legal evidence. If the Grand Jury were abolished, a Board of criminal experts could make a thorough investigation of all charges brought against people, and in all likelihood would give them an opportunity to be heard in their own behalf before they were branded as felons. And this is only right.

Only a few years ago the editor of a small monthly paper in this city was promptly indicted by the Grand Jury for libel for exposing the rascality of Insurance grafters, a work which Governor Hughes has since done legally before the Assembly Investigating Committee. At the time we mention when the insurance grafters were cut to the heart by the trenchant articles that exposed their conduct to public scorn, they went before the Grand Jury and charged this Insurance man with libel. They were permitted to tell a one-sided story to the Grand Jury, so as to silence this critic. Of course he



was not allowed to make any reply till after he was brought into Court and branded as a felon. The indictment was afterwards quashed and he received some damages.

And this is but a fair sample of how hundreds of men have been ruined by such unjust methods. In this case the Grand Jury simply did what they were told to do by the District Attorney, he having been wrongly informed by the insurance grafters.

## Board of Criminal Experts

Under a paid Board of Criminal Experts, sitting daily from 10 a. m. till 5 p. m., and who are there to investigate, sift and go to the bottom of things generally, the rich and the poor would have a better chance of receiving justice meted out to them.

A very common opinion, which is gaining ground every day, and which is in some respects true, is that big criminals go unpunished, while others who are lawfully convicted of crime command such influence with the courts or high political powers that they are able to obtain their freedom by parole or pardon or get off with a very light sentence.

Others, after being lawfully convicted, are able to cheat the prison, provided they have money to fight their case in the higher courts and thus obtain a new trial which in the end means an acquittal. All this tends to bring contempt on our courts and occasionally invites the people to take the law into their own hands. We have too many indictments to-day and too few convictions. Millions of dollars of the people's money are often wasted on cases where there is no chance of conviction. The courts are cumbered with hundreds of cases of men and women that should never have been indicted.

A study of the statistics of convictions in proportion to the number of arrests and of convictions in proportion to defective indictments which have to be set aside, and, finally, the proportion of the convicted that finally go to prison, would prove most interesting.

When Mr. Jerome became District Attorney of New York County on the first of January, 1902, there were 640 untried indictments awaiting action at his hands. During his first four years in office he laid before the Grand Jury 20,228 complaints, but they granted only 15,937 indictments. As a result 4,291 complaints were thrown out of Court without any trial. Then of the 15,937 cases that went to trial, 6,150 were acquitted for lack of evidence and other technical reasons, making a grand total of 10,641 cases that were nullified by the Courts for want of legal evidence to convict.

Of the 9,787 so-called convictions, only about a third were convicted after a trial, the other defendants accepted pleas to lower offences, and

given that alternative simply because the District Attorney feared that if they went to trial he would be unable to convict them.

In the Report of the Chief Clerk of the District Attorney's Office, which is brought down to the close of 1908, there is no mention of the number of indictments secured by the Grand Jury last year, but it must have been three times the number of the convictions, which was 7,877 and then we must remember that by far the larger number of convictions were secured by giving the prisoner a plea to a lesser offence. As a rule when the Public Prosecutor permits a man to take a lower plea it shows that the case against him is poor.

There is no way to ascertain the number of innocent persons indicted, but if my judgment is correct the total is not small. How could it be otherwise, when the Grand Jury goes through its business in such a hurry. It should be observed also that the Grand Jurors themselves are not competent authorities in criminal law, and when efficiency in the work of prosecution is measured rather by the total number of persons indicted than by the percentage of those sent to prison, the weakness of the system becomes apparent.

The fault does not lie with the Grand Jury or with the District Attorney; it is with the system. The Grand Jury simply does as did other grand juries and the District Attorney does as did his predecessors.

To show that the Grand Jury as now constituted is unqualified to find indictments in a large number of crimes, I need only mention three cases which must have cost the County of New York in the neighborhood of millions of dollars, which if they had come originally before a Board of Criminal Experts, certainly never would have gone to trial on the weak indictments that sent all of the three defendants to the Death House.

The first was that of Maria Barberi, who was convicted of the murder of her sweetheart, Dominico Catalonica, July, 1895.

Catalonica had greatly wronged this woman, and then refused to marry her. While suffering under great mental excitement, after she found herself ruined and disgraced, and forever cast aside, she killed him. Although insane when she committed the deed, she nevertheless was tried and convicted and sentenced to the Electric Chair, but the Court of Appeals gave

her a new trial. When all the facts came out at the second trial, she was justly acquitted.

The second case was that of Roland B. Molineux. He was indicted for the murder of Mrs. Adams in 1899. A board of trained experts, having two lawyers and physicians never would have convicted him, as there was no legal evidence to convict him of such a crime. He was convicted mainly on the evidence of *paid* handwriting experts. Doubtless, a hundred other persons might have been indicted for the same offense. At the second trial he was acquitted.

The third case was that of Albert T. Patrick, who was jointly indicted with Jones for the murder of William M. Rice. This is said to have been one of the strangest criminal cases that ever was tried in a Court of Justice. Nothing was done until Jones turned State's evidence; then he said that he killed Millionaire Rice at the suggestion of Patrick, with chloroform. Patrick was convicted of murder in the first degree, and Jones allowed to go scot free. Since then, nine hundred reputable physicians have come forward and said in a petition to Governor Higgins for a pardon that Rice could not have been killed with chloroform. After being four years in the Death House, the Governor commuted Patrick's sentence to life imprisonment.

If Patrick's case had been carefully examined by a Board of Criminal Experts, he never would have been indicted, and the county would have been saved a vast amount of money, and needless trouble.

My plan is that a Board of Criminal Experts be organized and assume all the present powers of the Grand Jury, and in addition, classify all criminals; this board to consist of five persons—two experienced lawyers, two physicians or alienists and one business man. These five men should pass upon criminal matters, and when they find an indictment, give the proper classification to the accused.

## How I Would Classify Criminals

As far as we know, there is no systematic classification of criminals in any State. For the sake of facilitating the work of the courts and saving much time, we would recommend the following classification, which is entirely original, never having seen anything like it before:

It is under four general heads, viz.:

(1) The insane, (2) the mental and industrial illiterate, (3) the born criminal, and (4) the victim of circumstances. I have not used the word dependent in this classification, as it is too indefinite. An insane person or a pauper or a cripple may be dependent according to some classifiers. I prefer to use my own division under the four heads into which all criminals may readily be placed.

If this Board of Experts finds that the accused is or was really insane or mentally unbalanced when the crime was committed, it should recommend to the Court without delay, so as to save time and expense, that the person be sent to an asylum or sanitarium for treatment, and kept there until entirely cured.

In case the prisoner recovers his sanity, he should be returned and re-examined by the Board. They have all the records before them, and all the facts in his case, and after considering them carefully, could recommend his discharge, or, if they think best, put him on trial.

Second: If the Board finds that the wrongdoer belongs to the second class; that he is illiterate and has no trade, or that he is a lazy and good for nothing idler, preying upon his fellow men for a living, or that he is tainted with some physical malady, or is suffering from tubercular trouble, epilepsy, dipsomania, or indeed, any progressive disorder, then the Board can recommend to the Court that such a one is a fit subject for Elmira Reformatory, or some other institution of a similar character, where he will receive mental, moral and industrial training, besides medical treatment, and be discharged only when cured of his delusions, and fit afterward to live as an honest and law-abiding citizen. There are hundreds of industrial and mental illiterates that pass through our courts every year—young men

who never learned a trade, and can hardly write their own names. The only way to save them from criminal lives is to educate them, and turn them out of prison when cured. It is a waste of time and money to send such persons to State prison or penitentiary, as more than 50 per cent. return again, after a brief season of liberty, confirmed criminals. Many of our prisons receive yearly as high as 82 per cent. of first offenders who have no trade.

Third: It is a well known fact that more than half our criminal population are recidivists or backsliders in crime. A great wrong is committed on the community when we send a criminal away for a definite period, and afterward turn him loose upon the community. If the offender is known as a rounder, or habitual criminal, by all means send him to a prison colony and keep him there for the remainder of his life, or till cured. Our criminal population grows yearly, and we are compelled to build new prisons and reformatories, simply because our penalogical ideas are impracticable, if not archaic. Not only are we making no progress, but some kinds of crime are alarmingly on the increase.

I do not regard the habitual criminal as beyond the hope of reformation. I believe there is a tender chord in his heart that can be touched, if we go about it in the right way.

But it is an outrage to turn such a man out of prison or penitentiary, after a limited term of confinement, without a home to go to, or a place to work. If they know him, they will not receive him, nor give him employment. And the police will arrest him on sight as a suspicious character, and railroad him back to prison. The State should provide employment, and a home for such a person until he gets on his feet again, or keep him in jail.

The fourth and last mentioned in this classification is the criminal of circumstances. This man may have snatched a pocketbook from the hand of a lady, or stolen a loaf of bread when his wife was sick at home, and his children crying for food. Such a person should not be branded as a criminal. He should be paroled on his good behavior. To send such a person to prison is simply to make a criminal of him.

Our State has been in the business of punishing criminals for more than a hundred years, during which time millions of dollars have been wasted. Let us try classification, then endeavor to cure criminals or restrain them till

they are fit to associate with the law-abiding people of the Nation. This is real prison reform.

I think that such a Board of Criminal Experts as suggested here would have fewer indictments, but more convictions. And we would need fewer jails and Courts of Justice. We would save the taxpayers millions of dollars yearly, but immeasurably more important than all these, we would come nearer to doing justice to all men, and the rights of the people would be more justly safeguarded than they are to-day.

(Since I first recommended the abolition of the Grand Jury in an article of mine that appeared in the New York Press of March, 1906, and later in Van Norden's Magazine, to whom I give due credit, other reformers have spoken on the same subject, but have made no mention of the one who first called attention to the matter, which is manifestly unfair.)





## CHAPTER XIII

# SCHOOLS OF CRIME

Crime, like many of the diseases that afflict the human body, is both infectious and contagious, and criminal principles can be taught to old and young as easy as the alphabet or any of the profoundest sciences.

As the larger part of our population dwell in cities and these cities are recruited from the immigrants that come to our shores, it is reasonable to believe that many of them, if not criminals already, come with criminal instincts, so that the rising generation who are the offspring of crooks are sure to be criminal.

According to the present statistics, the United States leads the world in criminality. Hitherto, Italy and Russia were the leaders, but now the United States surpasses all others.

It seems that for every million of inhabitants the United States furnished 115 *known* relapsed criminals, Italy 105, Russia 90, England 27, France 19, Germany 18. Not only do we make criminals ourselves, but we import them through our defective immigration laws. Congress could partly remedy this evil against a free people by closing our immigration doors for the next twenty years. But our political party leaders, who rule the people, are afraid to do this, hence our rapid growth in crime, partly through immigration.

As a matter of fact, when crooks get together, no matter what their sex or age may be, they are sure to brag of their criminal accomplishments, and escapades. It is in such an atmosphere that crime is taught, and especially among the young. To a beginner in crime who hears them, all such utterances are exceedingly interesting, and much of it is sure to make a deep and lasting impression for evil. As a rule, many criminals are exceedingly garrulous and talk much, and when they tell a rosy tale of how to get money

or valuables without working for them, the whole thing seems captivating. Frequently such a story carries a new beginner in crime off his feet. It is in this manner that our jails, reformatories and houses of refuge become schools of crime.

It is the general opinion of the leaders of bench and bar that crime is carefully and systematically planned and taught in our prisons. The fact is that more than fifty per cent. of all our first offenders return to jail a second time, showing clearly that rather than being weaned from such a life by the imprisonment, many of them are encouraged to continue it.

When I have asked boys and young men why they returned to crime a second time, they informed me that while inmates of different prisons and reform schools, they learned scientifically how to become pickpockets, thieves, second-story men, and burglars. That is, they were taught it.

In some of the prisons which I have visited at different times, such as Sing Sing, Auburn, and Elmira, the inmates have not the same opportunity of speaking to each other, as the law is strictly enforced to prevent such communications.

But in the City and District Prisons of Greater New York, Blackwell's Island Penitentiary, the House of Refuge, the reformatories and county jails without number, where old and young crooks are huddled together, they are permitted to communicate their ideas as they please. My opinion is that all such places are simply schools of crime.

My cure for such a condition of affairs is entire isolation, segregation and classification, and the inculcation of moral and religious teaching.

The old adage, that prevention is better than cure, is as true to-day as ever. And yet our law-making bodies and prison authorities seem to forget all about it in this mad age. Recent statistics show that crime among young people is alarmingly on the increase, and one of the main reasons for it is what may be termed "criminal contamination." But little or nothing is done to prevent it.

Charles Dickens in *Oliver Twist* mentions the case of a crafty old Jew, named Fagan, who was known to the London police as a "fence," or receiver of stolen property. Fagan carried on a business much like that of a pawnbroker, in advancing money on all the "stuff" or stolen goods that was

brought to him. He had a number of confederates of both sexes in his employment. They were adepts at the business, and could destroy the identity of all the stolen property which he purchased daily from his thievish customers.

Fagan always kept on hand a dozen of boys, whom he called apprentices. These with the aid of dummy figures, dressed in male and female attire, he carefully taught the art of pocket-picking. As soon as they had learned the business, they were sent out in pairs into the thoroughfares of London, where they “worked” rich men and women for all they were worth, and often brought back large quantities of plunder. Fagan was finally captured “with the goods,” and hanged for his crime. This is the origin of what is known in criminal parlance as “Faganism.”

Within twenty-five years “Faganism” has become a profitable business in the New World. This is especially true of New York, where strong evidence of “Faganism” is presented in our criminal courts from time to time.

The work is done by a gang of greedy, diabolical wretches who teach boys and girls to pick pockets and when they become experts send them forth to steal in the street, street cars and large stores. The work is so carefully and systematically done by our East Side “Fagans” that they are able to cover their tracks so as to elude detection. It is a shocking state of affairs to be told by the District Attorney’s detectives as well as many settlement workers who live among these people, that many of the police are in league with the “Fagans” and share their plunder.

Detective Reardon has made a study of “Faganism” on the East Side the past few years and has been able to “run down” scores of criminals of this grade. In about two months Mr. Reardon has been able to make 178 arrests for pocket-picking, besides breaking up a score of “Fagan Schools” where boys and girls from ten to seventeen years of age were taught how to steal. Several well known thieves named Meyer Lewis, Cockeye Meyer, Joseph Monkey and Fitch who were proved to be “Fagans” were sent to jail and their business broken up.

As soon as a “Fagan” is arrested he at once offers the police a big bribe not to expose him and in some cases it is accepted with the result that Fagan still remains in business and divides the spoils with the police. This was the

experience of Miss Wold and Detective Reardon who made a thorough investigation of East Side conditions several months ago.

As a rule our modern “Fagans” are very foxy. The boys and girls sent uptown to the Fifth Avenue stores and thoroughfares are well dressed while those down town are dressed like school children and frequently carry a bunch of books in their arms. The New York police will have to change their tactics entirely else they will never “run down” these criminals.

In a great city like New York we must expect such criminal combinations to defeat the ends of justice by teaching children to steal and then receive the plunder, but when such persons are caught they should get the extreme limit of the law and be shown little or no mercy. They are the worst kind of degenerates.

Recently four Central Office detectives found a “Fagan” headquarters on East Third Street in this city, run by a notorious “fence” named “Gaunt” whom they arrested with four others. The revelations came through a Tombs prisoner named Herman Doritz who made a sworn statement to the Court that he, with many others, was taught the art of thieving in Teddy Gaunt’s School of Crime. There were forty pupils in the school and after their graduation these lads were scattered over the city in large stores, where they stole thousands of dollars worth of goods besides pocket books and jewelry. As soon as the “fence” received the stolen property he took pains at once to destroy its identity. Then he sent men out to sell it at half its real value. In this way the boys said he made big money at the business.

Now, whenever the police arrest a juvenile criminal they put him through the “third degree” to see whether or not he was taught in a School of Crime. This is proper. But the cause of much of this must be laid to our high living, fevered home life, grasping after the dollar and the lack of moral training in our homes and schools.

I have no hesitation in saying that the Boys’ Prison of the Tombs is a prolific School of Crime!

What would I do about these things? Well, when love had failed I would treat the teachers and scholars of our Schools of Crime to a dose of corporal punishment. But some one says this is degrading. So it is. But what is more degrading, blighting and damning than crime! Give them their choice.



## CHAPTER XIV

# YOUTHFUL DELINQUENTS AND THE CHILDREN'S COURT

The dense population of the lower parts of the city, the narrow streets, the ubiquitous gin mill and the dirty tenements all combine to make New York the centre of the most accessible temptations—temptations that swiftly carry ruin and demoralization to hundreds of boys and girls every year.

Perhaps it is not generally known that some of the toughest and most daring of our present-day criminals began their downward career at a tender age. There is something blushingly heroic in crime—made so by the dime novel, which the boy of the tenement reads and then emulates by personal example.

It would be most difficult to assign a reason that would explain all the conditions that have led young people into crime, but we are sure that vicious and intemperate homes, biting poverty and the godless companions of the streets have had much to do with the criminal records made by this class during the past quarter of a century.

When we think of the multiplication of evil resorts, such as the saloons, play houses, bawdy houses, gambling hells, policy shops and other places that harbor young lads for drinking and carousing purposes, my only wonder is that so few go astray.

These temptations to crime which are presented in every form to the youth of a modern city are altogether unknown in rural settlements and country villages.



A Scene in the Children's Court, corner of Eleventh Street and Third Avenue.

We are glad to say that only a very small number of the child criminals are girls. And the reason for their downfall in almost every case is due to bad homes and profligate parents.

One of the things that impress the visitor to the Tombs prison is the large number of poverty struck faces he meets, the sallow complexions, the sunken cheeks, hectic cough, the glassy eyes and stooping frames, all indicating that the young manhood has been harshly dealt with. Some of these boys are so diminutive, that they look as if they were only ten or twelve years of age, when in reality they are sixteen or eighteen.

Here is a sample conversation with a small boy:

"Hello Johnny, how are you to-day?"

He replies, "I ain't doing well."

"What brought you here?" He hangs his head and gives no answer.

"How old are you?" "I ain't only sixteen."

“Are your parents living?” “Mother has been dead since I was six years old. But pa, he is living. He gets drunk so often that me runs away from home.” “But how did you get here?” “Oh, when I was hungry I stole money to buy food.”

This will account in some measure for the boy’s fall. Think of it—a boy without a mother in a large city like New York! After I had made an investigation I found out that his father was an idler and dissipated and took no interest in his family, and the boy has been under no religious influence since his mother died. Poor boy! His only playground was the street with the denizens of the tenements as his associates, and most of them evil. He hated his home and was glad to get away from it, because there he learned to drink, carouse and curse like his father. That home to him was pandemonium! No wonder he was a thief and in prison.

A great many children of the tenements learn to drink beer when very young. They are sent by their parents to the saloon with the “growler” and are sure to drink the beer out of the pail before they return home. Although it is illegal to sell to children of this age, saloon keepers take chances for the money. Thus the child forms an appetite for strong drink and is preparing to be a drunkard or a prostitute.

One day I found a chubby, honest-faced German boy behind the bars. He came alone from the Fatherland when he was twelve years of age. An uncle, a farmer in a Western state, awaited his arrival and took him to his new home. Here he made him work like a slave, giving him no opportunity for either secular or religious education. Herman stood it a few years, then ran away. He worked his way East by stealing rides on freight trains. He would have died of starvation on the way had not the train hands to whom he told his tale of adventure taken pity on him and generously shared their food with him and smuggled him over the different roads till he got to New York. Here he wandered around the city looking for work, but found none. Unfortunately he was found one night in company with two young thieves and was arrested on suspicion. He lay in prison several weeks. After a thorough investigation we were able to show that he was an honest boy. Before going out, I gave him a note to a Y. M. C. A. worker, who gave him some clothing and food and lodging for two weeks, and then secured for him a position. Some months afterwards I found Herman in a mission



settlement as one of the workers. He was clean and neatly dressed. What a transformation from the dirty, ragged condition he was in when in prison!

The large foreign population of New York and the dense ignorance of those who come from some of the countries of Europe is constantly in evidence in the criminal courts. As near as we can estimate, for we have no accurate information on the subject, about one-half the number of persons arrested in this city every year are either foreign by birth or parentage.

## The Children's Court

The Children's Court for the trial of juvenile offenders of both sexes under sixteen years of age was opened for business in this city September, 1902. The law organizing this branch of the judiciary was passed by the Legislature the preceding winter. The building where this Court is conducted is situated at the corner of Eleventh Street and Third Avenue.

Five days in the week from 10 a. m. till 2 p. m., children of all colors, creeds and nationalities are brought here in charge of the officers of the Society for the Prevention of Cruelty to Children—better known as the Gerry Society. They are the custodians of all children from seven to sixteen years of age under arrest for crime. The Penal Code declares that children under seven years of age are incapable of committing a crime and are therefore exempt from the operation of this law.

## The Origin of the Children's Court

For several years the Howard Association, of London, England, has been advocating the establishment of Children's Courts in that city for youthful offenders, but for a long time nothing came of it, as the English mind is slow to act on all such innovations, especially in a case like this, where the law which has stood for hundreds of years has to be changed. The same Association has also recommended the appointment of special magistrates to deal with truant children and their parents. But juvenile courts and probation officers have been in operation in Massachusetts for nearly a dozen years, longer indeed than in any other state in the Union, and with marked success. In Chicago the Children's Court has been in existence since 1901, Milwaukee 1901, Philadelphia 1901, St. Louis 1901, and Washington, D. C., 1901. There has also been a Court for child offenders in Buffalo, N. Y., since 1901. By an agreement between the magistrates and the Children's Society Judge Murphy has given two afternoons a week to the trial of juvenile offenders, making a court house out of one of the Society rooms.

The following year the Children's Court was opened in New York, and then only as an experiment, as few persons were found ready to believe that it had a future. Indeed, many members of the bar discouraged its advent and thought it a foolish and expensive institution. At best, this Court was only a venture in the line of trial experiences, but before many months had passed everybody competent to judge pronounced it an unqualified success.

During the first year of its existence no less than 7,447 youthful offenders were before it, for nearly every crime on the calendar except homicide. While this Court is in business, the visitor who is present, is impressed with the quite orderly behaviour of all present and the kind and humane treatment of the attendants toward the children.

The Special Sessions judges, who sit on the bench by rotation, take a deep interest in the young offenders and as each case comes along tries hard to straighten out the domestic "tangles" which are so common where parents and children get mixed in their testimony. It is gratifying to know that this city does not furnish a large number of the "Wild West" boy toughs

and fewer still of the Jesse Pomeroy class of criminals. While it is true that a large number are untruthful, depraved and devoid of moral sense, yet they are not beyond the reach of kindness and good treatment.

Crime among the children of the poor is largely the result of social conditions. Bad homes, negligent and intemperate parents, sickness and poverty will account for most of it. And the fact that we have not ten times more juvenile offenders than are on record is owing to missions, chapels and Sunday Schools scattered all over the city.

Almost every session of the Court is full of pathetic scenes and experiences where mothers and children shed many tears. The object of the Judge is to find out the truth in each case, and in this he often spends hours of patient labor.

After a thorough investigation we take it for granted that a child is found guilty. The ruling motto of the Court is to deal leniently with a first offender. If he has a good home and parents who will care for him he is paroled, but if his home is of a vicious character he is sent to an institution where he will be cared for and learn a trade. The main object of the Court is to save the child from a degrading home influence and put him in a place where he can work out his own salvation either on a farm or in an institution.

Some of the cases brought before this Court are as follows. We refrain from giving real names.

John Smith, who lives on Avenue A near Tenth Street, is said to be an incorrigible; he is only twelve years old; he is the terror of the neighborhood; he stays out late at night, commits petty depredations on the small traders and otherwise annoys the people of the Avenue. After the Judge inquired into the merits of the case he finds that the boy is bad and that both parents are in the habit of getting drunk. The Judge finally decides to send the boy either to the farm of the Children's Aid Society in Westchester County or to the Juvenile Asylum where he can learn a trade.

Aside from the judicial interest manifested throughout the proceedings, Mercy weeps tears of sorrow over the wayward boys and girls and nothing but kind words are expressed regarding them and every one seeks to do them good.

In former years the work done by this Court was carried on in the most humane manner by the Children's Aid Society under the direction of Charles Loring Brace and, since his death, by Charles L. and Robert Brace, his worthy sons. The Children's Aid Society has done more toward saving the children of the slums the past fifty years than all other humanitarian organizations combined.

The following lines by Philo S. Child will in a measure express why children commit crime in this great city:

“Alone in the dreary, pitiless street,  
With my torn old clothes and my bare cold feet,  
All day I have wandered to and fro,  
Hungry and shivering and nowhere to go;  
The night coming on, in darkness and dread,  
And the chill blast beating upon my head;  
Oh, why does the wind blow upon me so wild,  
Is it because I am nobody's child?”



## CHAPTER XV

# THE ROD AS A REFORMATIVE AGENT IN THE EDUCATION OF YOUTHFUL LAW BREAKERS

A recent ruling of one of our city judges, after reprimanding two lads brought before him for a trivial offence, decided that they should be birched in “the good old way” prescribed by King Solomon, and he further declared that children brought before him in future may be punished by public school teachers just the same as they would be by their own parents, and he bases his ruling on Section 713 of the Penal Code, which reads as follows:

“When a person under the age of sixteen years is convicted of a crime, he may, in the discretion of the court, instead of being sentenced to a fine or imprisonment, be placed in charge of any suitable person or institution willing to receive him, and may be kept there until reaching his majority, or for a shorter term, subjected to such discipline and control of the person or institution receiving him as a parent or guardian may lawfully exercise over a minor.”

For several years some of our best American prison reformers have been in favor of the restoration of a mild infliction of corporal punishment in reformatories and other institutions where juvenile delinquents are kept. Indeed, after ten years of experience as Chaplain, I am satisfied that a sound birching would be a godsend to many a New York boy in the early stages of crime, and in a large number of cases might possibly cure him of his foolish delusions.

As many persons consider the phrase “corporal punishment” offensive, I am willing to accept ex-Superintendent Brockway’s suggestion, and call it “corporal treatment.” And I am inclined to believe that the word “treatment” would not militate against it as much as “punishment.”

“The object of punishment,” says Horace Mann, “is the prevention of evil.” If corporal punishment does not inspire our youth to do good works, it certainly in many cases deters them from doing evil ones.

It is interesting to know that four-fifths of all the school teachers and principals of Greater New York are in favor of the revival of corporal punishment for bad boys and have petitioned the Board of Education for its restoration. When this matter came before the Board a few months ago it was lost by only three votes, but it will come up again—and may possibly become a law next time.

A large number of our school principals and teachers of wide experience believe that something ought to be done to the boy who calls a teacher a vile name and wilfully despises his superiors, besides turning him out of school as an incorrigible. By that one act the Principal who is unable to punish him for his bad conduct simply puts him on the street to begin a criminal life. The only thing a bad boy fears is a spanking. And as there is no discipline in thousands of homes, the Principals of our City Schools in their appeal for the restoration of the rod, affirm that used under certain restrictions it would save yearly a very large number of our youths from moral shipwreck.

Z. R. Brockway while Superintendent of Elmira Reformatory frequently spanked unruly young men, but then only as a last resort. Personally I am opposed to the use of the lash in State prisons as entirely antiquated and out of place where the appeal should be to reason and the higher nature of man. But in dealing with malicious, disobedient and incorrigible boys it is different. They will not listen to reason and perhaps pay no attention to your warnings and will rush into crime like a horse to battle unless they fear the rod. I believe when a boy under sixteen years of age commits a crime, if he were taken aside and given a sound birching, as is the custom in many English and German towns, it would be vastly more beneficial and would make a deeper impression on him than sending him to prison to be the associate of thieves and pickpockets.

An English town clerk in a borough of 12,000 people writes, “It has been our rule for more than forty years, not to permit a boy or girl to go from our town hall to prison. The substitute, at least for boys, is a birching. In case of repetition of the offence another birching is given, and in one instance three



whippings were given within a few days. The result is we have not a juvenile thief in town. Thieving is unpopular with boys who do not wish to be birched. But were it not for the birching which is very painful, many of them would not mind to be heroes in a prison or reformatory.”

In considering the right of parents to inflict corporal punishment on their children, the common law as interpreted by the best jurists sanctions it. There is no revenge whatever in the act—it is entirely eliminated. In a large number of cases it is a matter of absolute necessity. Although parental government preceded civil government, it is no less coercive and often force must be used in the home to carry out the will of the parents. Again, the parent is recognized as the natural custodian of the child and is accountable to God and society for his upbringing. Nor should we overlook the importance of inflicting corporal punishment on youthful wrongdoers as a deterrent to commit other offences. Punishment in itself is of divine origin and its application has become well nigh universal and is likely to be continued in the family till the end of time, and is also supported by Holy Writ. “He that spareth the rod,” says Solomon, “hateth his son.” “Chasten thy son while there is hope, and let not thy soul spare for his crying.” “The rod and reproof give wisdom, but a child left to himself bringeth his mother to shame.”

During the past decade crime has increased among the youth of the city—at least fifty per cent.

The cause of all this is found in the criminal and lawless homes and the foolish prejudice that is abroad against the corporal punishment of minors. Every year hundreds of boys from sixteen to twenty years old are locked up in the Tombs for several weeks and afterwards sent to the House of Refuge and Elmira Reformatory where they can be detained all the way from one to twenty years, but they care not for such detention. In fact, when you speak to them of prison life they wear a bravado that is astonishing. But the moment you birch them for their wilful and disobedient conduct these young men quail and promise to do better.

There is so much foolish and unreasonable leniency exercised by magistrates and judges when small boys are before them, that many people begin to feel that parole without some kind of corporal punishment is a mockery and a farce. Only recently a city paper took a Special Session

Judge to task for paroling some malicious boys who had committed vandalism in Central Park. There was no punishment in the sentence. Nothing to impress them with the majesty of the law. If these boys had been well spanked till they promised never to do the like again, the paroling would be all right, but not otherwise.

If it is degrading to punish boys for wrong doing, then the best men now living were punished in their youth. And many of the men now believe that it saved them from criminal lives. Foolish sentimentalists tell us that it is degrading to spank or birch a boy, but what is more degrading and damning than crime?

A well known Probation Officer of large experience in the city of Brooklyn, gave me to understand that if he had his way he would erect in every Police Station a whipping post where he would treat to a sound birching, *a la Solomon*, all the young hoodlums, thieves and law breakers that come before the courts. Most of these young men come from bad homes where they had no training whatever, and where their weak-minded or indulgent parents permitted them to violate the laws of God and men daily. If these young ruffians refuse to keep out of crime or be at home at night by 9:30 o'clock, let them have another dose of the strap, says this Probation Officer and keep it up till they come to their senses!

As soon as they promised faithfully "Never to do it again" I would give them a chance. A good spanking is far better for an unruly boy that breaks the law than sending him to a prison.

If young children are taken from homes and placed in reformatory institutions, why should corporal punishment cease when it is vastly more humane than cellular confinement, deprivation of food or what is commonly called "cuffing," which simply means to be hung up by the wrists to a cell door sometimes for twelve hours at a time. All of which I characterize as extremely brutal. And this is done in many of our reformatories.

At the annual meeting of the National Prison Association in Hartford, Conn., a few years ago the question of corporal punishment in our prisons was thoroughly discussed. Clarence B. Hoyt, Warden of the Colorado State Penitentiary, said that the feeling against corporal punishment was one of mere sentimentality, and advocated the use of paddles for spanking unruly

prisoners and also the employment of an electric paddle to secure impartiality and prevent either partial indulgence or prejudiced severity. The warden produced a new version of an old proverb, "Spare the paddle and spoil the con."

It is worthy of note that the whipping post in Delaware has had an astonishing influence over human brutes in that commonwealth and as an expeller of criminals from the State, surpasses any form of punishment known. All classes, with only few exceptions, are in favor of its maintenance; and even Chief Justice Lore, naturally of a sympathetic temperament, has been so convinced of its value as to commend it heartily and favor its retention.

Henry M. Boise, prison reformer and author, says: "There are found in reformatories, as well as in all other prisons, those who are so entirely devoid of mental and moral sensibility when committed, as to be beyond the reach of any incentive or punishment except physical pain. Their nature is but little above the animal. For such persons, the general experience of wardens of prisons, after trial of bread and water in dungeons, deprivation of all privileges, showers of water, tying up in a standing position, and other ingenious methods of inflicting pain and discomfort humanely, has been found a spanking with a piece of sole leather, softened by soaking in water, the most effective, immediate, certain and humane punishment."



## CHAPTER XVI

# CRIME AMONG WOMEN

### (1) The Social Evil in New York

The two great causes of crime among girls and women in general are immorality and strong drink. Many others might be enumerated, but that would be entirely unnecessary. Nor is it too much to say that social vice has attained the proportions of a plague in this and many other of our American cities, and thousands of girls, native as well as foreign, whose lives were once promising and full of hope, have been blasted and blighted by this terrible evil.

In a great city like New York there is a reason why this great evil meets us on all the thoroughfares. Within a few miles of Manhattan Island may be found naval and military depots, where large numbers of unmarried men congregate. Added to this we must count the men employed in the shipping interests, as New York is perhaps the greatest sea-faring town on the continent, and besides the many thousands of immigrants that come here every year, and, last of all, the yearly arrival of twenty to thirty thousand young men and women from rural homes, seeking employment in the great city.

But the causes of prostitution or social vice are varied. In the fall of the year large numbers of young girls come to the city in search of employment. This is often the most trying period in their lives. If they happen to find work, all is well; but if not or even after they have been thrown out of employment, or when pinched for money to buy dress or pay living expenses, they go out on the street, it means their ruin. The temptations in the way of friendless girls in a great city are so numerous that unless they are surrounded and even fortified by moral and religious

influences, they readily succumb to the forces of evil within six months after their arrival. I have been informed on good authority that certain men are continually on the lookout for such girls, and after the first or second introduction, use a ticket to the playhouse and a late supper, or a piece of money or jewelry to bring about their ruin. Men who have finally landed in prison have boasted of having seduced ten to twenty such girls within a few years.

The modest amount of salary that ordinary girls receive in wages does not admit of their saving anything for a dull season. As a result hundreds of girls yield readily to evil influences and are soon borne down the swift currents of temptation into shame and ruin; and when they find themselves shunned by old friends, many of them end their days by suicide.

In the Tombs and district prisons may be seen almost daily large numbers of women who have been taken from the street or from “dives” and other dens of iniquity after the police have raided such places. After a few years the prostitute becomes a repulsive, degraded and besotted specimen of humanity and sometimes a hardened criminal. Nemesis follows the unfortunate and unhappy female till she ends her days in the Potter’s Field. It is indeed sad to chronicle these things, but they are nevertheless true.

We must not forget that women are naturally of a finer temperament than men, and are therefore more susceptible to the influences of the evil one. Young girls seem kinder, more gentle, more accessible to appeals made by the sterner sex, and as a rule, are more easily caught in the “traps” set for them by human degenerates. Some women love dress and jewelry passionately. And many of them will do anything to secure them. If they are employed in stores, offices or factories, and they appeal to the foreman for an increase of wages, he may inform them that Miss So-and-So gets along on the same salary, but he offers to introduce them to male friends, who will aid them financially, but who often prove to be their ruin.

## The Cadet System

In police parlance the “Cadet system” is the application of modern methods in fostering and promoting the work of a procurer who secures victims for the brothel. The system goes back to the days of Greek and Roman degeneracy. But we are dealing at the present time, not with European or even Asiatic conditions, but with New York at the beginning of the twentieth century.

How the term “Cadet” originated is hard to tell, as there seems to be no connection between a young man who is being educated for the military service and the man who provides for the sensual gratification of the abandoned herd.

The most guarded estimate of the number of prostitutions in Greater New York is put down at 70,000, yet there is no accurate information on the subject.

It is the opinion of good authorities that the Raines Law has done more to make the life of the prostitute and her male sensualist respectable in New York than any other ten causes. A large number of the saloons that go under that name are classed by keen observers as brothels of the worst kind. The Raines-Law-saloon-hotel gives a cloak of quasi-respectability to the brothel and makes prostitution attractive and profitable, and the rumseller for a small fee condones the crime against the sexes.

Frequently the city Cadet goes into another state, like Pennsylvania or Maryland, and advertising in some local paper for girls to work in a hotel or factory, he offers good wages and is willing to pay all expenses to the city. The result is that he has a dozen applications out of which he selects five or six of the most attractive ones. After he reaches the city, they are turned over to human devils and afterwards sold to brothel keepers at prices varying from \$100 to \$200 each.

New York has still a large number of these disorderly houses which contain from five to twenty girls. The proprietors call them boarding houses, but their right name is brothel. Under cover of night these women

go out on the street and when they find a victim, take him to the brothel where he is robbed and then kicked on the sidewalk.

A few years ago the city "Cadet" became so bold in his business that the Legislature increased the penalty attached to the crime of abduction by making it ten years instead of five in state prison and a thousand dollars fine. Respectable girls between the ages of fifteen and twenty were often induced to leave home and come to New York from rural settlements, only to find on their arrival that they were grossly deceived by these lying scoundrels.

Some time ago Annie Bolt, a Brooklyn girl, was rescued from a wretched den on East Thirteenth Street, Manhattan, by Brooklyn officers. The girl had been lured from her home weeks before, by a young man who gave his name as Abe Krinkoe. He gave her to understand that he was taking her to a braid factory in New York. Krinkoe was afterwards arrested and indicted on a charge of abduction.

Once in this house of prostitution, Annie's clothing was taken away, and she was told that if she attempted to escape she would be killed. She managed, however, to drop a letter to the sidewalk, addressed to her mother, telling of her plight. Some one picked it up and mailed it and her rescue followed.

Not long since a woman who labors among these unfortunates on the West Side informed me that one night she counted no less than thirty-six girls taken to a large brown stone house in a fashionable part of the city by a few procurers or cadets. When they crossed the threshold of that house, they were actually sold into slavery. Their clothes was taken from them and they were kept indoors and almost nude for a whole year. Afterwards they were turned loose in the cold blasts of winter to make room for others, such as they were once, pure girls.

The only way to rid the city of prostitution is to make it a criminal offence for both male and female and cease condoning it as a human infirmity!

In a short time these poor creatures are themselves abandoned, deserted, avoided, and even loathed by those who once held them in high estimation, and as they are unknown and friendless in the great city, they have no



alternative left but to become the instruments of immorality to others or die in despair.

After a few years, if these girls are not sent to Auburn prison for a long term, they become Police Court habitués. They are frequently arrested for intoxication, disorderly conduct or soliciting on the street. When they come to the Tombs they present a shocking appearance—with bleared eyes, bloated face, disheveled hair and soiled clothing—having lost the sense of womanly shame.

I have often spoken to them—always kindly—and have seen the tears start in their eyes as I have asked after their mothers. They appear callous on every other subject, but here I have always touched a tender chord. Many of these girls have informed me that they are in the business for the money and the dress that are in it; and they do not want to reform.

In the corridor of the Women's prison at the Tombs they talk and often fight among themselves. How shocking their obscenity, oaths, imprecations—the very language of hell. Some of these women have been in prison for short terms as often as fifty or a hundred times. Many prostitutes are frequently arrested for robbery, but as a rule escape, as the degenerate complainant seldom appears against them. They swing with pendulum regularity from a brief imprisonment to liberty, till they end their days as a river suicide.

More than once I have gone through Chinatown at midnight in company with a ward detective where I could see for myself, under the glare of the electric light, some of the frightful aspects of prostitution.

There is said to be from one thousand to five thousand Celestials in Chinatown. Nearly every one has a white girl with whom he lives.

They occupy from one to three small rooms, but many of them have only one room where they live, eat and sleep. The girls who live with Chinamen seem to have a terrible fascination for such a life, for no matter how often the police raid the place and send them to prison, they are soon back again at the old life.

Many of these girls come from respectable families, as I know from investigations which I have personally made. After a couple of years of such life, the Chinaman abandons his paramour and flees to parts unknown.

It is most difficult to locate a Chinaman as it is impossible to identify him. When he returns again it is with a new—fresh—girl as a mistress. The abandoned one after a few days takes to the street, or swallows carbolic acid.

Two sisters, once known as respectable girls, but who always refused to disclose their identity, informed a friend of mine that their father was a country preacher. They lived with Chinamen for several years. I knew another girl who ran away from a respectable Brooklyn home to lead an immoral life with a Chinaman. Nor is this at all uncommon. Whatever fascination there is about it, it invariably ends in disgrace, and finally in the dark waters of the river or Potter's Field.

Recently Police Captain Galvin, who was appointed to the command of the Elizabeth Street Station, which is known in Police parlance as the "Bloody Sixth," by Commissioner Bingham, has driven out of Chinatown between two and three hundred white girls, the mistresses of Chinamen. This is a feat performed by no other policeman in the history of the "Bloody Sixth."

## (2) The Women of The Tombs

Naturally women do not figure in crime as much as men, and for various reasons.

In the first place women are more domesticated, work in the interests of the home where they fight life's battles, are more gentle, artless and persuasive in their methods than the sterner sex.

During the past quarter of a century New York has furnished a large number of murderesses, fences, thieves and women of the street, among her criminal classes.

Last year the police arrested no less than 15,000 women of a dozen nationalities for almost every crime. Only a very small number were for heinous offences.

One of the most noted female crooks that New York has known was Mother Mandelbaum. The annals of crime do not furnish such a woman as this in her particular line.

Her home was on Clinton Street on the East Side of the city. In police parlance Mrs. Mandelbaum was known as a "fence" or receiver of stolen property. In a few years she became very rich. In 1878-9 she had business relations with thieves, pickpockets and shoplifters all over the United States, Canada and Mexico and many parts of Europe. So great was her trade with criminals that she hired all the cellars in the block where she lived for storing her goods. She retained one of the best criminal lawyers of the city to defend criminals and paid him \$5,000 a year. She was considered highly respected on the East Side and was a generous contributor to all charities! She was also known as a banker, broker and bondsman, and when men were sent to prison she was known to support their families till they came out.

She was very shrewd in business matters. The police had suspected her of being a "fence" for several years, but were unable to secure the necessary evidence that would indict her.

It was said that several times before a raid on her premises, some person high up in the police department would “tip her off.” In 1884 Lizzie Higgins, a notorious shoplifter, was sent to the penitentiary for five years. Mrs. Mandelbaum had been receiving Lizzie’s stolen property and had become rich on her plunder.

But this time she felt “sore” toward her old friend because she had not furnished her a good lawyer. When Lizzie found out that Mother Mandelbaum would do nothing more for her she “squealed” to the police. She told where could be found the remains of a great silk robbery that took place a few months previously. When this became known Mrs. Mandelbaum fled to Canada, where she lived in obscurity till her death, which took place a few years ago.

Another female criminal well known in New York was big Bertha, the Confidence Queen. She was well educated, had a smart appearance and engaging manners. She usually traveled between New York and Chicago in big style. In New York she stayed at the best hotels, such as the Windsor, Brunswick and Hoffman House. In Chicago she put up at the Palmer House.

On one occasion she told such a smooth story to a palace car conductor that he turned over to her his entire earnings, a thousand dollars. Her happy hunting ground, however, was Wall Street, where she had been able to persuade bankers and brokers to advance her hundreds of thousands of dollars on fictitious securities.

The last time she was on Wall Street she deceived one of the shrewdest brokers and has since disappeared from history.

In the fall of 1898 Mrs. F. M., a woman noted for her beauty and charm of manner, and said to be a belle of old Kentucky, spent many weeks in the Tombs. She and her husband were charged with attempting to blackmail a Broadway hotel keeper. Mrs. M. was known as a most refined and accomplished woman and well educated. As she came from a Southern family of respectability, many people interested themselves in her behalf.

Her husband, however, charged with the same crime, was convicted speedily and sent to prison for nineteen years. It seems to be an impossible task nowadays to convict a woman of crime, provided she has plenty of money and can secure the services of a good lawyer who can play on the

“feelings” of the jury. In nearly every case judge and jury are more lenient and extend more mercy to them.

Another woman who received a good deal of notoriety in those days was a Mrs. V——, who hailed from Philadelphia. She was charged with passing forged checks. She was ably defended on both trials. On her last trial her accomplishments counted for a good deal. She had winning ways about her, was well dressed, and to secure sympathy could drop a tear at the proper time. During the few weeks they were in the Tombs Mrs. M—— and Mrs. V—— spent most of their time on the tier or in the corridor—refusing to mix with the other (naughty) female prisoners or to have any dealings with them whatever. Their meals were sent to them from without and with the select company which they received daily were seldom lonely or disconsolate.

The case of Miss Fanny T——, who spent several months in the Tombs during the summer of 1903, is indeed sad and should be a warning to all young girls who at first are admired for their beauty, then betrayed, seduced and cast off by the so-called manly sex and finally disgraced.

She was confidential clerk in a large corporation. Finally she was charged with stealing \$37,000 belonging to the firm. This she stoutly denied and showed that it was a conspiracy to save certain men in the office who were the guilty ones.

Several male scoundrels made her sign checks, cash them and turn the money over to them. As she had nothing to show for the money she gave them, she was found guilty and sent to Auburn Prison for several years. What mean cowards! To put a poor woman into such a trap and then gloat over her downfall!

Mabel P—— is another woman of this class. She is what the world calls “smart” and is educated to a certain extent but not cultured. She was brought up in a convent in this state, but left it to become the wife of her present husband, who is a graduate of Elmira Reformatory. She is said to be an expert forger and is able to imitate any handwriting. This was proved at her two trials by a Central Office detective who got into her graces by representing that he was a “pal” of her husband who was then in the Tombs.

These are the best representatives of their class and are remarkable for their adroitness and power to ingratiate themselves into the affections of matrons and missionaries. Mabel is also a habitue of the Tenderloin, where she knows all the resorts, in which she has been a frequent visitor for the past two years. She has refused positively to leave her husband or to abandon her evil life.

But the most dangerous of all women are the panel thieves. They go in pairs—male and female—two of a kind. The Courts are very severe on such people, and give them all the law allows.

The woman who attends strictly to the panel or badger business must have a male side partner, she doing the decoy work before her make-believe husband appears as offended innocence.

Such people seem to be very successful, as they have many victims who meekly submit to their losses rather than “howl” or expose themselves in a Police Court. The panel woman still walks Broadway and Fifth Avenue as a “decoy,” dressed in the fashions of the day, in search of “suckers,” and it is needless to say she finds many of them.

She is great on alluring the unsophisticated—especially rich young men. She has silks and satins, laces, brocades and fine jewelry, which are sure to attract. And after she has captured one and secured the “booty” she goes out the next night with greater boldness than ever.

Another woman that more recently obtained a national reputation while in the Tombs was Miss P——. She was charged with the murder of a “book-maker” and all round sporting man. The deed was done in a cab while he was on his way to the steamer that was to take him to Europe. This woman had three trials. The first proved to be a mistrial as one of the jurors became ill and was unable to hear the rest of the testimony. After the second trial, in which the jury disagreed, Nan became a “heroine.” Friends and admirers everywhere sent her baskets of flowers, candies and frequently a hundred letters a day. Many of them, it is said, contained offers of marriage, but whether made seriously or not, no one knows. The prison authorities permitted her to receive the letters but the candies and flowers were confiscated. The third trial also proved to be a disagreement, after which she was discharged on her own recognizance. Since then she went on the stage, but did not have the same success as when she was a Florodora girl.

### (3) The Modern Shoplifter

The modern shoplifter is usually a well-to-do, dressy woman of the middle class, all the way from twenty to forty years of age. She visits the large stores like a bold footpad in search of plunder. When the opportunity presents itself she steals all she can lay her hands on without being detected, then sneaks away unobserved.

Nearly all of our large dry goods and department stores offer her unusual opportunities for stealing, provided she is well dressed and knows her business. The counters of these establishments are lavish with all kinds of jewelry, laces, gloves and knick-knacks of various kinds and values. During the holidays there are dazzling arrays of silks, satins and velvets of all the colors of the rainbow from which the shoplifter can make satisfactory selections. And best of all, these stores are so thronged from morning till night, that these petty thieves are able to secrete dozens of small articles on their persons without being detected.

Shoplifters as a rule ply their business only in stores that are crowded, where they can steal unobserved and afterwards get away with the plunder. These people as a rule are bold, daring depredators who will scruple at nothing. The most dangerous of this class are so slippery that they seldom get caught, but when discovered and their rooms are searched, the police find a wagon load of stolen property, the accumulation of years of thievery.

Their work is systematic, and carefully planned, and as a rule they are able to successfully carry off the goods and get rich on them. When they go out to steal, these women have pockets in their clothing sufficiently large enough to carry away a big haul. On this account all the principal stores are compelled to employ male and female detectives to watch these thieves and arrest them in the act. Many of this class of thieves do not belong to New York. They straggle in from Long Island, Jersey and small towns on the Hudson.

The Christmas holidays are the great harvest for shoplifters and petty thieves. A gang of four expensively dressed shoplifters have been known to

get away with thousands of dollars worth of furs, silk waists and laces in a season.

Scores of these women are arrested during the year who refuse to disclose their identity and many of them are sent to jail for short terms.

A shoplifter of experience was arrested not long since in a Sixth avenue department store. She was about thirty years of age and well dressed. When searched in the Tenderloin Station House, forty-one articles were found in her umbrella, ranging in value from eighteen cents to three dollars; according to the marks on the articles the shoplifter must have visited four different stores on the Avenue. Among the things found in the umbrella were belts, collars, pins, garters, laces, handkerchiefs, pocket books, pencils, combs, brushes, locket, buttons and several bottles of cologne.

The shoplifters are seldom prosecuted to the full extent of the law, as friends intercede in their behalf, reimburse the storekeepers for their losses, after which they are let go. If the shoplifters are rich they are called kleptomaniacs, but if they are poor and friendless they are classed as thieves and have to go to jail.

A gentleman in one of the large stores told me that they sometimes lose as much as a thousand dollars a week by shoplifters and employees.

When the expert shoplifters come to the Tombs they weep and lament at a great rate. They weep because they have been caught "red-handed with the goods on," and not because they feel sorry for their crime. They are really crocodile tears shed for the sake of securing sympathy!





## CHAPTER XVII

# THE STEAL OR STARVE UNFORTUNATES

Many of our most recent sociological writers commenting on some of the causes of crime, omit all mention of poverty. They speak of heredity, environment, intemperance, and many other things, but of poverty they say nothing whatever. Even Henry George in his book on Progress and Poverty is silent on the latter subject as one of the great producing causes of crime. Any one who carefully studies the relation between poverty and crime will see that these two in many cases are vitally connected.

It is not necessary in this discussion to enter into all the ramifications of the subject. Indeed nothing would be gained by doing so. In the present instance we simply wish to present to our readers a few cases which will go to show that the question of “bread and butter” is one of paramount importance to the average man. And we shall endeavor to show that poverty is one of the most potent causes of crime in our day, especially in our large cities.

The London police authorities have always maintained, and are able to prove by statistics, that when the bakers raise the price of bread only one-half a cent, it means an increase of crime to the extent of ten per cent. And for the reason that so many of the poorer classes are so pinched by poverty, that when the price of food is raised it means to many of them starve or steal.

It is foolish any longer to stultify our minds and argue against believing that poverty and crime are vitally related. This is especially true in our large cities, rather than in the country. Not only do they belong to each other like cause and effect,—but poverty in many instances fosters crime.

It is a well known fact that when thousands of our laboring classes are out of employment only one week, they are, to use the language of the street, "dead broke." In a few days the whole family become so affected for want of food that unless the father gets work at once whatever is of value in the house is either put in pawn or sold for what it can bring anywhere. When the house ceases to have anything more to sell, the children are sent out to steal. A large number of those who are arrested by the Children's Society for various crimes and taken to their rooms before going to Court, eat ravenously of whatever food is set before them. When they are questioned as to why they stole, they usually say they were hungry.

Diminutive boys and even men with sunken cheeks and pale faces are taken to the Tombs almost daily charged with the crime. When you speak to them they freely admit that they lived for months by stealing. And in a great many cases they stole to get food for the family. The same is also true of boys and girls who work in stores and factories. When sorely tempted to steal they do so but only when hunger stares them in the face! In nearly all the places where young people work they pay such small salaries, that they are unable to save anything. After they pay their board what is left goes for clothing and carfare. But there is nothing for the proverbial rainy day.

But self preservation is said to be the first law of nature. "All that a man hath will he give for his life," is as true to-day as it ever was. When men steal to preserve life they simply trample under foot a lower law to maintain a higher one. And it is the most natural thing in the world to fall back on the law of self-preservation when driven to the wall by hunger or other adverse circumstances.

The annals of crime in this city will show that the children of the poor at an early age are turned on the street, where they are left to steal or starve. I have found by careful observation that twenty-five per cent. of the boy criminals of New York started on their wayward careers when they were hungry. It was the old story, "Steal or starve." And they stole and became criminals.

As long as you keep men and women busily employed crime is out of the question, but when they lose their job and feel the pangs of hunger, the criminal instinct comes to them with such force that they cannot resist it.

An ex-convict whom I have known for a number of years wrote me a letter of explanation after going back to the Penitentiary some months ago. "Sir," said he, "there is no employment for an ex-convict. \* \* \* \* I was homeless and friendless \* \* \* \* with me it was steal, starve or beg? I was too proud to beg. And I refused to starve in this land of plenty. When I could do nothing else I stole—when I suffered the pangs of hunger. What else could I do? And when placed in the same circumstances I will do it again."

Not long since John Williams, sixty years of age, was arraigned in Centre Street Court, charged with larceny. He confessed his guilt. "I do not care what you do with me, Judge," he said. "I was starving and it was either steal or die." "Why don't I work?" "Well, Judge, if you will get me a job, you'll see how hard I'll work. But nobody wants an old man like me."

I knew a respectable man who resided in the vicinity of Tenth Avenue and Fifty-sixth Street; he was out of employment for about three weeks. By this time his family, which consisted of wife and five children, were in dire poverty. The fourth week he found employment at twelve dollars a week driving a truck. On Saturday the boss paid the man six dollars out of which he was to pay rent and feed his family for a whole week. The employer retained six dollars of his wages as security against loss while in his employ. In the middle of the week his funds were exhausted. When he came home Wednesday night his children were crying for food and he had none to give them. Then he remembered that he left a box of goods on the truck when he put his team in the barn. That night he broke the box open, took some of the goods out and pawned them and with the money bought food and fuel to make his family comfortable for several days. It is needless to say that before the week was out he was arrested charged with grand larceny.

A good Samaritan made an investigation of this man's case the following week, found his family in great poverty and supplied their wants. Not only was it found that the man was no thief, but everything he said was true. He was driven to steal by his hard hearted employer who held back half his week's pay when his family was in great need.

When all the facts became fully known the Court suspended sentence and sent him back to his family. The Monday following he went to work for an

old employer who had always known him as an honest man.

When I spoke to this man about what he had done, he said, "I could not help it. My boss, who retained in his possession six dollars of my hard earned money, made me a thief. I did not want to steal but when I heard my children cry for bread it almost crazed me and I stole to satisfy their hunger."

An old German, over fifty years of age, who some years ago was in business in Philadelphia, failed and lost all his property. He came to New York where he lived from hand to mouth for a month or two. He was often in the bread line on the Bowery to get enough to keep him from starvation. During that winter he went four days without eating anything. Then in his desperation he broke a window and stole an opera glass. For this he was arrested and sent to the Penitentiary for one year.

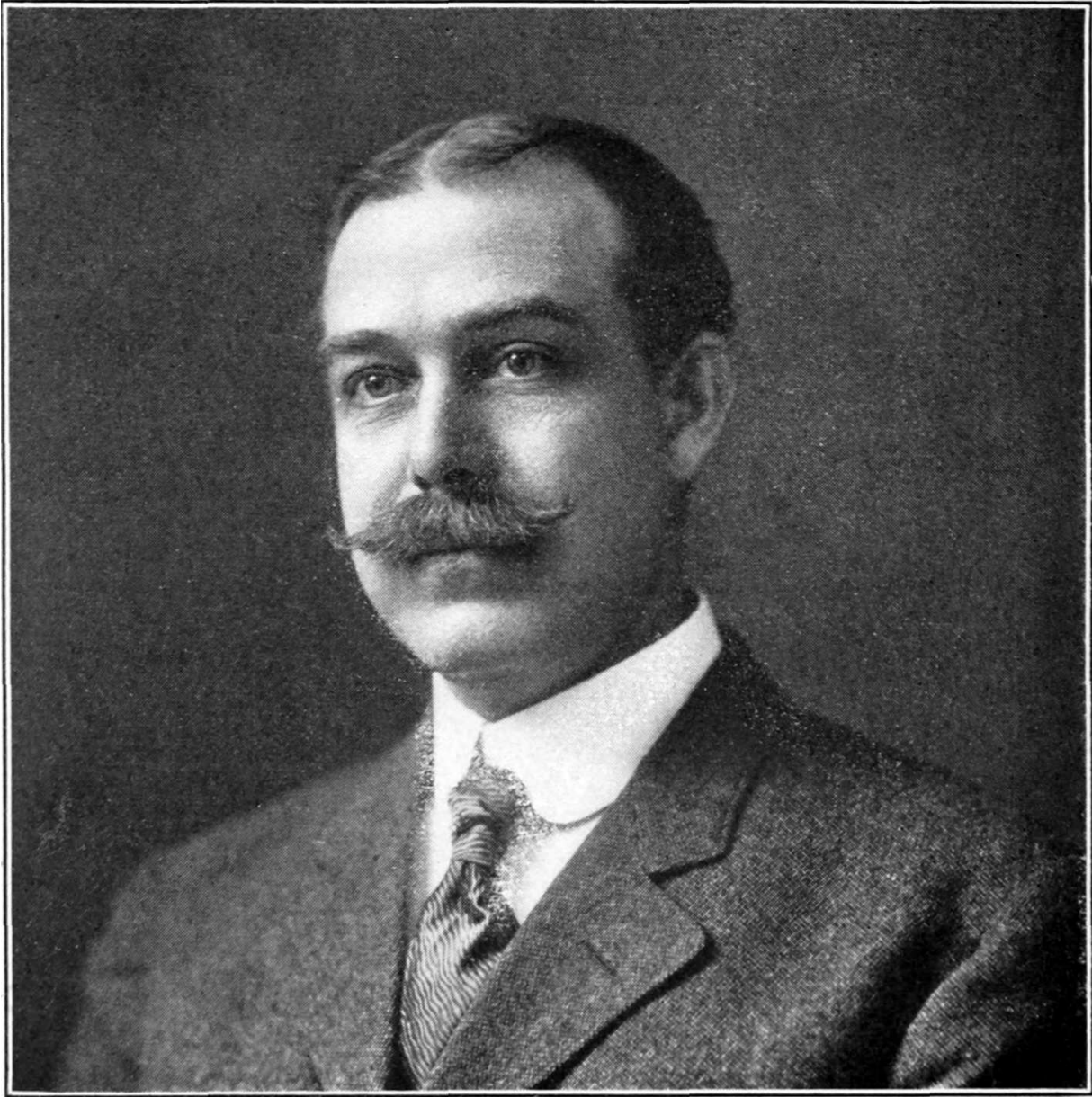
When he came out of prison he was determined not to commit another crime. He walked the streets for five days looking for employment, but nobody wanted him, he was too old. Walking along Second Avenue one evening he became exhausted, then desperate and broke a plate glass window that he might be sent to prison where he would get enough to eat. When he was discharged I met him at the prison door. I tried to get him employment but nobody wanted him, then I sent him to Newark on his way to Philadelphia among his friends who would save him from further imprisonment. In both cases poverty drove him to crime to get food. He was not a criminal from choice but only from circumstances.

This last case which I am about to relate was the most pitiful of all. The man lived with his wife and four children in the neighborhood of East Fortieth Street near First Avenue. He was a painter by trade and had been out of employment four weeks. On the first of March his wife gave birth to a child. On the third day afterwards his home was fireless and foodless. On the morning of the fourth day his children cried for food, then he became desperate. He tried to borrow money but nobody would loan him anything, not even a quarter of a dollar. That morning he stood at the Grand Central Depot ready to steal if he got the chance, but there were too many policemen there watching his movements. Then he walked down to Thirty-eighth Street and Park Avenue where he stood watching the people. In a few minutes he saw a lady come along dressed in furs. In her hand was a small

wallet. He followed her down the steps into the tunnel, snatched the wallet and ran. But he could not run fast enough as he was weakened from lack of food and was soon captured. It was proved in Court that the man was not a thief; that he was driven to do the crime because of the dire poverty in his home. It was a social rather than a criminal question, but the judge thought he would make an example of this unfortunate and gave him ten years' imprisonment. I asked him in prison why he had taken such chances; he replied, "I was cold and hungry and my family were in such desperate circumstances when the temptation appealed to me, I could not resist it. That's all."

In a large number of cases I have found that men and women were not thieves by choice. They were before the law guilty only technically for some crime, but were driven to it by social conditions and man's inhumanity to man! When you come to judge all such "criminals" be charitable, and put yourself in their place and ask, What would you do under the same circumstances?

There is an organization in this city called the Charity Society. They receive a good deal of money during the year for charity! Mr. John S. Kennedy gives them free rent in his building. What charitable work they have ever done to aid the worthy poor we have never been able to learn. But some people have not a very high opinion of them. When I have urged people to seek relief from them (before I made an investigation for myself and learned what they are) they replied that they would prefer to jump into the river. Others in speaking of the society use red profanity which would not look well in print. Ask a policeman, priest, rabbi, minister of the gospel, mission worker. They may be able to tell what charity is given by this society to the poor of New York. I know the society for improving the conditions of the poor, the Children's Aid Society and others that do a good work. Heaven bless them and fill their treasuries!



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Ex-police Commissioner Bingham, of New York. General Theo. Alfred Bingham, born at Andover, Tolland Co., Conn., May 14, 1858. Graduated at West Point Military Academy 1879 and Yale University 1896. For several years he has been in charge of Public Buildings and grounds in Washington, D. C. Was appointed Police Commissioner, by Mayor McClellan, January, 1906. He brought the Police up to a higher perfection than ever before.





## CHAPTER XVIII

### HOW YOUNG MEN BREAK INTO PRISON

One of the most startling facts that face the present day reformer is the great number of strong, healthy and well educated young men that really break into prison, as that is the only way you can speak of it. Various reasons are given for this singular condition of things but which do not satisfactorily explain the difficult problem. We believe the question is worthy of the highest consideration which the State can bestow upon it. It is everywhere demanding a solution at the hands of Christian philanthropists and statesmen. When we think of the tens of thousands of young men in this and other large cities, who are leading prodigal lives, uncared for by their fellow men, and little sought after by Christian agencies, unless they are well dressed and have plenty of money; then the Y. M. C. A. and the Club will compete for their patronage. But if they are poor nobody cares for them, and if they happen to wander into a Christian Reading Room, they will be told that such a place is only for members, and not for them.

Many of these young men come from country homes in search of employment, and not finding any, after they have spent their capital, they eke out a precarious living by doing odd jobs or even panhandling. After a time they become seedy in appearance; sever all connection with the loved ones at home; lose all ambition of ever amounting to anything or securing employment. Then they mingle with criminals, who present to them some "rosy scheme" to get ready money without working for it, and when they seek to carry it out, find themselves in the meshes of the law. Now they have discovered by experience that "The way of the transgressor is hard." If, however, they had sought steadily to do what was right by shunning the saloon and the companionship of evildoers, the result of their brief city life would have been different.

Some time ago a young man, twenty-seven years of age, was in the Jefferson Market Police Court. He had wandered to New York months ago from a New England home. Although a graduate of Yale, and a law student, filling many important and lucrative positions, yet he lost all by strong drink, cocaine and evil companions. As soon as he was sobered he found himself to be a moral and physical wreck.

It seems that when he had exhausted all his resources and his clothing became torn and tattered, the only employment he could find was to play the piano in a Tenderloin saloon for free “drinks.”

Perhaps the reason that so many young men really break into prison is that they have acquired sinful habits in their youth which have grown on them with the years. They refuse any longer the advice of friends and are unwilling to learn by experience, and like men void of understanding, they rush into crime, like the horse into battle, only to meet disaster.

Some of the larger Rescue missions of the city do a vast amount of good in caring for these young men. But many are “pauperized” and in the end become chronic panhandlers. And the same “bunch” is found in the missions from year to year and are no better.

Put them to work sawing wood or breaking stones or indeed anything, and if they are able bodied and refuse let them alone. Feeding them only prolongs their misery.

It is a sad fact, though nevertheless true, that many young men do not learn by experience. As soon as they are out of one trouble, they seem to rush into another, until Society is compelled to protect itself by sending them to prison a second, or a third, or even a fourth time. The reason doubtless for this is that the young criminal in a great number of cases gives way to the low instincts of his morbid nature, or he has acquired sinful habits in youth, which grow on him through life, and he readily gives way to them when tempted. The heredity of crime is simply giving way to natural depravity that has never been curbed.

It is safe to say that 70 per cent. to 75 per cent. of all who get behind prison bars for the first time are young men between the ages of sixteen and thirty. When the “rounder” puts in an appearance this percentage is reduced. Nevertheless, the great mass of all first offenders are young men.

I once wrote to Superintendent Brockway of Elmira Reformatory, whom I regard as one of the best informed penologists in the United States; I asked why so many young men are sent to prison rather than men of maturer years, and he replied: "Young men between the ages of sixteen and thirty are the most pushing, vivacious, alert, wideawake and daring." But though this reply was not as satisfactory as I should have liked it, it explained much. I believe there are times when temptations to commit crime are greater than at others; for example, when one has been idle for a long time, young men who live in idleness, or have no trade, or are out of employment, or during the time of financial depression, or when under the influence of liquor, or when one has become improvident; of course, certain associations promote crime, such as bad company, bad books, bad amusements and bad homes; still young men are the first victims on all such occasions.

Among the great generators of crime to-day, among young men, I regard the gin mill, the pool room, the dive, the play house and the vile literature that gives its readers a detailed account of the daily murders, robberies and other crimes as the worst.

I am satisfied the Dime Novel and other yellow covered books are crime producers and generate criminal instincts. We have seen men who have become criminals in heart and mind by absorbing criminal ideas in bad books and papers. After reading the hairbreadth escapes of Jesse James and other noted desperadoes, or how some stage coach or express train had been "held up" by Western bandits, the mind becomes impressed, fear of consequences is driven away from the conscience, and the individual is ready to commit any kind of deed.

Hundreds of young men who are serving time in Elmira and Sing Sing to-day, lay the beginning of their downfall to bad books and papers that demoralized their nature. Modern journalism takes a hand in ruining young lives; for example, when a murder or robbery has been committed every detail is furnished by some of the morning papers. The ghastly work is gloated over, so that those who are morbidly minded, are for the time being hypnotized. The papers usually make a hero out of the criminal and hold him up before the people as one to be emulated, rather than shunned. Under such circumstances it is not to be wondered at that young men become criminals.

Thousands of young men work in this City as clerks, bookkeepers and salesmen in stores and offices. In most cases the salary is very small—enough barely to live on. Some of them, however, insist on going to the theatre and other places of amusement. Then they enter society, not necessarily what is called the “four hundred,” but society that is above their own social standing. They have an insane desire to dress like millionaires, and as they cannot do this on the small salary they receive, they feel compelled to steal their employers’ money to keep up a false appearance.

Many young men are in prison because they stole money to “gamble on margins.” For a time they used their own small salaries, when that gave out they forged a check or raised the figures on which to secure ready money. They tried to get rich quick.

There is the case of a young man in Jersey City who was arrested while he was being married, after having stolen from his employers \$6,000. The marriage ceremony and the entire occasion looked as if he belonged to a royal family. The young man was a broker’s messenger on ten dollars a week. His work was to carry the daily balances to the Clearing House. On his way to that institution he was able to change the figures on the balance sheet and pocket the money. In a year he had over six thousand dollars in his own name. He is now in prison for his crime and has long since discovered that “The way of the transgressor is hard.”

Another young man who was the assistant teller in an uptown bank stole \$40,000 and the only excuse he gave was that others were doing the same thing. He afterwards confessed that he had to do it in order to keep up “style;” he lived like a millionaire in fine apartments on the upper west side; his wife dressed in the best furs and jewelry that his ill-gotten gains could furnish.

Another young man stole over ninety thousand dollars from a city institution and fled to parts unknown. When an investigation was made it was found that he had lived in an elegant apartment on the West Side and besides kept a team of horses and a woman whose diamonds were a marvel to the community.

Another thing that imperils the prospects of the young men, is bad company. The old saying is still true, “A man is known by the company he keeps.” “He that walketh with wise men shall be wise; but a companion of

fools shall be destroyed.” Every self-respecting young man should shun the idler, the loafer, and the skeptic. During the past few years, I have asked hundreds of young men, whom I have met in prison, what led them into crime, and they invariably replied, “*Bad companions.*” When the police of New York are asked to look for law breakers, they usually find them among the gangs of loafers and hoodlums that hang out around the saloons and other vile dens in the city.

There are five hundred thousand young men in New York who at present seem to be beyond the pale of the churches and the Young Men’s Christian Associations. But they are not hopeless, nor are they beyond the reach of kindness and the gospel of Jesus Christ. But there seems to be no particular agency at work trying to reach this class before they have become tramps and criminals, except the rescue missions. It is true there is an eternal struggle going on between good and evil and it is becoming more intense every year, but the church should take part in it and seek to save the young before they become law breakers.

Once upon a time the Young Men’s Christian Association was a moral force in the community and aided young mechanics and store keepers and clerks to rise to independence, but not now. They are now working mainly to reach rich men’s sons. In some Associations rich young “bloods” go there simply to play pool and when the place is closed at night retire to some gin mill where they can finish the game. But what about the tens of thousands of young chaps who hang around the gin mill, simply because they have no money to pay the steep price for a membership ticket in the Y. M. C. A. or respectable church club?

Would to God some Andrew Carnegie or Morgan or even a John D. would put the money up to erect a half a dozen of such places for poor but honest young men? Make them like the Cooper Union with a gymnasium attached. Serve meals at cost, have an employment bureau, throw out a shingle inviting all young men to come in without respect to race or creed. If you speak to some of these young men about the twentieth century church, they will swear at you. You know the Church is closed as tight as a clam six days in the week. What some of these young men want to see is persons that love God and their fellow men, and then show it by helping them into a better life.



## CHAPTER XIX

### OUR POLICE GUARDIANS

This is a practical age, and the people demand of their servants, the Police, practical up-to-date methods in the prevention and suppression of crime, and no matter what other virtues our civic guardians may possess, the old adage that "Prevention is better than cure," will always remain the true motto by which our police will be judged as the real protectors of our city.

Under the bi-partisan Commission which controlled the Department for many years, the practical work of the force was intrusted to an experienced officer known as the Superintendent. This man knew every detail of the department and could not be deceived by any one, as he grew up with the system.

During the past fifty years New York has had some of the brainiest and shrewdest of Superintendents, but they could not bring about needed reforms because of the controlling power of politics. They were Superintendents only in name! The entire inefficiency of the police the past fifty years must be laid to politics and graft. Rid the Department of these two excrescences and you have one of the best police systems in the world.

During the past year the sickening game of politics has been played to an excess never before known, so as to keep in power for four years more a gang of mean grafters. How long it is going to last no one can tell.



From "Harper's Weekly." Copyright. 1909, by Harper & Brothers.  
Police Commissioner Baker. Appointed July 1, 1909.

It is an undeniable fact that for forty years or more 300 Mulberry Street has been the "happy hunting ground" for politicians of every creed. Some went there to exercise the power of a "pull," while others had axes to grind. Here the ward "heeler," in the language of the Roman Tacitus, "could exercise the power of a king with the temper of a slave." And often removed faithful officers who would not do his bidding. It is not a great while ago when if a policeman dared to do his duty by arresting a saloon keeper, a gambler or a dive keeper he at once became a marked man. Some politician at once became his Nemesis and "for the good of the service" had him removed among the goats in the upper Bronx, or, since the union of the five boroughs, he might be sent to Far Rockaway or even to Staten Island. If, on the other hand, he wilfully evaded his duty as a policeman his superior might prefer charges against him and if found guilty he would either be fined or dismissed from the service. The life of the faithful officer,



therefore, has been a hard one. He was like the man who was between the Devil and the deep sea, when he did his duty he was persecuted, when he did not, he was “broke,” provided, of course, he had no “pull.”

The Lexow Investigating Committee showed that many police officials from Commissioners down to patrolmen were in the business for “graft.” In those days nearly all promotions cost money. An inspectorship meant a fortune for some man, a captaincy cost as high as \$20,000 and even higher. But the bi-partisan Commission was mainly responsible for this shameful corruption. Many high officials were involved in the scandals, while the rank and file were more or less affected. It is our firm opinion that if the police were protected in the line of their daily duty, freed from the domination of the ward “heeler” and given to understand that they could be promoted only on the ground of efficiency and meritorious conduct, no body of men in the world would be more faithful to the public interest.

The result of the Lexow investigation was that nearly fifty Police Inspectors, Captains and wardmen were indicted for bribery and other offences against the law, but only one man suffered imprisonment. All the others fought for vindication in the Courts and succeeded in having the indictments in every case dismissed.

It is a foregone conclusion in the minds of those best able to judge that the man who is to rightly control the New York Police must be one of their own number, an experienced officer, paid a good salary so that he may be honest in his relations to the City Government, and just to the men under him. Indeed, the only way to keep the police situation within proper bounds is to put the entire force in the hands of a practical, level headed honest man. Give him a free hand and hold him responsible for keeping the city clear of crime. Then let this official put the crime of the city up to the Inspectors, holding each of them responsible for his own district. In turn let the Inspectors hold each Captain responsible for the condition of his own precinct. When the Captain of the Precinct finds that he cannot shift the responsibility on somebody else he will do his duty or get out. Only in this way shall we have real police efficiency.

Since January 1900 the police of Greater New York have been in charge of single-headed Commissioners; each in turn ruled the department, viz: Ex-Senator Murphy, Col. Partridge, General Greene, ex-Congressman

McAdoo, General Bingham and Commissioner Baker. They were all good men in private life but some were sadly deficient in the experience that pertained to police matters. Each Commissioner made serious mistakes from start to finish which would not have taken place had he been familiar with the routine of the department. And each Commissioner in his turn complained that he had been grossly deceived by the higher officials of the Department when he tried to bring about any lasting reforms. Had these men been practical policemen it would have been impossible to have deceived them.

If you put an inexperienced man in charge of a railroad or a large factory in two years it is more than likely that one or both will be in the hands of a receiver. And every time you put an inexperienced outsider in charge of the Police Department he will fail utterly to do the best work.

On the first of January, 1909, the Police force of Greater New York consisted of 1 Commissioner, 4 Deputy Commissioners, 17 Inspectors, 25 Surgeons, 91 Captains, 627 Lieutenants, 585 Sergeants, 8,239 Patrolmen, 70 Matrons, 194 Doormen, together with 10 others who are classed as telegraph men and boiler inspectors, making a grand total of over 10,000 in the Department.

During the past year or two Commissioner Bingham asked for several hundred men and \$50,000 a year for a Secret Service. It goes without saying that these Secret Service men would be used not only to watch some of the men now in the Department, but the blackhanders, anarchists and other criminal conspirators that hang around the city. But it is not more policemen the city needs as much as the system thoroughly reorganized.

The Parkhurst Society with a dozen of men has often been able to do more for the city than a whole platoon of policemen.

There is room in New York for hundreds of plain clothes men, to deal with certain kinds of crime, like the Secret Service men of the United States Government. It is not necessary to keep policemen in uniform patrolling the city. Much more crime would be discovered if they went about in citizens' dress. We would like to suggest to the Commissioner the propriety of selecting a hundred strong-minded women detectives with full authority to make arrests, and putting them in those localities that are now infested with

the worst female characters. We believe before long they would put such women crooks out of business.

## The Policeman and His Work

The work of the New York policeman may be briefly summed up as follows: He is an enforcer of the law, a protector of society, a judge and jury to settle scores of cases that must be decided offhand without a moment's hesitation, a preventor and detector of crime and a suppressor of lawlessness and violence. In his daily duties he removes obstacles to good order, stands for the liberty, peace and security of the citizen and in general looks after the moral welfare of the people.

More than that, the policeman should know the character of every gin-mill in the Precinct, the disorderly houses, the gambling hells, if any, where the crooks hang out, and the suspicious characters, who will need continual watching, to whom he should be a constant terror. All of which means that it will be necessary for him to patrol his post faithfully, otherwise he will not know these things.

The law gives him vast discretionary powers, which on the one hand involves personal liberty and guarantees prompt measures of relief in cases of emergency; yet his work is two-fold—administrative and judicial—to enforce the law and if possible prevent crime.

One of the main reasons why grafting and other abuses continued so long in the New York Police Department is on account of the “pull” that certain ones had. The policeman with a “pull” has been known to neglect his duty in a most shameful manner and when called to account could snap his fingers in the face of his superior. As long as the District Leader is a power at headquarters, all the offending policeman has to do is to “make it right with him” and he in turn sees the man-higher-up of his own party. Sometimes an officer received a “make-believe reprimand” but no more. The hard and fast discipline of the department was only for the man who had no political friends.

The total police appropriations for 1909 is \$14,452,028.85 besides \$400,000 for pensions, which makes the sum total expended on the Police of Greater New York for the present year \$14,852,028.85.

The sum total of the Police work in this city for the past year is as follows:

|                                             |         |
|---------------------------------------------|---------|
| Whole number of arrests in Greater New York | 244,822 |
| Convictions                                 | 140,904 |

Of the 104,000 discharges, 84,381 were liberated on the preliminary examination, which clearly shows that they were innocent of the charge or charges preferred against them. These outrages occur all the time in New York but would not be tolerated in Russia or Central Africa. According to Commissioner Bingham's report in my possession there were 25,209 arrests for felonies, but only 6,099 convictions. This shows that 19,110 crooks got clear. That is to say, the crimes were committed but the crooks slipped away. Any one who will carefully examine the report will see at a glance that by far the larger number of arrests were for minor offences. Push cart peddlers are arrested daily for the crime (?) of standing longer than ten minutes in one place. And a multitude of boys for playing ball on the street, but the unterrified criminal remains at large.

On account of some differences of opinion between Mayor McClellan and Commissioner Bingham over the Duffy case, the Mayor ousted Bingham on the last of June and put in his place Deputy Commissioner Baker of Brooklyn. Commissioner Bingham may have some peculiar ways about him but other than that the common opinion of the best people in every grade of life is that he was a fearless official, and more than that he raised the standard of the police department higher than ever it was before. He was also an absolutely honest man. In this opinion we believe we have some of the best men in the city on our side. And we believe his removal was another example of vicious politics.



## CHAPTER XX

# THE DETECTIVE BUREAU

The main spoke in the wheel at the Central Office is the Detective Bureau. Less than sixty years ago this branch of the service was organized as a separate and independent Bureau.

Sergeant Lefferts was one of the earliest commanders of the Detective Squad. This was in 1857, and he held it for one year. Headquarters was then on Broome Street. After Lefferts, Captain George W. Walling, afterwards Superintendent, commanded the City Hall Precinct. He took charge of the Detective Bureau and held it from 1858-60. Then Chief John Young took charge of the Bureau from 1860-67. He was assisted by Sergeant Lefferts. After him came Capt. Jas. J. Kelso, who held it for three years. He was followed by Capt. James Irving, who was in charge from 1870-75. After him came Captain Kealy who held it for four years.

In 1880 Inspector Byrnes took charge of the Detective Bureau and held it twelve years. This was longer than any other man. During this period he completely reorganized it, putting it on a more scientific basis. Byrnes was followed by Captain McClusky, Steven O'Brian and Titus, each of whom held it in turns. In 1901, when Commissioner Greene was made head of the Police Department by Mayor Low, Inspector Brooks and Captain Langan were jointly in charge of the Detective Bureau, but the former held it only a few months.

In an interview with a well known Inspector, who is one of the best of our city detective experts, I asked him what were his methods in detecting crime. He replied, "I have no methods but hard work. Each case must be a law to itself. We have no cast iron rules for discovering crime." Then the Inspector went on to say, "When a crime has been committed we consider

first of all the underlying motives. If it is a burglary or a 'hold up,' it is more than likely it was done for plunder. If a murder, it was doubtless done for revenge. If it is a case of much importance we put a couple of good men upon it. Follow up the clues, search the pawnshops, watch the haunts of criminals and work on till the property and crooks are discovered. Careful work always brings good results."

"The detective methods in vogue fifteen years ago," said the Inspector, "would be useless to-day." "With the evolution of the criminal there must needs be a change in the detection of crime. Here is a letter from a fellow in State Prison," said the Inspector; "this fellow is willing to 'squeal' on his 'pals' who are on the outside, provided he gets his liberty. Of course we cannot promise him any such luxury, it is the Governor's prerogative to pardon, not ours."

The twentieth century criminal makes a business of crime. A man of this character made bold to tell me that he had been a thief for nearly forty years and he meant to be a thief to the day of his death. He refused to work for a living. Pickpockets and thieves of the lower order make a business of following circuses, county fairs, picnics, races and conventions, and they always make a good haul at such places. A few days before the Dewey Parade in this city, September, 1900, which drew together from one to two hundred thousand strangers, Captain George W. McClusky, then Chief of the Detectives, captured nearly four hundred well known crooks in his dragnet and locked them up till the "show" was over. In this crowd there were *tramps, pickpockets, sneak thieves, second story men, country thieves, professional criminals* of every ilk, including the irresponsible thief. They were held in prison for a few days as suspicious characters. After the crowds left the city they were discharged. While locked up in the Tombs they were in an ugly mood and abused every one in sight.

If the direct perpetrators of a crime cannot be found in the ordinary way, then our modern Sherlock Holmes must fall back upon "clues" and follow them up to their legitimate end. But if there are no clues, then the brainy detective must work out a satisfactory solution of the mystery for himself and solve it. The method of Thomas F. Byrnes, who had been long and successfully connected with the New York City Police Department, was to bring the suspected criminal back to the scene of the crime for sake of the startling effect. If an atrocious homicide had been committed Chief Byrnes



usually took the murderer back to the place where the deed was done, and then watched him. If a burglary, and the property found, it would be placed before the suspect and be watched.

Criminals are made of different classes or types. The beginner in crime is often a petty offender. He steals small sums although never arrested. The scale is a descending one, rather than ascending. Few men leap over a moral Niagara all at once; they are going down hill gradually for a long time before the law gets hold of them. After a few years the man who was once a greenhorn plans crime like a general who plans a campaign. It is then that the Department needs an expert Sherlock Holmes to capture them.

The history of a crime is often full of thrilling experiences and when unraveled by a keen-minded detective and all the details of the plot laid bare, the final revelations show it to be the work of a master mind. The great crimes of the past hundred years were not the work of ignoramuses but of men capable of commanding an army. They were brainy criminals.

In the Old World many of the best detectives when searching for criminals disguise themselves as cabmen, truckmen, and collectors of old clothing. They also work in factories, foundries, potteries, coal mines, or indeed, any place where they can secure a clue.

Detective McCleevy, of the Edinburgh Police, became a rag collector in order to catch a murderer. He went along one thoroughfare for several days crying, "Rags, rags, rags." Then he entered a dark alley where the murderer was hiding, and who offered him a bundle of bloody clothing to carry away. After this he secured his man.

Some years ago the Pinkertons took a tip from the Old World detectives and put men in the coal mines of Pennsylvania where they lived with the miners and finally captured the whole band of Molly Maguires and put them out of business.

The Scotland Yard detectives of London not only work among various toilers in their efforts to discover crime, but keep in touch with 30,000 crooks, many of them being ticket-of-leave men. In this way they know where they can be found when wanted. The movements of those who continue in crime are watched night and day. When a crime is committed an

old crook is arrested and unless he can prove a clear alibi he must stand for the job.

But the best and cleverest detectives are said to be the French, if we may judge from results; and the reason for this is, they keep a register, not only of all criminals in France, but also of their plans, aims and movements. A few years ago the National Chief of Police in France had the names of 20,000 depraved characters who spent their lives in crime. At that time there was less crime in France than in any other part of Europe. If the police will keep themselves informed of the movements of criminals they will know where to find them when wanted. This is the secret of the best police service.

The present head of the detective Department is Inspector James McCafferty. He has risen from the ranks and owes his present position to Commissioner Bingham, who had confidence in him by making him chief detective. Mr. McCafferty calls his Bureau the greatest detective system in the world. This is certainly not because of the number of insolvable crimes it has cleared up in the past few years. The fact is hundreds of murders, hold-ups, atrocious assaults, robberies, burglaries, larcenies and almost every crime on the calendar remain unsolved. In all seriousness, the people have a right to ask, what is the matter with the best paid police force in the world? Why don't the police arrest the criminals and put them in jail? That is certainly a fair question.

Some time ago Coroner Julius Harburger passed some scathing remarks on the Police department. He said he was tired of sitting in his office and waiting for the police to arrest murderers now at large. Then he cited the case of Elsie Sigel, Samuel Bersin, Joseph Pogano, the unidentified woman of Thirteenth Street, and Joseph Juliano and Michael Millelo, who were killed by "Jack" Vigarato, a saloonkeeper of Harlem. He told also of a woman in whose home on West 110th Street a girl died after an operation. Reminded that he had recounted only six murders, the Coroner remarked:

"I can't think of the other two. They come so fast it's hard to keep track of them."

"But have the police no clues in all those murders?" the Coroner was asked.

“Clues?” repeated Mr. Harburger, “No, not even a suspicion. They ‘haven’t got anywhere,’ as Inspector McCafferty says.

“While I am about it, I might just as well tell you that there have been 130 murders in the last two years in which the perpetrators have escaped. Put that down. I say there have been 130 of them. Doesn’t it seem fine for a city of this size to have a police department that can’t catch a murderer unless he handcuffs himself and gives himself up?”

Then the Coroner remarked: “In the last twelve months more murders have been committed in this city and more murderers have escaped than in any other place on the face of the globe. Let the police explain that, if they can.”

## The Stool Pigeon

An important link between the police and the criminal is found in the stool pigeon. The old saying that "It takes a thief to catch a thief" was never truer than in its application to what the ward detective calls "the stool." When a uniformed or plain clothes policeman is assigned to a precinct the first and foremost thing he does is to find out "What he is up against." In other words, he sets himself to study carefully the situation; he finds out who are the thieves, pickpockets and all round crooks in his bailiwick. Then he seeks out some one of this class he can trust, and forthwith makes a confidant of him. Indeed, he enters into a regular agreement with the "stool" of the district or ward that in return for "inside information" on crookedness he will give him full protection and even immunity from arrest. The work of the stool pigeon is to associate with criminals as a sort of spy, so as to find out all that is worth knowing and even assist them in crime, then report to the ward detective.

When a burglary has been committed that baffles the police, one or more stool pigeons are put on the case and are paid for their services. If they cannot locate the crooks or the gang, perhaps they can tell where "the goods" may be found and by their help the police are able to recover wagon loads of "loot," the accumulation of many robberies. Some time back in the seventies of last century Thurlow Weed, who exerted a commanding influence in the counsels of the Republican party second to none in his day, was riding in a Broadway 'bus and had his gold watch stolen. Mr. Weed deeply deplored the loss of his time piece which had been given to him as a present by some friends. He communicated his loss to the police. The pawn shops were searched, but it could not be found. A score of stool pigeons were implored to find it without delay. Then one of them found the man that stole it and requested him to return it at once to the police, which he did, after which the police were highly commended for their smartness.

Some time ago a noted forger and counterfeiter was sent up the River for five years. He had been doing "crooked" work for some years in this city and would doubtless never have been detected had it not been for a "stool pigeon" with whom he had been in prison in former years, whom he had

befriended not long before by giving him meals and lodging when out of employment. The stool pigeon reported everything to the police and the old man was caught “red-handed.”

As a rule there is no honor among thieves. One old criminal who is also a well known “stool pigeon” is in great demand by the police when out of prison, but he is hardly out before he is back again. He knows the criminal classes well and is able to furnish the police with first class information on crookdom. And they in turn see that he is not sent to State Prison but to the penitentiary for short terms. He has sent so many men to “do time” by the information with which he has furnished the police that if they found him in State Prison they would kill him. A traitor, a spy and a spotter are always detested by criminals. It is true, stool-pigeon ethics is not of a high order, but what else can the police do? In resorting to such expedients they simply fight the Devil with the Devil’s own weapons. Without this a large number of the crimes that are committed would never be detected.

Ex-Policeman Bissert who had been sent to Sing Sing by Recorder Goff in November, 1901, was detested by scores of crooks whom he had been instrumental in sending there. After reaching Sing Sing Bissert became a marked man. Many of the old time crooks knew him well. When the Appellate Division decided that he should have a new trial and had returned him to the Tombs, he made the remark to one of the desk keepers, that he would rather go to *hell* than go back to Sing Sing again, as his life was made miserable all the time he was there. One who was then serving a sentence afterwards informed me that whenever Bissert showed himself in the shops, the dining room, or in the yard his associates took a delight in “jeering” at him and calling him all kinds of profane names!



The Newest, Most Modern and best equipped Police Headquarters in the World. Centre Street, New York City.



## CHAPTER XXI

# THE ROGUES GALLERY AND THE THIRD DEGREE

One of the most interesting departments of the Detective Bureau is the Rogues' Gallery. This branch contains the records of nearly a hundred thousand criminals. It is only within recent years that the police have begun to realize the importance of this department of the service. Not only do they photograph and take measurements of all criminals, but since the time of Sergeant Thomas Adams they preserve clippings from all the newspapers which in any way throw light upon the career of a criminal. These clippings are kept in large envelopes, fastened together by rubber bands.

The Clipping Bureau at Headquarters has for some years been in charge of two well known lieutenants, Sheridan and Allen, who seem to have a special talent for this kind of labor. They seem to be walking cyclopedias of criminal information as far as the newspapers are concerned.

One or the other of these specialists is on hand every hour of the day, assisting the men of the department in giving clues, as well as collecting records of beginners in crime. Frequently these records are loaned to the Judges of Criminal Courts before sentence is passed on old offenders. This branch of the Bureau is over thirty years old, and is of immense importance to the department.

Whenever any of the two or three hundred officers of the Detective Bureau make an arrest, in or out of the city, the prisoner is forthwith taken to Police Headquarters, where his measurements and picture are taken for the Rogues' Gallery. And all this is done before they have found out whether he is innocent or guilty. Indeed, it frequently occurs that the pictures of innocent men remain in the Gallery for years. Once there, they



are not removed, unless by order of the Supreme Court. But if an appeal is made to the Commissioner of the Police, he will remove an offending picture if you can show that you were innocent of the crime charged against you, and were never arrested for a crime previously.

Up to the first of January, 1909, the total number of pictures in the Rogues' Gallery was as follows:

New York, 82,363; Brooklyn, 13,264; total, 95,627.

This besides over 7,000 finger marks taken from August, 1906, till same date.

According to the best judicial authorities, the police have no right to take the picture of a man accused of crime and place it in the Rogues' Gallery till after his conviction. For "mugging" Banker Jenkins, in defiance of Justice Burr's order, Captain Kuhne, of the Brooklyn Detective Bureau, was sentenced to thirty days in Raymond street Jail, and fined \$500 besides. The case was submitted to the highest court in the State, and last June the Court of Appeals decided that the sentence passed on the Police Captain was just. After a time, "mugging" contrary to law may become an unprofitable business.

The question as to the number of criminals in New York city is one of the most difficult to answer. The best that can be said is to offer an unofficial conjecture. We went to Police Headquarters and presented it to different men, but nearly all refused to volunteer an answer. One officer said: "If you mean by criminals those persons who have been in jail all the way from one to ten times, but who now enjoy their liberty, then there must be at least seventy-five thousand of such people in this city." But then this is only a conjecture. We have no means of knowing to an absolute certainty the number of criminals in New York.

During the fall and winter, when there are great social gatherings in the city, thousands of crooks invade Manhattan, and live at the best hotels. When they leave, they usually take with them enough money and valuables to last for years.

The curiosities of crime which may be seen in the museum of the Rogues' Gallery are worthy of careful inspection. These consist of dark lanterns, jimmies galore, sectional jimmies, and ancient and modern

jimmies, knives, dirks, razors, pistols, guns, gold bricks, burglary tools, skeleton keys and several hundred other things used by criminals, all too numerous to mention. Many of these things are kept in glass cases, and cannot be touched, but they show the ingenuity of the criminal mind in trying to overcome the modern barriers for protecting banks, counting houses, stores and Fifth avenue homes.

## The Third Degree

After a crook has been arrested and brought to Police Headquarters, and the authorities believe that he possesses evidence that will convict himself, or that he belongs to a “gang” of criminals that should be safely landed in prison without delay, he is forthwith put through the “third degree.” The men of the Detective Bureau make light of this star chamber inquisitorial proceeding for the discovery of crime, and say that it does not mean anything, but those who have passed through the experience have a different tale to tell.

When crooks conspire to defeat the ends of justice, all they have to do is simply to keep “mum.” If there are three persons in a burglary or safe-breaking job, as is often the case, and one gets caught, the other two pool their interests and secure him a lawyer.

As soon as the police have reason to believe that the man under arrest is concealing valuable information, he is taken to Police Headquarters on a short commitment. Perhaps they may put some wise “guy,” or “stool pigeon” in the cell with him to get him to make a damaging statement when he is off his guard. As near as can be learned from various sources, the “third degree” is in the nature of a rigid examination, perhaps like the torture which is still practised on “suspects” in China, Russia and Turkey, to draw out a confession of guilt, even where none exists. I asked several crooks to explain to me the nature of the third degree, all of whom claimed to have gone through the experience at different times. When I came to compare notes, I found they all told almost the identical story.

A man who spent more than two years in the Tombs on a murder charge was put through the “third degree” both in the Fifth Street Station House and at Police Headquarters. It is not customary to put a man through the third degree in the station house, but this man claims to have been an exception. The crook in question spent several nights in the cells in the Fifth Street House, and spoke from experience. On the morning of the day when he was taken to 300 Mulberry street, he said two plain clothes men took him from a cell in the basement, and forthwith boxed his ears and cuffed him unmercifully over the face for five minutes, or until he became greatly

excited and almost insane! After this, he was taken upstairs to a room, a veritable sweat-box, where he was “piled” with questions, one after another, for an hour, for the purpose, if possible, of making him contradict himself. All the answers he gave during this star-chamber investigation were taken down, and he was then compelled to sign, or else have his face and ears boxed a second time. In reality the signing of this document made him the author of a crime. In other words, the “third degree” is simply giving to a crook a most unmerciful cuffing and abusing, till his eyes are all discolored, and his face is covered with blood, and he is more silly than sane. This is done that he may confess all the details of his crime, and become an informer on those who were in the job with him. This method is the torture of the Orient, the thumbscrews of the Middle Ages, and is cruel and diabolical.

Central Office men have said that the third degree was one of Inspector Byrnes’ “hobbies,” as he resorted to it on all occasions.

When it began to leak out in 1884 that Jake Sharp had bribed the Board of Aldermen to transfer to his company the Broadway franchise, it was found most difficult to secure any evidence to connect the guilty ones with the crime. Inspector Byrnes, who was in the Detective Department at the time, devised means whereby he was able with the aid of some of his men, to entice one of the “boodlers” to a Sixth avenue restaurant, where the flow of wine unloosed his tongue, and where he admitted that he had sold his vote to Jake Sharp for five thousand dollars. Inspector Byrnes, who was on the premises behind a screen, hidden from view, had all the admissions taken down, and they were used to convict the “boodler” and send him to State Prison.

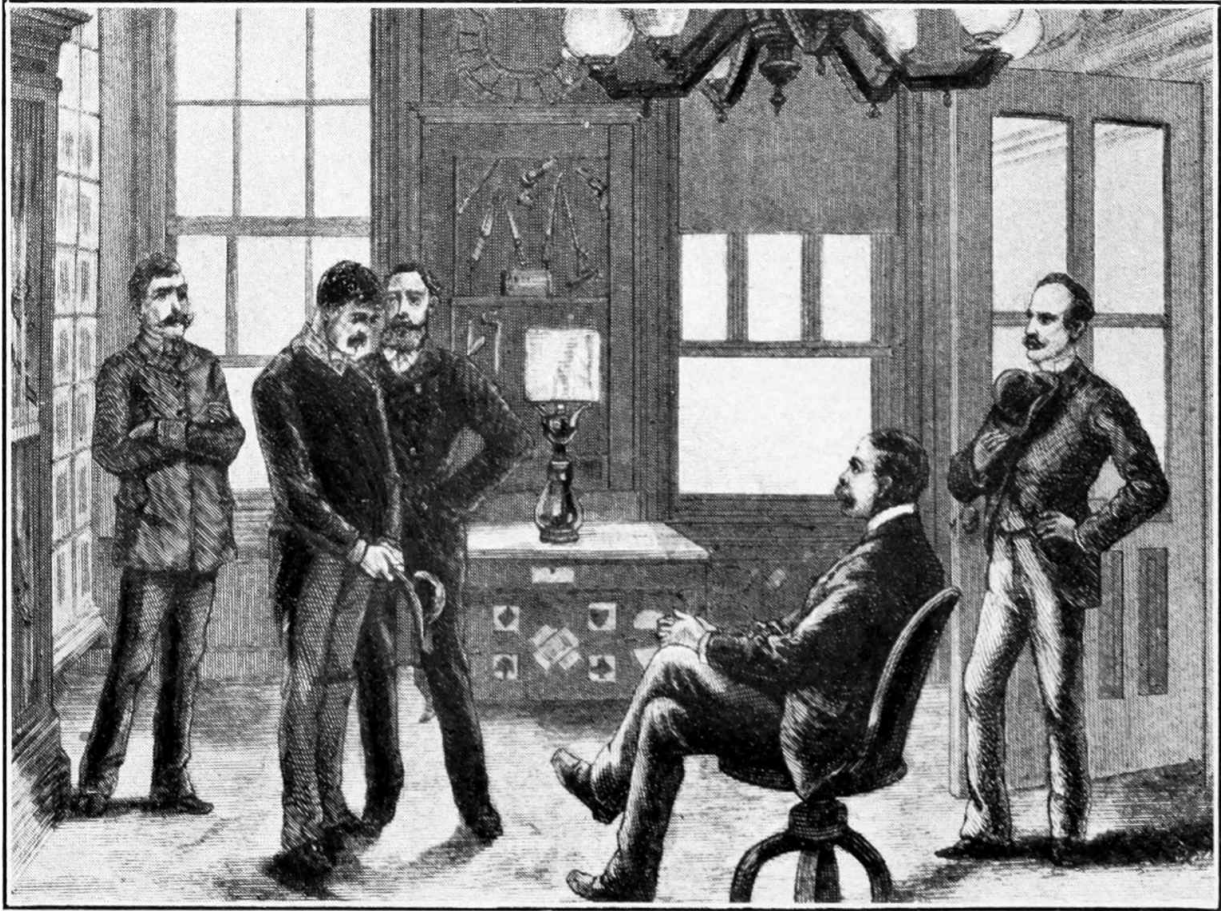
After this “boodler’s” arrest, and he was taken to Headquarters, Byrnes put him through the “third degree”; when he saw the answers and admissions he had made in the Sixth avenue restaurant in cold type, he broke down.

Whether the police are justified for the various uses to which they put the “third degree” in ferreting out crime, I am not in a position to state. When I asked a “cop” why they hit those fellows who passed through the “third degree,” he replied: “You know crooks are the worst kind of liars; unless

the police gave them a moderate cuffing, they would tell them a fake story which it would be a waste of time to listen to.”

Some men do not blame the police for a moderate use of the “third degree” in order to discover crime, but where to draw the line is a most difficult thing. Judging from Professor Munsterburg’s protest against the “third degree” in his book, “On the Witness Stand,” Germany seems to have a more diabolical thumbscrew system of the “third degree” than New York. Says the German professor:

“There are no longer any thumbscrews, but the lower orders of the police have still uncounted means to make the prisoner’s life uncomfortable and perhaps intolerable, and to break down his energy. A rat put secretly into a woman’s cell may exhaust her nervous system and her inner strength till she is unable to stick to her story. The dazzling light, and the cold-water hose, and the secret blow still seem to serve, even if nine-tenths of the newspaper stories of the ‘third degree’ are exaggerated. Worst of all are the brutal shocks given with fiendish cruelty to the terrified imagination of the suspect. Decent public opinion stands firmly against such barbarism; and this opposition springs not only from sentimental horror and from aesthetic disgust; stronger, perhaps, than either of these is the instinctive conviction that the method is ineffective in bringing out the real truth. At all times innocent men have been accused by the tortured ones, crimes which were never committed have been confessed, infamous lies have been invented, to satisfy the demands of the torturers. Under pain and fear, a man may make any admission which will relieve his suffering, and, still more misleading, his mind may lose the power to discriminate between illusion and real memory.”



Putting a Crook through the Third Degree at Police Headquarters.



## CHAPTER XXII

# THE CITY GANGS

For over sixty years the people of New York have been afflicted with mercenary bands of lawless thieves and hoodlums who are known to the authorities as "Gangs." The only justification for their existence is robbery, murder and revenge. They fight their murderous battles on the streets of the city, and during the melee assault and rob the people, after which they flee with the plunder. Whenever they get into trouble, the alderman, district captain or some other ward "heeler" comes to their rescue, and they in turn do good service for him on election day as repeaters, stuffing ballot boxes, and assaulting voters. Each gang is supposed to belong to some political party, who are able to wield considerable "pull" in time of trouble.

More than once they were responsible for a reign of terror in many parts of the city. They were known to the police as "gangs," perhaps on account of their clannishness, for whenever they participated in any local fight or riot, they usually stuck together and fought like tigers for what they called their own rights. It is more than likely that some of the gangs were bound together by an oath which placed each member under pains and penalties not to reveal their secrets. Whatever these oaths were, we are unable to say, but we hardly think they were as rigid as the oaths of the Molly Maguires or the Mafia?

The police records of the old New York gangs of fifty years ago, show them to be mercenary, corrupt and dissipated, and often revelling in riot and bloodshed; and when they desired to carry out their evil purposes, they did not scruple at robbery or murder. For years they have had full sway in the city on account of politics, but when their conduct became unbearable, and oppressive, and all irenic measures failed to break them up, the police were



appealed to, came upon them unexpectedly, clubbed the leaders, and sent many of them to prison for long and short terms.

The most notorious of these predatory bands was known as the Whyo Gang. They usually “hung out” in the vicinity of the Five Points, Baxter, Leonard and Centre streets. This part of the city was then known in police parlance as “The Bloody Sixth Precinct.” For nearly a hundred years, crimes of every description, including a large number of robberies, burglaries and holdups had been committed here. For nearly three-quarters of a century, the Sixth Precinct was known as the hotbed of crime, and the Whyo Gang found it a profitable field for their labors.

The Whyo Gang was made up of young pickpockets and thieves of the worst character, and many of them, if not all, spent years in jail. Two leaders of the Whyo Gang, Dannie Lyons and Dannie Driscoll, were convicted of the crime of murder, and hanged in the yard of the Tombs Prison. Lyons was executed August 21st, 1886, and Driscoll January 23d, 1888. The gang had robbed and murdered scores of inoffensive people on the streets of the city, whose untimely end will always remain a mystery.

“The Bloody Sixth” no longer carries the same reputation it did forty years ago. No doubt much that was said and written of it was not all true; nevertheless, it furnished more murders than any other five city wards. It ought to be remembered that the “Sixth” contains the Five Points, Mulberry Bend, the Criminal Courts Building, and the Tombs Prison, where so many “tough” characters are harbored? The population at the present time consists largely of Italians, Jews, Polaks and Chinese. It has a great many squalid tenements, low dives, grogeries, gin mills and several opium dens.

The Slaughter House Gang held forth in the Fourth Ward, and had its headquarters over a squalid gin mill at the corner of Water street and James Slip. It was run by a band of desperate characters, who terrorized the neighboring water fronts. Captain Allaire took energetic means to break it up, and succeeded only when he landed the piratical ring leaders in prison.

The Cochran Roost Gang held forth at the corner of East Thirty-sixth street and First avenue. It is said that this gang had pledged themselves to kill policemen on sight. They laid wait for young and inexperienced policemen on dark nights with bricks and stones in their pockets. They usually hid themselves in alleyways and flat roofs, and many sanguinary

battles took place between them and the police, in which they were usually worsted. Their headquarters were reached by climbing a broken down staircase or ladder, which they could hoist up with a rope, which led to an old shanty on the corner of First avenue and Thirty-sixth street; hence the name, Cochran's Roost.

Handsome Harry Carlton, the last man who had the "honor" of being hanged in the yard of the Tombs Prison, December 5th, 1889, prior to the installation of the Electric Chair in Sing Sing Prison, was known as one of the brilliant lights of the Cochran's Roost Gang.

The gang known as "The Forty Thieves" held forth at Forty-second street and Eleventh avenue. They had a local notoriety.

The Hell's Kitchen Gang had their headquarters on Thirty-ninth street and Eleventh avenue. They usually fought negroes with guns, while the negroes in turn fought them with razors. The negroes and whites are far from being friendly in this neighborhood, and many battles have taken place in recent years.

The Gas House Gang was on Eighteenth street, near First avenue.

The Poverty Hollow Gang and the Dead Rabbit Gang were both on the East Side, in the neighborhood of Thirty-fourth street and Avenue A.

The two murderous associations of recent times are the Paul Kelly and Monk Eastman Gangs. The former held out on Cherry Hill, while the latter had their clubhouse on Stanton street, near the Bowery. A noted police official of experience, in speaking of the many efforts to break up the Monk Eastman and Paul Kelly Gangs, said that when these murderous ruffians were arrested by the police and taken before certain magistrates, the "pull" they exercised was so great that nothing could be done to them. As long as these gangs existed, it was impossible to have an honest election in New York. In later years they belonged to powerful political organizations, and were used for the purpose of controlling the city and State elections.

A few years ago Monk Eastman and some of his "pals" were sent to Sing Sing for a term of years for assault and robbery. The organization is still in existence, but is quiet.

The other leader, Paul Kelly, died some time ago of wounds received in a street battle. On his death bed he refused to say who shot him, but he left it

with the members of the gang, when they come out of prison, to avenge his death.

The most recent criminal band that has sprung into prominence the past few years, is known as the *Five Points Gang*. During the hot summer spell they start out at night, robbing and assaulting East Side storekeepers, and people who are asleep around their doors. In one night they were able to get away with more than two thousand dollars. Several of the gang are now in prison, while many of the leaders are still at large.

Party politics is the one thing that fosters the Gang System in New York. As soon as the police arrest any of the gang leaders, they are aided in court by District Captains and leaders who have a solid pull with the Magistrate or Judge. After their discharge, they repeat the same lawlessness, until some person gets killed, when they are sent to prison.

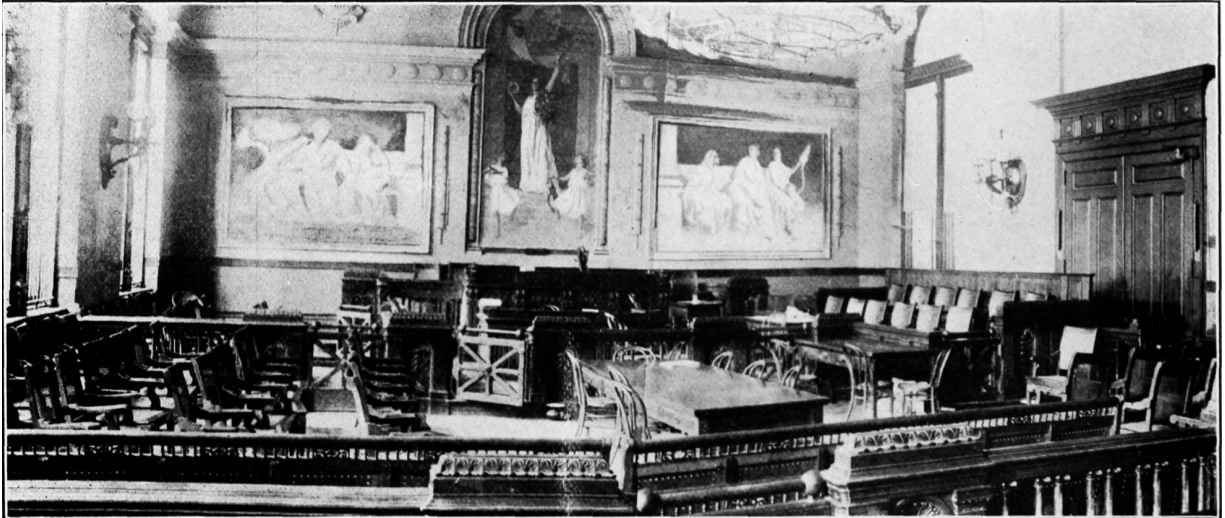


## CHAPTER XXIII

# CRIMINAL TRIALS AND THE GLORIOUS UNCERTAINTY OF THE LAW

Celebrated Cases—Speedy Trials for Homicides—Lax  
Conditions of Our Courts—Greasing the Machinery  
of the Law—Crooks at the Bar—A Noted  
Criminal Lawyer—Strange Sentences

Almost every year, New York witnesses a noted criminal trial, which frequently becomes a sensation in the community. For weeks beforehand the newspapers give an excruciating account of all the horrors of the case—involving the past history of the defendant; nor do they fail to drag in his father, mother, uncles and aunts, besides his business relations. When the day of trial comes, if the defendant happens to be at the bar for murder or some other noted crime, all the sickening details are re-hashed in the evening and morning papers. Sometimes the trial lasts from one week to three months, dragging itself slowly along, till everybody in the city becomes disgusted. All this, of course, is distinctively American, and as the people call for it, they are sure to get it. The New York editors are great literary caterers, and seem to know how to satisfy such depraved tastes. It has come to be an admitted fact that a criminal trial in New York is a most exciting experience, and for a time stirs the community, making it the main topic of interest at meals, clubs and society gatherings.



Criminal Branch of the Supreme Court on Centre Street, where the great murder trials of the past decade took place.

To watch the selection of the jury, and see panel after panel of intelligent men excused on the flimsiest grounds, is enough to make the Goddess of Justice open her eyes and weep.

During the past twelve years we have witnessed some of the most tragic murder trials in the history of the New York Bar, in which money and brains were used on both sides. When Roland B. Molineux, Dr. Kennedy, Albert T. Patrick and Harry K. Thaw were placed on trial, the courts were thronged daily with gaping crowds of men and women, breaking their necks to get a look at the defendants, and using all sorts of “pulls” to secure a seat in the court.

And as the jury is called and examined one by one, to read their real character as depicted on their faces when they take their seats to decide the fate of some weakling, a good judge of human nature can readily discern the result of the trial long before it is finished. Then, listen to the testimony that is presented; hear the lawyers wrangle for and against the prisoner, and, finally, watch the judge as he charges the jury, and then see the prisoner as he stands at the bar for sentence or acquittal. All this becomes a fearfully interesting piece of realism.

But the glorious uncertainty of the law leaves so many loopholes for the real criminal to escape punishment, and the innocent to get a term of

imprisonment, that some of the rulings made in our courts are tragic enough to make angels weep.

Some time ago, a rich murderer was tried in this city. His defence was one that no Court in the land recognizes, viz.: the unwritten law. During the trial, one medical expert said that the defendant suffered from “brain storms.” In a more recent murder trial, the only defence offered was “Confusional Insanity,” all of which is simply a foolish way of trying to “beat” the case.

We could name a dozen of well known characters whose crimes have been heralded all over the land, who were sent to the death house, but after a couple of years, when the Court of Appeals decided that they should have another trial on a mere technicality, returned to the Tombs, and after a few abortive efforts to convict them a second time, were liberated, as the important witnesses were dead, or could not be found. It is difficult to say wherein lies the trouble. But with our present elective system, we are apt to get some very poor material as Judges. They lack educational and experimental qualifications. Nor can we abolish the right of appeal because some judges make foolish rulings. With such judicial material on the bench, the right of appeal is our only safety valve, and must be retained.

There is a widespread feeling in our day that many trials are only a huge farce, and the “unwritten law,” “benefit of the doubt,” and “long-drawn-out hypothetical questions” in a large number of cases are allowed to defeat the ends of justice.

In regard to homicides, nothing would appeal to the good sense of the community after an atrocious murder has been committed more than to give the murderer a speedy trial and summary justice. It is all “humbug” to keep a murderer shut up in the Tombs from six months to a year before trying him. When he goes forth to trial, if the witnesses are not all dead, they have forgotten nearly all of what was once fresh in their memory. Let there be speedy trials and quick punishment for all kinds of crime. This will deter others from following the footsteps of evil doers. In murder cases it would be well also if capital punishment were abolished, and life imprisonment substituted.

In nearly all the advanced countries of Europe, in criminal trials, swift justice is the order of the day.

In Great Britain there are no long-drawn-out trials. Nor will the judges allow delays on mere technicalities. Each case is decided on its own merits.

As a rule, the presiding judge exercises full control over the case, and as a result everything is done with quickness and dispatch, and the higher courts uphold such rulings.

In speaking of the lax conditions of our courts, a recent writer says: "The machinery of our courts seems to be passing slowly and inevitably into disrepute. Processes wrought out by wise and noble-minded men for the protection of life and property and the dispensation of justice, have been seized upon again and again by unscrupulous pettifoggers, and every technicality of the entire legal procedure has been converted into a loophole through which some scalawag has escaped. The country swarms with unhung murderers, and with thieves who walk the streets at noon unmanacled, who ought to be wearing striped suits inside of prison walls. When murder trials drag their weary lengths through the disgusting weeks and months of the year, only to end at last in a new trial, or in a pardon issued by some sentimental fool who has reached the Governor's chair, is it to be wondered at that hot-headed men lose respect for statutes and judges and begin to talk of taking the law into their own hands? It is high time that our judges and lawyers were awake, and took measures to reform the present processes of criminal jurisprudence so as to make the punishment of crime both swift and certain."

It is a great mistake to shield rich criminals from their just desserts, as is sometimes done. Punishment should be meted out to all alike at all hazards, else it will have no terrors for the wrongdoer. Criminals must be impressed with the dignity and majesty of the law—no matter what is their social or commercial standing.

A few years ago, Roland B. Molineux had a hard battle for his liberty. He was always brave and optimistic, and believed all alone that in the end he would be vindicated. He must have spent about twenty months in the Tombs, and the same length of time in the death house awaiting the decision of the Court of Appeals. As I had always taken a deep interest in the young man, I called to see him in the death house. Here he manifested the same hopeful spirit he had shown all along. During his long confinement it looked sometimes as if fate was conspiring against him, but thanks to his



gritty father, who stuck so nobly by him, and the matchless eloquence of Governor Black, the undisputed Demosthenes of the New York Bar, he was finally acquitted. In this trial, which was fairly conducted, Governor Black was master of the situation, and conquered. From this time, either in civil or criminal trials, the Governor was the peer of any lawyer in the land. It must also be said that there was another gentleman, who filled no inconspicuous part in the vindication of Molineux, and that was Judge Olcott, who was a peacemaker and diplomat of the highest order.

## Greasing the Machinery of the Law

Frequently the prosecutor in a criminal court, under the cloak of having a duty to perform, proceeds to do it with the vengeance of a fiend, and the bias and prejudice of a persecutor, and perhaps with murder in his heart.

Nor are we without numerous instances where the prosecutor or some of his assistants have been known to “gear” the machinery of the law so as to convict some unfortunate of a crime of which there was absolutely no evidence, except what was manufactured for the occasion. In doing such work, the police can always be relied upon for a certain amount of help, which they never fail to give. Then there is in every community certain degenerates, including emotional and hysterical men and women, ready to swear to anything asked of them, and who spring into fame during a sensational trial, not to mention the professional juror who draws two dollars a day for sitting around the court house, who is largely dependent on the public prosecutor for his sinecure.

There are thousands of people who all their lives have been the victims of cruelty, oppression and malicious persecution, but real justice they have not known. There are innocent men in nearly all of our penal institutions, who have suffered because of false swearers. They may appeal to an Executive, even a righteous one, who has so many intolerable conscientious scruples on the question of pardoning crooks that the poor, friendless prisoner is allowed to rot in prison, so that the righteous Governor may make no mistake.

But the innocent have this consolation, that their case has been sent up to Heaven’s Court of Appeals, where in God’s good time a just verdict will be rendered in their favor.

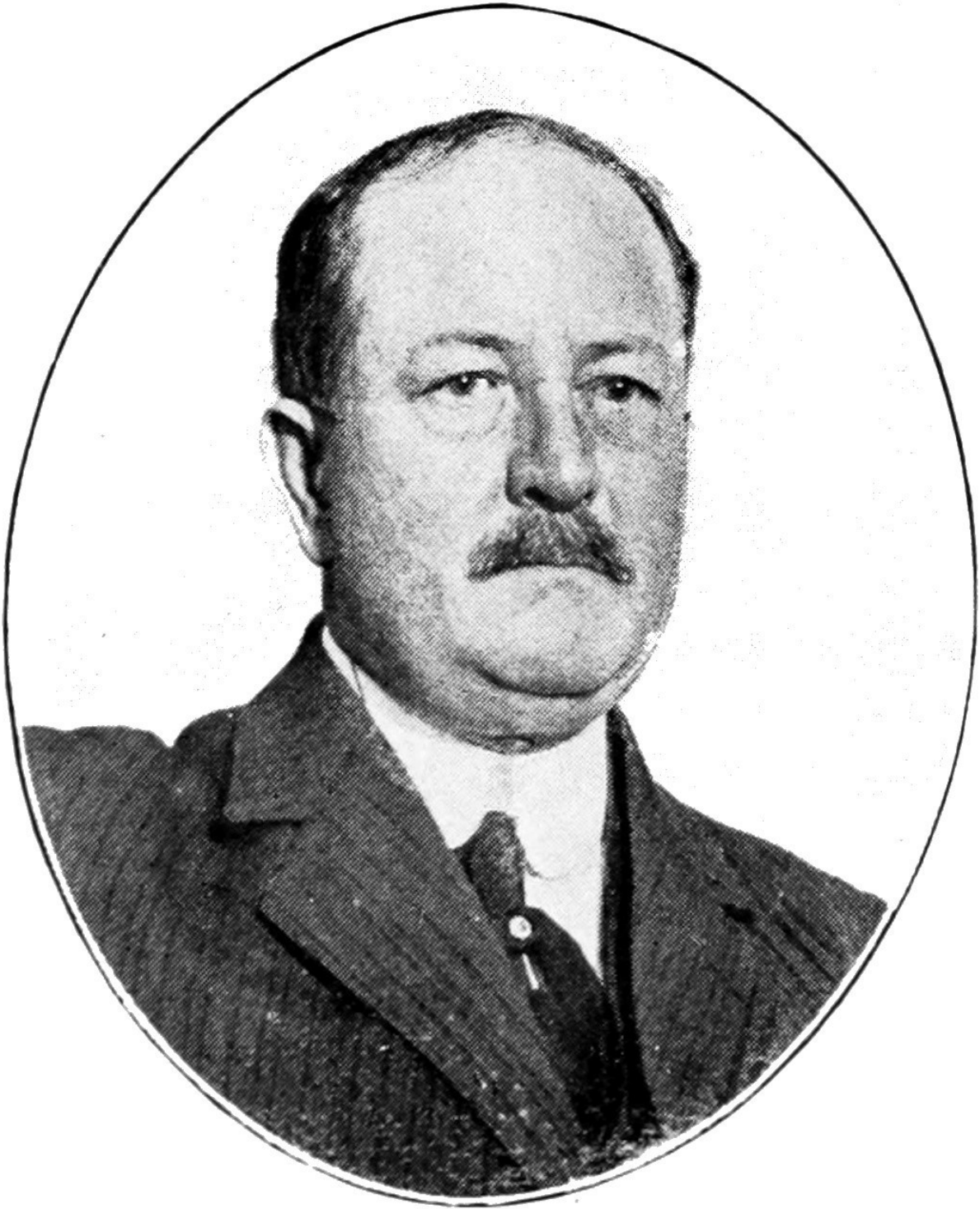
But what a crime it is to send an unfortunate to the Electric Chair, or State Prison for life, or even a limited term in jail, on manufactured evidence or opinions of an alienist, or a handwriting expert, who are given large fees for their testimony! Handwriting experts have made so many mistakes in the past that it is absolutely impossible to believe them. They may think themselves famous as interpreters of dots, curves, right angles

and horizontal lines, but they cannot positively tell whether John Doe or John Jones wrote the document, and human opinions are not evidence. It is certainly a miscarriage of justice to convict any man or woman on such absurd testimony. If you have plenty of money, you can prove anything you please by the use of such expert testimony, or disprove it. But without the most absolute corroboration, expert testimony is worthless.

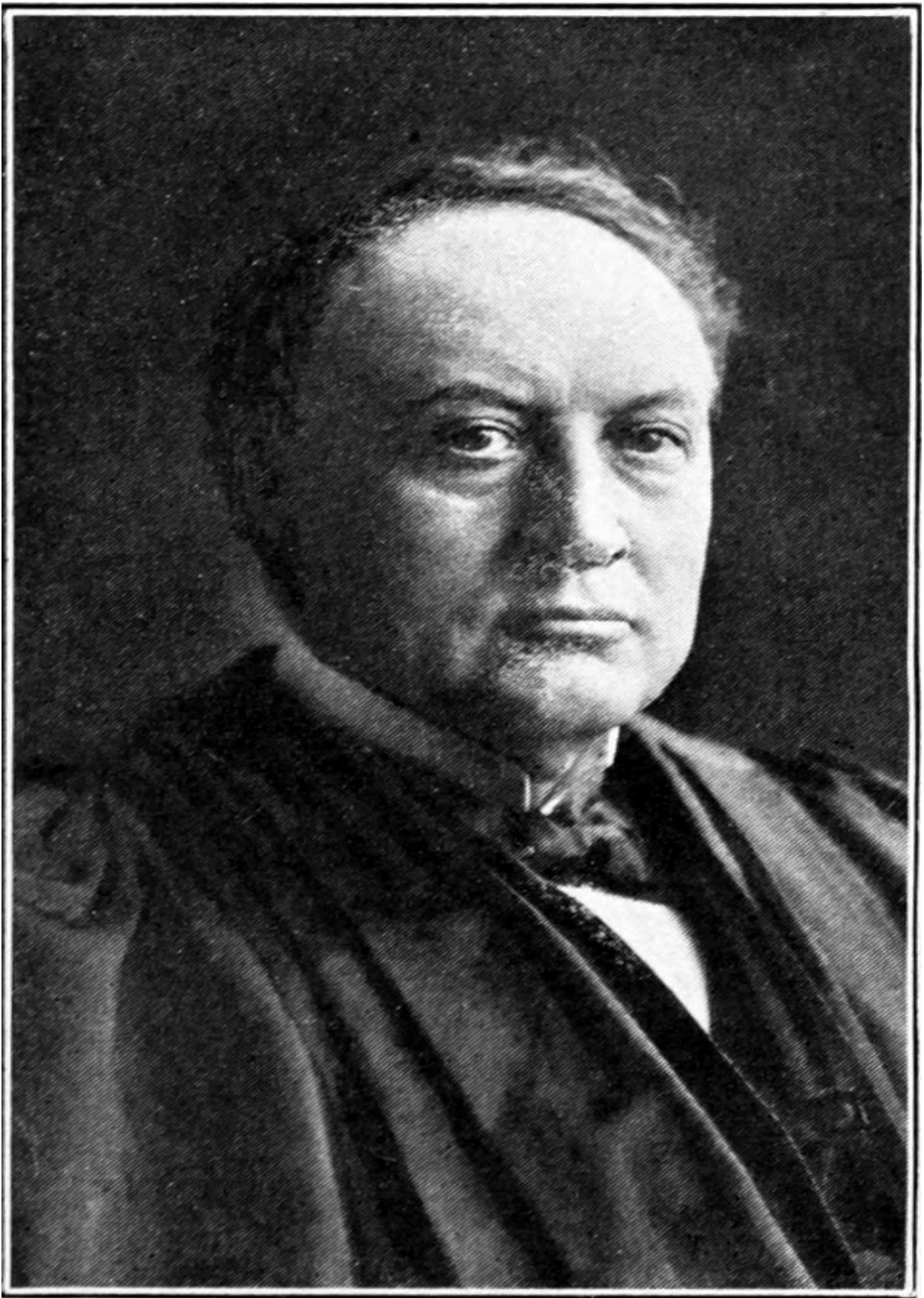
## Crooks at the Bar of Justice

The day of judgment for New York criminals usually falls on Friday. It not only brings many surprises, but hidden things long forgotten are brought to light. Between the day of a man's conviction and the day when sentence is passed, the officers of the law have an opportunity to look up his record, and report him in the true light to the judge. When he comes to the bar for sentence, the court has his life mapped out on paper. As soon as the judge begins to question the prisoner, his character for truthfulness is put to the test. Crooks who are as a rule notorious liars have poor memories. No matter how cumulative their guilt is, they are always innocent!

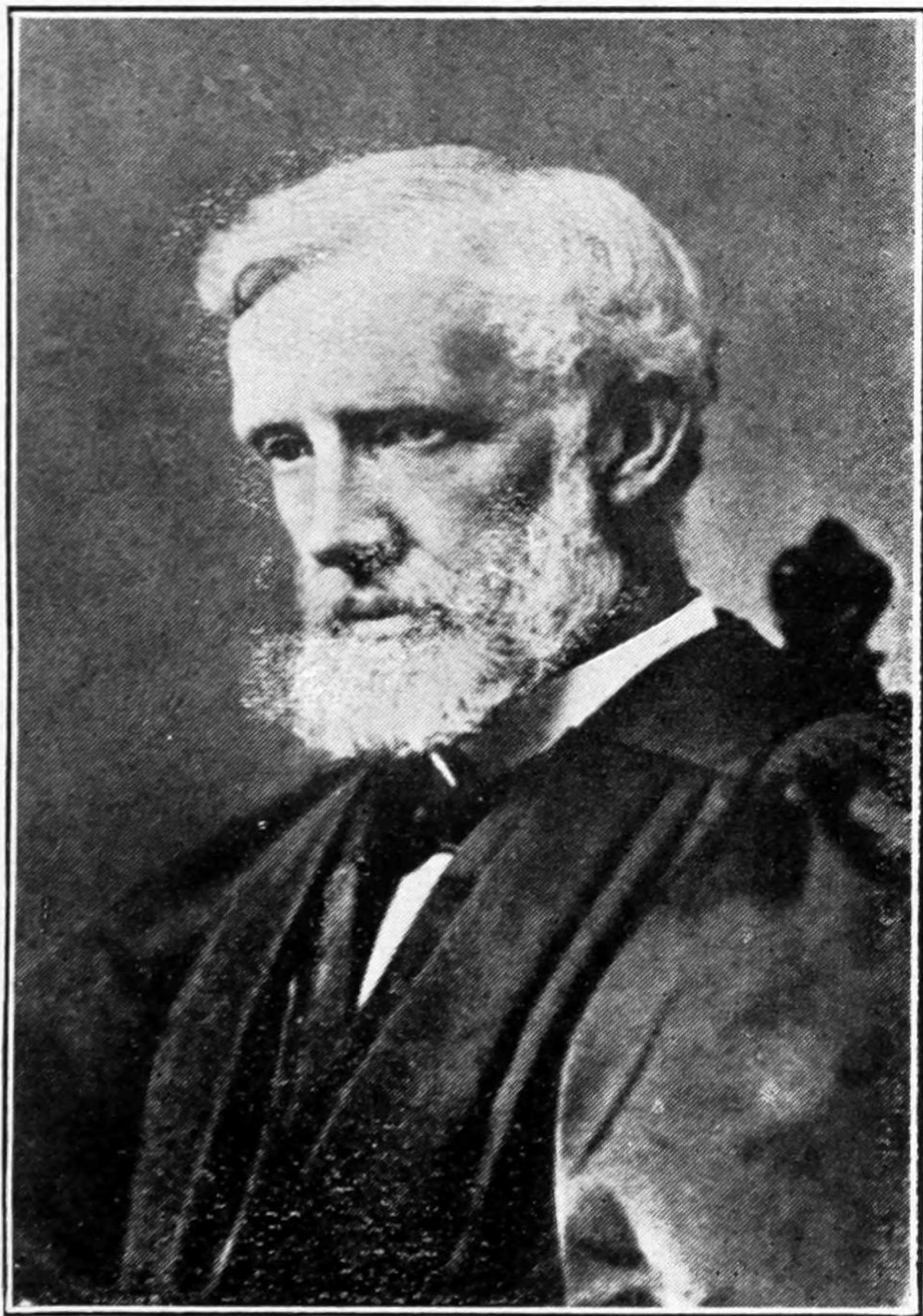
It is interesting to watch the proceedings when some scamp has come up for sentence. A good deal of stage work is done in Court for the effect it has on those present. The female relatives are on hand, weeping like steam engines, while the prisoner at the bar, who has made many promises, is as hard as a stone. Some of the men up for sentence are salesmen, confidential clerks and secretaries, who, when they lose at the races, steal big sums from their employers, and then have their friends "pull social and political wires" to get them out of their troubles; while the poor mechanic or day laborer who steals eight or ten dollars to keep the wolf from the door, has not a friend in the world, and usually gets a "soaking" when he comes to the bar. Perhaps his wife or mother has been to see the judge at his home, where she has created a "scene," but it has done no good; he has got to go to prison. Not long since, Judge Cowing, one of the best of the General Session judges (now retired), said to a young man who had been before him on two former occasions: "You have been in Elmira and Sing Sing, and here you are again. Where are you going to end up? Your mother came to my house last night. Poor woman, I felt



Hon. JOHN F. McINTYRE.  
A noted criminal lawyer



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Justice J. A. Blanchard





Justice J. W. Goff

sorry for her; but you show no feeling whatever. What's the matter with you? If I should grant the requests of friends for everyone who has a good mother, the people would soon ask me to retire from the bench altogether." This is true. The judge must send the young prodigal to prison to deter others.

Here is what another judge said of a young man who stole \$15,000 from an employer. The firm had only charged him with stealing a much smaller sum, but when they examined their books, they found it a small fortune. It was spent mostly on the races. His wife and three small children were in court, asking for clemency: "I have been on the bench," said His Honor, "many years, and have had many a sad case, but there is none sadder than the one I am now called upon to dispose of. The great trouble in such cases is that you are compelled to inflict punishment upon people who do not deserve it—I mean the wives and children of men charged with crime."

## Noted Criminal Lawyers

One of the most noted criminal lawyers of the New York bar for thirty or forty years was the late William F. Howe, better known as “Bill” Howe. I have often heard him plead eloquently at the bar, and with great success. Howe was a typical advocate, and put his soul into his client’s defence. He was humorous, pathetic and magnetic before a jury. When he understood the case thoroughly he became a powerful pleader. It is said that he frequently was moved to tears by his own eloquence, and was always able to draw tears from the most unsympathetic jury. He was called by a certain District Attorney “The Weeping Bill Howe.”

A story is told of Howe’s tears in connection with a case in which he appeared for the defendant, before Recorder-Hackett. Mr. Howe had just succeeded by his eloquence, aided by his tears, in obtaining in rapid succession the acquittal of several men charged with homicide. The Recorder was somewhat disgruntled. Howe entered upon the defence of a woman charged with homicide. She was seated with her child on her knees. While Howe was pleading for her acquittal, he was seen to scowl at his client. She gazed at him in blank amazement. Howe moved up closer to her and the baby. Suddenly the baby began to cry. Howe wept as the baby’s screams suddenly ceased. Recorder Hackett looked up with a smile and remarked: “Mr. Howe, you had better give the baby another jab with a pin.”

Stories are told around the Criminal Courts Building of lawyers who received retainers from well known crooks in the shape of stolen jewelry. A lawyer who used to be a frequent visitor at the Tombs defended a crook in return for a diamond pin which he had received for his services. After he had convinced the jury that his client was innocent, he wore the stolen pin in his necktie.

John F. McIntyre is one of the best of our criminal lawyers. He always puts up a strong fight for his client. This is the one thing that appeals to a jury. An intelligent juror can easily tell if a lawyer is simply a “hired attorney” or a real advocate. Moore, who defended “Doc” Kennedy, is another of that kind. When a lawyer appeals to a jury as if he meant it, good

results are sure to follow. Among a score of noted New York criminal lawyers might be mentioned Abraham Levy and James W. Osborne.

## Strange Sentences

During many years of careful observation, I have seen some strange sentences. If you are poor and have a mean enemy, with the aid of the police, he can inflict great injury on you!

I knew the case of a young man, who found some worthless junk wire outside a factory, and was sent away for a year. In the next cell was a crook with a “record” who was aided by a cop, and a crooked lawyer. He stole a thousand dollars. His “bit” was only six months.

Another fellow who swindled several dry goods stores out of \$17,000, was allowed to plead to petty larceny. He got off cheap—only six months.

Such travesties of justice have often been witnessed in New York. Indeed, men and women have been known to conspire with lawyers and others to send innocent persons to prison, and they have succeeded!

I knew well the case of John H. While he was in prison, his wife suddenly became the friend of a certain police official. After he had secured his liberty he was informed that he must keep away from his old home. Soon after he was arrested, charged with a crime of which he was entirely innocent. When he went to Part I, General Sessions, to plead, a legal pettifogger who was sent there by this man’s wife stepped up and informed him that he would take his case. He did so, and without consulting him entered a plea of guilty. He was then sentenced to six years’ imprisonment. He found out afterwards that it was a conspiracy to get him out of the way. It was a success.

I recall the case of an Italian who was charged with the murder of his wife. He was caught “red-handed,” and two of his children told the coroner that they saw him do the deed. John F. McIntyre ably represented the people, and Judge Fursman presided in the Criminal Branch of the Supreme Court. When the case came to trial, the Italian children had evidently been tipped off to forget all about it. As they had manifested entire ignorance and forgetfulness of the crime, and could not remember a word of what they told the police and the coroner, the murderer was allowed to go scot free!

We knew a man who stole \$40,000, and yet received a suspended sentence. But this should be said, that the money was taken to save another man, and not himself, and the deficiency was made good. Perhaps it was only fair that the sentence be suspended. We know two young men who were in the Boys' Prison at the same time. One stole \$10,000, the other just one dollar. The lad that stole the ten thousand dollars had his friends make restitution, then the complainant recommended extreme leniency. In view of his former good character, the court gave him a suspended sentence. The boy who stole one dollar had been in prison and was out on parole. For this new crime he was sent to the House of Refuge.

There is the case of a young man named Sullivan, who stole a tray of valuable jewelry from a Columbus avenue house. A morning paper commented freely on the "pull" that gave the prisoner a suspended sentence. The owner of the store did not relish the thief getting off so easy. In speaking of the affair he said: "The next time a thief visits my place, I will make no effort to bring him to justice. What is the use, if he is let go after his guilt has been clearly established? The robbery was carefully planned, and was well carried out. The Court should have given the thief a medal. Why not?"

While chaplain, I was sent for by an unfortunate girl, an inmate of the Women's Prison. She had the usual tale of disappointment and misplaced confidence to tell, which was full of sadness. Most girls, strangers in New York, and far from home, have usually a hard road to travel. After I heard her story, I remembered that there was a prominent lawyer in the city that came from the same place of which she was a native. The gentleman was an ex-Assistant District Attorney. I felt if I could only get him interested in the case, she would have a better chance of securing her liberty. I made a personal call on the gentleman. He had spacious offices in the vicinity of Wall Street. As soon as I had mentioned this young woman's name, he at once recognized it. Indeed, he had been intimate with the family for years, and was willing to do anything for her. All of which was very encouraging. I then asked him to make a note of the date when she came up for sentence. At my suggestion he called one of the stenographers to make a memorandum. "Mary Ann," said my legal friend, "make a note of this," and looking very pious, he said, "I do this for the love of God; yes, I do this for the love of God." By this time the clerks and typewriters began to snicker

and laugh. Just as I had expected, all this pious talk did not amount to anything. The poor girl was finally sent away to one of our institutions.



## CHAPTER XXIV

# CRIMINAL BRANCH OF THE SUPREME COURT

When on January 1st, 1896, the present Constitution of the State of New York took effect, there went out of existence the Court of Oyer and Terminer—a court whose quaint name accorded well with its interesting history and associations.

It was an exclusively criminal court, closely allied to the Supreme Court, and although unlike the “Circuit Court” not strictly a part of it, its judges were Supreme Court Justices assigned to hold it and interlocutory proceedings in actions pending therein were taken in the Supreme Court.

The Supreme Court is now the highest court in this State having original jurisdiction—that is, having the power to hear the evidence in and determine actions commenced therein or removed thereto from an inferior court, as distinguished from the right to review on appeal. It may take cognizance of all manner of civil and criminal actions and proceedings triable in a State Court, except the impeachment of public officials, of which a quasi-criminal court—the Court for the Trial of Impeachments—alone has jurisdiction.

In New York County, one part of the Supreme Court is usually devoted to the trial of criminal actions, and that part ordinarily sits each month in the year, except July, August and September.

Cases that, because of the nature or circumstances of the crime charged or the prominence of the persons involved, are of particular public interest or importance are usually tried in the Supreme Court.

There are material advantages to the accused in being tried in this court. The proceedings are apt to be more deliberate. The justices are experts in



Civil Law, and have the advantage of the training which results from contact with the best legal minds and the consideration of the many difficult and important questions that arise in civil practice.

The range of the criminal law as compared with the civil, is very narrow. The experience of the practitioner at the criminal bar tends to develop forensic rather than reasoning faculties; to narrow the mind and sharpen the wits, rather than broaden and deepen the intellect; to make alert, cunning, effective cross-examiners and wielders of technicalities, rather than strong logicians, quick in the discernment of fundamental principles, and ready in their application to the case in hand.

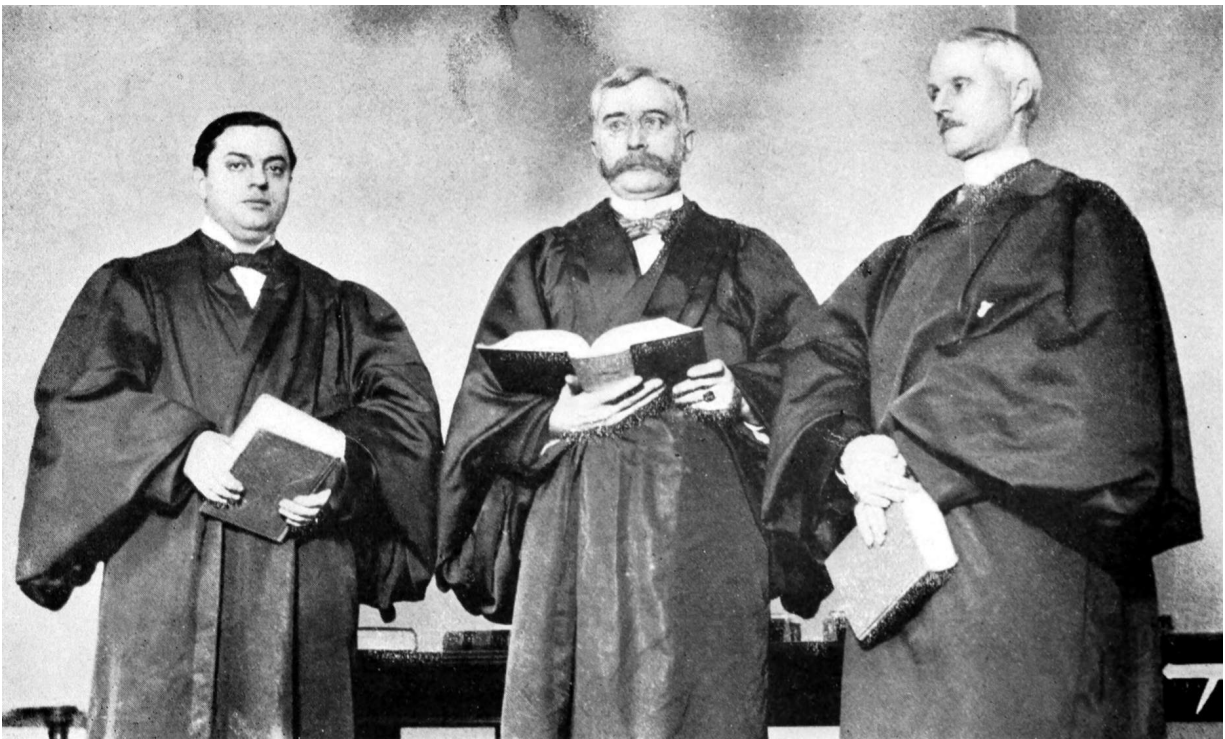
Constant contact with the criminal classes, either as an advocate or in the exercise of judicial functions, has a tendency to deaden the sympathies, to lead to a complaisant view of the criminal as something inevitable, and to an indifference to the suffering that flows from his punishment. It results in an intuition and a preception of criminality in acts and persons where it frequently does not exist—in an unconscious predisposition to discover something sinister and evil in what may be innocent or merely injudicious.

It is not a slur on the gentlemen who, with marked ability, untiring industry and sincere conscientiousness dispense justice in other criminal courts to say that the Supreme Court justices who hold criminal terms of that court are their superiors in the qualities that make a good judge, because of their wider experience and consequently better judicial qualification, and because of their freedom from bias against the accused, except such as may be temperamental.

Variety in thinking is essential to the best mental effort. Contact with many minds develops the mentality. A judge of a court exclusively criminal meets but few members of the legal profession, and confines his attention to a very small range of subjects. If he grows intellectually, it is because he wanders outside of the four walls of his judicial duties. How much better it would be if his field of effort were enlarged, so that his work would increase rather than contract his capacities. It is not for us to suggest a remedy, although one could readily be found, so far as the higher courts are concerned, in the merging of the Court of General Sessions in the Supreme Court, and the holding of a greater number of parts of that court for the trial of criminal cases.

## The Court of General Sessions

The Court of General Sessions of the Peace of New York County devotes its entire time to criminal matters. It is English in origin, and was established by them after they became masters of the colonies in the latter part of the seventeenth century. The prototype of the Court of General Sessions is found in all the counties of England, and is known as the Court of Quarter Sessions. Since this court was established in New York County, it has undergone many changes. At first, like its prototype, its sessions were held quarterly, but with the immense growth of criminal business in New York, its sessions are now held daily, with the exception of Saturday.



Beginning on the left, Judges Rosalsky, Foster and Crane, of the Court of General Sessions, New York.

At present there are five parts of this Court that are in session nine months in the year. During the summer months two of the Courts close,

which permits each judge to take a vacation. In each Court the District Attorney keeps two assistants, who prosecute all cases in the name of the people.

The General Session Judges at present are as follows: Judges Foster, Rosalsky, O'Sullivan, Mulqueen, Crain and Swann.



## CHAPTER XXV

### SCENES IN OUR POLICE COURTS

As is well known, the Police Court is the sorting Criminal Bureau of the city, where the murderer, highwayman, thief and burglar come to be classified. It is here that the criminal is confronted with the visible forms of law, and where the evidences of his guilt become so convincing as to be conclusive. All over the five Boroughs of Greater New York, the Magistrates sit in rotation in the various courts.

Every morning the police gather their prisoners into the court “pens,” where the Magistrate presides. After this, the prisoner is placed at the bar, where he is compelled to answer the question whether he is guilty or not guilty? In all of these courts, the wheels of justice move swiftly against wrongdoers, and frequently so fast that the innocent has a chance of being locked up for several days, without redress.

No one can be a spectator of what transpires in these petty courts during a morning session, without being deeply impressed, not only with the character of the business done, but the variety of the persons that come before the court. That the proceedings are genuinely realistic goes without saying. The work done in the Tombs Police Court may be taken as a fair example of what is done elsewhere, although it usually does twice as much business as is done in any other court in Greater New York.

The Magistrate’s Courts are supposed to be open for business as early as nine a. m. and continue in session till four p. m. Sundays and holidays are excepted, when there is only a morning session. Through the earnest work of Judge Whitman, a Night Court has been established in Manhattan, for the purpose of putting the professional bondsman out of business!

Lawyers are not necessary on either side in the Police Court, as the dignity of His Honor can be maintained and the interests of both sides conserved without a paid attorney. In some courts, a big crook with a crowd of ward politicians around him, has a splendid chance of getting clear, while the innocent moneyless unfortunate gets scarcely any consideration.

Powerful moneyed interests and political gamblers when brought to court and backed by an array of counsel known to the judge are sure to get some consideration. But this is what might be expected, and often strange things take place in the Police Court.

“The law condemns the man or woman  
Who steals the goose from off the Common;  
But lets the greater felon loose,  
Who steals the Common from the goose.”

The political “pull” has always been a power when exercised either by a Tammany judge or a “reformer,” as the supporters of both classes do their best to help their friends and spite their enemies! A few years ago I succeeded in closing a notorious gin mill in the lower part of the city, but not till I laid the matter before the Police Commissioner. Finally the law breaker was arrested and taken to the Tombs Court, where he pleaded not guilty. After a brief examination, the Tammany Magistrate discharged him, when he learned that the police went to the saloon on Sunday morning, and were admitted as sailors, with oilskins over their heads. Both Commissioners McAdoo and Bingham have criticised the Magistrates for discharging guilty crooks who ought to have been sent to prison.

Not a great while ago, a religious editor went to a reform Magistrate whom he had known in connection with charity work, and secured the discharge of an old crook that ought to have been sent to Sing Sing. The preacher told me afterwards that the work had to be done not in open court, but in the inner sanctum. If the reporters knew what had taken place, said this man, both of us would have been “roasted.” Investigator Mitchell has been able to unearth many things that would not stand the light of day. But they are done with the best intentions.

Here is a sample of Police Court realism:

“Patrick McShane,” said the Magistrate to a Hibernian defendant; “Patrick, what have you to say for yourself?” “I was not drunk, Your Honor,” said Paddy; “I was only sick.” “Loan the city two dollars, and go in peace,” said the Magistrate.

“Mickey Maguire, what have you to say for yourself?” “The officer found you trying to converse with a lamp post at one a. m. What was the matter with you?” Mickey replied, “Well, Your Honor, I am a fireman on the City of Rome and me ship goes out to-morrow.” “Discharged,” said the Judge. But Maguire was an old time liar. He had only been liberated from the Tombs the day before by the help of a missionary, who put him on a Pennsylvania ferry boat with the intention of going to see a “fake” brother-in-law in Trenton, N. J., but Maguire returned the same night and became helplessly drunk on West Street and was then “run in” by a cop. Keeper John Smith was in court at the time and saw the whole transaction and almost fell over in a faint when he heard Maguire tell so many lies to gain his liberty.

The common drunk and disorderly cases are frequently disposed of with lightning rapidity in most of police courts. Sometimes fifty and even seventy-five cases come before the Magistrate at a morning sitting, besides a dozen of felony cases that must receive a large amount of attention before he is able to arrive at the truth and decide whether he can send the prisoner to the grand jury or discharge him.

There is a woman with a child in her arms who charges her husband with non-support. Both use strong drink and are to blame for making the home a pandemonium. The magistrate tries to have them go home and stop drinking, for if the husband is sent to prison, what will become of the children? They return home to do better.

Here is a boy, sixteen years old, charged with stealing two pounds of old lead, worth about seven cents. The magistrate tries to settle the case with honor to both parties. The complainant refuses. He insists on “Shylock” justice. Finally the lad is sent to the Boys’ Prison in the Tombs. Poor boy, his career is blasted for two pounds of old lead, all because the hard hearted complainant shows no mercy!

Frequently there are lined up in the magistrate’s court thirty to forty bleared-eyed, disheveled hair, filthy, tipsy men and women, the

offscourings of the city—made so by the city gin mill! I have often asked why the wise sages that run our Legislature do not put the whiskey and beer shops out of business, which would end most of the wretched scenes found in our police courts.

A frequent matter of injustice in our police courts is the treatment accorded the Italian, Greek and Jewish peddlers and push cart men. Although they are licensed by the city and compelled to carry a badge, hardly a day goes by without a score of them being hauled to court on the most flimsy charge. Indeed, every obstacle is put in their way to prevent them from earning an honest dollar. The city ordinance prevents them from standing more than ten minutes in one place. Often they are arrested before they are five minutes in a place. If you stand around Park Row you can see a dozen of these men picked up daily, while the notorious pool rooms and gambling hells of the city are in full blast.

Intoxication and disorderly conduct cases receive the least consideration. And then everything depends on what the policeman says against the defendant, but the presumption is that he is guilty. What we object to is that the magistrate allows the officer to whisper something into his ear, that the defendant knows nothing whatever about and is not related to the case, but that thing is usually the basis of the sentence. I hope that the day will come when the officer that makes the arrest will place the rum-seller at the bar with the “drunk” and make him responsible for the “output” of his own saloon. Indeed, whenever a policeman finds a “drunk” within a hundred feet of a saloon, it should be his duty to arrest the saloon-keeper who sold the liquor. Why not? As the officer on post gets all his “drinks” free at the saloon, which is only bribery in a mild form, it would be manifestly improper for him to give any other testimony in the proceedings other than favorable to the rum-seller, and this makes his relation to the case nothing short of a scandal! Almost every day some persons are robbed and flim-flammed in scores of city saloons. If they offer any protest or even ask for the return of their money they are forthwith “fired” to the street. Sometimes the victim is beaten into insensibility and left bleeding on the sidewalk. Soon a policeman comes along. He arrests the victim and makes a charge of intoxication or disorderly conduct against him. But, strange to say, nothing is done to the saloon-keeper and his assassins. The bloated gin-mill keeper is allowed to continue his business unmolested, and he waits for more



victims. Good hearted people, and even ministers of the gospel, waste a lot of “gush” on the poor, persecuted saloon keeper, all of which is entirely uncalled for.

Strong drink is the cause of more than two-thirds of all the business transacted in the police courts. If we could only do away with this curse there would be little work left for the magistrates.

Some of our magistrates show wretched judgment in handling the “down and out” unfortunates that frequent the police courts. Indeed, several sages of the “reform brand” act strange in dealing with beginners as well as habituals. With one or two magistrates almost every victim is sure of six months on the island and there is little or no discrimination. If this is what New York’s famous District Attorney had in mind when he said: “To h—— with reform,” it seems to me he was justified in using the expression. It is nothing short of a parody on justice to send a poor laboring man or mechanic, the victim of the ubiquitous gin-mill, to prison for six months for simple intoxication. For, as a rule, while he is in prison, getting three square meals a day such as they are, his wife and children are starving to death by slow process at home.

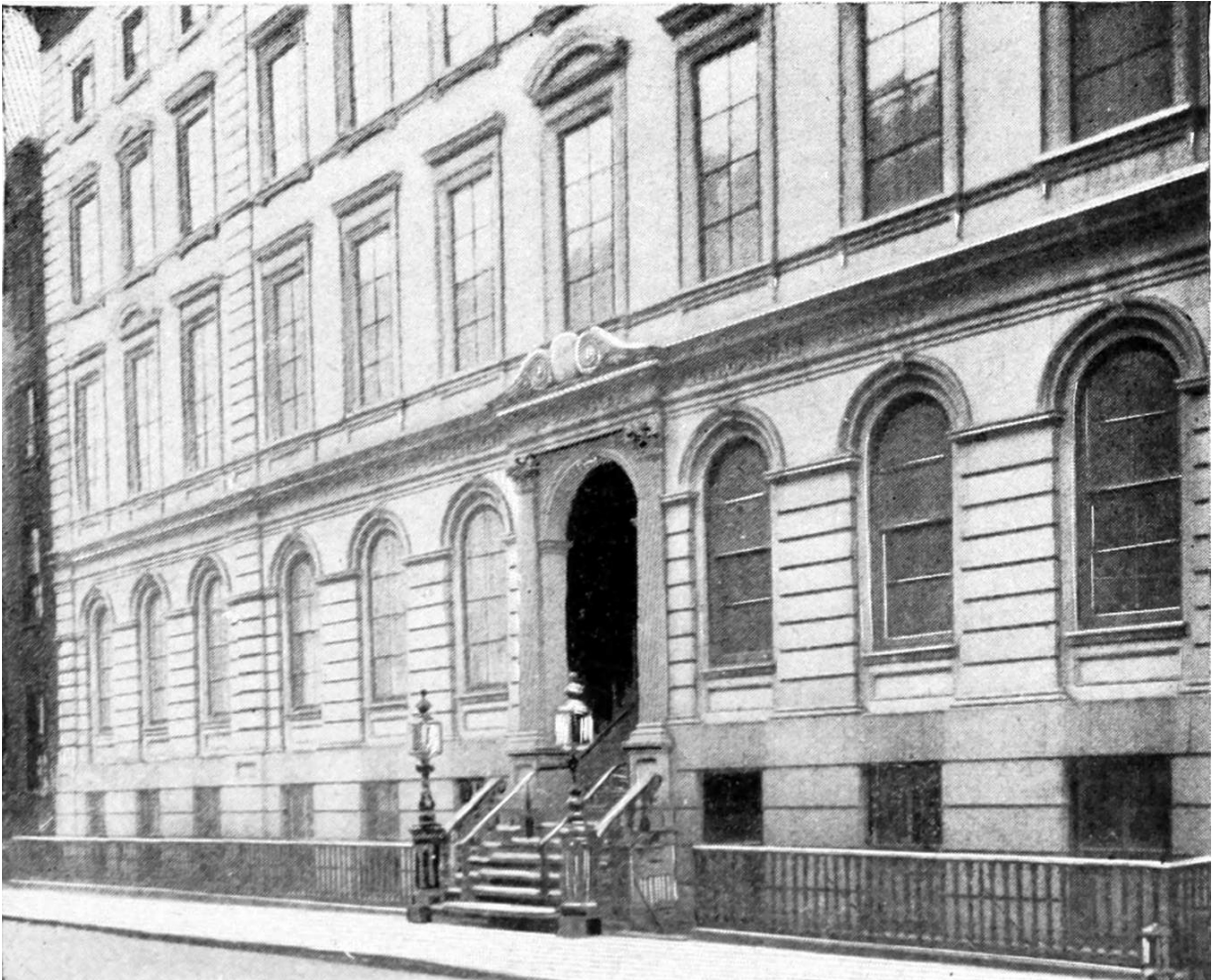
Judge Rosalsky recently discharged two men in General Sessions and scored the magistrate for such a foolish sentence. There are, however, honorable exceptions. Some of our magistrates are very humane and show excellent judgment in dealing with such persons. It seems to me that several Tammany magistrates who have come up from the common people and live in touch with them, show remarkable good sense in dealing with the “drunk and disorderly” cases that come before them.

It seems to me that Magistrates Finn and Breen, and for that matter several others, show good sense in dealing with unfortunates. Instead of sending every man “up” for six months, as some reform judges do, they fine them a dollar and after they are sobered, let them go. To stay a night in the stifling cell of a station house is punishment enough for any man. Such magistrates are certainly merciful, and do much to help the man fallen by the way!

One other magistrate who seems to possess the judicial mind, always careful, painstaking and just toward the unfortunate, is Judge Mayo, when he was a City Magistrate. He is now a Special Session Judge, and as I

watched the proceedings in the Children's Court, some time ago, where he presided, I saw that he still holds his good qualities!

Another gentleman for whom I always entertained the highest regard was Magistrate Poole. I liked him for his open and sterling qualities and often wished that more of his kind might adorn the magistrate's bench. I never knew him to turn down a genuine case of mercy in the hour of need.



Old Police Headquarters, 300 Mulberry Street, N. Y. City.



The Bridge of Sighs, which connects the Tombs with the criminal court building.



## CHAPTER XXVI

# SHARKS AND SHYSTERS OF OUR CRIMINAL COURTS

Within recent years there seems to be a bad odor in all of our Criminal Courts because of the sharp practices carried out by the “shyster” and “harpies” of the law. Most of these men, if they are not inferior in calibre to the other members of the bar, are intemperate in their habits. And they are severely criticised by friends and foes for their unjust dealings toward their clients. It is true, the modern lawyer is brought into fierce conflict with some of the sharpest temptations of the times, and are frequently drawn into the maelstrom from which they seek to extricate other men less fortunate than themselves. Since William Travers Jerome became District Attorney, he has sent more than a score of lawyers to prison for various acts of dishonesty, and some of them were men of prominence in the profession.

In almost every walk of life, if professional men received money for services which they promise to render and then do nothing, they are liable to prosecution for false pretenses. When lawyers treat their clients this way, they have much harsh criticism hurled at them, and deservedly.

It would be hard to estimate the number of persons who are continually robbed of money and valuables by legal sharks and shysters around the various courts of the city. Although complaints are made from time to time against these thieves, nothing is done to stop it. It is a well known fact that many of the lawyers that hang around these courts are of the poorest quality, and are often glad to get whatever comes their way. At any rate, these harpies of the law soon become adepts at “bleeding,” every victim that falls into their hands, including the prisoner, his family and friends.

As soon as a “shyster” secures a victim the first thing he does is to find out how much money he has on him. Then he demands a fee for his services which must be paid on the spot. If the prisoner has no money but has a gold watch, chain, ring or other jewelry it must be surrendered and sent to the pawn shop and the money given to the lawyer.

But if the prisoner has neither money nor jewelry, then he must give the names and addresses of his friends or relatives who are requested to furnish money for his defense. The shyster usually alarms the friends of the prisoner by telling them it is a hard case and expressing the opinion that he may be sent away for a long term of years. All this is done to deceive and make sure of a large fee.

In a great many cases the dishonest shyster intimates that he has a “pull” with the Judge or the District Attorney, to turn the prisoner on the street as soon as he gets a goodly fee, which may be a hundred dollars or five hundred dollars; not only do his promises to the prisoner prove to be absolutely false, but as soon as the shyster has entirely fleeced his victim he abandons the case, leaving the poor defenceless prisoner to the mercy of some other legal shark like himself.

A shyster who practices at Jefferson Market secured \$75.00 from a prisoner on the strength of a promise to get him out of prison in two days. After he received the money he never came near him again. This is very common police court ethics.

When this same prisoner came to the Tombs he fell into the hands of another legal shark, who on the strength of a solemn promise to get him free within forty-eight hours, or at the furthest in a few days, made him sign over \$80 cash which he had in the savings bank. When this last lawyer secured all his money he left him in the lurch like shyster No. 1. I know all about this case and am of the opinion that both of these lawyers should have been sent to prison and the defendant set free.

A man charged with murder and afterwards sent to the death house was given a lawyer through a “steering policeman.” The prisoner had just come out of the coroner’s office when the cop informed him that a lawyer would be sent to him by one of his friends, although he did not have a friend in the country. In less than an hour a young East Side “shyster” came to the Tombs, had him sign a paper retaining him as his attorney, and in this way

secured the State's allowance of five hundred dollars for the prisoner's defense. This was the man's ruin. The policeman doubtless shared the profits of iniquity with the lawyer when he fastened him on his victim. When the case came to trial the poor fellow was convicted by his own lawyer.

A poor Sicilian named Antonio fell into the clutches of a young Italian "shyster." It was a homicide case, but the prisoner was only guilty of assault or at most manslaughter in the second degree. "For a hundred dollars," said the "shyster," "I will get you clear." Antonio paid the money—all he had in the world. In a few weeks his lawyer brought him to court and made him plead guilty to murder in the second degree, so as to get rid of the case, and he was then and there sentenced to imprisonment for life. Then the lawyer disappeared. Such frauds ought to be disbarred and also jailed.

Another prisoner now in Sing Sing gave a hundred dollars to a lawyer with an unsavory reputation who frequently does business in Yorkville Court. The money was all the man was able to raise among his friends, and it was given with the full understanding that it would pay for his examination in the police court and his trial in General Sessions. That was the last the prisoner ever saw of that shyster. The prisoner wrote to him a number of times, asking him to fulfill his promise and defend him, but he paid no attention to his letters. Finally the prisoner in his desperation was compelled to ask a charity lawyer to defend him. The shyster got his money and that was all he cared for. If anybody else had swindled a man in such a manner he would be sent to the penitentiary for a year, but lawyers are allowed to rob people at will and nothing is done to them.

I personally knew the case of a German lad charged with a very serious offence. A lawyer, now dead, called him from his cell in the old Tombs to the counsel room and offered to get him discharged for one hundred dollars. He informed his married sisters (who were very poor) of the offer made him. They in turn sold their wedding rings and borrowed money to secure this lawyer his fee. Two days after receiving the money he sent word to the sisters that unless they raised \$300 more he would not undertake the case. Of course they could not, and as a result they lost the \$100 given this legal thief and had to secure a charity lawyer. During the trial of the young man this inhuman brute worked with the prosecution and did all he could to send him to prison. Just then Mr. Louis Stuyvesant Chanler, the poor man's

friend—God bless him for the thousands of acts of kindness he has shown to friendless prisoners—came to his rescue and aided the young man greatly.

We knew the case of a couple of Broadway lawyers who swindled a so-called “Count” of \$1,000 cash and then abandoned him for some reason, which was manifestly unfair no matter what excuse they had.

There are hundreds of honest and upright lawyers in this city who would loathe to do the mean and dishonorable things done by the police court “shysters;” but there are others who are doing mean and dishonest things all the time, who bring disgrace to an honorable profession, but few try to bring them to justice.

Around all the district prisons and courts of the city may be found an army of unworthy vultures that prey upon the carcasses of the “down and out” unfortunates of all nationalities who are compelled to seek justice in such places. Not only do these “sharks” rob them of whatever they may have on them, but they send their “steerers” to the homes of the prisoners and compel them to pawn what they may have of value in the house to give them as fees. And when they have bled their victims almost to death they abandon them to their fate.

It is well known to the authorities of all the courts that the disreputable lawyers who practice there have the cases against their clients adjourned from week to week for no other reason than to bleed them of all the money in their possession. At one of the district prisons in the upper part of the city a poor man was kept there two months by a “shyster,” for the purpose of getting the last dollar out of him. As soon as the Magistrate knew the facts he was forthwith sent to the Tombs to await the action of the grand jury.

A Jefferson Market Police Court lawyer was severely reprimanded in Special Sessions because he took a fee of \$20.00 from a poor girl and gave her no service in return. He was afterwards compelled to return the money before he was allowed to leave the court. And furthermore the judges promised to have him disbarred for the wrong done. But this man is only one out of hundreds that do the same thing continually.

A lawyer whom I personally knew, who was afterwards made a judge, took a thousand dollar fee from a crook who stole two thousand dollars



from a woman, but refused to do anything more for him till he gave the other thousand dollars. This the crook refused to do. The result was he had to fall back on friends to get him a charity lawyer to defend him in General Sessions.

Bold brazen shysters hang around the Courts of General and Special Sessions, who, with the aid of “cunning” steerers, probation officers and frequently with the help of policemen are able to rob their clients of all they have in the world, and render little or no service in return. The wonder is that the judges do not combine to put such men out of business.

The city magistrates and judges of the criminal courts have known the situation for several years, but apparently refuse to do anything to stop the abuses. The evil at present has assumed the proportion of a plague—crushing out the very life of the poor unfortunates and their friends, who are compelled to come to terms with the shyster.

Some of our city magistrates go into spasms over the iniquities of the professional bondsmen, but they do nothing to put down the professional shyster and harpies who are allowed to rob and ruin the unfortunates daily.



## CHAPTER XXVII

### CROOKED CROOKS IN PRISON

What brilliant minds are sometimes confined within prison walls! And how they work and fret and stew from morning till night and frequently from night till morning in an effort to “beat the prison.” Such men soon put certain kinds of machinery in operation which might aid their freedom, but when the authorities find it out they clip their wings, and their good conduct marks disappear.

A few years ago an old crook tried to get out of the old Tombs by digging through the wall of his cell. After he had made the “hole” he found to his surprise that it would land him in the warden’s office. A man named Smith escaped from Blackwell’s Island in the summer of 1905 by swimming across the East River. He did not make the attempt till he saw a schooner coming his way, then he pretended that he had cramps and must be rescued. It would fill a very large book to tell one-half of the crooked deeds done in an ordinary prison in one year.

In 1900 a young man was arrested in this city named George E. Shep. In due time he was indicted for the crime of grand larceny in the second degree, and sent to Elmira.

Dr. F. W. Robertson was then superintendent of that institution, and was able after a few interviews to “size up” his boarder. It could not be denied that Shep was a young fellow of considerable ability, but all who knew him believed that he needed “watching.”

Dr. Robertson saw that he was an expert bookkeeper and could handle both the pen and typewriter with amazing agility. As he showed unusual brightness and precocity he was made assistant bookkeeper in the Clothing Department under Officer Weinberg. In the summer of 1901 Shep came to

the conclusion that he had better abandon the seclusive privileges of Elmira and seek “fresh fields and pastures new” in some more congenial climate where the restraints of prison life were not so oppressive and where he would have room for the development and display of his mental powers.

When Shep found that he would be compelled to live in the Reformatory longer than he thought necessary, he very cautiously put out “feelers” to see if money could help him to freedom. As we read over the ramifications of his correspondence and follow the unraveling of his deeply laid schemes, we are forced to believe that some person or persons in the institution must have given him encouragement. From this time on, Shep, who possessed the luxury of a cool, calculating head, set himself to work by a well laid scheme to secure his liberty.

Shep must have had a fertile brain. Whether the information was sent him or not we do not know, at any rate he knew that there was a large corporation in Baltimore, known as the Shep Knitting Mill Company. As he had access to the Prison Printing Office he had letter heads struck off with the name and address of the mill. After this he wrote typewritten letters to the chairman of the Board of Trade, of Spencer, Mass., offering to build a knitting mill in that New England city, on which he proposed to spend \$14,000, provided the citizens would give a site and a bonus of \$2,500. The correspondence between Shep and Spencer Board of Trade was voluminous.

Shep had also written to a Philadelphia firm who promised to furnish the machinery and he was able to have an architect and a representative of the machinery firm meet in Spencer and look over the site for the new mill—all of which impressed the citizens of Spencer with the “realism” of the scheme. By December, 1901, the Spencer Board of Trade had raised the necessary bonus of \$2,500 to send to Shep, as soon as the details were arranged, but alas, the whole project had no foundation whatever except in the fertile brain of Shep, the Elmira convict!

About this time Dr. Robertson, the superintendent, was making herculean efforts to stop the importation of tobacco into the Reformatory. Some person was smuggling the contraband, and the authorities set themselves to find out who it was. One of the first to be suspected was Officer Weinberg, who was instructor in the tailoring department. One evening after Weinberg

had gone for the day, Dr. Robertson and some of his associates raided Weinberg's rooms and captured some tobacco and many letters that came through the mails addressed to Shep. The correspondence between Shep and the Spencer Board of Trade showed clearly that for months this convict had been "dickering" to secure from them by fraud the sum of \$2,500. During all this time Shep's mail had been clandestinely brought into the Reformatory without the knowledge of the Superintendent and in violation of the rules. Officer Weinberg was at once suspected and a watch put upon his movements. Weinberg's letter box in the Elmira post office was also watched by detectives, for mail addressed to Shep. On January 2nd, 1902, a letter reached Elmira by the morning mail addressed to George E. Shep, Esq., Elmira, N. Y. In the afternoon Officer Weinberg came to the post office, looked all around to see that no one was looking, secured the letter from the clerk, put it carefully in his inside pocket and departed. At that time, Dr. Robertson, the superintendent, had a detective in the post office concealed from public view, who saw all of Weinberg's movements from the time he came into the office till he carried the letter away. That afternoon he reported the matter to Dr. Robertson, who awaited further developments.

Next morning at exactly six o'clock Officer Weinberg reported at the Reformatory, as was his usual custom, signed the register, and then went to breakfast. Afterwards Weinberg was called into the front office, where he was closeted with Dr. Robertson and several of the officers for two hours; he was asked if he had been in the habit of carrying tobacco and mail matter into the Reformatory against the rules, all of which he denied. Then he was asked to surrender the letter he had received the day before in the Elmira post office addressed to Shep, which had the postmark of Spencer, Mass., and which he had then in his pocket. Weinberg finally broke down and surrendered the letter. This letter was from the chairman of the Board of Trade of Spencer, Mass., asking for final instructions as to how the bonus money should be sent to Shep and closing the bargain for the bogus knitting mill.

While Weinberg was undergoing a rigid examination at the Reformatory the police searched his rooms in Elmira and found more letters and a suit of clothes belonging to the Reformatory. He was then placed under arrest charged with petit larceny. Further investigation revealed the fact that no

less than two hundred letters for Shep had been brought into the Reformatory in the course of six months. Some of the letters showed that Shep had secured a firm of architects in Worcester, Massachusetts, to prepare plans for the new \$14,000 building and that Weinberg was to be general manager. Arrangements were also made with a Machine Company, of Philadelphia, to furnish the plant with several thousand dollars worth of new machinery.

About the same time a long article appeared in the Spencer Herald, on the new Shep Knitting Mills, so soon to be operated in that city, and congratulating the city fathers on the success of their negotiations, and promising that the city would build new sewers and some of their enterprising citizens would erect a row of houses and possibly a street for the mill hands.

After several weeks of investigation the authorities came to the conclusion that all that convict Shep wanted was the money to bribe some of the Reformatory guards so as to make good his escape. In working up his scheme, Shep showed himself to be an expert forger, as he involved several other persons in his plans by forging their names to his papers, although they denied all knowledge of it. Great credit is due to Dr. Robertson, who nipped the scheme just in the nick of time and before the Spencer people had paid over the money to the noted crook.

Soon afterwards Shep was transferred to Auburn Prison to serve out his maximum sentence of five years.

## Bold Counterfeiters in Auburn Prison

A few years ago the authorities of Auburn Prison were startled by the discovery that two of their convicts were engaged in the work of counterfeiting, which is a crime against the United States Government.

The two prisoners who were caught red-handed were Louis Julien and Adelbert Chapin. They are good mechanics and know how to handle tools. The curse of our prison system is that those who are sentenced to a term for hard labor have only child's play for work, hence it is that many convicts find that time often hangs heavily on their hands.

Julien and Chapin, the Auburn counterfeiters, were indicted by the United States Grand Jury at Syracuse, in June, 1904, but were left to fill out their unexpired sentence before being put on trial for the crime of counterfeiting.

On June 14th, 1905, Julien and Chapin, after they had finished their imprisonment in Auburn, were placed on trial in the United States District Court for the crime of counterfeiting while in prison. As both were caught "red-handed," or as they say "dead to rights," and with the goods on them, they, on advice of counsel, pleaded guilty and were sentenced, Chapin to two years in Clinton Prison, and Julien to one year in the same place.

It may be of interest to know that these convicts worked in the same shop in Auburn. Their benches joined each other. In their idle moments they conceived the idea of coining money. It was not difficult to carry out this plan, even under the eyes of the prison guards. They succeeded in making a mould for silver dollars and one for nickels; one of the two men was engaged in work that required the use of molten metal. At the proper time Chapin had the moulds all ready and Julien at intervals would carry over the metal in ladles and fill the moulds, until they had made several hundred dollars worth of money, the guard supposing all the time that they were doing their regular prison work. The counterfeit money is said to have been well made and before long much of it placed in circulation.

Two female friends of the convicts came at intervals to visit them during each month and carried away pockets full of the spurious coin and

exchanged the same for commodities, which they sent to Julien and Chapin. When one of the women was arrested for passing bad money she confessed everything and then a watch was put upon the men in prison, who were afterwards caught “red-handed.” The astonishing thing is not how they made counterfeit money, before the eyes of the keepers and guards, but how they were able to carry pockets full of the “stuff” to the women in the waiting room.

This is not the first time, however, that counterfeit money was made in a prison. A few years ago a full set of dies, moulds, etc., were discovered accidentally by secret service officers of the Government in the Eastern Prison of Pennsylvania, near Philadelphia.

This was one of the biggest finds ever discovered in a prison and it made a sensation at the time.

Four “cons” were involved in that crime, Hoffman, Smith, Hall and Ashton. Before they had served their time they were indicted and afterwards put on trial in Philadelphia for counterfeiting. Smith and Ashton pleaded guilty and received a suspended sentence and have been living straight ever since. Hoffman and Hall were released on their own recognizance, but having broken their promise to keep out of crime, were re-arrested and are now serving time for the crime of counterfeiting.





## CHAPTER XXVIII

# SCENES DURING VISITING HOURS IN THE TOMBS

The Tombs Prison is in the nature of a detention barracks, where persons awaiting trial are kept for a season, and where one-half are discharged for lack of evidence and other legal loopholes through which men and women slip to freedom. Here prisoners are permitted to see their friends every day of the week, except Sundays and legal holidays. At the present time when the Tombs contains about 400-500 state and federal prisoners, it can be readily seen that one-half of the inmates are visited daily, which would average a thousand visitors a week.

What a Babel of tongues operate here from every part of the world! What scenes may be witnessed during the visiting hours! Here may be found wives and mothers, fathers, brothers, children and friends all in tears!

Sometimes as many as eight to ten different nationalities are found speaking their own peculiar language on one tier of forty prisoners,—English, German, French, Spanish, Russ, Bohemian, Scandinavian, Polish and even Chinese.

With their arms stretched out through the bars, taking hold of each other in the anguish of a death bed scene, they kiss each other, weep and groan over one another and frequently become hysterical. And these scenes continue during the entire visiting hour, and when the gong rings for the recess, they are so loath to depart that often the keepers have to drag them from each other. As the wives, mothers, children and friends pass along the corridors toward the gate, you can see their eyes still full of tears and red with weeping.

These scenes, which are unspeakably pathetic, are almost daily witnessed in the New York Tombs. Here, for example, is an aged mother at a cell door, whose heart is wrung with anguish over the downfall of a son. She holds his hand while the tears trickle down her kindly, motherly face. Oh, how sad that the innocent have to suffer because of the wrong doing of others, that human love and sympathy are so interwoven that the crime of one individual causes many to sorrow, and renders life burdensome! At the cell of a man charged with murder stands his sorrowing wife and three children. Their plain and faded garments indicate poverty. The pinched and careworn face of the wife tells of the terrible struggle for a livelihood she is making because deprived of her husband's help. The chances are that both she and her children will become inmates of the almshouse or some charitable institution. The prisoner apparently fully realizes the gravity of his position and seeks to comfort his wife and caress into cheerfulness his unfortunate children. The evidence against the prisoner, however, is so positive and convincing that he will be electrocuted. He realizes this but conceals from his wife his feelings, and assures her that he will be acquitted. She becomes hopeful and with a kiss and a smile on her tearful face, departs. Picture if you can the scene in the home of this murderer when the news of his conviction is received, the wringing of hands, the moans of anguish, the appeals to God, and the frenzied outcry of inconsolable grief! The innocent suffering because of the guilt of another. Home broken up, mother and children separated, the looks askance of the neighbors, the world's frown, and a heritage of shame and woe for mother and children!

At another cell door stands a father silently weeping, while the guilty son tries to comfort him with assertions of innocence, but the father does not believe him; he knows his boy is guilty; he knows that for years he has been dishonest and intemperate, and has at last reached the end of his wayward career. The father reminds the son of the earnest warnings, the wise advice, the prayers and the tears of his dear mother. The son pleads for forgiveness and renewed efforts in his behalf. The father gently, lovingly, yet firmly says, "My son, you are guilty. My respect for the law is so powerful that I must uphold it, though it means the imprisonment of my only son. Had this been your only offence to my knowledge, I would do my utmost to secure your release. I have shielded you several times to my sorrow. Had you been imprisoned for your first offence, you would not perhaps be where you are to-day; you might have reformed and been a great comfort to your good

mother and myself.” To some extent this father was right, even if he did take a stand contrary to that taken by most men whose sons have violated the law. I do not believe in sending any man to prison who demonstrates his fitness for freedom. If prisons reclaimed and uplifted men and women I would say otherwise, but they do not. I believe that seventy-five out of every hundred leave prison worse than when they entered.

One day my attention was called to a young woman who was silently weeping by a cell door. She was richly attired, and very much of a lady in appearance, and could not be more than twenty years of age. I became interested and on inquiring learned that she was a bride of only a few weeks. She had been wooed and won by a handsome, talented, clever rascal under false pretensions. He had spent a number of months in a Massachusetts town, where his faithful attendance at church and earnest prayers and eloquent exhortations had gained him the confidence of the leading people of the place. At a sociable he had formed the young lady's acquaintance and by his ingratiating ways, scholarly address and earnest protestations of affection, soon induced her to consent to marry him. Her parents at first stoutly protested, but yielded to the importunities of the much loved daughter. A brilliant wedding was the result, with guests from New York and all parts of New England. To the bride the father gave \$10,000 as a wedding gift. A trip to Montreal, where the wily rascal obtained control of the money, terminated her dream of a happy married life. In three days he had gambled away the entire sum. To New York city they then journeyed, where at one of the leading hotels the rascal passed a worthless check, which led to his apprehension and confinement in the Tombs to await the action of the grand jury. Earnest petitions to the bride's father were stubbornly and wisely denied. A careful investigation established the fact that the rascal who had so cruelly and unpardonably deceived the estimable young lady, had been an inmate of four prisons, and was one of the most notorious criminals in the country. It furthermore became known that at the time he was in Massachusetts, he was wanted in St. Louis for defrauding an Insurance Company to the extent of five thousand dollars. He was hiding in a quiet Massachusetts town and improved the time in winning for a bride the daughter of one of the most influential and aristocratic families in old New England. He was sent to Sing Sing Prison for several years, and the wife well nigh brokenhearted

and bowed to the dust in humiliation, returned to her parents a sadder and a wiser woman. A divorce was the result.

I have seen mothers and wives kneeling at cell doors and pleading with God for the deliverance and reclamation of sons and husbands. I have seen prisoners so conscience stricken and so moved by the tears and sufferings of dear ones, that they wept in their agony and firmly resolved to lead moral lives, and they kept the resolve.

I have said nothing about the poor and their sufferings, and more especially the children of the poor when for some unknown reason they came within the meshes of the law. Some years ago I had occasion to meet a German lad in the Boys' Prison. He was what the boys call a "tenderfoot." He cried night and day. I felt very sorry for him. He was indeed inconsolable and it seemed nothing could be said which would make him dry his tears or infuse new hope into his discouraged heart. He cried continually for his mother and although word was sent to her, no mother came. His sufferings became so acute that I would have done anything in my power for the boy. After waiting ten days and no mother came, at the urgent request of one of the keepers I went in search for her. She lived on the East side, near Station Street, about five blocks from the Bowery. She was bloated, coarse, unmotherly, without any natural affection, and I saw at once that she cared more for her vile business than her own child. I could do nothing with her.

I do not think I shall ever forget the case of the newsboy, who was arrested at the Brooklyn Bridge entrance for selling papers. Complaints had been made to the police of some ruffian boys who took pleasure in insulting people who would not buy papers. The officers had received orders to arrest the first offender and make him an example. Frank Smith was then at the desk in the old prison. He had just taken a boy to the ten day house, and asked me to go and see him. I did so. I found the poor boy inside the big iron gate crying his life out. No one could comfort him. I tried to find out his offence, but he would not stop his crying long enough to tell me. I went over to the police court, but as there was a large calendar that day, I could get no information. I returned to the Tombs. As I came near the boy I found that his two little sisters had come to see him. They had heard of his misfortune and had sought him out as soon as possible. It was one of the most pathetic sights that I ever witnessed. The boy lived with his mother

and sisters on East Broadway. They were Jews and very poor. The mother was ill at home, suffering from an incurable disease, and was then on her death bed. Reuben, the diminutive newsboy, was trying to support the family by selling papers. The sentence of the court was thirty days in the city prison or a hundred dollars bond. But this was out of question for the family. When I returned from court I found the two sisters crying bitterly at the gate and begging Rubie to come home. Their cry was, "O Rubie, come home, won't you? Mamma is sick and ready to die. Won't you come home with us, Rubie?" All this time they were weeping bitterly and everybody was affected, even the tiermen. I could not stand it any longer. I saw the magistrate at once and told him the situation. He would not discharge him under any circumstances. When I saw that I could make no further impression I offered myself as Rubie's bondsman, and the Judge accepted me and the boy was at once discharged and went home with his sisters. I saw one of the Bridge policemen and asked that Rubie be not arrested on account of his poverty and the fact that he had a dying mother at home, and he kindly spoke to the others at the Bridge and Rubie was never molested after that day.

The scene which had the most powerful effect on me and which has stayed by me the longest, moving me to tears even to this day, was the beholding two little girls, sisters, conversing with their brother who was accused of burglary. The oldest sister was about thirteen years of age, the youngest about three. All were crying bitterly, with the little one sobbing out, "Oh brother Willie, come home, please come home, we have had nothing to eat all day, and we had no supper last night. Why don't the naughty man (the keeper) let you come home?"

What were the facts about this little sorrowing group? Three orphans, the boy about nineteen had cared for his sisters faithfully and tenderly. His record was good, had been employed by one firm for more than nine years, and had given general satisfaction. One evening while passing along Second Avenue, a thief rushed by pursued by a policeman; as he passed Daly (so we will call him) he thrust into his pocket a gold watch and chain, which the policeman observed. Daly was arrested as a confederate of the thief and turned over to the police. After learning these facts and fully verifying them, I succeeded in securing the release of the prisoner, who to-day is one of the best and most prosperous carpenters in the city. The

pathetic face of the baby sister I have never forgotten, nor her innocent pleading for the return home of her dearly and deservedly loved brother.

I have stood opposite “Murderers’ Row” and counted more than twenty-five visitors eagerly talking with men whose brutal appearance and awful crimes rendered them repulsive even to their fellow men. Some of these twenty-five visitors did not even so much as know the prisoners, and had merely read of their crimes in the papers and prompted by curiosity, and a mawkish sentimentality, had called to express sympathy and tender their help. Some of the visitors were richly gowned and daintily gloved men and women. They brought hampers of food and large bouquets. One would think that these murderers were heroes and martyrs, from the treatment accorded them by these women whose conduct seemed to me almost inexplicable. The man whose crime was most awful and grewsome in its details received the most attention. What is there about a murderer to attract refined women I cannot understand, and I have given the subject considerable thought. To see a cultured woman almost caressing a brutal murderer who is an entire stranger to her is a sight sufficient to cause any sane man to wonder. It seemed to me it would be more consistent if they called on the family of the victim and offered them help and sympathy.

To the student of human nature, visiting hours at the Tombs afford a good opportunity to study phases of life not found elsewhere. Let him pass from cell to cell, carefully observing the visitors at each, the expression of their features, their gestures, their attitudes. On some faces sits hope, radiant, beautiful and very encouraging to the prisoner. On another face the stamp of fear, doubt and uncertainty is clear. The son or husband is in danger. The evidence points to guilt and conviction, too much indeed to encourage even the shadow of hope. Another face bears sorrow and tears, and discouragement has left its unmistakable impress. One finds on few faces the stamp of resignation. Hard it is for a mother or a wife to become reconciled to the thought of a son or a husband, serving a term in prison, however guilty he may be.

Negro criminals have the most cheerful and encouraging visitors. The Black race is blessed with a disposition to view the bright side of all situations and experiences. It is a cheerful race. The Negro is a foe to gloomy thoughts. It is hard to depress him. He will dance, sing and make merry at the foot of the gallows. The Negro visitors enter smiling and so

depart. They talk with prisoners just as though they were free and comfortably ensconced in pleasant homes. They cheer instead of depressing the prisoner.

The Italians are really distressing in their efforts to comfort friends in prison. They jabber, whine, cry, caress and condemn and reproach until they have the prisoner in a state bordering on insanity. They leave him in a condition truly pitiful. Instead of cheering him, he has been rendered far more miserable by his visitors. He dreams of electric chairs, prisons, policemen and handcuffs. The bananas his visitors bring he could well do without, as he could the visits of friends who so greatly depress him.

Fritz appears and says to Hans, "I think you go by the prison alretty, ain't it?" "Naw, I thinks I go by the shudge bimeby, pretty quick, and he lets me go home to mine Louisa. I am not guilty alretty," responds the hopeful Hans. German visitors as a general thing conduct themselves sensibly. They are not emotional, but hardheaded and sensible. They smoke with the prisoner, laugh and joke, and leave him in a cheerful frame of mind. The German is sociable and not easily rendered gloomy or depressed. The German visitors try to imbue prisoners with the idea that their trouble will soon end, and in a few days they will be sitting in Hoffmans' beer garden with a glass of lager, and a plate of sauerkraut before them. So believing, the prisoner lies down to pleasant dreams.

The privilege of seeing and conversing with friends, all things considered, is a great boon to prisoners and should never be denied them, especially those awaiting trial. Many a man naturally inclined to take a dark view of his trouble has been kept sane and sound from self-murder by the daily appearance of some loved one. The human heart when filled with fear and foreboding yearns for sympathy, encouragement and comfort. If these influences be withheld, the sufferings are so terrible as to pass human understanding. To an imprisoned man who is friendless, the coming of sympathy and kindly helpful interest is like a visit from God's Holy Angels.

No wonder the prisoner cries out in the night in the agony of soul. No wonder he offers a plaint that is sad and sorrowful. The following lines from the pen of an unfortunate show the harshness of even our modern prison life:



“I know not whether the law be right,  
Or whether the law be wrong;  
All that we know who lie in jail  
Is that the bars are strong;  
And that each day is like a year—  
A year whose days are wrong!

And this I know that every law,  
That men have made for man,  
Since man first took his brother's life,  
And the wretched world began,  
But scatters the wheat and saves the chaff  
With a most unlucky fan!

This too I know and wise it were  
If each could know the same  
That every prison that men have built,  
Is built of bricks of shame,  
And bound with bars lest Christ should see  
How men their brothers maim.”



## CHAPTER XXIX

### DOES IMPRISONMENT REFORM?

This is a hard question to answer, although it has been asked extensively down through the ages. The answer will turn mainly on what you mean by reform. It is interesting to know that students of criminology have wrestled with the question, but cannot agree on the answer. As an abstract question it is very clear to us that imprisonment of itself cannot reform. Force cannot change a life, nor restore the image of God in the soul. When a lawbreaker is placed inside the walls of a prison, force uses the machinery of the institution to compel him to pay the penalty of the law. But it cannot reform him, nor make him a better man, nor change his nature. That work must be done by a higher Power.

Not only can it be truthfully said that imprisonment does not reform the law-breaker, but in most of our prisons the culprit has only to serve a brief sentence, to come out a worse man than when he went in. This is a sad statement to make, when we think of all our boasted liberties and advanced civilization, but it is nevertheless true. For the explanation of this condition of affairs it is not necessary to look far. The fact is, the unfortunate lack of proper classification in all of our prisons makes the companionship of thieves and cutthroats so demoralizing, the fellowship so infectious, the language and habits so debasing, that out of thousands of persons who mingle together in a modern prison, few escape the contaminating influences.

When a man has been charged with a crime, the first thing that is done by society is to arrest him and lock him up in a little dark dungeon, 4x6 feet, with hardly enough cubic space of air coming in through the small iron grating to make it sanitary. Here he is kept weeks and sometimes months before a trial is given him, breathing the fetid atmosphere of the institution,

which after a time poisons his entire system, and paints his face with the prison pallor.

Here it is that many a man who has brooded over the past to such an extent that when he has atoned for his crime, and he finds himself a free man once more, has made up his mind to fight society to a finish! From this time on his hand is against every man, and every man is against him. The imprisonment has aroused in him the darkest passions of an unregenerate life, and made him a moral anarchist for the fancied wrongs he has suffered. Said a man to me who had spent nearly twenty-four years in prison, having been convicted of crime eight or ten different times, when I asked him why he did not go to work when he came out of Caldwell Prison, N. J., "Me work! I will never work. When I was sent to prison for the first time, I received a good deal of harsh treatment. I then vowed vengeance for the wrongs done me. No! I will steal as long as I live, but I will never work." Whenever I touched on prison life, the subject awoke bitterness in his soul, and for the time being he spoke like a maniac. The fact is, over fifty per cent. of all first offenders come from our penal institutions, and after a brief period return to crime again, unreformed and uncured.

The prison authorities should always bear in mind that no matter how deep-dyed in crime the inmates may be, they are moral beings, made in the image of God, and are therefore worth saving, and may be saved if the proper methods and influences are brought to bear the right way on their minds and lives. While there is life there is hope.

It is true, the men in prison, no matter how intelligent, have little influence over the authorities in bringing about needed reforms. They are regarded as having no right to complain, nor even to ask for favors. If they are to receive favors, others must speak in their behalf. Even the suggestions of criminals are usually ignored by the prison authorities, as they are supposed to be moved by sentiment, or often by mercenary reasons.

In dealing with crime, it should be the settled policy of the State to use every means possible, although sometimes expensive, to bring about the reformation of the prisoner. It is a well known fact that when a thief is sent to prison, absolutely nothing is done to teach him the why and wherefore of the Eighth Commandment, "Thou shalt not steal." Out of 168 hours in

seven days, one, or possibly two, hours are devoted to religious training. If the thief, the perjurer, the gambler, the swindler and others of that ilk are to be reformed, why not use means for the accomplishment? Why not have moral and ethical teaching, or addresses of some kind daily? Every one saved from a life of wrongdoing will necessarily reduce the cost of crime!

Although all cruel and inhuman methods of punishment are forbidden in nearly all of our prisons, and the punishment for crimes that is meted out to criminals was never so free from malice and revenge as it is to-day, yet we are free to say that as far as prison reform is concerned, we have not yet reached the ideal.

Capital punishment as it is practised at the present time is in our opinion simply a relic of barbarous times. No one on this planet is authorized to take away life. God gave it, and He is the only One that can take it away. And no matter what kind of punishment may be meted out to the homicide, the worst and most foolish thing that can be done to him is to put him to death. It matters little what a man's crime is, if he is to be reformed, he should have a future hope held out to him, and he should realize it, provided he can show by his life that he is worthy of it.

While it is true civilization has been in the forward march the past three hundred years, crime has been slowly and perceptibly on the increase; that is to say, crime has been growing faster than the population. The fact that so many jails and reformatories are being erected in all the States and Territories is evidence enough to substantiate that statement. Statistics show that the growth of population in this country has maintained a steady increase since 1850, with an average perhaps of about thirty per cent. each decade, while the criminal increase during these same periods will average eighty per cent., or nearly three times as large as the increase in population.

In former years the methods in vogue for reforming men and women behind the bars were the stocks, the dark cell or dungeon, the whipping-post and the tread-mill, nearly all of which have been abolished during the past century, and more humane methods have been used, we are glad to say, which is a cause for rejoicing among Christian people everywhere.

Perhaps one of the greatest needs of the prisons of this country is their complete divorce from politics and their reorganization on business principles of merit and capability. While it is true that the civil service law,

which operates in nearly every State, has raised the standard of merit among the prison officary, notwithstanding inferior men, entirely unfitted for such work, creep into these institutions as a reward for political services.

But it is also true that the prisons of the twentieth century are as far advanced from those of the middle ages as those of the middle ages are ahead of the prisons that existed at the beginning of the Christian era. In those days jails were little better than hog pens, perhaps much like the old cistern into which they thrust Jeremiah the prophet, when they let him down with cords, and where his feet sank in the mire. Such prisons were places of pestilential horror, cold and damp, from which the sunlight was entirely excluded, and where the chains often rusted on the hands and feet of the prisoners.

The evolution of the prison has been a long, dark, cruel process, as it did not excite the interest and sympathy of the church till within recent times. It is admitted now that prison reform began with Jesus Christ, who, when He had conquered death and hell on the Cross, went up to glory with the blood-washed soul of a repentant prisoner in His arms, leading captivity captive. From this time on, the era of seeking to save and help the prisoner began. But it did not make the advances it should have made till the days of John Howard, who is called the morning star of prison reform.

It is greatly to be regretted that no efforts are put forth to raise the moral tone of our prison management. In Great Britain and the Continent of Europe, there are schools for the proper training of prison officials. In these schools are taught the military spirit, alertness, courteous behavior, and quick movements in case of emergency. But it is doubtful if in any of the schools they teach the officers to appeal to the better nature of the prisoners for any permanent reform. The work of a modern prison is largely one of punishment and repression. There are no lectures on hygiene and sanitation, nor on manliness or how to resist temptations, nor is anything done to incite them to live a new life, except what comes through the Chaplain, and that only once a week.

In studying the early stages of lawlessness from the rudest times to the present day, I am satisfied that crime grows on the mind by insensible degrees, and shows itself only at the propitious time when the overt act brings the individual into prominence.

I also believe that a certain class of delinquents are made more vicious by prison life, simply, because their moral instincts are already perverted, and by the lives they have led in the past. Such hopeless people should be sent to lunatic asylums, rather than to prisons, as we believe they are more in need of medical treatment than punishment.

One of the most needed reforms of the present century is the necessity of putting forth more efforts to save beginners in crime. In many of our prisons, criminals are huddled together like sheep, and as a result the young offender learns more evil in one week from old crooks than ever he knew before. There is nobody to blame for this but the old methods that are still in vogue. Often criminals are driven to crime by motives generated in a vicious nature, and as they are too weak to resist the high pressure of modern temptations, they soon become law-breakers. It is foolish to talk of the criminal classes, but criminal individuals. Criminality is simply the darkened side of a human life, showing itself in deeds of wickedness and rebellion. Anybody under the dominion and power of the Evil One will dare to commit the most atrocious crime on record, and will not think of the consequences at the time.

I am satisfied that the reclamation of the criminal, and his restoration to society, a saved man, should be the first duty of every well organized prison.

It is to be regretted that the greatest barrier in the way of reforming and saving the prisoner is found in our antiquated methods of dealing with him. Whatever else imprisonment is to-day, it certainly does not reform the unfortunates who are sent there. Hundreds and thousands of lives have been blasted forever by prison life, that might have been saved if proper efforts had been made at the right time to place them on parole before being sent to prison. All first offenders should get a chance by being paroled.





## CHAPTER XXX

# STRONG DRINK AND CRIME

From actual observation as a Prison Chaplain, and a careful study of this subject extending over several years, together with repeated interrogations and conversations with thousands of prison inmates, committed thereto for every crime on the calendar; and, further, from personal inquiry among experienced prison officials in various parts of the country, I say frankly without any hesitation or equivocation that strong drink is the most prolific cause of crime in the United States. I further affirm that after thousands of personal conversations with men and women charged with murder, robbery, assault and every form of larceny, and from interviews with criminal judges and magistrates, I firmly believe that from seventy to eighty per cent. of all the crimes of the day can be traced directly or indirectly to strong drink. I have said more than once in public addresses, in the past twelve years, that if the saloons of this city were outlawed for two years, the prisons of Greater New York would be almost tenantless.

I believe the only way to reduce crime is to stop the manufacture and sale of intoxicating liquors, which in the end will close the gin-mills that swarm our cities and villages, and which are the real generators of crime.

We deeply regret that many of our well meaning people are poorly informed on this question. They look with longing eyes for help from our State and National political partisans for the overthrow of this traffic, but these fond idols of the people care nothing whatever for moral reforms. They are in politics only for what they can make out of it, and not for the reformation of the people, and are indulgent toward the saloon vote.

Some time ago, a New York paper gave a list of persons who were confined in the City Prison charged with the crime of homicide. In this list

the names of thirty men, two women and a boy were given. They were then awaiting trial for murder. All of them have since been tried, with the result that several have been sent to the death house at Sing Sing, a large number to prison for long and short terms, and a few discharged for lack of evidence. In an analysis which we personally made at that time we counted twenty-five persons who admitted that they were under the influence of strong drink when they committed the crime of murder.

At that time, Dr. Robert S. Newton, a New York physician and specialist in mental disorders, presented a carefully prepared paper on the causes that led to murder in each case, but, strange to say, he does not mention strong drink, although that was the principal direct cause of twenty-five out of the thirty-three cases. Dr. Newton never met any of these persons mentioned in this article, charged with the crime of murder, nor had he any conversation with them before or after their imprisonment, but simply from the standpoint of an alienist, he presents a speculative analysis of what he considered the causes that led to their crimes.

I met all of these people face to face, conversed with them, and watched their trials in the Criminal Courts till finally disposed of. Most of them made voluntary statements in relation to their crime, and I was painfully struck with almost the identical words from the lips of each, and all of these men, who closed the narrative by saying: "I was drunk at the time, and did not know what I was doing." They did not say this for the purpose of securing sympathy, or apologizing for their crime, but simply admitted that strong drink made them half-insane, and in that state they committed the crime of murder.

With only the names of the actors and victims before him, and a brief statement of each crime given by a New York paper, Dr. Newton proceeds to give reasons for the homicides in detail. This is what he says by way of explanation:

"New York is one of the hardest places in the world in which to analyze crime. One of the chief motives of crime is the publicity given to it. It allows every criminal to keep thoroughly posted as to what is done with his own class, what is the character of the punishment, and the number accused who escape punishment. The relations between the criminals and the police are well known. The police certainly have no deterrent effect upon the

criminal, for there are numerous cases in which they acted as intermediaries.” And further he says: “I believe that this great wave of crime which has suddenly come upon New York within the last few months is due solely to the opportunities which the evil-disposed, but not yet criminal, have of mixing with this dangerous element. In foreign countries crime is restricted, and the criminal readily found, for the reason that he is compelled to associate with people of his own class, and the only public places he goes to are known as thieves’ dens. In no city in the world but New York are men whose pictures are in the Rogues’ Gallery and known to every police official, allowed to enter reputable hotels, restaurants, theatres, etc. There is not only less crime in the large continental cities than here, but crime is surely punished. When the reputable citizen is robbed or assaulted, he knows or suspects where the criminal came from, but here criminals go everywhere, and the person has really no protection from them.”

In regard to suicides, the Medical News says:

“New York City is not the worst of the cities of the United States in the matter of its suicide statistics. By actual comparison it is only fifth on the list, St. Louis having the unenviable distinction of being first in this regard. It is a curious reflection that St. Louis, with its German population and the reputation the city has acquired for the manufacture, if not the consumption, of a large amount of high-grade beer, should occupy the same place in suicide statistics that was held for a long time by Munich, in Bavaria, which enjoys the distinction of supremacy in the same line of business.”

In General Bingham’s report for 1907, it is recorded that the New York police arrested 204,119 for the year. Out of this number no less than 92,045 persons were arrested for intoxication, disorderly conduct, and the violation of the Liquor Tax Law. As can be readily seen, all of these arrests were the direct result of the licensed saloon. In other words, if there were no saloons or intoxicants in this city, more than 92,000 persons would have been immune from arrest and imprisonment. These facts speak for themselves, and need not the impassioned eloquence of the orator to make them clear.

In his report for 1908, the Commissioner omits all mention of the arrests for intoxication and disorderly conduct, but places these offences under the head of misdemeanors. This was done, no doubt, to ease the consciences of

the rum and beer interests, who do not want to see in cold type the number of persons who are daily ruined by this damnable business.

Last year there were 244,000 arrests in Greater New York. Judging from the figures of other years, one half must be laid at the door of the saloon.

The following table, which we received from the State Department of Excise, shows the number of liquor tax certificates in force, and the money received therefor. This table covers what are known as the five boroughs of Greater New York:

LIQUOR TAX CERTIFICATES AND MONEY RECEIVED.

| <i><b>Boroughs</b></i>     | <i><b>No. Ctfs. in<br/>Force.</b></i> | <i><b>Money Received.</b></i> |
|----------------------------|---------------------------------------|-------------------------------|
| Manhattan and the<br>Bronx | 7,015                                 | \$7,876,561 09                |
| Brooklyn                   | 3,836                                 | 3,632,191 91                  |
| Queens                     | 1,344                                 | 513,095 65                    |
| Richmond                   | 479                                   | 181,523 75                    |
| Total                      | 12,674                                | \$12,203,372 40               |

From these figures it will be seen that the license tax paid the State for the privilege of selling rum, which damns our fellow men, amounted in 1907 to \$12,203,372.40.

In an article of mine which appeared in Harper's Weekly for March, 1907, I computed the cost of crime in Greater New York, in a tabulated statement, at \$35,552,134.34, which is about a third of the entire expense appropriated by the Board of Apportionment for running the city for the year.

It ought to be known that the churches, chapels and mission halls of Greater New York, of all denominations, Protestant, Catholic and Jewish, number 1,200. The number of licensed saloons, on the other hand, in these boroughs, is 12,674. That is to say, the Devil has more than ten saloons in

Greater New York for every church. This is a sad reflection on our Christian civilization. But it is true.

The cost of the congregational and charitable work of the 1,200 churches and chapels of Greater New York is not more than \$8,000,000 a year—possibly less.

But the gross receipts of the 12,674 New York gin mills are not far from \$250,000,000 a year!



## CHAPTER XXXI

### THE ANGELS OF THE TOMBS

To a score at least of ladies of every nationality, creed and culture was the term Tombs Angel given the past seventy years. But out of this number only two ladies by their good deeds had obtained a distinct and permanent claim to the title. These were Mrs. Ernestine Schaffner and Mrs. John A. Foster. The first of these ladies was a native of Hesse-Cassel, Germany. She began her labors in the city prison more than thirty years ago, and became noted for her generous and valorous deeds. Being a widow and in good circumstances, she was able to contribute time and money to aid the unfortunate, so that her services were in great demand. As she was the owner of some real estate in this county, she was able to furnish bonds to hundreds of prisoners, many of whom after they had secured their liberty skipped the country.

To facilitate matters in her chosen work, Mrs. Schaffner opened a law office on Centre street, where friends and relatives of prisoners could call and consult her on all legal matters, without money or price. On many occasions, the late Recorder Smyth, for the sake of protecting her from lying crooks, refused to take her on a bail bond. Although her work was entirely of a humanitarian character, she helped all persons without regard to creed, race or nationality. It might be interesting to know that the first case that attracted Mrs. Schaffner's attention to prison work was the attempted suicide in the East River of a young German. After he was fished out of the water, he was committed to the Tombs Prison, where Mrs. Schaffner sought him out, took a deep interest in his case, greatly encouraged him, went on his bail bond, furnished him with a lawyer, and finally secured his discharge. Mrs. Schaffner was a very charitable lady, and did many acts of kindness from time to time, for the inmates of the Tombs.

About ten years ago I had the pleasure of meeting her, and talking over her early labors in the City Prison. She seemed to be a very interesting woman, and intelligent. If she had written a book on her experiences with crooks and how they had disappointed and deceived her after she had expended on them \$50,000, she would have chronicled lies big enough to make your hair stand. It is said she died in poor circumstances, about six years ago.

The second Tombs "Angel" was Mrs. Rebecca Salome Foster, the widow of Gen. John A. Foster, a veteran of the Civil War. She began her philanthropic work as a "Prison Angel" about the year 1886-7. She was a woman of much ability and considerable force of character. She was quick in her movements, generous to a fault, and ready to help everyone in time of need, regardless of creed, color or race, and, of course, was often greatly imposed upon by people who used her for selfish purposes.

As her husband was a well known lawyer in his day, and had been a general in the Civil War, this fact gave Mrs. Foster at the start a great amount of influence with judges and magistrates, which would have taken others of lesser note many years to acquire.

At first she confined her labors to the Police Courts and District Prisons, where she gave help to women and girls who had been locked up for petty offences. But for the last ten years of her life she confined her labors to the Tombs Prison almost exclusively.

It is interesting to know how Mrs. Foster began what proved to be her life work as an angel of mercy among prisoners. As I received it directly from her own lips, I feel sure that I have the true account of what is generally believed to be the beginning of a most useful life. The whole thing seems to be providential, and clearly shows how the channels of a life may be changed for good by an insignificant event.

When General Foster was yet alive, Mrs. Foster was called upon to go hurriedly to a police court to intercede on behalf of a boy twelve years of age, the son of a washer woman, who worked occasionally around the Foster home. The boy had been arrested for a petty offence, and General Foster had agreed to defend him in the Police Court, as he was innocent of any crime, but on the day when his case was to be called, the General was too ill to leave his room. He accordingly sent Mrs. Foster with a note to



Magistrate Hogan, who was then sitting at Jefferson Market Police Court, asking for an adjournment of the case. When Mrs. Foster reached the court, the case was then on, and when the opportunity came she made such a powerful plea that the Magistrate discharged the boy. He then thanked Mrs. Foster for the interest she took in the case, and as she was about to leave, the Court called her attention to the case of a young, homeless girl, who had been arrested that day for soliciting on the street. The Magistrate asked Mrs. Foster to investigate the girl's story before he took final action, as he did not wish to send her to the Island, where she would be ruined by association with the depraved inmates of the work house. Mrs. Foster made the investigation, had her paroled in her own custody, and then sent her home to another part of the country. By these acts of kindness, the girl was saved.

One of the most celebrated cases of the day, that brought Mrs. Foster's name prominently before the public, was the trial and conviction of Maria Barberi, for the murder of Dominico Catalonia, in July, 1895. Miss Barberi was a woman of considerable intelligence. She had been greatly wronged by her lover, who refused to marry her. While suffering mental agony brought on by remorse of conscience, when she saw herself ruined and disgraced as she then was, she killed Catalonia.

While she lay in the Tombs Prison, Mrs. Foster took a deep interest in the case of this Italian woman, and aided her in every way possible. During her trial in the Criminal Court Building, she stood by her side as her best friend. The jury found her guilty. On the day she was sentenced to the electric chair, she swooned when brought to the bar. As she lay in the arms of Mrs. Foster, the Recorder passed sentence of death on her. The same day she was taken to the State Prison. Being in a state of nervous collapse, Mrs. Foster accompanied her to Sing Sing, and was locked in the same cell with her from 5:30 p. m. until 8:00 next morning. That was a sad and dreary night to Mrs. Foster, and seemed long enough to be a year! In that cell Maria Barberi, utterly exhausted, slept and moaned alternately all night, oblivious of her dismal surroundings. During the entire period Mrs. Foster ministered to her needs. There was a solemn stillness everywhere in that sepulchre of the living during those fifteen hours. And the only sounds that could be heard were the tramp, tramp, tramp of the keepers and guards as they patrolled the yards and corridors of the great prison.

In the morning, Miss Barberi was so far recovered that she could be left alone, and Mrs. Foster returned to New York.

After that night, prison life was no longer a theory to the Tombs Angel, but a stern reality.

Mrs. Foster could enter into the fullest sympathy with such people, and give them encouragement. The following year, the Court of Appeals granted Miss Barberi a new trial, and she was in the end acquitted, and is said to be living in this city at present.

Mrs. Foster was killed at the Park Avenue Hotel fire, in March, 1901, and her untimely death has been deeply regretted.

Prison Angels are born—not made. Many persons have tried to be an “Angel to the Prisoners,” but have failed, as no amount of training can make one.

Mrs. Foster during her long and useful life, was a very charitable lady, and in course of a year gave away much money, clothing, shoes and railroad tickets and meals, to hundreds of men and women as they came out of prison. That she had been deceived scores of times by worthless “fakirs” cannot be denied, yet she continued in this thankless work down till her untimely death. In early life, she had the means to give away, and she gave it with a lavish hand. But much of the money, clothing and railroad tickets which she so generously gave to “panhandlers” and crooks just out of prison was worse than wasted, as a great deal of it went for drink, and before long all those “bums” which she had helped were back in the Tombs again. I can recall at the present moment a person of this character, receiving money from Mrs. Foster on a Sunday afternoon to go, as he said, to his home in Connecticut, where he said his friends would give him employment. She was careful when she gave him the railroad fare to hand him a postal card, requesting him to write a few lines when he arrived at his destination. For weeks afterwards, whenever I met her, I asked her if she had heard from the fellow whose fare she had paid to Connecticut. But she always replied in the negative. That worthless fellow was a sample of hundreds of others who had been befriended, but who used the money for drink. My own impression was that he never left the city. When I afterwards came to place him, I found that his name was Murray. I then remembered

that he was a chronic “dead beat,” and always took a special delight in swindling tender-hearted humanitarians.

One of the last cases that Mrs. Foster took an interest in before her death was that of Florence Burns, who was charged with the murder of a young man named Brooks. The examination took place in the Court of Special Sessions, before Justice Meyers, who acted the part of a sitting magistrate. The District Attorney was represented by one of his assistants, and ex-District Attorney Backus, of Brooklyn, represented the defendant. Justice Meyers, who is the personification of fairness in his rulings, satisfied both sides. During the hearing, which lasted several days, Mrs. Foster stood by the young woman as her best friend, when all others had apparently forsaken her. But this is just the kind of work Mrs. Foster had been doing—of the most unselfish and loving character to prison unfortunates for nearly twenty years. A year or two before her death, a couple of lying officials of the Tombs told her an untruthful story about one of the missionaries. As soon as she learned how these officials had deceived her, she shunned them forever afterwards.

As is well known, some of the habitués of “Bummers” Hall become very religious after their own way, and are ready to believe in any or all the creeds of Christendom, provided they can make a few dollars out of the credulous.

I have found that when these fellows try to sell you a “gold brick” or borrow money from you, the best thing to do is to “drop them.” Nearly all of them possess unlimited cheek, more especially as borrowers and beggars. After they have duped you, they chuckle over their smartness.

A Tombs keeper asked one of these chronic “panhandlers” why he did not buy his own tobacco. He replied: “What’s the use, when you have so many ‘suckers’ around here?” A maiden lady, the daughter of a city clergyman, was in the habit of doing missionary work in the prison.

In those days, there was a tall, slick gentleman, who had a remarkable oily tongue. He occupied a cell in the old prison, immediately behind the desk. This crook was able to ingratiate himself into the affections of this young lady, so that he was able to secure from her no less than seventy to one hundred dollars, together with a good deal of warm clothing, and two or three meals prepared at her own home weekly. With the money received, he

had one of Begg's men fetch a pint of "booze" daily. When it was discovered he was immediately shipped to the "Annex," and all his privileges cut off. Soon after this he was sent to Sing Sing, where he served about five full years.

It is the commonest thing in the world for a crook to ask the assistance of a lady missionary to get him out of prison, and present a "gold brick" story that is nothing but deception and fabrication from first to last. After hearing hundreds of these stories made out of "whole cloth," I have come to the conclusion that criminals, with rare exceptions, are born liars, and they seldom tell the truth, although it would do them far more good in the end. I have found by careful observation that anyone who has started in to cover up his guilt with lies is in a hopeless state of depravity, and remains beyond the reach of even the Gospel. But it is not alone missionaries and Tombs Angels that are deceived by such characters, but all who give credence to what they say.

Crooks as a rule read the missionary's character, and soon find out who are the "easy marks" in the prison. As soon as they find a person—usually a woman who is sympathetic—they pour into her ear a tale of woe in which the crook presents a real case of injured innocence and persecution.

Oftentimes people living at a distance write to the authorities asking that something be done to save heinous offenders who are not entitled to any sympathy whatever. And many times young ladies of good breeding and respectability come to the Tombs and ask to see old crooks whose pictures they had perhaps seen in the morning papers.



## CHAPTER XXXII

### WEDDINGS IN THE TOMBS PRISON

Marriages have been performed in the Tombs Prison since it was first opened in 1838, by clergymen of all denominations, Protestant, Catholic and Jewish, without the least objection. During its long and eventful history it may be said truthfully that Cupid's arrows have penetrated the gloomy old walls of this dark prison scores of times, where in such cases the love-making ended in a marriage ceremony in which two hearts were made one.

It ought further to be said that these Tombs weddings are of two kinds: Voluntary and involuntary. The latter kind is performed at the request of the Judges of Special Sessions. When a woman goes to the Superintendent of Outdoor Relief in this city, and swears that she and her babe are liable to be a town charge because John Doe, the father of her illegitimate child refuses to give them a support, he is forthwith arrested. If convicted after a fair trial, he is given the alternative of going to prison for a year, marrying the girl, or paying her a weekly allowance. As a rule, if poor, he marries her, as the easiest way out of his troubles. As soon as the knot is tied, "they go on their way rejoicing," provided everything is all right, and the case against him falls to the ground.

We regret to say that many of these marriages are a failure, simply because the male end of the contract gets mad at being forced into matrimony against his will, even though he knows that he has ruined that girl. As there is seldom any love in such a match, we find in a great many cases after the ceremony is performed, the man runs away. The only redeeming thing about the marriage is that it has saved the name of the mother and child from lasting disgrace. And from henceforth she has a claim upon him for legal support, no matter where he may go. Of course, I always explain the nature of such a marriage to the bridal candidate. If she

is willing to take her chances in the lottery of life, and is satisfied, I am always willing to do my part to help her with my services, and for this reason, if he refuses to live with her, she can compel him to pay her alimony in any part of the United States.

But the marriages that attracted the most attention during these years were of persons who really wished to be man and wife, from choice. Of course, their wish is not always granted, for reasons best known to the authorities. The first marriage of this character which excited the people of the city was that of John C. Colt, who was convicted of the murder of Samuel Adams. This marriage took place November 18th, 1842. During the time that Colt lay in the Tombs he was repeatedly visited by one Caroline Henshaw, who had been his common-law wife. As they had never been legally married, Colt expressed a wish that they should be made husband and wife before his execution. The authorities at first refused to give the necessary consent, but afterwards gave permission and agreed that it should take place on the day of his execution, which was fixed for November 18th, 1842. At 11:30 on the fatal day, the bride appeared at the condemned cell, neatly attired in a straw bonnet, green shawl, claret colored cloak trimmed with red cord, and a muff.

Colt was remarkably cheerful for a man who was to die four hours afterwards, but it was his wedding day, and when should a man be cheerful if not that day? The ceremony, which took place in the condemned cell, was witnessed by Judge Merritt, the Sheriff of the County, Colt's brother, John Howard Payne, the author of "Home, Sweet Home," and several others. The bride and groom were allowed to be alone for one hour, after which he must prepare for death.

Two hours after she left him to change orange blossoms for sombre weeds, the sheriff and his deputies went to his cell to escort him to the scaffold, which was all ready, when to their amazement, they found that Colt was dead. The gallows had been cheated of its victim. The honeymoon of an hour was past, and he was cold in death.

Protestant chaplains more than once have been severely criticised for performing marriages in the Tombs Prison at the request of the authorities, but when marriages were performed by Catholic priests in the same place, there was no publicity given, nor were they in the least criticised.

On June 29th, 1897, a man named Max H. was married to an actress on the train between New York and Sing Sing. Max had just received a sentence of four years and six months in State Prison. He had asked the authorities to allow him to be married in the Tombs several days before, but they positively refused. At the Grand Central Depot his lady love boarded the same train on which he was, with an Episcopal minister named Lindsay, who was a Tombs missionary. They were bound to be married. Dave Burke was deputy sheriff in charge of the prisoners going to Sing Sing that day. He consented to the marriage of Max and his lady love on the train, and they were married. Cupid could not be put off under any circumstances. The marriage would not have been known, but when the commitment papers were carefully examined at State Prison after the prisoner's pedigree was given, it was found that when Max was sentenced he was single, but when he reached Sing Sing he was married. This marriage on the railroad train created a great furore in New York, and as a result, the deputy sheriff was dismissed, and the minister soon afterwards left the city.

A few years ago, Lawyer Patrick, who was convicted of the murder of Millionaire Rice, wished to be married before he was sent to Sing Sing, where he has been ever since. Mr. Patrick took pains to sound the feelings of the authorities on the subject, with the result that objections were made against any such ceremony taking place in the prison. But Cupid in this case was smarter than the authorities. On the Sunday previous to his receiving the death sentence, three persons came to the prison, a lawyer, a friend and Patrick's lady love. The lawyer requested permission from the Warden to see the condemned man, which was granted in the Women's Prison, where a civil contract was signed, which made them husband and wife, according to the new law. The following day Patrick was taken to Sing Sing.

During the past six years a number of convicted men awaiting trial have begged to be married before going to prison, but I have positively refused, as I found on inquiry that the object in view was solely to secure clemency for some miserable scoundrel on the day of sentence. A recent case was that of a girl named Stella Hamilton, a native of Connecticut. She called at the Tombs more than a dozen of times, and begged to be married to a convict named Williams or Willinsky. This man was a convicted pickpocket, and had served three or four terms in prison already. She told a romantic story that moved many hearts. Her story was that more than a year ago she had



been saved from drowning by this man, and now she wished to marry him in return for saving her life on that occasion. Since then it has turned out that the whole romance was a scheme to get clemency for Williams.

A few years ago, a crook asked the Chaplain to marry him to a woman he had wronged, and with whom he had lived as husband and wife. I refused, as I knew him to have a criminal record. The woman had not known this, but should have made an inquiry into his character before entering into such an alliance. He wished the marriage to take place so as to secure sympathy, and save her name. After he had gone to prison, the woman followed him, and asked the Warden to permit the ceremony to take place, as soon as possible, to save her good name and that of the child, but he refused. Then she called on a Supreme Court Justice, who resided in the neighborhood, and stated her case to him. The Judge gave her an order which was served on the warden of the Prison, compelling him to permit the marriage to take place, which was performed by a minister of the Gospel the following day.

It seems the law is very clear on these things. If a man has wronged a woman under a promise of marriage, the fact that the man is in prison does not deprive her of her rights before the law. If they are both willing, she can marry him in spite of busy-bodies, judges and prison authorities.



A scene in the Tenderloin Station House at midnight.



MRS. JOHN A. FOSTER, The Tombs Angel.



CORNELIUS V. COLLINS,  
Superintendent of State Prisons.



## CHAPTER XXXIII

### AFTER SENTENCE, WHAT?

After a person has been convicted of a felony in New York County, either in the Criminal Branch of the Supreme Court, or in the Court of General Sessions, if the sentence is a year in prison, or less, he is sent to the New York Penitentiary on Blackwell's Island. But if he is sent away for more than a year, he is taken to Sing Sing, or Bear Mountain, the new prison on the west bank of the Hudson, where if he is a first offender, he is detained till he has finished his time.

As soon as he leaves Court, he is taken in charge by the Sheriff, or one of his deputies, who hurries him off soon after to the prison destined for the fulfillment of the sentence.

In the case of those who have been sentenced to the electric chair, they are taken the same day to the place where the sentence is to be carried out. The reason for this is obvious. While in the Tombs or Raymond Street jail, Brooklyn, he is visited by his friends, who might aid in his escape or death by suicide. As the Sheriff knows from experience that it is best to take no chances, he hurries him to prison at once. After he reaches the death house, he is never again allowed to shake hands with any of his friends, lest they might communicate to him poison or a knife.

After reaching prison, the prisoner is practically dead to the world, except that his friends may visit him monthly. Some will return to citizenship again as honest men; others will never pass through the gate till they are carried out to a bed of lime in the little cemetery on the hill-side.

During the transition from court to prison, kaleidoscopic scenes pass through the brain of the prisoner, and are continued indefinitely in his little 3×7 cell, where he spends his first sleepless night.

In England all persons sentenced to penal servitude for a period of two years and over, are sent to what is called the Central Prison for six months for the purpose of observation. This is done that the authorities may be able to put the prisoner to some work best suited to his nature. The Central Prison is the Experimental Station of the English system. The inmate's physical, mental and moral nature are carefully inquired into, and observations made. This reform was begun about a third of a century ago, and has met with success.

After the newly arrived prisoner enters the Sing Sing or Bear Mountain Prison reception room, he is interviewed by an official, who forthwith takes his pedigree. If the prisoner happens to have any money or valuables, he is relieved of the same, and a receipt given him. They are returned when he leaves the prison.

As soon as the reception is over, he is taken by a keeper to the State Shop. This is the storehouse for clothing. Here he receives a suit of clothes, including underwear, shoes, stockings and cap. The next place is the bath house, where the prisoner has the privilege of staying fifteen or twenty minutes, after which he dons his prison garments, and is sent to his cell for the night. "Some men have a natural aversion to water, and refuse to take a bath when they come here," said the principal keeper of a large State institution, as he showed me around his establishment. Being anxious to know what they did in such a case, I asked: "What then?" "Oh," said the P. K., with a twinkle in his eye, "we fix 'em all right." I said, "How do you do it?" "Well," he said, pointing to a corner of the large stone bath-house, "We set 'em up there, and turn the hose on them. The fact is," said the P. K., "we give the kickers a good soaking, and then tear the clothes off their back, and they never rebel against a bath afterwards. It cures 'em, sure."

This is the first step in the transformation of the prisoner. Next day he is taken before the P. K., who carefully interviews him, to know just what particular work he is best fitted for. The P. K. may interview him daily for three weeks or even a month before sending him to one of the shops. If his health is not good, the prison doctor may be called in, and if suffering from some contagious disease, he is sent to the hospital, or if it is found that he has incipient or chronic tuberculosis, he is sent to Napanoch, in the Ulster Mountains, or Clinton Prison, in the Adirondacks.

These steps in the reformation of the criminal are little known to the outside world. But they are all necessary and important, and carefully observed by our State prison authorities.



## Prison Classification

The proper classification of the inmates of our prisons is a most important part of their treatment, looking to their reformation. This is something that has been sadly neglected in the past by nearly all of our prisons and reformatories. Elmira Reformatory is the exception, as it comes the nearest to the proper classification of prisoners of any institution in the country. It is nothing less than a crime to allow novices to associate with hardened offenders, either in shops or yards, where they can freely converse together. Such an association soon changes the first offender into a real criminal who goes forth when his time is finished with his brain all aflame to commit crime.

## A Real Prison Reformer

One of the best of our modern prison reformers is Mr. Cornelius V. Collins, of Troy, N. Y. Since 1898 he has been Superintendent of State Prisons, and has given excellent satisfaction, not only to many of our leading reformers, but to the men in prison. He is a man of energy and ability and knows how a prison should be conducted, and is intensely practical in everything he does. Since he has had charge of our State prisons, he has inaugurated many valuable reforms which have been a blessing to the inmates, which easily leaves him in the front rank of prison reformers. It was through Mr. Collins' enterprising efforts and practical foresight that the Star of Hope was first started soon after he became Superintendent of Prisons. He saw the great need of such an educational helper, as well as the importance of utilizing the intellectual strength of the men and women behind the bars, and having a splendid printing plant then lying idle at Sing Sing, he felt the success of his new enterprise was assured.

Since then many of the other prisons outside of the State have monthly publications, but none of them can be compared to the Star of Hope for enterprise, dash and intellectual vigor.

Mr. Collins has made so many successful reforms in the penal institutions of this State since he became Superintendent of Prisons, as to commend him favorably everywhere. Many of our prison wardens and reformatory superintendents are good practical men, but they have not been able to carry out the reforms which were necessary even in their own institutions. Mr. Collins having had the courage of his convictions and the support of the State Prison Commission behind him, saw to it that his own reforms were strictly carried out.

In regard to the Parole Law, if Mr. Collins is not the author of it in its entirety he certainly suggested most of it, and worked harder for its passage than any man living, and it would have been vastly more comprehensive, if it had not been for some men who objected to it being applied to first offenders charged with more serious offences. If Mr. Collins had done

nothing but champion this one law he would have deserved the lasting gratitude of good men everywhere.

Before we can rightly understand the advances in prison reform that have taken place the past hundred years, we ought to be familiar with the treatment accorded prisoners in the early centuries of the Christian era and for hundreds of years afterwards. The prisons we read of in the ancient world were places of pestilential horror. They were dark, damp, and unsanitary dungeons, from which the sunlight was entirely excluded, where the chains rusted on the arms and feet of the prisoners, and where they were frequently left to die of starvation.

The ancient method of dealing with criminals was threefold, namely, death, exile and physical punishment or torture. Some of these methods prevail in some parts of Europe to the present time. But the Christian ideal of prison management is several steps higher. It has not yet reached it, but it has been forcing itself upon the world for many years. We believe a prison ought to be a place where the offender against human law is to be reformed or Christianized, and afterwards restored to society an industrious and useful man.

The prevailing idea in some of our criminal courts is that the average prisoner is not only a dangerous character, but also a hopeless moral and social defective and must be restrained and punished permanently. After the criminal has been sent to a penal institution, the authorities there, as a rule, seem not to care whether he is reformed or not. Indeed, the prisons of to-day, with few exceptions, cannot reform the unfortunates therein, as they are not conducted on Christian principles nor by Christian men. Our legislators have not yet learned that the only positive reclaiming force in the world for criminals is the religion of the Lord Jesus. Not only is this true, but many of the persons who manage our prisons do not believe in religion themselves and certainly have little faith in it for others.

There is so much indefiniteness of idea as to what prison reform is, that it would be well at the outset to say what we mean by it. We would define prison reform not only as the reformation of the prisoner, but the more efficient management of our prisons by men of fitness and experience in the interest of humanity and economy.

Among the other reforms inaugurated by Mr. Collins since he took charge of our prisons of this State was the abolition of the lock-step. All men that are now sent to our prisons are drilled by a regular military instructor and march no longer to the mess hall or the shops in the lock-step, but as soldiers. This gives them a manly bearing and helps their general health.

Some of Mr. Collins' other reforms consist of the abolition of the convict striped suit for first offenders, and no longer cutting the convict's hair short, except for sanitary reasons. Abolition of tin plates and tin cups used at meals and crockery substituted. The numbering of each one's laundry and permission given to first offenders to wear "honor bars" on their sleeves for good conduct, which gives them special privileges. Mr. Collins has raised the moral tone of our prisons in other ways, all of which shows him to be a man of energy and of a practical turn of mind.

There is one other place where reform can be carried out to good effect. In nearly all of our State prisons and penitentiaries there are suppressed murmurings over the prison food. Coarse food that is not eaten is dearer in the end than palatable food that is consumed with a relish. For the purpose of having good discipline in our large prisons I would suggest the following: Put every inmate on his good behavior and give the men a chance to earn three good meals a day.

If they are well behaved, let them eat at the Warden's table. This plan is no longer an experiment, for it has been tried, it is said, in some of our Pacific prisons, and works like a charm. The old saying that the best way to reach a man's heart is by his stomach has been found true.

Let there be three tables in each prison.

1. The first table is for men against whom there is no mark for rudeness or breaking the rules for one whole month and who do their work well. The board is first class at this table and each convict is entitled to a napkin. They are allowed to converse with each other and have waiters. Call it the Warden's table.

2. The second table contains the regular prison fare. It is for those who rebel against doing their work or wilfully disregard some of the rules of the

institution. The table is made of plain pine boards. Here they eat their food in silence, without table cloth or napkin.

3. The third table is called "Bread and Water." For their meals three times a day they receive plenty of dry bread and an unlimited quantity of water. When they are confined to their cells for bad conduct the bread and water is brought to them.

When this course was first tried on the Pacific Coast, it was found that at the end of three months, one-half of the men were able by their good conduct marks to secure a seat at the best table. At the end of six months two-thirds of the men sat at the first table. After a year's experience nine men out of every ten were able to keep the law and behave like gentlemen, so as to sit at the best table. This change has wrought wonders in some of the prisons of California.

I do not believe the criminal is the victim of an unavoidable destiny, or that there is any inexorable necessity for his continuing the life which makes him a social anarchist, or that he is beyond the reach of reform. I believe if you treat him kindly his better nature will respond to it and he will show himself a man. That crime is a moral disease that is transmitted, the same as depravity, I believe to be true. I believe further that early training, environments and cross-grained individuality will account for nearly all of our present day criminality.

Some one has said: "The soul of all reformation is the reformation of the soul." If such were the aim of the prison authorities, the prisoner's transformation would only be a question of time. But this is not the case, and such an object is far from their mind. Yet the religion of Jesus Christ is the only thing that gives permanency to character. At the present moment the reformation of the criminal and his return to freedom again as a man among men, never enters the mind of the majority of our prison officials. All they care for is simply to hold their charges in safety until their term expires, then turn them loose again no better than they were before. The one great reason for this is that the heads of departments are politicians and are given office simply because they are a controlling power in their ward or county. They well know when they take office that their tenure is exceedingly brief, and they must make hay while the sun shines, by disappointing their enemies and rewarding their friends.



## CHAPTER XXXIV

# THE INFLICTION OF THE DEATH PENALTY IN THE TOMBS

Friday has always been known as hanging day at the Tombs. It was the day set apart from time immemorial and the New World continued it in deference to Old World customs. Friday with few exceptions had been adhered to in New York County for over fifty years, and the spectacle brought together a large concourse of people, largely of the noisy class. In the early history of New York criminals were executed in vacant lots north of Canal Street and also on Blackwells Island.

After the opening of the Tombs in 1838 it was ordered by the authorities that all hangings should take place within the prison enclosure. As the walls of the prison were from ten to twelve feet high, the people that owned property around the Tombs took advantage of the occasion and charged from one to five dollars for seats on the roof of the houses for people who cared to see the hangings.

As we have intimated, the city on such occasions presented a holiday appearance and brought together a large number of people from the surrounding villages. They remained within sight of the building from early morning till they saw the black flag hoisted, which announced that the victim had been launched into eternity.

But the whole scene was such a gruesome spectacle that no refined person cared to see it, and a large number of people considered it a godsend when the hangman's job was given to the State Electrician and the work transferred to the death house at Sing Sing.

The first and earliest Tombs homicide that attracted much attention and excited the people of this city, was that of John C. Colt, charged with the murder of Samuel Adams. Colt was a professional penman and teacher of bookkeeping; he had an office on the second floor of a building on the corner of Broadway and Chambers Street. Samuel Adams, a printer, was in the same building. Colt had written a work on bookkeeping and Adams had printed it.

On September 17th, 1841, Adams came into Colt's office, where the two men had a heated discussion over the printing bill which Adams was trying to collect. Several hard words passed between the men, such as liar, cheat and so forth. Then Colt up with a hammer which lay on the table and rained several blows on Adams' head. There was a brief struggle after which the printer lay on the floor in a pool of blood.

In the next room a man named Wheeler was busy at work. He had heard the loud words between the two men and the struggle; he was curious to know what it all meant. In a few minutes he went to Colt's door in the hall, peeped through the key hole, and was startled with what he saw; he returned to his room, but said nothing to any one. After a few days Wheeler reported what he saw to the authorities and became an important witness for the State. Next day Colt put Adams' body in a box and shipped it to New Orleans.

The vessel was delayed for a week by storms. Before the ship reached its destination, passengers and crew were overcome by a terrible stench that came from the hold of the vessel. After a thorough investigation, Adams' body was found in a box among the freight. The authorities were notified and the box traced back to where it came from. As a result Colt was arrested and indicted for murder in the first degree. Colt, after he had been in the Tombs for a few weeks, made a confession, saying the crime was done in self defence. The trial lasted ten days. The jury brought in a verdict of murder in the first degree, and Colt was sentenced to be hanged November 18th, 1842.

On the day of his execution, when the Sheriff went to Colt's cell to prepare him for the last struggle, he was startled to find him dead. Just then the cry of fire was raised, which caused intense excitement among the officials and prisoners in their cells.



The lurid glare which came from the burning cupola and which cast a shadow on all sides, attracted wide attention and a great crowd of people. After the fire was extinguished and order once more restored, Colt was found in his cell in a pool of blood. Many persons in the city believed that the burning of the cupola was a well designed scheme to save Colt from the gallows, and in the midst of the excitement Colt escaped through one of the side doors by the aid of powerful friends and a dead body from one of the hospitals was substituted in his place. A few years ago Charles Wesley Smith, a resident of New York, informed the writer that he was present at the burning of the Tombs cupola, November 18th, 1842. A great crowd came to witness the raising of the black flag which was to be the final act in the hanging of Colt and which announced to those on the outside that the sentence of the law had been carried out, but it failed and the general opinion was that Colt escaped.

Mr. Smith says that he stood in front of a blacksmith's shop, opposite the prison, in Centre Street, with many others, when he saw dense smoke coming from the Tombs cupola. In a few minutes there was great excitement in and outside of the building. In the prison yard it is said pandemonium reigned supreme, the shrieks and yells of the prisoners begging to be taken out of the building could be heard a block away. Soon after the firemen reached the prison they played a small stream of water on the fire, which quickly extinguished the flames, and it was all over in half an hour. The general prevailing opinion among the people of the city at the time was that a scheme had been carried out successfully which permitted Colt to go scot free. And that the cupola fire, which was a put-up job, aided him greatly in his flight.

During all of these years the regular hangings took place in the Tombs yard, and usually occurred between six a. m. and twelve noon. Hundreds and sometimes thousands of people waited on the street, or squatted on the roofs of buildings to see the sights, which were accompanied by drunkenness and disorderly conduct. On the site of the present Criminal Court Building, on Centre Street, was the Freight House of the New York, New Haven and Hartford Railroad Company, on the roof of which were often gathered a hundred persons waiting to see the black flag rise as soon as one was executed.

On August 21st, 1888, Dannie Lyons was executed. He had been a member of the "Whyo Gang," who hung out around Leonard and Centre Streets. They had put up a strong fight to save their comrade, Dannie, but it failed. The gang numbered about thirty or forty persons and was made up of some of the worst desperadoes in the city. And when all their efforts failed they had threatened to make trouble in the "Bloody Sixth Ward." On the night of August 20th, they spent the time in a low dive on Mulberry Street near the Bend. They were in front of the Tombs early on the morning of August 21st. Most of them had booze and were in a sullen frame of mind and were ready for trouble. The presence of the Elizabeth Street Police overawed them and everything passed off quietly. Dannie Lyons' father was at the prison and appealed to the Warden for the privilege of seeing his son executed, but his appeal was denied.

On August 23rd, 1889, four men paid the death penalty, the largest number ever hanged on one occasion. They were executed one after the other in rapid succession. Their names were Ferdinand Caroline, Patrick Packingham, James Nolan and Jack Lewis. Hangman Atkinson was on hand, and it is said performed his duties with neatness and dispatch!

These Tombs hangings furnished a favorite pastime for the rougher element of the lower East Side, including Mulberry Bend and Chinatown. "How did the bloke take it?" was a common expression from one who had not the pleasure of being a spectator. The reply usually given was, "It was tame," or "He was game," or "I could do much better myself."

The execution of these men was the talk of the city for weeks beforehand. And although desperate efforts were made to save them, they failed, as the Governor refused to interfere with the sentence of the law.

The four men after being taken from their cells on "Murderer's Row," were lined up in the Prison yard beside their spiritual advisers. The first toward the gallows was Ferd. Caroline. As he was pinioned by the sheriff's men one could hear from the adjacent building crumbs of comfort for poor Ferd, who was rather sad that morning. As he stood on the scaffold some one cried, "Brace up Ferd, be a man." After him came Patrick Packingham, who was of a rather melancholy disposition and who had to be helped on the scaffold. "Paddy," said one of his companions, "Cheer up, we're coming

after you.” Then came “Jimmie” Nolan and Jack Lewis, jollyng each other in the course of their preparation for death.

The last man who had the “honor” of being hanged in the yard of the Tombs Prison was Harry Carlton, better known as “Handsome Harry,” which took place December 5th, 1889. Carlton was said to be a daring criminal, and had an exceedingly unsavory and nervy record for fifteen years previous to his death. He was convicted of the murder of Policeman James Brennan, whom he shot on the night of October 26th, 1888, in Fifty-ninth Street near Second Avenue. On the morning of his execution, when they awoke him out of a sound sleep, he asked the time of day. When they informed him it was five o’clock, he replied, “Great Scott, my time is getting short.”

Carlton’s father came to the Tombs that morning and begged Warden Osborne to permit him to see his son pay the penalty of the law, but the Warden denied his request. Shortly after seven, Carlton heard the Death Warrant read. Soon after he was led to the scaffold, where Hangman Atkinson adjusted the rope and put the black cape over his face, and at seven twenty-nine a. m. the drop fell and he was launched into eternity. In five minutes afterwards his lifeless body dangled on the scaffold. At nine-thirty a hearse drove into the yard and his body was put in a casket and taken to the cemetery, followed by another carriage, in which were Carlton’s wife and child.

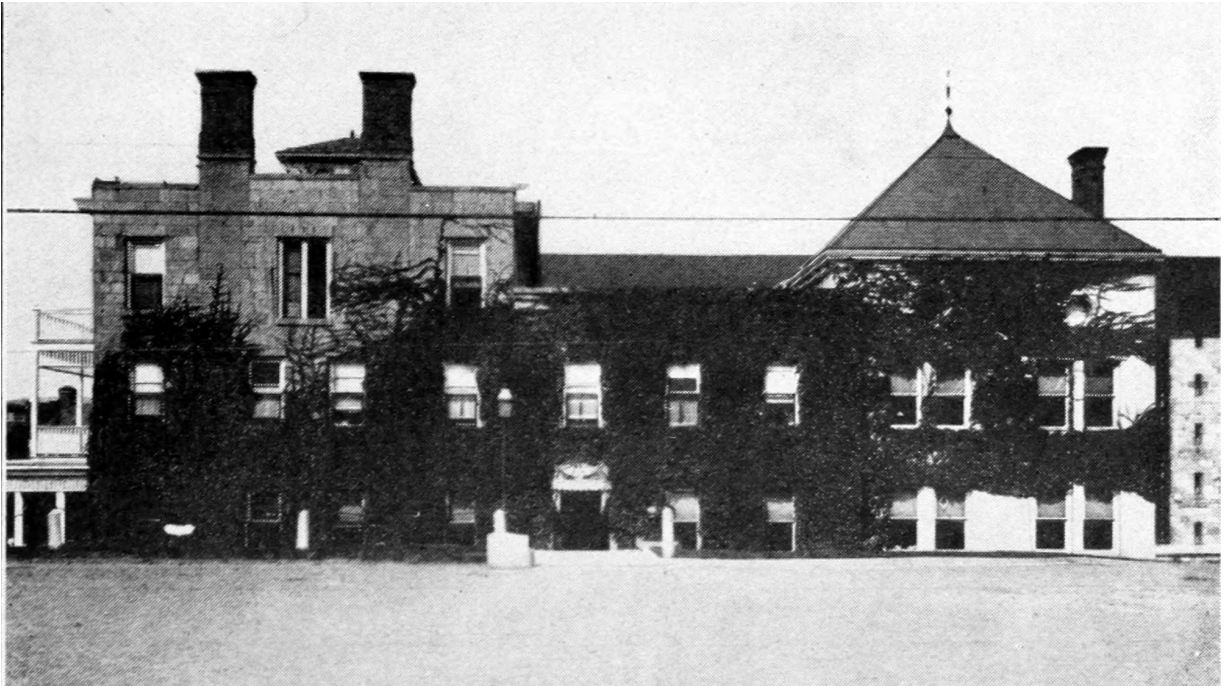
Up till last hanging in 1889, murder, riot and rowdyism were never more common, showing clearly that the Tombs’ execution had no deterrent effect whatever on the criminal classes of the city, but the opposite. Murder went on just the same. From the time when Colt killed Adams in August, 1841, till the present, the Tombs has not been without a score of homicidal inmates and many of them of good standing in the community. Carlyle Harris, Dr. Buchanan, Dr. Kennedy, Dr. Meyer, Albert T. Patrick, Harry K. Thaw and many others came from good families.

The following list of criminals executed from 1838 to 1889 is taken from the official records of the Tombs:

|                                |                         |
|--------------------------------|-------------------------|
| Patrick Russell                | December 8th,<br>1841   |
| James Eger                     | May 9th, 1845           |
| Charles<br>Thomas              | November 20th,<br>1846  |
| Matthew Wood                   | June 2nd, 1849          |
| Benson &<br>Douglass           | July 25th, 1851         |
| Aaron Stokey                   | September 19th,<br>1851 |
| Otto Grunsig                   | February 27th,<br>1852  |
| Patrick<br>Fitzgerald          | April 19th, 1853        |
| William Saul                   | January 28th,<br>1853   |
| Nicholas<br>Howlett            | January 28th,<br>1853   |
| Joseph Clark                   | February 11th,<br>1853  |
| James L. Hoarr                 | January 27th,<br>1854   |
| John Dorsey                    | July 17th, 1857         |
| James Rodgers                  | November 12th,<br>1858  |
| James Stevens                  | February 6th,<br>1860   |
| John Crimmens                  | March 30th, 1860        |
| Albert Hicks,<br>alias Johnson | July 30th, 1860         |
| Nathan Gordon                  | February 21st,<br>1862  |
| William<br>Hawkins             | June 27th, 1862         |

|                       |                        |
|-----------------------|------------------------|
| Bernard Friery        | August 17th,<br>1866   |
| Frank Ferris          | October 19th,<br>1866  |
| George Wagner         | March 1st, 1867        |
| Jerry O'Brien         | August 2nd, 1867       |
| John Reynolds         | April 8th, 1870        |
| John Real             | August 5th, 1870       |
| John Thomas           | March 10th, 1871       |
| William Foster        | March 21st, 1873       |
| Michael Nixon         | May 16th, 1873         |
| William<br>Thompson   | December 17th,<br>1875 |
| William Ellis         | December 17th,<br>1875 |
| Charles Weston        | December 17th,<br>1875 |
| John R. Dolan         | April 21st, 1876       |
| Chastian Cox          | July 16th, 1880        |
| Pietro Balbo          | August 6th, 1880       |
| William<br>Sindrain   | April 21st, 1882       |
| August D.<br>Leighton | May 19th, 1882         |
| Michael<br>McGloin    | March 9th, 1883        |
| Pasquale<br>Majone    | March 9th, 1883        |
| Edward Hovey          | October 19th,<br>1883  |
| Miguiel<br>Chacon     | July 9th, 1886         |
| Peter Smith           | May 5th, 1887          |

|                       |                       |
|-----------------------|-----------------------|
| Daniel Driscoll       | January 23rd,<br>1888 |
| Daniel Lyons          | August 21st, 1888     |
| Ferdinand<br>Caroline | August 23rd,<br>1889  |
| Patrick<br>Packingham | August 23rd,<br>1889  |
| James Nolan           | August 23rd,<br>1889  |
| Jack Lewis            | August 23rd,<br>1889  |
| Harry Carlton         | December 5th,<br>1889 |

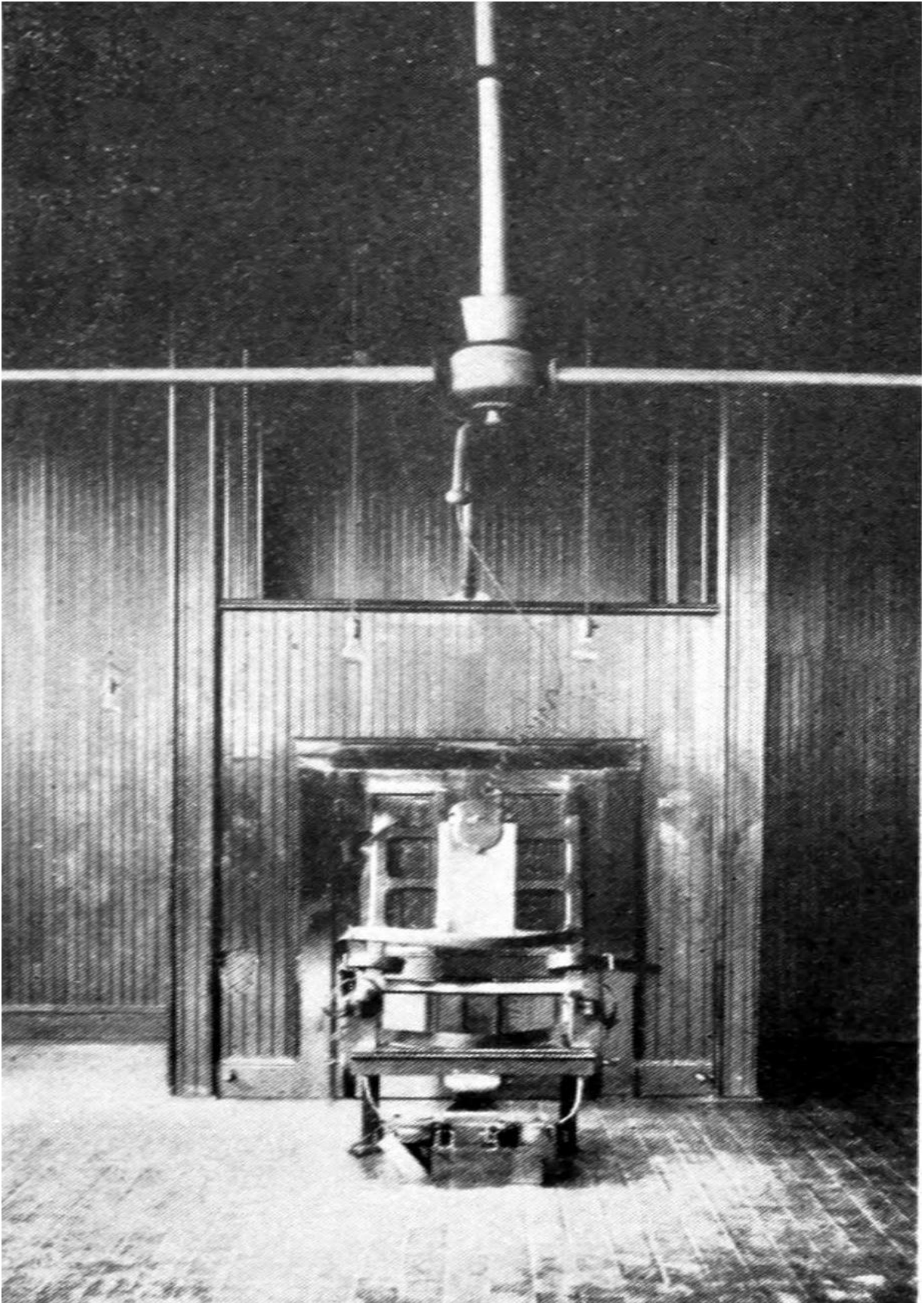


The front entrance to Sing Sing Prison.



The Protestant chapel. Sing Sing prison.





The electric chair in Sing Sing prison.



## CHAPTER XXXV

### A VISIT TO THE DEATH HOUSE AT SING SING

One of the never-to-be-forgotten visits of my life was the one I paid to the Death Chamber at Sing Sing on October 11th, 1900.

The visit in question was at the request of an inmate in whom I was deeply interested, and who was finally awarded a new trial by the Court of Appeals.

The edifice known as the Death House is built of solid stone and is oblong in shape. Its dimensions are 66×30. It has no windows on the sides. The only place the light comes in is through the skylight. At night the electric glare fills every part of it. The door is approached through a long corridor, which is locked at night so as to make the place doubly safe. When the Death House was first built, it contained eight cells of solid stone and steel. Since then two more have been added, making ten cells altogether.

Armed with an order from a Supreme Court Judge, which I presented to Warden Johnson, I was led along corridors and passageways till I came to the office of the principal keeper, who then took me in charge. After a brief delay we came to the inner door which is made of steel. A dull heavy thud from my guide, the principal keeper, brought the inside guard to the bull's eye. He then saw who were at the entrance without opening the door. In a few seconds I was inside the death chamber and the steel door was closed on me. I was then in a place the law calls a living tomb. It was as still as the grave. Not a word was spoken in the room above a whisper. As the shoes worn by the condemned men and keepers are made of felt, no sound came from their movements. These felt shoes are called "sneakers." The law says that all persons sent to the electric chair must be kept in solitary confinement and in silence till the sentence of the Court is carried out.

Perhaps I ought to say that the mode of changing the death penalty from hanging to electricity went into effect in the three State prisons of New York in January, 1890. The electric chair was set up in Sing Sing in the latter part of 1889, so as to be all ready the following year. On account of the uncertainty of the law, no electrocution took place in this prison until July 7th, 1891; then four men were electrocuted on the same day, one after the other. The names of these men are as follows: James J. Slocum, Harris A. Smiler, Joseph Wood and Schihiok Jugigo.

Nearly two years after the first electrocution, when the death house had five inmates awaiting the death sentence, Osmond, George Megan, Carlyle Harris, Thomas Pallister and Frederick W. Roche, the two latter prisoners made good their escape from the death chambers on the night of April 20th, 1893, and have never been seen or heard of since. These escapes caused a great sensation at the time, as they were the most daring that ever took place, and they seemed to be so well planned and successfully carried out that the general belief was that a dozen of people must have had a hand in it.

The manner of their escape from the doomed quarters was as follows: It had always been customary since the death house was first opened for the inmates to have food warmed at night on one of the stoves. Nor was it uncommon for the keeper in charge to let the prisoners come out of their cell and brew tea or coffee at midnight on a stove which stood in the centre of the room. On the night in question, Frederick W. Roche, one of the condemned men, requested Keeper Hulse to permit him to leave his cell so that he might warm some tea, as he had eaten no supper. The keeper readily acceded to his request as he had done so many times before, not thinking that anything was wrong. Just then Roche threw a handful of pepper into the keeper's eyes, which almost blinded him. Then Roche took away the keeper's pistol and keys, and locked him in the cell which he had just vacated and threatened to kill him if he made the slightest disturbance.

After he had opened Pallister's cell, he invited the other prisoners in the chamber to accompany him, but they all declined. When he requested Carlyle W. Harris to come with him, he politely refused, saying that as he was innocent, he preferred to wait till the Courts gave him a vindication. But the vindication never came, as Harris was afterwards electrocuted, the highest Court having denied his appeal. Pallister and Roche left the death

house by way of the skylight window, then dropped into the yard, a distance of fifteen feet. Strange to say, the yard keeper could not be found—where was he? And stealing a boat, which was afterwards found, they made for the river and disappeared. This looks like a put up job!

Strange to say, these jail breakers were gone nine hours before the authorities knew what had taken place. As soon as Warden Brown took in the situation, he dispatched searching parties on both sides of the river, but without the least success. He also suspended Keepers Hulse and Murphy, and Yard Watchman Maher, and then started a searching investigation to find out how it was possible for these criminals to get away as they did. After the investigation, the Warden exonerated the keepers and restored them to their positions.

Where they went to after leaving the prison, no one has ever been able to learn. A common opinion is that they may have been drowned in the river, as two bodies were afterwards found, but this is not sure. Most people seem to think that a schooner was awaiting them in the middle of the river and took them to South America, and the graft in the job amounted to \$5,000.

On the day of our visit to Sing Sing there were nine men in this doomed building, all under sentence of death. A week before the Court of Appeals had decided that one of the inmates, a Greek, should have a new trial, which left a vacancy. The persons then present in the death chamber were all well known to me except the two men from Brooklyn, who were Italians.

The whole scene presented to my mind a grewsome spectacle. I was then in the place for the first time, which Mr. Roland B. Molineux describes in his book as “The Room with the Little Door.”

The eight original cells are ranged in a row side by side against the south wall. The thick horizontal steel bars make you think of a cage of wild beasts. In front of each cell,—perhaps a foot from the steel bars, there is a closely woven steel wire netting which prevents a visitor from passing anything to the condemned man, or even shaking hands with him. All conversations must be carried on in whispers. A few doors away there is a little room which contains the death chair. All around it there are straps, belts and wires, which are used for fastening around the body and legs of the condemned man when the sentence of law is about to be carried into effect. As you again look over the audience in the death chamber,

unconsciously your blood chills and the cold sweat drops in beads from your brow. It is a dreadful place. Human beings waiting for the slaughter!

Here are the names of the inmates I saw that day: Roland Burham Molineux, Dr. Kennedy, Eddie Wise, Jim Mullen, Fritz Meyer, William Newfeldt and Druggist Priora.

The two condemned men from Brooklyn, Ferraro and Zigwers, I did not know and had no particular interest in them except one of pity.

I came that day to see Mr. Molineux, whom I had known in the Tombs as a courteous gentleman and one that everybody liked. It seems almost unnecessary to say that he received me with his usual blandness. As I came up to the steel woven screen he smiled at me. I remember he looked pale and worried! And his eyes were dull and heavy. I tried to give him a little comfort as best I could under the circumstances.

I knew that in time Mr. Molineux would secure another trial and it came, thank God, and I was one of the first to congratulate him after the jury had filed into Court and said, "Not guilty."

While I was speaking to Roland, Dr. Kennedy was having a visit from his wife. I saw her on the train coming up but I reached the prison some time before her as I came by way of the railroad track.

I had only a few words with Dr. Kennedy. I could see that he was in a state of great nervous excitement bordering on collapse, and no wonder, for his case was that day before the Court of Appeals. It was in the balance. The judges were then considering the circumference of the lead pipe which was the one thing in his case that led to a new trial. A sixteenth part of an inch decided his fate! I looked at Kennedy again and again; he was a study! His eyes were like balls of fire, his hair stood upright, his hands held on to the steel bars of his cage and braced him while he spoke to his wife. The strain was telling on him! His face was pallid and he looked as if he had not slept in a month. Not only did he look dejected and worried on account of the ordeal through which he was then passing, but he looked like a man almost beside himself. The Court of Appeals gave him a chance for his life, and after three trials failed to convict him, he was liberated. Since then the old indictment against him has been quashed.

There was another young man in the death house that morning. He was a New Englander—only a few feet away! It was Eddie Wise—an intelligent, wide-awake and bright young man. For several years he had led a wild life as the companion of criminals. What brought him here? Under the influence of cursed rum he took part in a “highway” in which the victim was killed in defending his watch and money. The other two “crooks” got away, and have never been found. This young man who simply looked on was held as a principal and convicted of murder in the first degree.

There is another man present who killed a companion at a game of cards on a Sunday afternoon. They had all been drinking; after a quarrel he went for a gun and shot his friend to death. He has a wife and five small children. Poor Priora!

The others in the cells are Jim Mullen, an ex-English soldier, Newfeldt, the Jew, and Fritz Meyer—all of them passed through the little iron door and paid the penalty of the law for their crime!

Some of the inmates call the death house a “Modern Inferno,” but I could not read Dante’s inscription, written over the portals, “None return that enter here.” Indeed, some who had spent from one to two years in those chambers of death have afterwards gone forth to liberty, and are now living in freedom. I have often thought that the awful monotony, the solitary silence, the deprivations of papers, letters and friends were enough to drive men in such a place crazy. But when one of the inmates came back to the Tombs to stand a new trial, I asked him regarding these things, and he informed me that they can only stand that awful silence and suspense a few days, when they break out and for hours make the place hideous with their yells.

An Italian named Raeffello Cascone returned to New York for another trial in July, 1906, after having spent thirty-one months and twenty-three days in the death house. During this time he saw twelve men go into the “Room with the Little Door,” who never returned again. Cascone occupied cell No. 1, and as the men passed into the death chamber he was permitted to shake them by the hand and wish them good cheer. At the second trial in this city, Cascone was liberated and since has kept a coffee house on Mulberry street. On August 10th, 1909, he was shot by the seventeen year



old brother of the man that he was alleged to have killed. Cascone has since died.

The whole number of persons electrocuted in Sing Sing from January 1st, 1890, till July 1st, 1909, according to the prison records, was between fifty and sixty.



## CHAPTER XXXVI

### A TRAMP COLONY

Every year our City Magistrates send to the Workhouse on Blackwell's Island no less than twenty thousand persons. This is entirely independent of the number sent from Kings County by the Magistrates of Brooklyn, Richmond and Queens.

By far the largest number of this contingent are the residuum of dregs of society. As soon as they have their liberty they prey upon society. And when they are in the toils again the ubiquitous gin-mill will account for it. But there are other reasons, and some of the responsibility will have to be laid at the door of our present social conditions, which need considerable re-adjusting.

It is needless to conceal the fact that a large percentage of this class is made up of thieves, drunkards, incorrigibles and homeless tramps. As they cannot find employment readily, they eke out a precarious living for a time as panhandlers and deadbeats and then return to prison, only to continue the same experience several times a year. As their imprisonment does them no good and as they are a great expense to the city and county, it becomes a serious problem what shall be done with them. At the present time the cost of crime in Greater New York is no less than twenty-five per cent. of the entire taxation.

We must therefore consider this subject intelligently with a view to its solution. But whether these social conditions can be explained fully to one's satisfaction matters very little. We question the right of the authorities to maintain any longer this army of idlers without making them work to pay the cost of their own living.

For some years past we have observed that hundreds—possibly thousands of unskilled laborers, many of whom are in the building trades, reach the dead-line about forty years of age. If they have lived intemperate lives and happen to be single or widowers, when winter sets in and they find themselves out of employment the only thing they can do is to apply to the Magistrate and ask to be committed to the workhouse as vagrants for three or six months. And many of them, after they have finished their time and secured their liberty are no better off, and painfully return to the Police Court for the twentieth time perhaps, to be the city's ward in the workhouse. What else can they do, or die on the street from sheer starvation?

This raises the question, what shall be done with our army of “tramp rounders” and incorrigibles? To continue to send them back to prison or workhouse for a few months is simply to prolong the evil and their own misery. Criminals are jailed and released in this county every year by the thousand, only to oscillate between prison and a brief season of liberty. When they leave the place of their confinement they seldom bid their keepers good-bye, only “au revoir.” When they come among their fellow men again they are not better. They have spent months or years in prison in idleness, and surrounded by vile companions, and they are no better. But why should they be allowed to endanger the life and liberty of society any longer after the experiences of the past? How long we can maintain such a system it is difficult to say. At any rate, the cost of maintaining our prisons is becoming enormous and the problem of what shall be done with “rounders” and hardened criminals, that prey upon society as soon as they get out of prison should be solved from a business and moral standpoint.

We believe the time has come for this whole matter to be thoroughly sifted and a remedy found that will be commensurate with the present needs. The aim should be the moral reformation of the criminal; nor do we think any remedy will be adequate that falls short of this object. But in working for this end we must not exalt criminals into objects of popular pity.

A few years ago a committee of the National Prison Association examined this whole subject and reported that every habitual criminal at large cost the State by robbery and spoilation no less than sixteen hundred dollars annually, and if in this State alone the taxpayers could be relieved of this burden it would be a saving of six million dollars a year.

Unfortunately New York and vicinity have a large army of unemployed at all seasons of the year—even when we are blessed with what is called “good times.” This is especially true of multitudes who are employed in the building trades. As a rule, contractors who are excavating and blasting for new buildings can always find twenty times as many laborers as they usually need.

But the wealth of the country is so great and the opportunities for employment so vast that the hustler can always find employment in some part of the country. Often large numbers of men and women are unable to find employment at any occupation, even when we have prosperous times. Nor are they to blame entirely for this. Many large corporations, such as railroads, will only give employment to the young and vigorous who are able to produce the largest amount of work, which means that the weak and infirm are soon driven to the wall, and at the first opportunity dropped from the pay roll and after a certain age are unable to find employment at anything.

At an expenditure of say \$100,000, several cheap plants could be erected on Riker’s Island, on Long Island Sound, where domestic articles could be manufactured at merely the cost of the raw material, and this army of tramps that infest the boroughs of Greater New York summer and winter could be made to pay the cost of their own living expenses. For example, ten or a dozen small shops could be erected that would give employment to 2,000 men and women who would produce things that would in no wise compete with the great labor industries of the country.

The following are some of the industries that could be carried on by the wards of the city of New York:

- Broom making,
- Brush making,
- Chair caning,
- Laundry work,
- Shoe making,
- Tailoring,
- And in summer Agriculture and Horticulture.

The city could rent a thousand acres of land in Westchester County on which garden produce could be raised and sold to the poor at low figures, which would give employment to from 500 to 1,000 persons. From the middle of April till the middle of October they could live in tents, which in many cases would greatly improve their health.

The cultivation of the soil under proper restrictions is a most healthful labor and cannot fail to show good results if properly carried out. French penologists and reformers speak of the system in the highest terms and recommend its adoption all over the world. If necessary these convicts could be used in works of irrigation or canals for the Federal Government, or indeed, the carrying on of public works in any part of the country.

M. Demetz, a French philosopher and founder of the Mettray Reformatory in France, has, for many years, advocated the cultivation of large tracts of land by criminals. His motto has been, "Reclaim the land by the man, and the man by the land." Since 1850 France has had agricultural colonies for young offenders in crime, where they are compelled to stay from six months to two years. They cultivate the soil on a paying basis, and the success and management of the farm colonies has been eminently successful, as only seven per cent. of their numbers return again to crime.

French economists think that money has never been more wisely spent than for such institutions, as the returns show that ninety-three per cent. of the inmates after their liberation become useful members of society.

It seems to us that no country in the world would carry out penal colonization schemes with greater advantage and better results than the United States.

The peaceful conquest of large tracts of lands in this State, means the acquisition of more domain within our own borders, in which there may be homes and farms for hundreds of our surplus population.

There are several thousand criminal and vagrant idlers who at the beginning of winter go before Justices of the Peace in the country towns and are committed to the county jails for several months, where they live in idleness on the fat of the land. Such people ought to be in some colony and kept there till cured of their delusions.

Section 690 of the Penal Code lays down the statute very clearly on this subject: "Where a person is hereafter convicted of a felony, who has been before that conviction, convicted in this State, of any other crime, or where a person is hereafter convicted of a misdemeanor, who has been already five times convicted in this State of a misdemeanor, he may be adjudged by the Court, in addition to any other punishment that may be inflicted upon him, to be an habitual criminal."

Section 691 says, "The person of an habitual criminal shall be at all times subject to the supervision of every judicial magistrate of the county, and of the Supervisors and Overseers of the Poor of the town where the criminal may be found, to the same extent that a minor is subject to the control of his parent or guardian."

Another large class of persons who are totally unfit to be at large are kleptomaniacs, dipsomaniacs, pyromaniacs, epileptics and incendiaries. They should be placed permanently in an asylum. If necessary they could be deported to some island, where many of them could be put to work to cultivate the soil.

What we shall do with our unemployed criminals who roam the country in search of plunder is becoming a very serious problem. It is said that New York has from forty to fifty thousand ex-criminals. This is a low estimate. Whether it is true or not I am not prepared to say. At any rate, there are enough to keep over ten thousand policemen busy watching for this fraternity night and day.

It is safe to say that New York alone has a floating population of twenty thousand habitual criminals, who are ready at any moment to commit crime, without a moment's warning, and then sail under a new name or leave for parts unknown.

There are also at least forty thousand men and women habitual misdemeanants in New York, who have been in prison for small offences, such as drunkenness, disorderly conduct, assault and petit larceny, from one to fifty times, and even more. What is going to be done with these?

The only remedy for the twentieth century tramp and habitual criminal is either to cure them, exile them or kill them. What shall it be? Perhaps the better and more humane method would be to colonize them until

permanently reformed and cured. But while locked up they should be compelled to work for their living.

The obstinate criminal is a dangerous character. He lives on crime; his hand is against every man, and naturally in the interest of self protection every man is against him. It can be said of the unreformed criminal what the frontier man says of the Indian—"dead Injun, good Injun."

Nor should petty thieves, paupers or tramps be allowed to go at large under any circumstances. They are social parasites and the State and city authorities should place them where they can be cured of their insane, lazy notions and made to work for a living or be permanently locked up. They have no more right to be at large than lepers or yellow fever patients, as they defile all with whom they come in contact.

A well known prison authority told me a short time ago that hundreds of men and women in this city go and return from prison like the swinging of a pendulum, and they are hardly out of prison before they are back in the toils again. What shall be done with them? That is the question which our authorities are called upon to answer.

The cost of crime in this city is enormous and, sad to say, is on the increase, and nothing is done to make our prison population share the expenses of their own keep; although it is well known that in deference to our Labor Leaders more than half the prisoners in the country are idle most of the time.

We would suggest that the inmates of this colony be classified in the following manner.

1. The diseased. Segregate them by themselves in a charity hospital until cured.
2. The aged and infirm. Send them to the Almshouse.
3. The able-bodied criminal rounder. Lock him up till cured. It is dangerous to keep him at large. But make him work for his living.
4. The chronic tramp and idler. Lock him up and make him work for his living.
5. The habitual drunkard. This man should be confined in a hospital till cured, and afterwards put to work.





## CHAPTER XXXVII

# THE COST OF CRIME IN GREATER NEW YORK

The cost of crime in the city of New York is a question of such vast importance to the taxpayers as to seem bewildering. It is a most difficult thing to follow crime into its various ramifications. If this could be done satisfactorily, it would show that crime enters a larger area than we think it does. The figures given below do not include the building of a new prison on Riker's Island, which is a needless waste of \$4,000,000. This, with many other steals, can be laid to Tammany politics. Kings County Penitentiary, situated on Crown Street, Brooklyn, was sufficient for all the needs of Greater New York for many years to come, but schemers desired the land on which the prison was built, and after some time, had it condemned and the plant and the real estate sold for a song!

Next to the liquor traffic, crime is our greatest National waste for which there seems to be no adequate remedy. Crime burns the candle at both ends as it affects old and young of both sexes in its ceaseless undermining of human character, aiming at the moral and social demoralization of the human race.

If the police were to arrest the hundreds of criminals that remain at large every year in this city, the correction and suppression of crime would cost vastly more than at the present. In all likelihood the expense would not be less than one-fourth of the entire cost of carrying on the Government of Greater New York.

We have made a careful study of the cost of crime in Greater New York, and find that the amount of money appropriated by the civil authorities, according to the figures of the Board of Estimate and Apportionment, since consolidation in 1898, has increased every year. Since the boroughs went

into partnership, and took the name of Greater New York, crime has increased from fifty to seventy-five per cent. Last year the number of arrests in this city exceeded that of the previous year by more than forty thousand, not to speak of hundreds of the most atrocious crimes on record, such as murder, arson, assault, highway robbery, burglary and larceny, that have baffled the detective bureau to discover the perpetrators.

Crime shows a larger increase in New York than elsewhere, because of the large foreign population, although it is a well established fact that crime is not the result of our foreign-born people as much as of their children, who are classed as native Americans.

In the following table the sums mentioned were appropriated by the Board of Estimate and Apportionment for 1909.

Perhaps I ought to say when we come to deal with the various departments of the city government that are only indirectly connected with crime, we find it more difficult to arrive at correct conclusions. Take for example the sheriff's office. This official's work is both civil and criminal. He has charge of the county jail and pays for the support of the inmates. He takes full charge of indicted prisoners for felonies, and after they are sentenced sees that they are safely landed in State prison or penitentiary. But he also deals with many civil processes besides. After making careful allowance, we set aside three-fourths of the sheriff's entire appropriation for crime.

In the first statement below it will be seen that all the moneys appropriated to the various departments and institutions are spent on the correction and repression of crime alone. Here are the official figures:

|                                          |                 |
|------------------------------------------|-----------------|
| Department of Police of Greater New York | \$15,195,331 00 |
| Department of Correction                 | 1,274,957 00    |
| District Attorney, New York              | 371,860 00      |
| District Attorney, Kings                 | 106,000 00      |
| District Attorney, Queens                | 35,500 00       |
| District Attorney, Richmond              | 12,900 00       |
| City Magistrates, 1st Division           | 355,800 00      |
| City Magistrates, 2nd Division           | 328,000 00      |

|                                                        |                 |
|--------------------------------------------------------|-----------------|
| Special Sessions and Children's Court,<br>1st Division | 134,420 00      |
| Special Sessions and Children's Court,<br>2nd Division | 94,800 00       |
| General Sessions, New York                             | 291,500 00      |
| Juvenile Asylum                                        | 55,005 00       |
| New York Catholic Protectory                           | 326,500 00      |
| Brooklyn Catholic Protectory                           | 17,500 00       |
| Jewish Protectory                                      | 50,000 00       |
| Brooklyn Court Rents, etc.                             | 40,000 00       |
| Miscellaneous Criminal Expenses                        | 75,000 00       |
|                                                        | <hr/>           |
|                                                        | \$18,765,073 00 |

In the second table the various departments of the city government that are indirectly connected with the repression of crime are mentioned and only a certain percentage allowed for criminal matters.

|                                                                                                                                                                                                                                               |              |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|
| Sheriffs of Greater New York, 75 per cent.                                                                                                                                                                                                    | \$236,301 50 |
| Department of Health, 10 per cent. for Crime                                                                                                                                                                                                  | 248,485 00   |
| Department of Charities, 25 per cent. for Crime                                                                                                                                                                                               | 275,696 21   |
| Fire Department, calls for an appropriation of \$8,039,565.50. I find after careful inquiry that half of the fires in this city are caused either by wilful or criminal carelessness. Fifty per cent. of that appropriation is spent on crime | 4,019,782 75 |
| Twenty-five per cent. may safely be allowed for the Criminal Expense of the City Law Department, Appellate                                                                                                                                    | 600,000 00   |

|                                                                                                                                              |                |                 |
|----------------------------------------------------------------------------------------------------------------------------------------------|----------------|-----------------|
| Division, Supreme Court and<br>Miscellaneous Expenses                                                                                        |                |                 |
| Commissioners of Jurors' office, 50 per<br>cent. for Crime                                                                                   |                | 53,550 00       |
| Coroners' Office, 50 per cent. for Crime                                                                                                     |                | 79,850 00       |
| Miscellaneous Criminal Expenses in the<br>Courts of Greater New York                                                                         |                | 220,000 00      |
| Private Penal Institutions that receive<br>petty offenders                                                                                   |                | 250,000 00      |
|                                                                                                                                              |                | <hr/>           |
|                                                                                                                                              |                | \$24,748,738 46 |
| The Cost of Crime to<br>business men and<br>corporations in<br>Greater New York<br>for Private Police,<br>Detective Agencies<br>and Watchmen | \$6,000,000 00 |                 |
| Property stolen and<br>not recovered                                                                                                         | \$5,000,000 00 |                 |
| Bank losses by fraud                                                                                                                         | 1,500,000 00   |                 |
|                                                                                                                                              | <hr/>          |                 |
|                                                                                                                                              |                | \$12,500,000 00 |
| Loss in Wages to Families of Men Sent<br>to Prison                                                                                           |                | 5,000,000 00    |
|                                                                                                                                              |                | <hr/>           |
| Total Amount spent yearly on Correction<br>and Repression of Crime                                                                           |                | \$42,248,738 46 |

The budget for the present year calls for the expenditure of \$156,545,148.14 to carry on the city government. A little more than one sixth of the money appropriated by the city government for the year is spent on crime.

Admitting then that the expense of crime touches almost every avenue of domestic and civic life, the only question is how long our national, state and city governments can continue to pay such enormous sums for the maintenance of police, courts of justice and the costliest and most expensive kind of prisons and penal institutions that money can build and furnish, without landing the country in irretrievable bankruptcy.

With all the loopholes in the law which favor the murderer, it costs the city at least \$10,000 on an average to send him to the electric chair, or even to State prison for life.

There are 200,000 criminals in the land to-day, who are a burden on the taxpayers to the extent of more than a billion dollars a year. But this loss to the country, as we have already intimated, is incomparable with the greater loss sustained by the kingdom of God. The work of reaching these brothers in stripes belongs to the Church, and she should prosecute it continually till she has brought them to Christ for healing and saving power.



## CHAPTER XXXVIII.

### THE AGE OF GRAFT.

We have had our stone age, our iron age and our steel age, now we have our graft age. This is the age of the political highwayman who makes the city and her people pay him tribute. This graft comes in the nature of perquisites, commissions and assessments for the good of the machine and those that run it. The graft disease first attacked the men in Congress. The government paid good salaries to all of its servants and even their mileage. But the railroads wishing large slices of the public domain sent the members of both houses free passes. After this other big corporations desiring special privileges were compelled to graft the legislators or receive no favors. Then the disease attacked our State law-makers, which in turn made everybody pay tribute to them, especially rich corporations. To-day, graft is the bane of our Municipal Government. And Tammany Hall has become the horse leach that cries, "Give, Give," and is never Satisfied! Nor is there any need of denying the fact that we are reaching a period in American history greatly to be deplored. Whatever may be said of our extravagance and high living, it cannot be denied that New York is drifting on the Rocks of Municipal bankruptcy. And the cause of it all is an insatiable desire for money, for which honest labor is not given.

With New York's phenomenal increase in population and material prosperity, since the close of the Civil War, the temptations for money making have become so numerous, that a Tammany contractor can find more wealth in paving one of the streets of the city than in a Klondyke gold mine. As a result the city Government is now in the hands of a gang of political-grafters, who are able to systematize the business affairs in the interest of the House of Grafters on Fourteenth Street, and are able to cover their tracks and "hoodwink" the people.



The amount of money appropriated by the Board of Estimate and Apportionment as the running expense of the city for the year 1909 is \$156,545,148.14, which is \$13,722,089.91 more than was spent last year. It may be fairly estimated that one-half of this amount is used to pay salaries of all city employees and the other half the yearly supplies, such as coal, books, stationery, printing, wagons, fire engines, rents, etc., etc. From all of the supplies furnished to the various departments, a commission of from twenty per cent. to twenty-five per cent. reaches the men higher up, taking a circuitous route to do so, but it gets there beyond the shadow of a doubt. This money is never given as a commission, but as a gift to the organization, so as to keep within the law. In round numbers these commissions will amount to not less than \$12,000,000 a year. No one will deny that nearly all the Tammany employees of the city government pay into the organization yearly not less than twenty per cent. of their salaries. Sometimes they are assessed from five dollars and five thousand dollars, and if they refuse to pay, they are black-listed and afterwards "bounced." Twenty per cent. of graft from the wages of city employees would amount to not far from \$12,000,000 a year.

Then there is enormous graft from the purchase of real estate, school houses and other buildings for the city, bridges, paving of streets, sewers, public improvements, etc, etc., \$12,000,000 of which will eventually reach the house of grafters on Fourteenth Street.

We have said nothing about the police graft, which, to use the most conservative figures, will amount to at least \$20,000,000 a year. The larger part of this reaches the house of grafters and is used for the purpose of buying elections and paying idle retainers who work for the organization around a November election. In the collection of this graft, brewers, malsters, saloon keepers, merchants, builders, contractors, the great shipping interests of the city, dives, pool-rooms and bawdy-houses all pay tribute. Even bootblacks, cabmen and push cart men have all to contribute to save themselves from petty annoyances. Using the most careful figures, from sixty to seventy million dollars a year is spent in graft.

Gen. Bingham, in a newspaper article, estimates the city graft at a \$100,000,000 a year. Our figures are less as we wish to keep on the safe side!

Everybody knows that street railroads, gas companies and big corporations of every name can tear up our streets and leave them in a dangerous condition for months, but that could not be done without paying “graft” to some persons!

Nearly forty years ago Boss Tweed got away with something like four million dollars from the city of New York. This startled the entire country. But when Mr. Croker went to Europe a few years ago, he is said by the “Boys” to have taken with him a fortune of fifteen millions cash! Tweed’s roll looks more like thirty cents alongside of Croker’s, and his successor, Charley Murphy, shows no signs of poverty thus far. If there is a bigger grafting institution in the country than this place on Fourteenth Street, we would like to know where it is.

There are many ways whereby money can be used to advantage in enriching and bribing city officials in return for favors that the temptations to use graft are very great. Ordinarily, when we speak of graft, we mean the payment of money or its equivalent, to some public official or even a member of his family who is willing in return to perform a dishonest act or wink at the violation of law. A considerable amount of graft is received in the form of gifts and tips for favors given indirectly in one way or another, that cannot be considered criminal. Still no business man is willing to tip an employee of the city government without expecting some favors in return.

What the average city official receives as gifts and gratuities are insignificant compared to what the “big grafters” receive who are the leaders of our political organizations, from rich corporations and railroads and for fat contracts, franchises and special privileges which are worth millions of dollars.

A few years ago the Lexow and Mazet investigators, who exposed this graft plague in the city government, showed that many persons in the police department, from the highest officials down to patrolmen, were in the business for “Graft” and all favors and promotions cost money. It also became known that a captaincy cost as high as \$17,000 to \$20,000, and sometimes much higher. But the bi-partisan political character of the Board was mainly responsible for this shameful corruption. Under Gen. Bingham all this was done away, and merit ruled the department.

For several years police officials have been involved in “Graft Scandals,” and after their retirement from the department were found to be immensely rich, besides having large real estate interests. This condition of affairs has gone on so many years that the rank and file of the force are not satisfied now with their regular salary, and demand graft for protecting the “gin mill,” the “immoral house,” the pool room and the “gambling hell,” all of which brings an enormous revenue. In some cases everybody in the block is called upon to pay tribute, and woe be to the one that refuses.

A man named G....., from Chicago, who was arrested in the lower part of the city for intoxication, told me, when he was in the station house, he could remember distinctly the cop going through his pockets; when he came to himself next morning he found he was minus a diamond ring and some bills. The police had relieved him of all his money. When he called for his money he had his face punched.

There have been times when by the free use of graft, inside information including secrets that are supposed to be carefully guarded by the officials in the controller’s office, tax office, corporation counsel’s office, board of education, office of the coroner and other departments, have been given away by grafters to men who reaped thousands of dollars thereby.

A grafting contractor can afford to pay a dishonest municipal employe a thousand dollars, or even five thousand dollars, for the information that will enable him to secure the job to build sewers or pave streets, erect a school house or build a bridge or a reservoir. Often “fake” bids are made so as to secure the work to a ring of speculators who in the end reap millions.

The new water works for this city will cost at least \$250,000,000. Tammany Commissioners make fifty dollars a day. If they work twenty-four days in a month they get \$1,200. That is big money to men who are only laborers in intellect!

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